OREGON
UNIFORM CIVIL
JURY INSTRUCTIONS

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2008 REVISION
with
2009–2024 Supplements

NOTE: A complete *Oregon Uniform Civil Jury Instructions* handbook consists of all instructions dated from 2008 through 2024.

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NOTE: This print version of the *Uniform Civil Jury Instructions* is accurate through December 31, 2024. The Uniform Civil Jury Instructions Committee revises and updates the instructions throughout the year. The most current version of the instructions, including amendments and new instructions, is available on BarBooks™, which is free to all active members in good standing of the Oregon State Bar. *See* www.osbar.org/secured/login.asp?st=/secured/barbooks.

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SUMMARY OF 2024 CHANGES

NOTE: This page provides a short explanation of the Committee's 2024 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 17.01 (Statute of Limitations Defense (Discovery Rule))s	Deleted several cases from the comment as they were determined to be irrelevant or redundant. Added *Rice v. Rabb* and *Romero v. Amburn* to the comment and moved *Gaston v. Parsons* to beginning of comment as it's a seminal case and the instruction's language is taken from *Gaston*. Added note of caution to end of comment regarding claims that are subject to different discovery rules other than the one reflected in this instruction.
UCJI 21.02 (Comparative Fault/Negligence)	Edited to mirror 21.04 (below). Added *Shin v. Sunriver* case to comment and added note stating that comparative fault is not a defense to intentional or wanton/ reckless torts. Updated cases in comment.
UCJI 21.04 (Comparative Fault/Negligence—More than Two Persons Potentially at Fault) (*new title*)	Added *Shin v. Sunriver* case to comment and added note stating that comparative fault is not a defense to intentional or wanton/ reckless torts. Added paragraph directing users to *Sandford v. Chevrolet* for complex cases.
UCJI 23.01 (Causation—"But For")	Instruction edited to address judicial comments made in *Haas v. Estate of Carter* regarding this instruction.
UCJI 44.03 (Professional Perfection Not Required) (WITHDRAWN)	UCJI 44.03 (Professional Perfection Not Required) (WITHDRAWN)
UCJI 48.08 (Comparative Fault/Negligence—Products Liability—Plaintiff's Failure to Discover Defect) (*new title*)	Title updated to change *contributory* to *comparative fault*. Personal pronouns replaced with nouns. Sentence added to comment to cross-reference to UCJI 21.02 and UCJI 21.04.

UCJI 58.01 (Workers' Compensation Discrimination)	Updated to reflect amendments made to supporting statutes. Instruction now includes prohibition by an employer or "any person acting on behalf of the employer" from discriminating because of employee's involvement in the workers' compensation system. Also added *inquiring about benefits* to list of actions that may be basis for recovery for workers' comp discrimination.
UCJI 58A.02 (Whistleblowing (Public Employer))	Committee reviewed the instruction and determined that it needed no updates.
UCJI 59A.01 (Employment Discrimination—Conditions of Employment)	Updated to reflect amendment to supporting statute. Added "gender identity" to list of characteristics that may not be basis of employment discrimination. Also changed personal pronouns to gender-neutral nouns.
UCJI 59A.02 (Employment Discrimination—Hiring/Discharge)	Update to reflect amendment to supporting statute. Added "gender identity" to list of characteristics that may not be basis for hiring/ discharge determination. Also changed personal pronouns to gender-neutral nouns.
UCJI 70.02 (Damages—Noneconomic (In Claims Subject to ORS 31.705)) (*new title*)	Title and comment updated to change ORS 31.710 to ORS 31.705 to reflect legislative amendments. Personal pronouns replaced with nouns. Comment updated with a parenthetical added to the *Lovejoy* case.
UCJI 71.01 (Damages for Death—Noneconomic)	Updated statutory citations. The optional subsections from item (2) of the instruction were removed.
UCJI 71.02 (Damages for Death—Economic (In Claims Arising on or After September 27, 1987))	Updated statutory citations to reflect legislative amendments. More options added in brackets to include family members listed in support statute. The *Durkoop v. Mishler* case was added to the comment.
UCJI 72.01 (Damages—Loss of Consortium)	Updated statutory citations to reflect legislative amendments. Cases in the comment were reorganized and a quotation added from the *Axen* case. Personal pronouns in instruction changed to gender-neutral nouns.

SUMMARY OF 2023 CHANGES

NOTE: This page provides a short explanation of the Committee's 2023 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

User's Guide	Existing cited case law was reviewed and where appropriate new cases were added. Various portions of the guide were edited for clarity and updated to reflect amendments to statutes and rules cited in the guide. Personal pronouns were replaced with gender-neutral terms. The order of material in subsections 1.11 and 1.12 was switched and 1.11 was expanded. Subsection 1.15 was reorganized. Much of part IV was edited and updated to clarify and expand on the area of exceptions to instructions.
UCJI 30.04A—Actual Agent	UCJI 44.06 (Agency—Hospital Context Actual Agent) and UCJI 44.07 (Agency—Hospital Context Apparent Agent) were both withdrawn and comments were added to UCJI 30.04A and UCJI 30.04C (Apparent Agent) addressing *Eads v. Borman*, 351 Or 729 (2012) and *Towner v. Bernardo*, 304 Or App 397 (2020).
UCJI 30.04C—Apparent Agent	UCJI 44.06 (Agency—Hospital Context Actual Agent) and UCJI 44.07 (Agency—Hospital Context Apparent Agent) were both withdrawn and comments were added to UCJI 30.04A (Actual Agent) and UCJI 30.04C addressing *Eads v. Borman*, 351 Or 729 (2012) and *Towner v. Bernardo*, 304 Or App 397 (2020).

UCJI 44.03—Professional Perfection Not Required	This instruction was withdrawn in 2022 following the Court of Appeals opinion in *Martineau v. McKenzie-Willamette Med. Ctr.*, 320 Or App 534 (2022), which held that UCJI 44.03 was an incorrect statement of law. In 2023 the Supreme Court reversed, finding the instruction was not an incorrect statement of the law, but questioning whether it should be reinstated. The instruction is still currently withdrawn, but the Supreme Court opinion, and its subsequent history, has been added in a comment in the withdrawn opinion. In 2024 the UCJI Committee will further consider whether to reinstate the instruction.
UCJI 44.06—Agency—Hospital Context Actual Agent	UCJI 44.06 and UCJI 44.07 (Agency—Hospital Context Apparent Agent) were both withdrawn and comments were added to UCJI 30.04A (Actual Agent) and UCJI 30.04C (Apparent Agent) addressing *Eads v. Borman*, 351 Or 729 (2012) and *Towner v. Bernardo*, 304 Or App 397 (2020).
UCJI 44.07—Agency—Hospital Context Apparent Agent	UCJI 44.06 (Agency—Hospital Context Actual Agent) and UCJI 44.07 were both withdrawn and comments were added to UCJI 30.04A (Actual Agent) and UCJI 30.04C (Apparent Agent) addressing *Eads v. Borman*, 351 Or 729 (2012) and *Towner v. Bernardo*, 304 Or App 397 (2020).
UCJI 52.01—Liability for Domestic Animals—Strict Liability	"Property damage" was added to the instruction. Personal pronouns were replaced with nouns. The terms *class* and *species* were put in brackets for users to choose which term best suits their case. Information was added to the comment addressing dogs adjudged to be *potentially dangerous*.
UCJI 52.02—Liability for Domestic Animals—Negligence	The Committee voted to withdraw UCJI 52.03 (Damages for Injuries Caused by a Dog) and combine it with UCJI 52.02.

UCJI 52.03—Damages for Injuries Caused by a Dog	The Committee voted to withdraw this instruction and combine its content with UCJI 52.02 (Liability for Domestic Animals—Negligence)
UCJI 52.04—Definitions of *Domestic Animal* and *Wild Animal*	The Committee reviewed this instruction and determined that no changes were needed.
UCJI 52.05—Strict Liability for Personal Injury and/or Property Damage Caused by a Potentially Dangerous Dog	New instruction based on ORS 609.115. Requires that dog be adjudged *potentially dangerous* before injury or damage occurred for strict liability to attach.
UCJI 52.06—Definition of *Keeper*	New instruction based on ORS 609.035(4).
UCJI 52.07—Defense to Strict Liability for a Potentially Dangerous Dog—Provocation, Assault, or Trespass	New instruction for affirmative defense to strict liability for potentially dangerous dog.
UCJI 53A.11—Defamation—Damages	Since this instruction was last reviewed in 2010, the case of *Smothers v. Gresham Transfer, Inc.*, 332 Or 83 (2001) (cited in the caveat) was overruled by *Horton v. OHSU*, 359 Or 168 (2016). The Committee removed the citation to *Smothers* and added text encouraging attorneys to consider recent Remedies Clause cases that affect the constitutionality of ORS 31.205 to 31.225.
UCJI 66.07—Contractual Duty of Good Faith (UCC)	A new introductory sentence was added to the instruction and citations in the comment were updated. Some language was removed from the instruction that had been deleted from ORS 79.0102(1)(qq) in 2009.
UCJI 70.03—Damages—Economic (In Claims Subject to ORS 31.705)	Updated supporting citation that had been renumbered. The instruction was edited to be more reflective of the supporting statute. References to “plaintiffs” in the instruction were expanded to include defendants.

UCJI 71.03—Future Economic Damages for Death (Present Value)	Updated supporting citation that had been renumbered.
UCJI 74.01—Damages—Permanent Injury—Life Expectancy—Mortality Tables	Updated the language of the instruction to remove personal pronouns. Rather than trying to identify all possible demographic categories, the Committee added a parenthetical allowing the user to insert the appropriate category.

SUMMARY OF 2022 CHANGES

NOTE: This page provides a short explanation of the Committee's 2022 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 44.03—Professional Perfection Not Required	This instruction has been withdrawn. In *Martineau v. McKenzie-Willamette Medical Center*, 320 Or App 534, 514 P3d 520 (2022), the court of appeals held that this instruction was an incorrect statement of law. The Oregon Supreme Court has granted review in this case and the Committee will await its outcome before considering whether to replace this instruction.
UCJI 75.02—Punitive Damages–General	The Committee deleted the *McElwain v. Georgia-Pacific Corp.* case from the comments, unanimously agreeing that it was not relevant to the instruction. In 2021, after a lengthy debate as to whether this instruction should include a definition of the term *malice*, the Committee instead created a new instruction (UCJI 75.02C) to define the term and added a cross-reference in the comments of this instruction. Gender-neutral nouns were substituted for personal pronouns.
UCJI 75.02A—Punitive Damages–Out-of-State Conduct	The Committee reviewed the instruction and made only minor technical amendments to the comment. No substantive changes were made to the instruction.
UCJI 75.02B—Punitive Damages–Harm to Others	The Committee reviewed the instruction and made only minor technical amendments to the comment. No substantive changes were made to the instruction.
UCJI 75.03—Punitive Damages–Health Care Practitioner (In Claims Arising on or after September 27, 1987)	The Committee expanded the comments adding text addressing items that the jury may consider when fixing the amount of punitive damages. The comments for this instruction now mirror the comments for UCJI 75.02. In 2021, after a lengthy debate as to whether this instruction should include a definition of the term *malice*, the Committee instead created a new instruction (UCJI 75.02C) to define the term and added a cross-reference in the comments of this instruction. The Committee substituted gender-neutral nouns for personal

	pronouns and made minor technical changes to the instruction.

SUMMARY OF 2021 CHANGES

NOTE: This page provides a short explanation of the Committee's 2021 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 14.01—Burden of Proof	The Committee removed personal pronouns from th instruction.
UCJI 42.10—Fraudulent Misrepresentation—Standard of Proof	The Committee updated the instruction title by changing the phrase *Burden of Proof* to *Standard of Proof.*
UCJI 42.11—Fraudulent Misrepresentation—Standard of Proof—Damages	The Committee updated the instruction title by changing the phrase *Burden of Persuasion* to *Standard of Proof*.
UCJI 50.01—*Fiduciary Duty* Explained	The Committee updated the title by changing the term *Defined* to *Explained*. This instruction underwent months of discussion and revisions. The instruction itself is expanded. The Committee decided against including a non-exhaustive list of possible fiduciary duties. The comment following the instruction was greatly expanded to include new cases and advice regarding submission of a special instruction defining fiduciary duties that were allegedly breached.
UCJI 50.02—Breach of Fiduciary Duty	The Committee reworded the instruction for clarity.
UCJI 75.02C—Punitive Damages—*Malice* Defined	The Committee created this new instruction to provide a stand-alone definition for the term *malice*. The definition of *malice* will in turn be removed from UCJI 75.02 and 75.03.
UCJI 90.11—Special Verdict—Penalty Wage—Discharge by Employer or Mutual Agreement	The Committee created this special verdict to be used with UCJI 54.05 (Penalty Wage for Failure to Pay Wages on Termination of or Quitting Employment).

SUMMARY OF 2020 CHANGES

NOTE: This page provides a short explanation of the Committee's 2020 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 5.00—Introduction (to be given to venire before jury is selected)	The Committee added unconscious-bias language to the instruction.
UCJI 5.01—Precautionary Instructions (to be given after the jury is selected)	The Committee added unconscious-bias language to the instruction.
UCJI 5.03—Functions of the Court and Jury	The Committee added unconscious-bias language to the instruction.
UCJI 14.02—Preponderance of the Evidence	The Committee reviewed the instruction, which was last reviewed in 2008, and determined that no changes were needed.
UCJI 14.03—Clear and Convincing Evidence	The Committee reviewed the instruction, which was last reviewed in 2008, and determined that no changes were needed.
UCJI 30.03—Corporation Acts through Agents	The Committee reviewed the instruction, which was last reviewed in 2007, and determined that no changes were needed.
UCJI 43.01—Unlawful Trade Practice—Elements	The governing statute has dozens of subsections and addressing them all in a single instruction would be unwieldy. The Committee made the instruction as concise as possible, allowing the users to select the appropriate violation rather than trying to address all the possibilities in the instruction. The title was amended to add the word *elements*.
UCJI 43.02—Unlawful Trade Practices Act—Damages (Ascertainable Loss)	The Committee changed the phrase *any economic loss* to *a loss of money or property*. The Committee also added additional case law to the Comment.
UCJI 43.03—*Willful* Defined	The Committee changed the title from "Willful Violation of Oregon Trade Practices Act" to "*Willful* Defined." They then altered the definition to allow the user to fill in the applicable conduct from the relevant statute or rule. In the Comment, the Committee added information about willful violations.

UCJI 47.01—Liquor Liability—Service by Licensee, Permittee, or Social Host	The Committee withdrew this instruction. There is considerable debate over whether ORS 471.565 is unconstitutional in its entirety or only subsection (1). Since the courts have not clarified this matter, the Committee decided not to take a position and withdrew the instruction. They did, however, add citations to the *Schutz* and *Balzer* cases in the Comment section of the withdrawn opinion.
UCJI 47.02—Liquor Liability (Statutory Liability)—Service to Persons under 21	This instruction was last reviewed in 2005. The Committee determined the language of the instruction was still accurate. They added ORS 471.130 to the Comment.
UCJI 53.01—Trespass to Land	The Committee made minor edits to remove personal pronouns from the instruction.
UCJI 60.16—Future Plans and Intentions	The Committee withdrew this instruction because it is sufficiently addressed in UCJI 60.13—Fair Cash Market Value

SUMMARY OF 2019 CHANGES

NOTE: This page provides a short explanation of the Committee's 2019 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 50.03—Breach of Fiduciary Duty—Duty of Undivided Loyalty (Conflict of Interest)	An affirmative defense was embedded in this instruction. The committee removed the defense and used it to create new UCJI 50.04. This instruction has been retitled.
UCJI 50.04—Breach of Fiduciary Duty of Undivided Loyalty—Full Disclosure as a Defense	This affirmative defense was embedded in UCJI 50.03. The committee removed the defense from UCJI 50.03 and used it to create this new instruction.
UCJI 59.01—Disability Discrimination—Elements	The Committee overhauled and reorganized the disability-discrimination instructions. The phrase *discriminatory action* was replaced with *adverse treatment* and the instruction title was changed. In addition, the committee removed the fifth element, which stated that the "defendant's action caused the plaintiff damage."
UCJI 59.02—Disability Discrimination—*Person with a Disability* Defined	The Committee overhauled and reorganized the disability-discrimination instructions. Because the OARs cited in the prior version have been adopted by the statutes, the OARs were removed from the comment. The definition of *major life activity* was removed in favor of simply citing to the statute.
UCJI 59.03A—Disability Discrimination—Qualified to Perform the Essential Functions of the Job	As part of the Committee's overhaul and reorganization of the disability-discrimination instructions, this new instruction was created using the elements that previously were found in UCJI 59.01 (Disability Discrimination—Elements)
UCJI 59.05—Disability Discrimination—"Failure to Accommodate" Elements	As part of the Committee's overhaul and reorganization of the disability-discrimination instructions, this instruction was completely rewritten and the elements reduced from four to two.
UCJI 59.06—Disability Discrimination—*Reasonable Accommodation* Defined	As part of the Committee's overhaul of the disability-discrimination instructions, the Committee changed this from an instruction that provided examples of *reasonable accommodation* to one that provided a definition of the term.

UCJI 59.07—Disability Discrimination—Undue Hardship Defense	As part of the Committee's reorganization of the disability-discrimination instructions, the text of this instruction that addressed *reasonable accommodation* was moved to UCJI 59.06. This instruction's focus is now solely on the defense of undue hardship.
UCJI 60.09—Partial Taking—"Before and After" Method	The title of this instruction was changed to replace the word *Rule* with the word *Method*.
UCJI 60.10—Partial Taking—"Taking and Damages" Method	This title of this instruction changed from "Partial Taking—Market Value and Depreciation of Remainder Rule." Cases were added to the comment.
UCJI 60.13—Fair Cash Market Value	This instruction was reviewed by the Committee and determined to still be accurate. The instruction has been given a new date.

SUMMARY OF 2018 CHANGES

NOTE: This page provides a short explanation of the Committee's 2018 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 59.03—Disability Discrimination—*Record of Impairment* Defined	The Committee is overhauling the entire set of disability-discrimination instructions. The content of this instruction will be addressed in a future instruction.
UCJI 59.04—Disability Discrimination—*Regarded as Having an Impairment* Defined	The Committee is overhauling the entire set of disability-discrimination instructions. The content of this instruction will be addressed in a future instruction.

SUMMARY OF 2017 CHANGES

NOTE: This section provides a short explanation of the Committee's 2017 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 5.02 — Use of an Interpreter	The Committee made minor edits to update the language in the instruction.
UCJI 16.01 — Ability to Pay	The Committee reviewed this instruction and determined that it was accurate as written. The instruction was cited checked and given a new date.
UCJI 22.03 — Negligence—Passenger	The Committee withdrew this instruction after determining that the substance was sufficiently addressed in other instructions.
UCJI 24.01 — *Res Ipsa Loquitur*	The Committee reviewed this instruction and determined that it was accurate as written. The instruction was cite checked and given a new date.
UCJI 54.05 — Penalty Wage for Failure to Pay Wages on Termination of or Quitting Employment	The Committee made significant revisions to this instruction. The definition of *willful* was changed to reflect recent case holdings. New cases were added to the comment. The penalty wage calculation was deleted from the instruction and a new instruction will be drafted at a later date to address the calculation separately.
UCJI 58.01 — Workers' Compensation Discrimination	This instruction was revised to include a definition for the term *invoke*. A new case and an additional note were added to the comment.
UCJI 59.01 — Disability Discrimination Disparate Treatment—Elements	The language of this instruction was updated to reflect wording of current statutes. ORS citations in the comment were updated.
UCJI 67.07 — Breach of Implied Warranty of Merchantability (UCC)	Item (2) of the instruction was edited to track the statutory language. A citation to ORS 72.1040 was added for the definition of *merchant*.
UCJI 71.01 — Damages for Death—Noneconomic	The title was changed to eliminate the parenthetical reference to claims arising on or after September 27, 1987. *Stepchildren* and *stepparents* were added to the instruction as was the phrase *just, fair, and reasonable* to track the supporting statute. The supporting case in the comment was replaced with a more recent case.

UCJI 71.02 — Damages for Death—Economic (In claims Arising on or after September 27, 1987)	*Stepchildren* and *stepparents* were added to the instruction. The comment was edited to remove the paragraph addressing loss of service in UCJI 71.01 and a supporting case was added.
UCJI 80.24 — Landlord's Legal Right to Enter—Without Notice (Showing Premises to Prospective Buyer)	The instruction title was amended to change the phrase *Right of Access* to *Right to Enter*. The phrase *signed by both parties* was added to the instruction and the term *or landlord's agent* was inserted throughout the instruction as needed to track the supporting statute. Statutory citations in the comment were updated to reflect legislative renumbering of subsections.
UJCI 80.26 — Landlord Retaliation—For Tenant's Affirmative Claim	The Committee drafted a new instruction to address ORS 90.385, which deals extensively with a landlord's retaliatory conduct.

SUMMARY OF 2016 CHANGES

NOTE: This page provides a short explanation of the Committee's 2016 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 80.12 – Limitations on Taking Possession of Premises	This instruction was revised for clarity and to more closely track the supporting statute. Definitions and a new case were added to the comment.
UCJI 80.13 — Unlawful Removal, Exclusion, or Diminution of Services	This instruction was revised for clarity.
UCJI 80.14—Unlawful Retention of Prepaid Rent or Security Deposit	This instruction was revised to clarify when a landlord owes a tenant an accounting and not just a refund. A note was added to further clarify the duty to provide an accounting. A second note was added addressing the definition of *bad faith*.
UCJI 80.15—Failure to Disclose Legal Proceedings that Affect Rental Property	This instruction was revised to clarify whether damages *may* or *must* be awarded. A new case was added to the comment to support the nondiscretionary award of damages.
UCJI 80.16—Right to Terminate a Rental Agreement	This instruction was withdrawn. The committee felt the substance of the instruction was adequately addressed in other existing landlord-tenant instructions.
UCJI 80.17 – Waiver of Right to Terminate a Rental Agreement	Minor wording changes were made for clarity. Cross-references were added to ORS 90.414 in the comment.
UCJI 80.18—Tenant's Claim for Unlawful Entry upon Premises	The title was changed from "Tenant's Claim for Unlawful Access to Premises" to "Tenant's Claim for Unlawful Entry upon Premises." Minor wording changes were made to the instruction to more closely track the supporting statute. The comment was edited to clarify the type of entry allowed.
UCJI 80.19—Landlord's Claim for Refusal to Allow Lawful Entry upon Premises	Title changed from "Landlord's Claim for Refusal to Allow Lawful Access to Premises" to "Landlord's Claim for Refusal to Allow Lawful Entry upon Premises." Statutory subsections in the comment were updated to reflect legislative renumbering of ORS 90.100.

UCJI 80.20—Landlord's Legal Right to Enter—With Notice	Title changed from "Landlord's Legal Right of Access—With Notice" to "Landlord's Legal Right to Enter—With Notice." Minor wording changes were made to the instruction to more closely track the supporting statute. Statutory subsections in the comment were updated to reflect legislative renumbering of ORS 90.100.
UCJI 80.21—Landlord's Legal Right to Enter—Without Notice (for Purpose of Serving Notice)	Title changed from "Landlord's Legal Right of Access—Without Notice" to "Landlord's Legal Right to Enter—Without Notice." The phrase "or a landlord's agent" was added to the instruction to more closely track the supporting statute. The instruction was also amended to clarify that the right to enter does not extend to the dwelling unit. Statutory subsections in the comment were updated to reflect legislative renumbering of ORS 90.100.
UCJI 80.22—Landlord's Legal Right to Enter—Without Prior Notice (Emergency)	Title changed from "Landlord's Legal Right of Entry—Without Prior Notice" to "Landlord's Legal Right to Enter—Without Prior Notice." The phrase "at any time" was added to the instruction to more closely track the supporting statute. Text was added to the comment addressing the definition of *emergency*. Statutory subsections in the comment were updated to reflect legislative renumbering of ORS 90.100.
UCJI 80.23—Landlord's Legal Right to Enter—Without Notice (To Make Repairs Requested by Tenant)	Title changed from "Landlord's Legal Right of Access—Without Notice" to "Landlord's Legal Right to Enter—Without Notice." The phrase "or landlord's agent" was added to the instruction to more closely track the supporting statute. Statutory subsections in the comment were updated to reflect legislative renumbering of ORS 90.100.
UCJI 80.25—Landlord's Legal Right to Enter—Without Notice (Yard Maintenance or Grounds Keeping)	Changed title from "Landlord's Legal Right of Access—Without Notice" to "Landlord's Legal Right to Enter—Without Notice." Added the phrase "or the landlord's agent" to the instruction to more closely track the supporting statute. Added a note in the comment that advance notice is not required. Added definitions to the comment and updated statutory subsections to reflect

	legislative renumbering of ORS 90.100. Added a clause to the beginning of the instruction addressing whether a written agreement requires the landlord to perform yardwork.

SUMMARY OF 2015 CHANGES

NOTE: This page provides a short explanation of the Committee's 2015 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 30.04, 30.04A, 30.04B, 30.04C, 30.04E, 35.01, 35.02, 35.05, 55.12A, 70.11, 73.02	These instructions were reviewed by the Committee and determined to still be accurate, were cite checked, and given a new date.
UCJI 17.03 – Statute of Limitations Defense (Products Liability) (In Claims Involving Death, Personal Injuries, or Property Damage That Occurred on or after January 1, 2004)	To make the instruction more effective it was narrowed in focus and split into three parts resulting in new instructions UCJI 17.04 and UCJI 17.05.
UCJI 17.04 – Statute of Ultimate Repose Defense (Products Liability) (In Claims Involving Personal Injuries, or Property Damage That Occurred on or after January 1, 2010)	New instruction providing a statute of ultimate repose defense to product-liability claims for personal injury or property damage that occurred on or after January 1, 2010.
UCJI 17.05 – Statute of Ultimate Repose Defense (Products Liability) (In Claims Involving Death That Occurred on or after January 1, 2010)	New instruction providing statute of ultimate repose defense for product-liability death claim for death occurring on or after January 1, 2010.
UCJI 30.04D – Apparent Authority	A case that was reversed on other grounds was deleted from the comment.
UCJI 36.03 – Definition of *Guest*—Aircraft, Watercraft	Two cases were deleted from the comment.
UCJI 42.10 – Fraudulent Misrepresentation—Burden of Proof	Title changed from "Burden of Persuasion" to "Burden of Proof." The instruction was revised for clarity and a new case was added to the comment.
UCJI 46.03 – Definition of *Trespasser*	A new case was added to the comment dealing with the definition of *privilege* and a new case was added addressing the issue of consent.
UCJI 50.02 – Breach of Fiduciary Duty	This instruction was revised for clarity. In the comment two cases were deleted and a more recent case was added.

UCJI 54.04 – Claim for Unpaid Wages—Discharged by Employer or Mutual Agreement	Title of instruction changed. Second element of instruction dealing with discharge expanded to include termination by mutual agreement. New cases were added to the comment.
UCJI 55.15 – Employer Liability—Not Delegable	This instruction was revised to omit the summary of duties that cannot be delegated by an employer.
UCJI 59.04 – Disability Discrimination—*Regarded as Having an Impairment* Defined	This instruction was completely revised to reflect the legislative amendments made to ORS 659A.104 (*former* ORS 659A.100).
UCJI 65.17A – Ambiguity in Contract	This instruction was revised for clarity and two cases were deleted from the comment.
UCJI 65.17B – Resolving Ambiguity in Contract	This instruction was revised for clarity and two new factors were added to the instruction.
UCJI 65.21 – Accord and Satisfaction (Generally)	This instruction was revised for clarity and the citation to ORS 71.2010(10) in the comment was deleted.
UCJI 67.01 – Warranties in General (UCC)	The definition of *warranty* was deleted from the instruction and cross-references to other jury instructions were added to the comment.
UCJI 67.02 – Creation of Express Warranties (UCC)	This instruction was revised for clarity with a new sentence added to the beginning to explain to the jury whether the buyer is the plaintiff or defendant and to explain the corresponding status of the seller. A case was added to the comment as well as cross-references to other jury instructions.
UCJI 70.03 – Damages—Economic (In Claims Subject to ORS 31.710)	New cases were added to the comment.
UCJI 70.12 – Tort Damages—Real Property (Partial Destruction)	A new case was added to the comment.
UCJI 70.15 – Damages—Bar of Noneconomic Damages (Under the Influence of Intoxicants)	The comment was revised and a new case added.
UCJI 70.16 – Damages—Bar of Noneconomic Damages (Uninsured)	This instruction and the comment were revised for clarity and a new case was added to the comment.

UCJI 70.17 – Damages—Bar of Noneconomic Damages (Defenses to Bar of Damages)	A new case was added to the comment.
UCJI 80.01 – Retaliation for Complaint to Governmental Agency—As Defense to No-Cause Eviction	This instruction was revised for clarity. "Substantial factor" was added as an element of the defense. A note and case were added to the comment alerting the parties to the question of causation. Other cases were deleted from the comment.
UCJI 80.02 – Retaliation for Complaint to Landlord—As Defense to No-Cause Eviction	This instruction was revised for clarity. "Substantial factor" was added as an element of the defense. A note and case ware added to the comment alerting the parties to the question of causation. Other cases were deleted from the comment.
UCJI 80.03 – Retaliation for Other Complaints—As Defense to No-Cause Eviction	This instruction was revised for clarity. "Substantial factor" was added as an element of the defense. A note and case were added to the comment alerting the parties to the question of causation. Other cases were deleted from the comment.
UCJI 80.04 – Eviction for Cause Other than Nonpayment—30-Day Notice	This instruction was revised to more closely track the statute. The comment was revised to update the statutory citations.
UCJI 80.05 – Eviction for Cause—24-Hour Notice	This instruction was revised for clarity. The comment was revised to update the statutory citations.
UCJI 80.06 – Waiver by Acceptance of Partial Rent after a Nonpayment of Rent Notice	This instruction was revised for clarity and the comment was revised to update the statutory citation.
UCJI 80.07 – Waiver by Acceptance of Partial Rent before a Nonpayment of Rent Notice	This instruction was revised for clarity.
UCJI 80.08 – *Good Faith*	This instruction was revised for clarity.
UCJI 80.09 – Habitability	The requirement for a carbon monoxide alarm was added and an option added at the end of the list that incorporates any condition posing a danger to health or safety of a kind similar to those listed in the statute. A note and case

	was added to the comment addressing this added option.
UCJI 80.10 – Eviction for Nonpayment of Rent—72-Hour Notice	This instruction was revised to add the requirement that the notice indicate the amount of rent the tenant must pay to avoid eviction. The comment was revised to update the statutory citations and to address notices for week-to-week tenancies.
UCJI 80.11 – Habitability Claims as Defense to Nonpayment Eviction—No Rent Paid into Court	The requirement for a carbon monoxide alarm was added and an option added at the end of the list that incorporates any condition posing a danger to health or safety of a kind similar to those listed in the statute. A note and case was added to the comment addressing this added option.

SUMMARY OF 2014 CHANGES

NOTE: This page provides a short explanation of the Committee's 2014 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 12.01, 15.02, 21.06, 22.01–22.02, 23.03, 30.01, 36.01–36.02, 36.04–36.05, 41.05, 42.01–42.03, 42.11, 43.02, 44.01, 44.03, 46.01, 46.04–46.10, 49.01–49.02, 51.01–51.05, 54.01, 55.01–55.10, 55.12A–55.15, 57.02–57.05, 60.01–60.02, 60.05–60.08, 60.11–60.12, 60.14–60.15, 60.17–60.19, 60.21–60.22, 65.01, 65.03–65.10, 65.14–65.17, 65.20, 65.22, 66.01–66.07, 67.05–67.06, 70.08, 70.12–70.14, 71.02–71.03, 72.01, 75.04, 76.03, 90.03	These instructions were reviewed by the Committee and determined to still be accurate, were cite checked, and have been given a new date.
UCJI 17.01–17.02	The comments to these instructions were revised to include more recent case law.
UCJI 21.01	This instruction was revised to include "fault" as an option, consistent with other instructions in this series.
UCJI 21.02	This instruction was revised for clarity and to remove the reference to substantial factor, and to make it consistent with revisions to UCJI 23.02.
UCJI 21.03	This instruction was withdrawn because it is unnecessary.
UCJI 21.04	This instruction was revised for clarity
UCJI 22.04	This instruction was revised for clarity and to add an updated case cite to the comment.
UCJI 22.05	This instruction was revised for clarity.
UCJI 22.06	This instruction was revised for clarity and to indicate that it does not apply in cases governed by ORS 31.610.
UCJI 23.01–23.02	These instructions were substantially revised and retitled to clarify that there are two types of

	causation as discussed in *Joshi v. Providence Health System of Oregon Corp.*
UCJI 30.02	This instruction was withdrawn as redundant of UCJI 30.01.
UCJI 30.05	This instruction was revised to add a newer case cite to the comment.
UCJI 41.04	This instruction was revised to add a newer case cite to the comment.
UCJI 42.04	This instruction was revised for clarity.
UCJI 42.05–42.06	These instructions were revised to add newer case cites to the comments.
UCJI 42.07	This instruction was revised for clarity and to add an updated case cite to the comment.
UCJI 42.08	This instruction was revised to simplify the case cite to the *Philip Morris* case.
UCJI 42.09	This instruction was revised to remove the *Philip Morris* cite and include additional commentary in the comment.
UCJI 43.03	This instruction was revised to remove the reference to negligent conduct constituting a violation of the UTPA.
UCJI 44.02	This instruction was revised to add the citation to ORS 677.095(1) to the comment.
UCJI 44.04	This instruction was revised to include *physician assistant* as an alternative to *physician* and to add the citation to ORS 677.097 to the comment.
UCJI 44.05	This instruction was revised to remove the word *Operation* from the title.
UCJI 46.02	This instruction was revised for clarity.
UCJI 54.02–54.03	The comments to these instructions were revised to include case cites regarding the definition of *employer* and *employee*.
UCJI 55.01A	This new instruction provides a definition of *risk or danger* under the Employer Liability Law.
UCJI 55.11	This instruction has been withdrawn as in incorrect statement of the law.
UCJI 55.12	This instruction was revised to add a newer case cite to the comment.

UCJI 57.01	This instruction was revised to add a newer case cite to and remove the cross-reference to UCJI 40.04 from the comment.
UCJI 58.02–58.03	These instructions were revised for clarity.
UCJI 58A.02	This instruction was revised to clarify that it applies regarding a *public entity* rather than a *public employer*.
UCJI 59.03	This instruction was revised to clarify what constitutes a physical or mental impairment.
UCJI 60.03	The title of this instruction was revised to clarify that it provides definitions of *eminent domain* and *condemnation*.
UCJI 60.04	This instruction was revised to add an additional case cite to the comment.
UCJI 60.20	This instruction was revised for clarity.
UCJI 60.23	This instruction was revised to include additional information about specifics of a jury view and to add a cite to ORS 10.100 to the comment.
UCJI 65.02	This instruction was revised to add a newer Oregon case cite to the comment.
UCJI 65.11	This instruction was revised for clarity and to add a cross-reference to UCJI 65.03 to the comment.
UCJI 65.12	This instruction was revised to change the term *trade usage* to *usage* to be consistent with the case law language.
UCJI 65.19	This instruction was revised to add a newer case cite to the comment.
UCJI 67.03	This instruction was revised to clarify that all of the elements must be proven.
UCJI 67.04	This instruction was revised to update a statutory cite in the comment.
UCJI 70.01	This instruction was revised for clarity and to remove a reference to noneconomic damages from the comment.
UCJI 70.17	This instruction was revised for clarity and to add parenthetical information to the statutory citations.
UCJI 70.18	This instruction was revised for clarity and to add a newer case cite to the comment.

UCJI 76.01–76.02	These instructions were withdrawn because there is no longer joint and several liability.
UCJI 76.04	This instruction was revised to clarify in the comment that it does not apply to cases governed by ORS 31.610.
UCJI 90.02	This instruction was withdrawn pursuant to ORCP 59 B.

SUMMARY OF 2013 CHANGES

NOTE: This page provides a short explanation of the Committee's 2013 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 5.03	This instruction was revised for clarity.
UCJI 10.02 and 10.05	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 10.06	This instruction was revised for clarity and to properly address the issue of hypothetical questions posed to expert witnesses.
UCJI 10.07	This instruction has been withdrawn and the subject of hypothetical questions has been incorporated in UCJI 10.06.
UCJI 11.01, 13.02, and 15.01	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 13.01 and 13.04	These instructions were revised for clarity and plain English, and UCJI 13.04 was modified to apply to all withdrawn issues.
UCJI 20.01−20.07	These instructions were revised and reorganized to provide a clearer understanding of a negligence claim, and to remove the reference to fault.
UCJI 20.08	This instruction was reviewed by the Committee and it was determined it should remain withdrawn, and it has been given a new date.
UCJI 21.05	This instruction was reviewed by the Committee and determined to still be accurate, and has been given a new date.
UCJI 35.03, 35.07−35.09, and 35.14	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 35.04, 35.06, and 35.10−35.13	These instructions were revised for clarity, and in some instances new caselaw has been added and statutory citations updated in the comment.
UCJI 40.01−40.05	These instructions were revised for clarity and renumbered, and UCJI 40.01 was revised to correct a substantive error in the previous instruction regarding the intent to cause the plaintiff apprehension.

UCJI 40.06	This new instruction was added to define “intent” for purposes of intentional torts.
UCJI 41.01	This instruction was reviewed by the Committee and determined to still be accurate, and has been given a new date.
UCJI 41.02−41.03	These instructions were revised for clarity and plain English, and newer caselaw was added to the comment of UCJI 41.02.
UCJI 46.11−46.12	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 55.08, 55.11, and 55.14−55.15	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 56.01−56.02 and 56.05	These instructions were revised for clarity and more recent caselaw was added to the comment of UCJI 56.02.
UCJI 56.03−56.04	These instructions were reviewed by the Committee and determined to still be accurate, and have been given a new date.
UCJI 65.12−65.13	These instructions were revised for clarity.
UCJI 70.02 and 70.05	These instructions were revised for clarity and the comments were modified.

SUMMARY OF 2012 CHANGES

NOTE: This page provides a short explanation of the Committee's 2012 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 45.01−45.06	This set of instructions includes four new instructions for use in legal malpractice actions as well as revisions of former UCJI 45.01 and 45.02 that have been renumbered to 45.04 and 45.05.
UCJI 48.01−48.08	These instructions were revised to make them consistent with the language of ORS 30.920.
UCJI 58A.01	This new instruction provides the basic instruction for use in a case of whistleblower discrimination under ORS 659A.199.
UCJI 58A.02−58A.03	These new instructions provide the basic instructions for use in a case of whistleblower discrimination by a public employer under ORS 659A.203.
UCJI 70.04	This formerly withdrawn instruction was reinstated in accordance with *Williams v. Funk* cited in the comment.

SUMMARY OF 2011 CHANGES

NOTE: These pages provide a short explanation of the Committee's 2011 changes to the *Uniform Civil Jury Instructions*. You may wish to save them for future reference.

UCJI 5.01	This instruction was revised for clarity and to address suggestions from the American College of Trial Lawyers regarding use of social media.
UCJI 10.04	This instruction was revised to clarify that a witness who is simply mistaken is not the same as a witness who has lied. Comment clarifies when this instruction is appropriate.
UCJI 10.09	This new instruction provides a template for lawyers to use when evidence is presented for a limited purpose.
UCJI 10.10	This new instruction provides a template for presenting evidence of testimony without having to call the witness or stipulate to the truth of the testimony.
UCJI 10.11	This new instruction provides a template for presenting stipulated facts to the jury.
UCJI 10.12	This new instruction provides a template for presenting facts deemed by judicial notice to be conclusive.
UCJI 11.02	This new instruction provides a template for presenting facts admitted by a party in a pleading or request for admissions.
UCJI 46.09	This instruction was revised in response to *Vandeveere-Pratt v. Portland Habilitation Center*, now cited in the comment. Language previously in a caveat has been moved into the instruction as bracketed text.
UCJI 59A.01–59A.03	These new instructions provide the basic instructions for an action based on employment discrimination, including elements and definition of *substantial factor*.
UCJI 70.04	The withdrawal language of this instruction was revised to cite *Williams v. Funk*.
UCJI 70.19	This instruction was withdrawn in response to *Williams v. Funk*.

UCJI 80.04 and 80.08	These instructions were revised to update a statutory citation changed by the 2011 legislative session.
UCJI 80.18–80.25	These new instructions provide the basic instructions necessary in a landlord-tenant case involving issues of right of access to the premises.
UCJI 90.01	This instruction was revised to provide a helpful suggestion to juries regarding review of evidence before a vote.

SUMMARY OF 2010 CHANGES

NOTE: This page provides a short explanation of the Committee's 2010 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 5.01	This instruction was revised to better address juror use of social media and other technology, and to clarify for jurors the reason for the rules against juror communication with nonjurors.
UCJI 10.01	This instruction was revised to provide a better definition of all evidence and to incorporate UCJI 10.08 regarding circumstantial evidence.
UCJI 10.03	This instruction was revised to include additional bases on which the jury can evaluate witness testimony.
UCJI 10.08	This instruction was withdrawn because the subject matter was incorporated into revised UCJI 10.01.
UCJI 13.03	This instruction was revised to clarify when prior pleadings can be admitted as evidence and for what purpose.
UCJI 50.01	This instruction was revised in response to *Pereira v. Thompson*, now cited in the comment, to remove "reasonable care" from the duties available for selection.
UCJI 53.02	This new instruction provides the elements of a cause of action for private nuisance.
UCJI 53A.01–53A.11	These new instructions provide the basic instructions necessary for a defamation action, including definitions, elements, and damages.
UCJI 70.06–70.07	The comments of these instructions were revised to include a citation to *Crismon v. Parks*, which clarified the application of the instructions.
UCJI 70.20	This new instruction provides a definition of wage loss as one type of lost income included in UCJI 70.03.
UCJI 80.12–80.17	These new instructions provide additional instructions necessary in a landlord-tenant action.

SUMMARY OF 2009 CHANGES

NOTE: This page provides a short explanation of the Committee's 2009 changes to the *Uniform Civil Jury Instructions*. You may wish to save it for future reference.

UCJI 14.01	This instruction was revised to add the available standards of proof.
UCJI 40.01	This Assault instruction was revised for plainer language and to be consistent with the form of new UCJI 40.01A, Battery.
UCJI 40.01A	This new instruction states the elements a plaintiff must prove in a claim for battery.
UCJI 44.06–44.07	These new instructions state the conditions under which a person is an actual or apparent agent in the hospital context in a medical malpractice claim.
UCJI 65.18	This instruction was revised to provide a cross reference to new UCJI 77.01, Damages for Lost Profits.
UCJI 70.01	This instruction was revised to clarify in the introductory clause that the jury must first find that a party was at fault or negligent before assessing damages.
UCJI 70.04	A comment was added to this withdrawn instruction to cross reference new UCJI 70.19, Noneconomic Damages—When Required.
UCJI 70.09–70.11	These instructions were revised to more accurately reflect the law of damages related to the loss or destruction of personal property, loss of use, and lost profits.
UCJI 70.19	This new instruction is a postverdict instruction for limited cases in which the jury awards some economic damages but no noneconomic damages.
UCJI 73.01	The comment to this instruction was revised to provide additional explanation of the doctrines of mitigation and avoidable consequences.
UCJI 75.02, 75.02A–75.02B	The comments to these instructions were revised to reflect the final installment in *Williams v. Philip Morris*.

UCJI 77.01	This new instruction provides the measure of damages for lost profits arising from wrongful conduct or breach of contract.
UCJI 80.02 and 80.07	These instructions were revised to comply with statutory changes.
UCJI 80.08	This instruction was revised to provide a plain language definition of good faith and to add a case citation to the comment.
UCJI 90.03A–90.10	These verdict forms were revised to split the questions of fault and causation in response to case law, and for plainer language.

SUMMARY OF 2008 CHANGES

NOTE: This page provides a short explanation of the Committee's 2008 changes to the *Uniform Civil Jury Instructions.* You may wish to save it for future reference.

UCJI 5.00	This new instruction is for use before the jury is selected to introduce the potential jurors to the trial process and the parties.
UCJI 5.01	This instruction was revised to plain language and to eliminate redundancy.
UCJI 14.01–14.02	These instructions were revised for clarity and plain language.
UCJI 14.03	This new instruction provides a definition of the clear and convincing evidence standard of proof.
UCJI 20.08	This instruction was withdrawn.
UCJI 52.01–52.04	These new instructions provide for standards of care, damages recovery, and definitions for cases involving domestic animal liability.
UCJI 53.01	This new instruction states the elements for a claim of trespass to land.
UCJI 70.04	This instruction was withdrawn.
UCJI 74.01	The comment to this instruction was revised to provide a source of life expectancy tables.
UCJI 75.02, 75.03, and 75.06	These instructions were revised in response to *Williams v. Philip Morris*.
UCJI 75.02A	This new instruction addresses the relevance of evidence regarding out-of-state conduct in punitive damages awards.
UCJI 75.02B	This new instruction address the relevance of evidence regarding harm to others in punitive damages awards.
UCJI 75.01 and 75.05	These instructions were withdrawn.
UCJI 80.06 and 80.07	The comment to these instructions was revised with updated statutory references.

Oregon Jury Instructions for Civil Cases

CONVERSION TABLE

Many of the instructions in the 2005 revision of the ***Uniform Civil Jury Instructions*** have been renumbered. Please refer to the following table for the changes between the 1993 and 2005 editions.

Former UCJI No.	New UCJI No.
5.01A	5.01
5.01A	5.02
5.02	5.03
10.01	10.01
10.02	10.02
10.03	10.03
10.04	10.04
10.05	10.05
10.06	10.06
10.07	10.07
10.08	10.08
11.01	11.01
12.01	12.01
13.01	13.01
13.02	13.02
13.02A	13.03
13.03	13.04
14.01	14.01
14.02	14.02
15.01	15.01
15.02	15.02
16.01	16.01
17.01	17.01
17.02	17.02
20.01	20.01
20.02	withdrawn

Former UCJI No.	New UCJI No.
20.05	20.03
20.05A	20.04
20.06	20.05
20.07	20.06
20.07A	20.07
20.08	20.08
20.06	20.05
20.07	20.06
20.07A	20.07
20.08	20.08
21.01	21.01
21.02	21.02
21.03	21.03
21.03A	21.04
21.04	21.05
21.05	21.06
22.01	22.01
22.02	22.02
22.03	22.03
22.04	22.04
22.05	22.05
22.06	22.06
23.01	23.01
23.02	23.02
23.03	23.03
24.01	24.01

Former UCJI No.	New UCJI No.
30.03	30.03
30.04	30.04
30.05	30.05
35.01	35.01
35.02	35.02
35.03	35.03
35.04	35.04
35.05	35.05
35.06	35.06
35.07	35.07
35.08	35.08

35.09	35.09
35.10	35.10
35.11	35.11
35.12	35.12
35.13	35.13
35.14	35.14
36.01	36.01
36.02	36.02
36.03	36.03
36.04	36.04
36.05	36.05
40.01	40.01
40.02	40.02
40.03	withdrawn
40.04	40.03
40.05	40.04
40.06	withdrawn
41.01	41.01
41.02	41.02
41.03	41.03
41.04	41.04
41.05	41.05

Former UCJI No.	New UCJI No.
42.03	42.03
42.04	42.04
42.05	42.05
42.06	42.06
42.07	42.07
42.08	42.08
42.09	42.09
42.10	42.10
42.11	42.11
43.01	43.01
43.02	43.02
43.03	43.03
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59.06	withdrawn
59.07	withdrawn
59.08	withdrawn
59.09	withdrawn
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65.03	65.02
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65.05	65.04
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71.02	withdrawn
71.03	71.01
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72.01	withdrawn
72.02	72.01
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73.01	73.01
73.02	73.02
74.01	74.01
75.01	withdrawn
75.02	75.01
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90.01	withdrawn
90.02	90.01
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90.04	90.03
90.05	withdrawn
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90.08	withdrawn
90.09	withdrawn
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INTRODUCTION

To the Lawyers and Judges of Oregon

Oregon's Uniform Civil Jury Instructions are prepared by the Oregon State Bar Committee on Uniform Civil Jury Instructions. Many hours have been volunteered by Committee members to provide the Oregon lawyer and judge with a standard, reliable, and accurate statement of the law on a particular point. The instructions are intended to be written in language that can be understood by the typical juror.

The Oregon State Bar Committee on Uniform Civil Jury Instructions meets up to 12 times yearly. The Committee encourages participation by diverse groups within the bar, including plaintiff, defense, special interest, judiciary, and others. Instructions are approved after three readings, unless changes are very minor and do not affect the substance of the instruction. The first two readings require a majority vote and the third a two-thirds vote. However, the Committee strives for consensus and most instructions are approved by consensus vote.

The Committee does not guarantee the accuracy of the Uniform Civil Jury Instructions. It is important to highlight that the instructions are not preapproved by the Oregon Supreme Court. Moreover, there is no requirement that any court use them. *Carter v. Mote*, 285 Or 275, 291–292, 590 P2d 1214 (1979). Indeed, Uniform Civil Jury Instructions have been found to be erroneous. *See, e.g.*, *Rogers v. Meridian Park Hospital*, 307 Or 612, 619, 772 P2d 929 (1989).

Lawyers must evaluate each case in terms of its own facts. The general law governing jury instructions was set forth in *Williams v. Portland Gen. Elec.*, 195 Or 597, 610, 247 P2d 494 (1952):

> The parties to any jury case are entitled to have the jury instructed in the law which governs the case in plain, clear, simple language. The objective of the mold, framework and language of the instructions should be to enlighten and acquaint the jury with the applicable law. Everything which is reasonably capable of confusing or misleading the jury should be avoided. Instructions which mislead or confuse are grounds for a reversal or a new trial.

Instructions should be neutral in form. *St. Paul Mercury Ins. Co. v. Baughman*, 61 Or App 534, 538, 657 P2d 1254 (1983). The jury should be instructed only on issues in the case. *Watson v. Puget Sound Tug and Barge Company*, 96 Or App 79, 84, 771 P2d 307 (1989).

The Committee has not attempted to address every area of the law. Nor has it attempted to answer every possible request for an instruction on every subject covered.

The Committee has attempted to avoid giving extensive annotations on each instruction. When instructions have comments or citations, they express the

Committee's concern that the instruction not be automatically given without understanding the statement of law contained in the comment. Your attention is called to those comments and citations when they appear.

The trial lawyer in preparing instructions should remember that a trial judge is not a mere automaton whose function is limited to reciting the words approved by statute or by the supreme court. On the contrary, it may not be advisable in charging the jury to use the exact words of an appellate court opinion in stating the law in similar cases. *Ireland v. Mitchell*, 226 Or 286, 294, 359 P2d 894 (1961).

The Committee recognizes ongoing responsibilities to review all existing instructions, to keep them up to date, and to draft new instructions in areas not previously addressed. When you use these instructions and evaluate them in the light of emerging statutory and case law, the Committee encourages your contacting it to point out areas in which the instructions can be improved. If you have such a message for the Committee, the Committee suggests you call the Oregon State Bar office, obtain the name of the current chairperson or secretary of the Committee, and address a letter to that person expressing your point of view.

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UNIFORM CIVIL JURY INSTRUCTIONS

USERS' GUIDE

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I. (§1.1) INTRODUCTION

Oregon has had uniform jury instructions since 1962. The Oregon State Bar Uniform Civil Jury Instructions Committee (the "Committee") updates and maintains the Uniform Civil Jury Instructions ("Instructions"). The Committee seeks to maintain a balance in its membership that reflects the diversity of the bar. The

Committee's purpose is to provide accurate, concise, and impartial Instructions that attorneys can rely on, though the Committee does not guarantee accuracy. Significant study, revision, and consideration are given to each Instruction provided in this publication. The Committee endeavors to write Instructions in clear language that a typical juror can understand.

Instructions are not pre-approved by the Oregon Supreme Court, nor is there a statutory requirement that any court use them. *Carter v. Mote*, 285 Or 275, 292, 590 P2d 1214 (1979). Indeed, Oregon appellate courts have held certain Instructions were unduly confusing and did not accurately state the law. *See, e.g., Rogers v. Meridian Park Hospital*, 307 Or 612, 619–20, 772 P2d 929 (1989).

Attorneys must evaluate each case on its own facts to determine when to use an Instruction. The purpose of jury instructions is to enlighten and acquaint the jury with the applicable law that governs the case in plain, clear, and simple language. *Williams v. Portland General Electric Co.*, 195 Or 597, 610, 247 P2d 494 (1952) (holding that "parties to any jury case are entitled to have the jury instructed in the law which governs the case in plain, clear, simple language").

Instructions should be neutral. *St. Paul Mercury Insurance Co. v. Baughman*, 61 Or App 534, 538, 657 P2d 1254, *rev den*, 295 or 259 (1983). Instructions should also avoid language that is reasonably capable of confusing or misleading the jury. *Williams*, 195 Or at 610; *Rogers*, 307 Or at 619–20 (holding the uniform civil jury instruction to be unduly confusing concerning the exercise of judgment by doctors because "[i]f the term 'judgment' refers to choices between acceptable courses of treatment, then the term 'error in judgment' is a contradiction in itself," suggesting that substandard conduct is permissible if it is disguised as an "exercise of judgment").

The Committee attempts to avoid extensive annotations with each Instruction. Comments or citations are included to highlight Instructions that should not be given automatically without understanding their statement of law.

In preparing jury instructions, the attorney should remember that a judge is not limited to reciting the words approved by statute or by the Oregon Supreme Court. *Ireland v. Mitchell*, 226 Or 286, 294, 359 P2d 894 (1961), *overruled on other grounds by State v. Payne*, 366 Or 588, 468 P3d 445 (2020). On the contrary, in charging a jury it may not be advisable "to use the exact words of an appellate court opinion to state the law in similar cases." *Ireland*, 226 Or at 294.

The Committee does not address every area of the law or draft an Instruction on every subject. The Committee recognizes its ongoing responsibility to review all existing Instructions and update them, and to draft new Instructions in areas not previously addressed. When using these Instructions and evaluating them in light of emerging statutes and case law, you are encouraged to contact the Committee to point out areas in which these instructions can be improved. To make a suggestion, please contact the Oregon State Bar for the name of the current Committee chairperson or secretary.

II. HOW TO REQUEST A JURY INSTRUCTION

A. (§1.2) Proposed Jury Instructions and Verdict Forms

UTCR 6.060 outlines how and when to request jury instructions. Attorneys should also check the applicable Supplementary Local Rules (SLRs) in case there are additional requirements for jury instructions. Ideally, attorneys will also check with the clerk for the judge assigned to the trial, since many judges have preferences and customs that may not be reflected in the written local rules.

UTCR 6.060(1) requires a party to file with the court any requested jury instruction or proposed verdict form and "submit a copy of the jury instructions and verdict forms to the trial judge in the manner and time specified by the judge." *See* UTCR 21.140(1). UTCR 6.060(2) provides that "[a]ll requested jury instructions and verdict forms must be in writing and served on the opposing party."

Under UTCR 6.060(3), written requests for uniform jury instructions must sometimes include more information than the instruction's UCJI number and title alone (i.e., "Instruction No. 10.01—Consider All the Evidence"). If the uniform instruction contains blank lines or alternative choices, the request must include the specific language necessary to complete the instruction. UTCR 6.060(3).

PRACTICE TIP

> You may also wish to change the instruction to reflect the names of the parties, rather than referring to them as plaintiff or defendant.

UTCR 6.060(4) explains how to prepare requested jury instructions:

(a) identify uniform instructions in accordance with UTCR 6.060(3);

(b) number each special and uniform instruction consecutively beginning with 1 for the first requested instruction;

(c) include only one instruction per sheet of paper, except that multiple uniform instructions may be listed on the same page;

(d) if any instruction requires more than one sheet of paper, number each page at the lower left-hand corner with the consecutively assigned instruction number and the page number of that instruction (for example, Instruction No. 1-1, Instruction No. 1-2, Instruction No. 1-3, for a three-page instruction);

(e) "[t]he designation of the party requesting the instruction must be typed on each page" (for example, "Defendant's Requested Jury Instruction No. 1");

(f) below each requested instruction, cite the statute, decision, or other legal authority supporting the requested instruction.

UTCR 6.060(5) requires the court to tell the parties, before argument of the jury instructions, what instructions it proposes to give.

Under UTCR 6.060(6), the attorneys must prepare proposed verdict forms and written interrogatories without including the attorney or firm name, and they "must be submitted [to the court] at commencement of trial and as otherwise allowed by the court." *See also* ORCP 59.

B. (§1.3) Special Jury Instructions

While the Uniform Civil Jury Instructions include many commonly used jury instructions, they are not inclusive of all claims and issues. You may need to prepare special jury instructions to supplement them. When drafting special instructions, the Committee recommends the following guidelines:

- Keep your audience in mind (i.e., they are not attorneys).
- Use only necessary words, and simple, understandable words whenever possible.
- Avoid using negatives.
- Use an active voice.
- Use short sentences and keep the instruction as brief as possible.
- Avoid argumentative instructions.
- Do not assume language from an appellate court decision will make an acceptable jury instruction. *See State v. Luke*, 104 Or App 541, 546, 802 P2d 672 (1990) ("a rule of law cribbed from a factually distinct case may not make a good jury instruction"). *See also State v. Nefstad*, 309 Or 523, 551, 789 P2d 1326 (1990).
- Instructions should not comment on the evidence (e.g., suggest its probative value), and must be neutral. *See* ORCP 59 E.

C. (§1.4) Submitted Jury Instructions

Unlike proposed jury instructions, final submitted jury instructions must not include any identifying information relating to the parties and any other extraneous material, including authorities. UTCR 6.070. The court usually ensures this, but the attorneys should verify that it has been done.

D. (§1.5) Circuit Court Supplementary Local Rules (SLRs)

Many courts also have SLRs that govern civil practice, including trial practice. The attorney should check to see whether any SLR in the trial county modifies or supplements the UTCRs regarding trial practice for that county. SLRs are available on the Oregon Judicial Department website by county, http://www.courts.oregon.gov/rules/Pages/slr.aspx.

For example, in Multnomah County, jury instructions, verdict forms, trial memoranda, and pretrial motions must be submitted to the assigned court by noon of the day of trial assignment at daily call by the presiding judge (usually the day before trial). Multnomah SLR 6.051(4). Washington County requires jury instructions to be provided to the assigned trial judge by noon prior to the first day of trial, unless

requested earlier. Washington SLR 6.051. Benton County requires jury instructions not less than five judicial days before trial. Benton SLR 6.051(2).

III. GENERAL CONSIDERATIONS REGARDING JURY INSTRUCTIONS

A. (§1.6) Judge's Authority to Instruct

ORCP 59 B provides: "In charging the jury, the court shall state to the jury all matters of law necessary for its information in giving its verdict."

A trial judge may instruct in their own language, as long as the instructions are complete and correct. The court is not required to use the exact language requested by attorneys. *Mason v. Allen*, 183 Or 638, 645–46, 195 P2d 717 (1948).

B. (§1.7) Repetitious Instructions

A repetitious instruction may be given unless it either unduly emphasizes one side's theory of the case or is likely to confuse the jury. *Ballard v. Rickabaugh Orchards, Inc.*, 259 Or 200, 209, 485 P2d 1080 (1971). However, the trial court has discretion to determine whether some repetition is necessary to assist the jury. *Portland ex rel. Donohue & Fleskes Corp. v. Hoffman Construction Co.*, 286 Or 789, 804, 596 P2d 1305 (1979).

C. (§1.8) Argumentative Instructions

Argumentative instructions state the legal principles in language unfairly weighted in favor of one side. 6 Am Jur Trials 923, *Instructing the Jury* § 16, at 949–50 (originally published in 1967). Argumentative instructions are properly rejected. *Ramseth v. Maycock*, 209 Or 66, 79, 304 P2d 415 (1956); *Rauw v. Huling*, 199 Or 48, 60, 259 P2d 99 (1953).

D. (§1.9) Confusing Instructions

The court may properly reject a correct but unintelligible instruction that is likely to cause confusion among the jurors. *Mason v. Allen*, 183 Or at 648.

E. (§1.10) Comment on the Evidence

ORCP 59 E prohibits a judge from commenting on the evidence or instructing on matters of fact. "A comment on the evidence is an instruction 'on the probative value of the evidence.'" *Cox v. Gustafson*, 261 Or 159, 162, 493 P2d 52 (1972) (*quoting Franks v. Smith*, 251 Or 98, 104, 444 P3d 954 (1968)).

F. (§1.11) Facts Judicially Noticed

The court "shall instruct the jury to accept as conclusive any fact or law judicially noticed." OEC 201(g)(1) (ORS 40.085(1)). ORCP 59 B states in part that whenever the court takes judicial notice of a fact, "the court shall declare such knowledge to the jury, which is bound to accept it as conclusive." *See also* UCJI 10.12.

G. (§1.12) Instructions Viewed as a Whole

The appellate court looks at the instructions given as a whole and, when they are substantially correct and could not have misled the jury, will not find error because one instruction when considered alone may be subject to criticism or because a particular requested instruction should have been given. *Denton v. Arnstein*, 197 Or 28, 54, 250 P2d 407 (1952).

H. (§1.13) Refusal to Give a Proposed Jury Instruction and Reversible Error

A court's refusal to allow a proposed jury instruction may be reversible error, but only if the proposed instruction is absolutely "clear and correct in all respects, both in form and in substance, and . . . altogether free from error." *Beglau v. Albertus*, 272 Or 170, 179, 536 P2d 1251 (1975), *quoted by Williams v. Phillip Morris, Inc.*, 344 Or 45, 176 P3d 1255 (2008) (subsequent history omitted); *see also Hernandez v. Barbo Machinery Co.*, 327 Or 99, 106, 957 P2d 147 (1997) (refusing to give partially incorrect proposed instruction not error); *Owings v. Rosé*, 262 Or 247, 258, 497 P2d 1183 (1972) ("The trial court is not obliged to give an incorrect instruction, or to give the correct portions of one which includes errors."). However, there is no error if the substance of the requested jury instruction was covered fully by other jury instructions. *Hernandez*, 327 Or at 106. Likewise, there is no error if the requested instruction does not pertain to a material issue in the case. *Hernandez*, 327 Or at 106 "Finally, an error in refusing to give a requested jury instruction requires reversal only if the jury instructions given by the trial court, considered as a whole, cause prejudice to the party requesting the instruction." *Hernandez*, 327 Or at 106

I. (§1.14) Reinstructing the Jury

ORCP 59 D provides that if the jury has questions on legal points after beginning its deliberation, the court may return the jury to the courtroom and give them the information requested in the presence of, or after notice to, the parties. The decision to re-instruct is discretionary. *State v. Thompson*, 328 Or 248, 266, 971 P2d 879, *cert den*, 527 US 1042 (1999); *R.J. Frank Realty, Inc. v. Heuvel*, 284 Or 301, 311, 586 P2d 1123 (1978).

J. (§1.15) Written Jury Instructions

The instructions must be read to the jury. *Hollis v. Ferguson*, 244 Or 415, 422–23, 417 P2d 989 (1966). Pursuant to ORCP 59 B, the court's instructions to the jury must be reduced to writing and taken by the jury into the jury room while they deliberate.

K. (§1.16) Timing for Reading Instructions to the Jury

As a general rule, the judge reads instructions to the jury after the evidentiary phase of the trial; some judges prefer to read the jury instructions before the attorneys' closing arguments, while others prefer to read them after. An advantage of this timing is that it allows the judge and attorneys to tailor the instructions precisely to the issues actually raised at trial, whether expected or unexpected. It also allows deletion of requested instructions on matters the court removes from the jury's

consideration. In some cases, the jury may benefit from hearing one or more instructions earlier in the trial process. For example, a judge may read the instructions to the jury before closing arguments to give jurors a legal context for the theories argued, or a judge may read one or more instructions at the beginning of a trial to provide a context for the evidence. Attorneys may ask the judge to give one or more instructions early in a case, or before argument, if a modification to the timing could benefit the jury.

IV. (§1.17) PRESERVING ERROR FOR APPEAL: EXCEPTIONS

Exceptions are objections to the form or content of a proposed jury instruction being considered by the court. ORCP 59 H provides that a party must make an exception to an instruction by identifying the asserted error to the trial court and making a notation of the exception (as discussed below), or the party waives the error on appeal.

A. (§1.18) The Proper Exception

A proper exception must be timely, must state the specific grounds for error, and must be made part of the record. An exception to a jury instruction is made by counsel pointing out, on the record, the specific grounds for the objection, that is, by pointing out how the instruction is an inaccurate or incomplete statement of the law. As discussed below, exceptions can be made orally or in a writing filed with the court. ORCP 59 H. The lawyer must also remember to make an exception to any instruction requested but not given, and explain why the instruction is an accurate or complete statement of the law.

The party offering a proposed jury instruction has the sole responsibility to preserve the instruction and related exceptions for appeal. *See King City Realty Inc. v. Sunpace Corp.*, 291 Or 573, 582, 633 P2d 784 (1981); *Ferguson v. Nelson*, 216 Or App 541, 549, 174 P3d 620 (2007).

PRACTICE TIP

> It is customary to provide a set of proposed jury instructions to the trial judge's clerk for immediate use by the judge. However, this may not be sufficient to ensure that the record includes a complete list of all requested instructions, because the set given to the clerk may become a working copy for the judge's use and may not remain intact in the court file after the trial ends. Therefore, you should e-file a copy of your full set of proposed jury instructions. This will ensure that there is a reviewable record of each and every proposed instruction. The court of appeals will not review a claim of instructional error where the appellate record

> does not contain the appellant's proposed jury instruction. *See Vance v. Teplick*, 217 Or App 571, 176 P3d 430, *rev den*, 345 Or 416 (2008).

B. (§1.19) Purpose of Exceptions

The purpose of requiring exceptions to instructions is to inform the trial court that the instruction may be erroneous and to give the trial court an opportunity to make corrections. *Brigham v. Southern Pacific Co.*, 237 Or 120, 124, 390 P2d 669 (1964); *Lilley v. Gifford Phillips, Inc.*, 210 Or 278, 282, 310 P2d 337 (1957).

C. (§1.20) Timing of Exceptions

A party's objection to a jury instruction should be made at the earliest possible opportunity. Absent a timely request, failure to give a jury instruction does not ordinarily constitute reversible error. *See Smith v. Wetherell*, 269 Or 91, 97, 523 P2d 1272 (1974). When a party believes an instruction is improper, that party has the obligation to point out the error immediately after the court instructs the jury or at such other time as the trial court directs. ORCP 59 H(1).

> A party may not obtain review on appeal of an asserted [jury instruction] error . . . unless the party seeking review identified the asserted error to the trial court *and* made a notation of exception immediately after the court instructed the jury or at such other time as the trial court directed.

ORCP 59 H(1) (emphasis added).

E. (§1.22) Specificity of Exceptions

The objecting party should inform the court specifically why an instruction is erroneous; the notation of exception to a jury instruction "must identify with particularity the points on which the exception is based." ORCP 59 H(2). A general exception to a jury instruction is not sufficient to preserve error. ORCP 59 H(2). The lawyer must tell the court the specific grounds for error. *Delaney v. Taco Time International, Inc.*, 297 Or 10, 17–19, 681 P2d 114 (1984) (error was not preserved for appeal when defense counsel failed to specifically point out to the court that he was not excepting to the issue of punitive damages generally, but to the wording of the instructions); *Ross v. Cuthbert*, 239 Or 429, 438, 397 P2d 529 (1964) ("The exception should be as specific and as penetrating as the stress of the trial permits."). Specific exceptions alert the trial judge to any errors in the instructions, and allow for timely corrections. *Doe v. Oregon Conference of Seventh-Day Adventists*, 199 Or App 319, 327–28, 111 P3d 791 (2005) (defendant's exception "this is not a vicarious liability case" was too imprecise; defendant should have noted "this is not a *respondeat superior* case").

F. (§1.23) Written or Recorded Exceptions

Exceptions must be made orally on the record or in a writing filed with the court. ORCP 59 H(2).

PRACTICE TIP

> Very often jury instruction issues are discussed in the judge's chambers, off the record. If that occurs, the best practice is for the lawyer to put any exceptions on the record when the parties are back in court to preserve the exceptions for appeal. If the jury instruction issues are complicated or extensive, present all exceptions in court on the record instead of in chambers.

G. (§1.24) Exception Suggested In All Instances

Before ORCP 59 H was amended in 2004, the rule stated that the failure to give a requested instruction "imports an exception in favor of the party against whom the ruling was made." Council on Court Procedures, *Amendments to ORCP 59 promulgated by Council on Court Procedures 1980 to 2016, available at* http://counciloncourtprocedures.org/Content/Legislative_History_of_Rules/ORCP_59_promulgations_all_years.pdf. Cases interpreting *former* ORCP 59 H held that if a judge rejected a requested instruction on a relevant topic, then neglected to instruct on that topic at all, no exception was required to preserve the issue for appeal. *See Beall Transport Equipment Co. v. Southern Pacific Transportation Co.*, 335 Or 130, 141, 60 P3d 530 (2002); *State v. Winters*, 170 Or App 118, 125, 10 P3d 961 (2000), *rev den*, 332 Or 239, *cert den*, 534 US 996 (2001). "The Supreme Court has since held that preservation for claims of instructional error is tested by preservation principles generally, rather than by the requirements of ORCP 59 H—on which *Beall* relied." *Dosanjh v. Namaste Indian Restaurant, LLC*, 272 Or App 87, 90, 353 P3d 1243 (2015) (citing *State v. Vanornum*, 354 Or 614, 629, 317 P3d 889 (2013)).

To preserve error for appeal, ORCP 59 H(1) requires an exception when the trial court fails to give an instruction. ORCP 59 H(1) also provides: "The requirements of this rule do not preclude an appellate court from reviewing asserted errors in jury statements or instructions for legal errors that are apparent on the record."

For a fuller discussion on preserving error for appeal, see *Appeal and Review: The Basics* (OSB Legal Pubs 2010) and *Appeal & Review: Beyond the Basics* (OSB Legal Pubs 2014).

CAUTIONARY

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12/08

5. GENERAL CAUTIONARY INSTRUCTIONS

UCJI 5.00 INTRODUCTION

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(To be given to venire before jury is selected.)

Today we select a jury for the case of: [*insert case title*]. I am [*insert judge's name*], and I will keep order, rule on questions of law, and instruct you on the law. This is [*insert judicial clerk's name*], who will swear witnesses, help with exhibits, and make sure everything that's said is recorded. The clerk is your contact during this trial. The jury will decide the facts and apply the facts to the law I provide.

[*Optional:* This is a civil case, not a criminal case. You may have seen criminal cases on TV or in the movies and know that a prosecutor must prove the defendant guilty beyond a reasonable doubt. Civil cases are different. In a civil case, like this one, the party who has to prove something only has to prove that it is more likely true than not true. [*Insert alternative standard if appropriate.*]]

This case was filed by: [*insert name*], who we call the plaintiff. The plaintiff's attorney is: [*insert attorney's name*]. This case was filed against: [*insert name*], who we call the defendant. The defendant's attorney is: [*insert attorney's name*].

[*Optional for multi-party cases:* This case was filed by: [*insert name*] who we call a plaintiff. The case was also filed by [*insert name*] who is also a plaintiff. [*Insert name of plaintiff #1*]'s attorney is [*insert attorney's name*]. [*Insert name of plaintiff #2*]'s attorney is [*insert attorney's name*]. This case was filed against [*insert name*] who we call a defendant, [*insert name*] who is also a defendant, and [*insert name*] who is also a defendant. [*Insert name of defendant #1*]'s attorney is [*insert attorney's name*]. [*Insert name of defendant #2*]'s attorney is [*insert attorney's name*]. [*Insert name of defendant #3*]'s attorney is [*insert attorney's name*].]

[*Insert pleading summary or parties' neutral statement of the case.*]

You must be able to judge this case fairly and objectively, or you should not serve on this particular jury. I will begin with three questions:

First, do any of you know the plaintiff[s], defendant[s], or any of the attorneys? If so, please raise your hand.

Second, the following people may be called as witnesses in this case. If any of these names are familiar to you, or if you know any of these people, please raise your hand. [*List witness names*.]

Third, based on what you know from the case summary given a few moments ago, do any of you feel that your personal views concerning this type of case, or any biases you may have, might affect your ability to be fair and impartial about this trial? If so, please raise your hand.

Soon, the attorneys will ask you questions. The purpose of their questions is not to argue the case or embarrass you, but to determine who will serve on this particular jury. Please respond to the attorneys' questions openly, honestly, sincerely, and completely. If you do not understand a question, please ask that it be repeated for you.

Since you are in an unfamiliar setting among strangers, it may be uncomfortable for you to be open, honest, and complete in your answers to the attorneys' questions. This process requires you to overcome your discomfort and do your best to be open, honest, and complete when you answer. It is extremely important, and the fairness of this trial depends on it. If you are asked a question that involves something you consider very sensitive or private, tell us so. We can arrange to receive your answer outside the presence of other jurors.

When the attorneys finish their questions you will be excused briefly, then we will bring you back and release those of you who will not be on the jury. If you are not selected for this jury, please do not feel that your attendance was without value. The court needs a substantial group of available jurors so an impartial jury can be selected. All of you here today provide an important contribution to the process because your presence assures fairness.

COMMENT: Some judges prefer to have each attorney give a mini-opening statement (2–5 minutes) rather than summarizing the pleadings from the bench. Some judges prefer to take peremptory challenges in writing, on the record, with the jury venire present.

11/20

UCJI 5.01 PRECAUTIONARY INSTRUCTIONS

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(To be given after the jury is selected.)

Members of the jury, these instructions contain part of the law that applies to this case. After you hear the evidence and [before] the arguments of the attorneys, I will give you further instructions regarding the legal rules you must follow in deciding this case.

You are here to decide the facts of this case from the evidence and to apply those facts to the law that I will give you. That is how you will reach your verdict. In doing so, you must follow the law whether you agree with it or not. Do not allow any sympathy, prejudice or bias—whether conscious or unconscious—to influence your decision making. You must not be biased in favor of or against any party, witness, or attorney because of the persons' disability, gender, gender identity, race, religion, ethnicity, sexual orientation, age, national origin, [or] socioeconomic status[, or *insert any other impermissible form of bias against a group or status that is not a protected class, e.g., a person's profession*].

[As part of your orientation, you were shown a video on unconscious bias.] *Unconscious bias* is a term used by social scientists to describe the reality that everyone[, including me,] has feelings, assumptions, perceptions, fears, and stereotypes, that is, "unconscious biases," that we may not be aware of. These hidden thoughts can affect what we see and hear, how we remember what we see and hear, how we interact with others, and how we make important decisions. Our biases can affect how we act, favorably or unfavorably, toward someone. You should make every effort to be aware of your unconscious biases and what effect those may have on your decision making.

The evidence you are to consider in this case consists of witness testimony and exhibits received in evidence. Exhibits are physical things such as letters, photographs, charts, or other objects. You will be able to examine the exhibits received in evidence while you deliberate. You must decide how believable the evidence is and what weight or value you will give to that evidence. You may draw any reasonable inferences from the evidence, but you must not guess or speculate.

If an attorney objects to evidence, I will decide if it is proper under the law for you to consider such evidence. Do not speculate about why the attorney objected or why I ruled as I did. If I overrule an objection, the question may be answered, or the exhibit received. If I sustain an objection, the question cannot be answered or the exhibit cannot be received. Whenever I sustain an objection to a question, ignore the question and do not guess what the answer would have been. Sometimes I may order that evidence be stricken from the record and that you disregard or ignore the evidence. When you are deciding the case, you must not consider the evidence that I told you to disregard.

During this trial, you may be allowed to ask questions of witnesses. If you have any questions of witnesses, you will submit them in writing. The procedure for submitting questions is as follows. You must wait until the attorneys finish asking all their questions before it is your turn. If you still have an unanswered question when the attorneys are finished, you may write it down, fold the paper, and hold it up to get my attention, or raise your hand to let me know you need time to write out your question if you haven't already done so.

Your questions are subject to the rules of evidence, just as the attorneys' questions are. I will review your questions with the attorneys and will rule on whether the question may be asked. I will ask the question if I decide it is proper under the law. I may not ask the question or may modify the question. I may or may not advise you of the reason for my decision depending on the circumstances and applicable law. If the question is not asked, you should not draw any inferences about my ruling or speculate as to what the answer to the question might have been. Do not weigh answers to a juror question more heavily or lightly than any other answer simply because the answer was given in response to a juror question. After any juror questions are asked, the attorneys are allowed to ask follow-up questions.

The attorneys' opening statements and closing arguments are not part of the evidence, but are intended to help you understand the evidence and apply the law. You must not interpret any statement, ruling, or remark I make during this trial as any indication that I have formed any opinion about the facts or outcome of this case. You, and you alone, are to decide the facts.

You must decide this case based only on the evidence received here in this courtroom. You are not allowed to do any independent research on any idea, location, or person connected to this case. The law forbids you from seeking information from any source outside this courtroom.

Until you retire to deliberate, you may not discuss this case with anyone, including each other, friends, or family members. When you deliberate, you may discuss the case with each other, but you may not discuss the case with anyone else until after you are discharged at the end of the case.

Although many of you use cell phones, the Internet, and other tools of technology, communicating with others about the case before it ends is strictly prohibited. You may not communicate by cell phone, smartphone, email, Blackberry, iPhone, text messaging, on Twitter, through any blog or Web site, Internet chat room, or by way of any other social networking Web sites, including Facebook, LinkedIn, and YouTube.

The court recognizes that these rules may require you to refrain from activities that may be very common and important in your daily lives. However, the law requires these restrictions to ensure the parties have a fair trial based on evidence that each party has had an opportunity to address. If one or more of you were to get additional information from an outside source, that information might be inaccurate or incomplete, or it may not apply to this case, and the parties would not have a

chance to explain or contradict that information because they wouldn't know about it. That's why it is so important that you base your verdict only on information you receive in this courtroom.

Any juror who violates these restrictions jeopardizes the fairness of these proceedings, and a mistrial could result that would require the entire trial process to start over. As you can imagine, a mistrial is a tremendous expense and inconvenience to the parties, the court, and the taxpayers. If any juror is exposed to any outside information, or has any difficulty whatsoever in following these instructions, please notify the court immediately. If any juror becomes aware that one of your fellow jurors has done something that violates these instructions, you are obligated to report that to the court. If anyone tries to contact you about the case, either directly or indirectly, or sends you any information about the case, please report this promptly as well.

These restrictions remain in effect throughout this trial. Once the trial is over, you will be free to read or research anything you wish, and you will be free to talk to anyone, or write, or post, or tweet about the case if you choose to do so. The only limitation is that you must wait until after the verdict, when you have been discharged from your jury service.

Please understand why the law limits such communication. The attorneys and parties have selected you, and only you, as the people they want to make this very important decision for them. The attorneys did not choose anyone else in your family or social circle, or anyone in the virtual world of the Internet. They chose you. It is not fair to the parties to have people they never met, with backgrounds they do not know, influencing the decision in this case. That is why the law does not allow it.

At the end of the trial, you will have to make your decision based on what you recall of the evidence. You will not have a written transcript to consult, and it is so difficult to play back recorded testimony that it is not typically done even when requested. I urge you to pay close attention to the testimony as it is given.

You may take notes, if you wish, during the trial. If you take notes, don't let your note-taking interfere with your ability to observe the witnesses and evaluate their testimony. Don't feel obligated to take notes just because we have notepads. Taking notes helps some people listen and remember, but for others it gets in the way and they remember better if they don't try to take notes. Do whatever works for you. Whenever you leave the courtroom, you may leave your notes on your chair in the jury box or take them to the jury room. Do not take them out of the courthouse. During deliberations each juror needs to make up his or her own mind about the facts. Don't rely on someone else's notes, especially if they conflict with your own memory.

We will now hear the opening statements, in which the attorneys will outline the evidence as they expect it to be. After the opening statements, the evidence will be presented. At the conclusion of the evidence, you will hear the attorneys' closing

arguments and instructions about the law that applies to this case before you begin your deliberations.

COMMENT: ORCP 58 B(9) gives the court sole discretion to invite written questions from jurors to a witness or the court, but the parties must be provided an opportunity to object to such questions outside the presence of the jury.

The technological tools referenced in this instruction may be adjusted to delete obsolete technological tools and add newly popularized tools as public usage preferences evolve.

The instruction provides that testimony is not typically played back for the jury. This language emphasizes to the jury the importance of their paying attention to the testimony as they hear it. A trial court has discretion to play back testimony. *State v. Vaughn*, 200 Or 275, 278, 265 P2d 249 (1954). However, what testimony can be played back will usually be a source of contention between the parties.

COMMENT: The bracketed sentence about the unconscious-bias video should be deleted if the court chooses not to show the video.

COMMENT: The court can omit the bracketed reference to “including me”.

UCJI 5.02 USE OF AN INTERPRETER

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Every person has the right to have [his / her] testimony heard and understood. You are about to hear a trial in which an interpreter will translate for one or more of the participants. The interpreter is required to remain neutral. The interpreter is required to translate between English and [*insert appropriate language*] accurately and impartially to the best of the interpreter's skill and judgment.

You must evaluate interpreted testimony as you would any other testimony. That is, you must not give interpreted testimony any greater or lesser weight than you would if the witness had spoken English.

A person might speak or understand some English without being fluent in English. That person has the right to the services of an interpreter. Therefore, you shall not give greater or lesser weight to a person's translated testimony based on your conclusions, if any, regarding the extent to which that person speaks English.

COMMENT: *See generally* ORS 45.275(8)(b) (definition of *non-English-speaking person*); ORS 40.325 (requires impartial translation); ORS 45.275(8)(c) (definition of *qualified interpreter*); ORS 45.288(4) (describes person that court may not appoint as an interpreter). *See also State v. Medina*, 39 Or App 467, 592 P2d 1042 (1979).

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UCJI 5.03 FUNCTIONS OF THE COURT AND JURY

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It is solely your responsibility to make all the decisions about the facts in this case. You must evaluate the evidence to determine how reliable or how believable that evidence is. When you make your decision about the facts, you must then apply the legal rules to those facts and reach your verdict.

Remember, however, that your power to reach a verdict is not arbitrary. When the court tells you what the law is on a particular subject or tells you how to evaluate certain evidence, you must follow these instructions.

Do not allow anything that the court has said or done, or the fact that the court gives any particular instruction, to suggest that the court has formed any opinion about this case. When the court has sustained objections to evidence, or ordered that evidence be stricken or excluded from your consideration, you must follow the court's rulings. Do not consider such matters during your deliberations. Base your verdict on the evidence and these instructions. The attorneys' statements and arguments are not evidence. If your recollection of the evidence is different from the attorney's recollection, you must rely on your own memory.

In deciding this case, you are to consider all the evidence that you find worthy of belief. It is your duty to weigh the evidence calmly and dispassionately and to decide this case on its merits. Do not decide this case on guesswork, conjecture, or speculation.

You should make every effort to be aware of your biases, including unconscious biases, and what effect those may have on your decision making. In your deliberations, you must not be biased in favor of or against any party, witness, or attorney because of the person's disability, gender, gender identity, race, religion, ethnicity, sexual orientation, age, national origin, [or] socioeconomic status[, or *insert any other impermissible form of bias against a group or status that is not a protected class, e.g., a person's profession*]. We all have feelings, assumptions, perceptions, fears, and stereotypes about others. Some biases we are aware of, and others we may not be fully aware of. These hidden thoughts can affect what we see and hear, how we remember what we see and hear, how we interact with others, and how we make important decisions.

All parties are equal before the law, so do not allow any personal feelings, sympathy, prejudice, or bias—whether conscious or unconscious—to influence your decision making.

Generally, the testimony of any witness whom you believe is sufficient to prove any fact in dispute. You are not simply to count the witnesses, but you are to weigh the evidence.

Keep in mind that each party is entitled to the considered decision of each juror. Therefore, you should not give undue weight to another juror's notes if those notes conflict with your recollection of the evidence.

COMMENT: *See* ORS 10.095.

Under ORS 41.270, proof of usage requires two witnesses and therefore the next-to-last paragraph may not be applicable.

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GENERAL INSTRUCTIONS

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10. EVIDENCE—WEIGHT—WITNESSES

UCJI 10.01 EVIDENCE

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Evidence can come in many forms. It can be testimony about what someone saw or heard or smelled. It can be an exhibit admitted into evidence. It can be someone's opinion.

Some evidence may prove a fact directly, such as testimony of a witness who saw a jet plane fly across the sky. Some evidence may prove a fact indirectly, such as testimony of a witness who saw only a white trail that jet planes often leave. This indirect evidence is sometimes referred to as "circumstantial evidence." Either way, the witness's testimony is evidence that a jet plane flew across the sky.

As far as the law is concerned, it makes no difference whether evidence is direct or indirect. You may choose to believe or disbelieve either kind. Whether it is direct or indirect, you should give all evidence whatever weight you think it deserves.

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UCJI 10.02 PRESUMPTIONS

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The [plaintiff / defendant] contends that [*state basic fact*].

The law recognizes [*quote from OEC 311 or statute*].

The [plaintiff / defendant] contends [*state the proposition adverse to OEC 311 or statute*].

I instruct you that if you find the [plaintiff / defendant] has proved [*restate basic fact*], then the [plaintiff / defendant] has the burden of proving [*restate the proposition adverse to OEC 311 or statute*].

COMMENT: *See* OEC 308 Commentary (1981), regarding the use of the word *presumption.*

EXAMPLE 1:

OEC 311(s)—A person not heard from in seven years is dead.

Plaintiff contends that Mr. John Doe has not been heard from in seven years.

The law recognizes that a person not heard from in seven years is dead.

Defendant contends that Mr. John Doe is alive.

I instruct you that if you find plaintiff proved Mr. John Doe has not been heard from in seven years, then defendant has the burden of proving that Mr. John Doe is not dead.

EXAMPLE 2:

OEC 311(d)—Money paid by one to another was due to the latter.

Defendant contends that plaintiff paid money to defendant.

The law recognizes that money paid by one to another was due to the latter.

Plaintiff contends that it paid money to defendant that was not due to defendant.

I instruct you that if you find defendant proved that plaintiff paid money to defendant, then plaintiff has the burden of proving that money paid to defendant was not due from plaintiff.

See, e.g., *State v. Clay*, 332 Or 327, 332, 29 P3d 1101 (2001); *Roach v. Jackson County*, 151 Or App 33, 38, 949 P2d 1227 (1997), *rev den*, 326 Or 389 (1998).

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UCJI 10.03 EVALUATING WITNESS TESTIMONY

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The term *witness* includes every person who has testified in this case. Every witness has taken an oath to tell the truth. You may believe everything a witness says, or part of it, or none of it. In considering the testimony of any witness, you may take into account:

(1) The opportunity and ability of the witness to see, hear, or know about the things the witness told you.

(2) The witness's memory.

(3) The witness's manner while testifying.

(4) The witness's interest in the outcome of the case and any bias or prejudice.

(5) Whether other evidence contradicted the witness's testimony.

(6) The reasonableness of the witness's testimony in light of all the evidence.

[(7) Evidence concerning the character of the witness for truthfulness.]

[(8) Evidence that the witness has been previously convicted of a crime.]

[(9) *Insert any other factors that bear on believability.*]

COMMENT: ORS 44.370; OEC 609-1 (ORS 40.360) (impeachment for bias).

Paragraphs 7, 8, and 9 should be given only if applicable. *See* OEC 608 (ORS 40.350), OEC 609 (ORS 40.355).

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UCJI 10.04 WITNESS FALSE IN PART

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A lie is a false statement made with the intent to deceive. A witness may be mistaken, confused, forgetful, or contradict him- or herself or other witnesses without lying.

If you find that a witness has lied in some part of his or her testimony, then you may distrust the rest of that witness's testimony.

You have the responsibility to determine what testimony, or portions of testimony, you will believe.

COMMENT: ORS 10.095(3); UCrJI No. 1029; *see also Ireland v. Mitchell*, 226 Or 286, 292–295, 359 P2d 894 (1961) (instruction should be given only where the trial court decides that "there has been sufficient evidence for the jury to decide that at least one witness consciously testified falsely"; "mere honest mistake, confusion, and hazy recollection" are not enough); *State v. Weaver*, 139 Or App 207, 210–211, 911 P2d 969 (1996) (court did not abuse discretion by refusing to give instruction when there were only minor inconsistencies between the witness's testimony and her previous statements); *State v. Long*, 106 Or App 389, 394–395, 807 P2d 815 (1991) ("[t]he party requesting the instruction must show, and the trial court must find, that there is sufficient evidence for the jury to decide that a witness was 'wilfully false,' not just mistaken, confused or hazy in recollection"); *State v. Seeger*, 4 Or App 336, 340–341, 479 P2d 240 (1971).

Although this instruction is a statutory instruction, it should not be given in every case but only when requested, and only if the court finds that there is sufficient evidence for the jury to decide that a witness was willfully false, not just mistaken, confused, or hazy in recollection.

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UCJI 10.05 PHYSICAL FACTS

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Your factual conclusions cannot be based on evidence that is contrary to established physical [fact / facts].

COMMENT: *See generally Marshall v. Martinson*, 268 Or 46, 58, 518 P2d 1312 (1974); *Sturm v. Smelcer*, 235 Or 251, 255–56, 384 P2d 212 (1963); *Rich v. Cooper*, 234 Or 300, 308–09, 380 P2d 613 (1963).

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UCJI 10.06 EXPERT WITNESS

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An expert witness may give an opinion on any matter in which that witness has special knowledge, skill, experience, training, or education. [The opinion may be given in response to a hypothetical question. A hypothetical question asks a witness to assume that certain facts are true, and then to give an opinion based on those assumed facts.]

You should consider the qualifications and credibility of the expert witness, the reasons given for the opinion, and the reasonableness of any assumptions underlying the opinion. You are not bound by the opinion. Give it the weight, if any, to which you consider it entitled.

COMMENT: *See* OEC 702 (ORS 40.410); *Wulff v. Sprouse-Reitz Co.*, 262 Or 293, 305, 498 P2d 766 (1972); *see also McEwen v. Ortho Pharmaceutical Corp.*, 270 Or 375, 391–92 n 14, 528 P2d 522 (1974); *Koch v. Southern Pacific Co.*, 266 Or 335, 341, 513 P2d 770 (1973); *Kennedy v. Industrial Acc. Com.*, 218 Or 432, 434–36, 345 P2d 801 (1959).

12/13

UCJI 10.07 HYPOTHETICAL QUESTIONS

Download MS Word

(This instruction has been withdrawn.)

12/13

UCJI 10.08 CIRCUMSTANTIAL EVIDENCE

Download MS Word

(This instruction has been withdrawn because the subject of the instruction is addressed in UCJI 10.01.)

12/10

UCJI 10.09 EVIDENCE RECEIVED FOR LIMITED PURPOSE

Download MS Word

The court received evidence of [*describe evidence*] for a limited purpose. You may consider such evidence only for the limited purpose of [*describe purpose for which evidence was received*]. You may not consider such evidence for any other purpose.

COMMENT: OEC 105 (ORS 40.035). This instruction may be used as a template for a limiting instruction whenever the court receives evidence for a limited purpose.

12/11

UCJI 10.10 TESTIMONY BY AGREEMENT

Download MS Word

The parties agree that if [insert name of person] were called as a witness, [he / she] would testify as follows: [describe testimony].

This does not mean that the parties agree that the testimony is true.

COMMENT: *See* UCrJI No. 1060. There is a difference between agreeing that a witness would give certain testimony and stipulating that the facts to which a witness would testify are true. This instruction may be requested and given at an appropriate point during a party's presentation of evidence at trial.

12/11

UCJI 10.11 STIPULATIONS OF FACT

Download MS Word

The parties agree, or stipulate, that [*describe stipulated fact*]. You should treat this fact as having been proved.

It is your responsibility to determine what weight, if any, you will give to this fact in reaching your verdict.

COMMENT: *See* UCrJI No. 1061. Whenever a stipulation resolves a claim or defense in its entirety, UCJI No. 13.04 (Withdrawal of Issues) should be used.

This instruction may be requested and given at an appropriate point during a party's presentation of evidence at trial.

12/11

UCJI 10.12 JUDICIAL NOTICE

Download MS Word

The rules of evidence allow the court to take judicial notice of certain facts. This means that although no party has offered evidence to prove the fact, you must accept it as conclusive. In this case, I instruct you to accept as conclusive that [*describe fact*].

Conclusive means that you may not question whether the fact has been established. However, you may give it whatever weight or value, if any, you think it deserves.

COMMENT: The court is required to "instruct the jury to accept as conclusive any fact or law judicially noticed." OEC 201(g)(1) (ORS 40.085(1)). ORCP 59 B states in part: "Whenever the knowledge of the court is by statute made evidence of a fact, the court shall declare such knowledge to the jury, which is bound to accept it as conclusive." *See also* OEC 201(f) (ORS 40.080) ("[j]udicial notice may be taken at any stage of the proceeding").

12/11

11. ADMISSIONS

UCJI 11.01 ORAL ADMISSIONS

Download MS Word

Statements made by the plaintiff or the defendant that are unfavorable to that party are called oral admissions. A witness's testimony, or other evidence about such statements, is to be viewed with caution. In evaluating testimony or other evidence about an oral admission, you should consider two things:

(1)Whether the statement was clearly and understandingly made by the plaintiff or the defendant; and

(2)Whether the language is correctly remembered and accurately reported by the witness.

COMMENT: ORS 10.095(4); *State v. McKenna*, 67 Or App 662, 664–66, 679 P2d 346 (1984).

12/13

UCJI 11.02 ADMISSIONS

Download MS Word

The [defendant / plaintiff] admits the following fact[s], which you must treat as conclusive:

1. [*List fact*]
2. [*List fact*]

Conclusive means that you may not question whether the fact has been established. However, you may give [this fact / these facts] whatever weight or value, if any, you think [it / they] deserve[s].

COMMENT: This instruction provides a framework for instructing the jury on matters that a party admitted in the pleadings or in response to a request for admission under ORCP 45. It may be requested and given at an appropriate point during a party's presentation of evidence at trial. *See Yates v. Large*, 284 Or 217, 223, 585 P2d 697 (1978) ("[a]n admission of fact in a pleading is a judicial admission and . . . is normally conclusive on the party making such an admission"); ORCP 45 D ("[a]ny matter admitted pursuant to this rule is conclusively established unless the court on motion permits withdrawal or amendment of the admission").

12/11

12. FAILURE TO PRODUCE OR TESTIFY

UCJI 12.01 LESS SATISFACTORY EVIDENCE

Download MS Word

In evaluating the evidence, you may consider the power of each side to produce evidence. If weaker and less satisfactory evidence is offered by either party when it appears that the party could have produced stronger and more satisfactory evidence, the evidence offered should be viewed with distrust.

COMMENT: *See* ORS 10.095(7)–(8); *see generally State v. McDonnell*, 313 Or 478, 497–503, 837 P2d 941 (1992) (explanation of when this instruction should not be given in a criminal case); *Hutcheson v. City of Keizer*, 169 Or App 510, 524–28, 8 P3d 1010 (2000); *Lakin v. Senco Products, Inc.*, 144 Or App 52, 63–65, 925 P2d 107 (1996), *aff'd*, 329 Or 62, 987 P2d 463, *clarified*, 329 or 369, 987 P2d 476 (1999).

12/14

13. ISSUES IN THE CASE

UCJI 13.01 PLEADINGS AND ISSUES

Download MS Word

The questions to be decided in a lawsuit are defined in certain documents that the parties filed with the court, which are known collectively as the *pleadings.* These consist of the plaintiff's complaint, which sets forth the plaintiff's claims; the defendant's answer, in which the defendant either admits or denies the plaintiff's claims, and sets forth any additional claims or defenses on which the defendant relies; and the plaintiff's reply, in which the plaintiff admits or denies the claims or defenses in the defendant's answer. By these pleadings, questions of fact are presented, and it is only these questions that are submitted for the jury's determination.

12/13

UCJI 13.02 SUMMARY OF PLEADINGS NOT EVIDENCE (To Be Used After Summarizing Pleadings)

Download MS Word

What I have just read is merely a summary of the pleadings. You are not to take anything in them as true unless it is admitted or proved by the evidence.

12/13

UCJI 13.03 PRIOR PLEADING AS EVIDENCE

Download MS Word

The [plaintiff / defendant] has introduced evidence of a prior pleading filed by the [defendant / plaintiff]. You may consider any difference between the pleadings only for the purpose of contradicting the present pleading or challenging the believability of the [defendant's / plaintiff's] testimony.

[The (defendant / plaintiff) has offered evidence about this pleading. You may consider this evidence only for the purpose of explaining any inconsistency between the prior pleading and the current pleading or testimony.]

COMMENT: *Swanson v. Hale*, 273 Or 138, 142, 539 P2d 1073 (1975); *Moore v. Drennan*, 269 Or 189, 192, 523 P2d 1250 (1974); *Roop v. Parker Northwest Paving Co.*, 194 Or App 219, 254–255, 94 P3d 885 (2004).

This instruction may be given when one of the parties has amended a pleading in the present case.

The bracketed paragraph should be given if the party against whom the prior pleading is introduced has introduced evidence to explain any inconsistency between the prior pleading and the present pleading or testimony of that party.

12/10

UCJI 13.04 WITHDRAWAL OF CLAIM OR ISSUE

Download MS Word

The court has withdrawn from your consideration the following [claim / issue]:

[*Identify specific claim or issue withdrawn.*]

This [claim / issue] is out of the case for all purposes, and you are not to concern yourselves with why the court has withdrawn it.

12/13

14. BURDEN OF PROOF

UCJI 14.01 BURDEN OF PROOF

Download MS Word

A party must prove any claim that party has made. This is called the burden of proof.

In this case, the plaintiff must prove the plaintiff's claim(s) by [a preponderance of the evidence / clear and convincing evidence].

[In this case, the defendant must prove the defendant's claim(s) by (a preponderance of the evidence / clear and convincing evidence).]

[In this case, the defendant has not made any claims, and therefore the plaintiff must prove all claims.]

COMMENT: The court should give the second bracketed paragraph of this instruction when the defendant has not pleaded an affirmative defense. *See* OEC 307 (ORS 40.115); ORS 10.095(5); *see also Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 394–403, 737 P2d 595 (1987) (discussion of levels of proof in Oregon).

1/21

UCJI 14.02 PREPONDERANCE OF THE EVIDENCE

Download MS Word

When a party must prove a claim by a preponderance of the evidence, that party must persuade you by evidence that makes you believe the claim is more likely true than not true.

After weighing all of the evidence, if you cannot decide that something is more likely true than not true, you must conclude that the party did not prove it. You should consider all of the evidence, no matter who produced it.

[In criminal trials, the state must prove that the person charged with a crime is guilty beyond a reasonable doubt. That is not the standard to use in this civil trial. Instead, the party who is required to prove something by a preponderance of the evidence only has to prove that it is more likely true than not true.]

COMMENT: *See* ORS 10.095(5); *Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 394, 737 P2d 595 (1987).

7/20

UCJI 14.03 CLEAR AND CONVINCING EVIDENCE

Download MS Word

When a party must prove a claim by clear and convincing evidence, that party must persuade you by evidence that makes you believe the truth of the claim is highly probable.

You should consider all of the evidence no matter who presented it.

[This is a higher standard of proof than preponderance of the evidence, but lower than the criminal standard of beyond a reasonable doubt.]

COMMENT: *Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 402, 737 P2d 595 (1987).

7/20

15. ADMITTED LIABILITY

UCJI 15.01 ADMITTED LIABILITY WITHOUT COMPARATIVE NEGLIGENCE

Download MS Word

The defendant has admitted liability so that the only issue to be decided by you is the amount of the damages to be awarded to the plaintiff.

12/13

UCJI 15.02 FAULT/NEGLIGENCE ADMITTED—INJURY DENIED

Download MS Word

The defendant has admitted [fault / negligence] and admits that such [fault / negligence] caused the accident. The issue for you to determine is whether the plaintiff sustained any injury in this accident and, if so, the amount of damages to be awarded to the plaintiff.

COMMENT: When negligence is the issue, the parties may wish to use *negligence* instead of *fault.* However, the same term should be used in the verdict form.

12/14

16. ABILITY TO PAY

UCJI 16.01 ABILITY TO PAY

Download MS Word

The jury is not to consider whether any of the parties in this action has insurance or the ability to pay for any liability, loss, damage, or injury. Whether any party has insurance or the ability to pay has no bearing on the issues that you are to decide.

COMMENT: *See Brooks v. Bergholm*, 256 Or 1, 4–6, 470 P2d 154 (1970); *see also Benton v. Johnson*, 45 Or App 959, 963, 609 P2d 890, *rev den*, 289 Or 373 (1980). The Committee takes no position on when this instruction should be given. However, this instruction should not be given if insurance is an issue in the case. OEC 411 (ORS 40.205). This instruction should be modified if the jury is being asked to consider punitive damages. *See* UCJI 75.02 (punitive damages).

12/17

17. STATUTES OF LIMITATIONS

UCJI 17.01 STATUTE OF LIMITATIONS DEFENSE (Discovery Rule)

Download MS Word

The defendant has alleged as an affirmative defense that the plaintiff filed the plaintiff's [*insert specific claim*] claim after the time limit set by the statute of limitations. The statute of limitations sets a time limit within which the plaintiff must file a claim.

The plaintiff's claim was filed on [*date*]. To prevail on a statute of limitations defense, the defendant must prove that before [*insert applicable date*] the plaintiff either knew, or in the exercise of reasonable care should have known, facts that would make a reasonable person aware of a substantial possibility that the defendant's alleged [*insert the alleged tortious conduct*] caused the plaintiff some harm.

If you find that the plaintiff filed the [*insert specific claim*] claim after the time limit set by the statute of limitations, then your verdict is for the defendant on the [*insert specific claim*] claim.

COMMENT: ORS 12.110; *Gaston v. Parsons*, 318 Or 247, 256, 864 P2d 1319 (1994) ("[T]he statute of limitations begins to run when the plaintiff knows or in the exercise of reasonable care should have known facts which would make a reasonable person aware of a substantial possibility that each of the three elements (harm, causation, and tortious conduct) exists."); *see also Rice v. Rabb*, 354 Or 721, 725, 320 P3d 554 (2014); *Romero v. Amburn*, 323 Or App 410, 414, 523 P3d 1135 (2022), *rev den*, 371 Or 106 (2023) (contract claims not subject to tort discovery rule); *Keller v. Armstrong World Industries, Inc.*, 197 Or App 450, 460–65, 107 P3d 29 (2005) (discussing meaning of substantial possibility), *adh'd to as modified on recons*, 200 Or App 406, 115 P3d 247 (2005), *aff'd*, 342 Or 23, 147 P3d 1154 (2006); *Oregon Life & Health Insurance Guaranty Ass'n v. Inter-Regional Financial Group., Inc.*, 156 Or App 485, 491–93, 967 P2d 880 (1998) (comparing discovery rule as applied to negligence, breach of fiduciary duty, and fraud claims); *Widing v. Schwabe, Williamson & Wyatt*, 154 Or App 276, 283–84, 961 P2d 889 (1998) ("[T]he discovery rule … does not contemplate that a plaintiff's actual or inquiry knowledge must extend to all of the particulars of his or her ultimate injury. Rather, the rule delays the running of the limitation period only until the plaintiff knows or should know that *some* harm has been incurred and that *a* claim exists." (emphasis in original)).

Attorneys should be aware that some claims (e.g., fraud, child abuse, sexual assault) may be subject to different discovery rules than the one reflected in this instruction.

6/24

UCJI 17.02 STATUTE OF LIMITATIONS DEFENSE (Products Liability) (In Claims Involving Death, Personal Injuries, or Property Damage That Occurred before January 1, 2004, and to Which the Revival Provisions of ORS 30.905, *as amended by* Or Laws 2003, ch 768, § 2(1), Do Not Apply)

Download MS Word

The defendant has alleged as an affirmative defense that the plaintiff filed [his / her / its] [*insert specific claim*] claim after the time limit set by the statute of limitations. The statute of limitations sets a time limit within which the plaintiff must file a claim.

The plaintiff's claim was filed on [*date*]. To prevail on [his / her / its] statute of limitations defense, the defendant must prove that the plaintiff failed to file [his / her / its] claim within two years [after the death of the decedent / after the date on which the plaintiff's (injury / damage) occurred].

COMMENT: ORS 30.905(2); *Kambury v. DaimlerChrysler Corp.*, 334 Or 367, 50 P3d 1163 (2002); *Gladhart v. Oregon Vineyard Supply Co.*, 332 Or 226, 26 P3d 817 (2001); *Fox v. Collins*, 213 Or App 451, 162 P3d 998, *rev den*, 343 Or 223 (2007). For cases arising on or after January 1, 2004, use UCJI 17.03.

12/14

UCJI 17.03 STATUTE OF LIMITATIONS DEFENSE (Products Liability) (In Claims Involving Death, Personal Injuries, or Property Damage That Occurred on or after January 1, 2004)

Download MS Word

The defendant has alleged as an affirmative defense that the plaintiff filed [his / her / its] [*insert specific claim*] claim after the time limit set by the statute of limitations. The statute of limitations sets a time limit within which the plaintiff must file a claim.

The plaintiff's claim was filed on [*date*]. To prevail on [his / her / its] statute of limitations defense, the defendant must prove that the plaintiff failed to file [his / her / its] [*insert specific claim*] within:

(1)[three years after the death of the decedent], or

(2)[two years after the date that the plaintiff discovered, or reasonably should have discovered, (his / her / its) (injury / damage) and the causal relationship between the (injury / damage) and (the defendant's product / the defendant's conduct)].

COMMENT: ORS 30.905; *McFadden v. Dryvit Sys., Inc.*, 338 Or 528, 112 P3d 1191 (2005).

12/15

UCJI 17.04 STATUTE OF ULTIMATE REPOSE DEFENSE (Products Liability) (In Claims Involving Personal Injuries, or Property Damage That Occurred on or after January 1, 2010)

Download MS Word

The defendant has alleged as an affirmative defense that the plaintiff filed [his / her / its] [*insert specific claim*] claim after the time limit set by the statute of repose. The statute of repose sets a time limit within which the plaintiff must file a claim.

The plaintiff's claim was filed on [*date*]. To prevail on [his / her / its] statute of repose defense, the defendant must prove that the plaintiff failed to file [his / her / its] [*insert specific claim*] within the following time periods, whichever is later:

(1)Ten years after the date on which the product was first purchased for use or consumption; or

(2)[*Insert alternative statute of repose*].

COMMENT: A product liability action must be commenced before the later of 10 years after the date on which the product was first purchased for use or consumption or the expiration of any statute of repose for an equivalent civil action in the state where the product was manufactured or the state the product was imported into from a foreign country of manufacture. ORS 30.905(2). The parties should edit the last sentence of the instruction to fit the facts of the specific case.

12/15

UCJI 17.05 STATUTE OF ULTIMATE REPOSE DEFENSE (Products Liability) (In Claims Involving Death That Occurred on or after January 1, 2010)

Download MS Word

The defendant has alleged as an affirmative defense that the plaintiff filed [his / her / its] [*insert specific claim*] claim after the time limit set by the statute of repose. The statute of repose sets a time limit within which the plaintiff must file a claim.

The plaintiff's claim was filed on [*date*]. To prevail on [his / her / its] statute of repose defense, the defendant must prove that the plaintiff failed to file [his / her / its] [*insert specific claim*] within the following time periods, whichever is earlier:

(1)Three years after the death of the decedent; or

(2)Ten years after the date on which the product was first purchased for use or consumption; or

(3)[*Insert alternative statute of repose*].

COMMENT: A product liability action must be commenced before the later of 10 years after the date on which the product was first purchased for use or consumption or the expiration of any statute of repose for an equivalent civil action in the state where the product was manufactured or the state the product was imported into from a foreign country of manufacture. ORS 30.905(4).

The parties should edit the last sentence of the instruction to fit the facts of the specific case.

12/15

NEGLIGENCE, FORESEEABILITY, COMPARATIVE NEGLIGENCE, AND CAUSATION

NEGLIGENCE AND ORDINARY CARE

Common Law Negligence—Introduction and Elements 20.01

Negligent Conduct Defined 20.02

Foreseeability 20.03

Negligence *Per Se* 20.04

Statute, Rule, or Standard as Evidence Whether (Defendant / Plaintiff) Acted with Reasonable Care 20.05

Right to Assume Law Obeyed 20.06

Liability for Subsequent Conduct of Third Party 20.07

Emergency (WITHDRAWN) 20.08

COMPARATIVE NEGLIGENCE

Comparative Negligence 21.01

Comparative Fault/Negligence 21.02

Comparative Fault—Two or More Defendants (Applies Only to Claims Arising before September 9, 1995) (WITHDRAWN) 21.03

Comparative Fault/Negligence—More than Two Persons Potentially at Fault 21.04

Evidence of Settlement 21.05

Conduct of Nonparties—Comparative Fault Not at Issue 21.06

SPECIFIC FACTORS AFFECTING NEGLIGENCE AND COMPARATIVE NEGLIGENCE

Intoxication 22.01

Riding with Intoxicated Driver—Negligence 22.02

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Concurrent Negligence of Two or More Persons (In Claims Not Subject to ORS 31.610) 22.06

CAUSATION

Causation—"But For" 23.01

Causation—"Substantial Factor" 23.02

Criminal Conduct as a Defense (In Claims Arising on or after September 27, 1987) 23.03

RES IPSA LOQUITUR

Res Ipsa Loquitur 24.01

20. NEGLIGENCE AND ORDINARY CARE

UCJI 20.01 COMMON LAW NEGLIGENCE—INTRODUCTION AND ELEMENTS

Download MS Word

The law assumes that all people have obeyed the law and have been free from negligence. The mere fact that an accident or injury occurred is not sufficient by itself to prove negligence. It is, however, something you may consider along with other evidence.

The plaintiff has made a claim for negligence against the defendant. This requires the plaintiff to prove each of the following:

(1) The defendant's conduct was negligent;

(2) The defendant's negligent conduct was a cause of harm to the plaintiff; and

(3) The harm was reasonably foreseeable.

COMMENT: *See ORS 40.135(1)(x)*; *Solberg v. Johnson*, 306 Or 484, 490–91, 760 P2d 867 (1988); *Fazzolari v. Portland School Dist. No. 1J*, 303 Or 1, 734 P2d 1326 (1987); *Stewart v. Kids Inc. of Dallas, OR*, 245 Or App 267, 274–75, 261 P3d 1272 (2011).

When *res ipsa loquitur* is or may be applicable, the second and third sentences should be omitted or modified. *See Centennial Mills, Inc. v. Benson*, 234 Or 512, 515, 383 P2d 103 (1963); *Powell v. Moore*, 228 Or 255, 269, 364 P2d 1094 (1961). Consider UCJI 24.01.

The statement concerning the right to assume the law has been obeyed may be limited in the case of children. *See Simmons v. Holm*, 229 Or 373, 403–05, 367 P2d 368 (1961).

This instruction can be modified to apply to cases of a negligence counterclaim by substituting the defendant for the plaintiff where appropriate.

12/13

UCJI 20.02 *NEGLIGENT CONDUCT* DEFINED

Download MS Word

The law requires every person to use reasonable care to avoid harming others. A person's conduct is negligent if that person fails to use reasonable care.

Reasonable care is the degree of care and judgment used by reasonably careful people in the management of their own affairs to avoid harming themselves or others. A person fails to use reasonable care when that person does something that a reasonably careful person would not do, or fails to do something that a reasonably careful person would do under similar circumstances.

In deciding whether a person used reasonable care, consider the dangers apparent or reasonably foreseeable when the events occurred. Do not judge the person's conduct in light of later events; instead, consider what the person knew or should have known at the time.

COMMENT: *See Kirby v. Sonville*, 286 Or 339, 344–45, 594 P2d 818 (1979); *White v. Milner Hotels, Inc.*, 267 Or 628, 632–36, 518 P2d 631 (1974).

There are specific instructions that define reasonable care in particular situations. *See, e.g.*, UCJI 44.01, 44.02, and 45.04.

12/13

UCJI 20.03 FORESEEABILITY

Download MS Word

A person is liable only for the reasonably foreseeable consequences of his or her actions. There are two things that must be foreseeable. First, the plaintiff must be within the general class of persons that one reasonably would anticipate might be threatened by the defendant's conduct. Second, the harm suffered must be within the general class of harms that one reasonably would anticipate might result from the defendant's conduct.

COMMENT: *See Fazzolari v. Portland School Dist. No. 1J*, 303 Or 1, 17, 734 P2d 1326 (1987); *Stewart v. Jefferson Plywood Co*., 255 Or 603, 609–10, 469 P2d 783 (1970); *Yanzick v. Tawney*, 44 Or App 59, 64–65, 605 P2d 297 (1980).

This instruction used to be UCJI 20.06.

12/13

UCJI 20.04 NEGLIGENCE *PER SE*

Download MS Word

The plaintiff claims that the defendant's conduct was negligent because the defendant violated the following [statute / ordinance / regulation / rule]: [*set forth relevant language of statute, ordinance, regulation, or rule*].

If you find that the defendant violated this [statute / ordinance / regulation / rule], the defendant's conduct was negligent [unless the defendant proves that (he / she) was acting with reasonable care under the circumstances].

COMMENT: *Barnum v. Williams*, 264 Or 71, 78–79, 504 P2d 122 (1972). This instruction is appropriate on the issue of the applicable standard of due care once the court determines as a matter of law that the plaintiff falls within the class of persons the statute, ordinance, regulation, or rule is intended to protect and that the harm the plaintiff has suffered is the type that the statute, ordinance, regulation, or rule is intended to prevent. The final bracketed phrase is appropriate when the court rules that the evidence produced is sufficient to create a jury question whether the defendant acted reasonably despite having violated the statute, ordinance, regulation, or rule. *Weitzel v. Wingard*, 274 Or 185, 189–90, 546 P2d 121 (1976).

This instruction can be modified to apply to negligence per se counterclaims by reversing the terms defendant and plaintiff.

This instruction used to be UCJI 20.03.

12/13

UCJI 20.05 STATUTE, RULE, OR STANDARD AS EVIDENCE WHETHER (DEFENDANT / PLAINTIFF) ACTED WITH REASONABLE CARE

Download MS Word

You may consider as evidence the following [statute / ordinance / regulation / rule / standard / etc.] in determining whether the [defendant / plaintiff] acted with reasonable care: [Set forth the relevant statute, ordinance, regulation, rule, standard, etc.]

[As with other evidence, give it the weight, if any, to which you consider it is entitled.]

COMMENT: This is not a negligence *per se* instruction. For the negligence *per se* instruction, see UCJI 20.04.

This is an instruction on the use of a statute, ordinance, regulation, rule, standard, etc., when "relevant," as evidence of the applicable standard of due care. *Hagan v. Gemstate Manufacturing, Inc.*, 328 Or 535, 541–43, 982 P2d 1108 (1999); *Shahtout v. Emco Garbage Co., Inc.*, 298 Or 598, 604–06, 695 P2d 897 (1985). *Shahtout* provides the framework within which the court will determine, as a matter of law, whether a statute, ordinance, regulation, rule, standard, etc. is "relevant" in a particular case; that is not an issue on which evidence is taken. *Hagan v. Gemstate Manufacturing, Inc.*, 328 Or at 541–43; *Scovill v. City of Astoria*, 324 Or 159, 173–74, 921 P2d 1312 (1996); *Hansen v. Abrasive Engineering and Manufacturing, Inc.*, 317 Or 378, 384–87, 856 P2d 625 (1993).

This instruction used to be UCJI 20.04.

12/13

UCJI 20.06 RIGHT TO ASSUME LAW OBEYED

Download MS Word

Every person has a right to assume that others will obey the law, unless and until that person knows or in the exercise of reasonable care should know otherwise.

COMMENT: *See Smith v. Holst*, 275 Or 29, 33, 549 P2d 671 (1976). The use of this instruction has been limited by the court in the case of children. *See Simmons v. Holm*, 229 Or 373, 403–05, 367 P2d 368 (1961).

This instruction used to be UCJI 20.05.

12/13

UCJI 20.07 LIABILITY FOR SUBSEQUENT CONDUCT OF THIRD PARTY

Download MS Word

If you find that the defendant's conduct was negligent and caused some injury to the plaintiff, then the defendant is liable for any reasonably foreseeable additional injury to the plaintiff. The defendant is liable even if the additional injury was caused by another person's subsequent negligent or wrongful conduct, as long as the subsequent conduct and the risk of additional injury were reasonably foreseeable.

COMMENT: *See generally Hefty v. Comprehensive Care Corp.*, 307 Or 247, 251–53, 766 P2d 1026 (1988); *Woosley v. Dunning*, 268 Or 233, 251, 520 P2d 340 (1974); *Stewart v. Jefferson Plywood Co.*, 255 Or 603, 609–11, 469 P2d 783 (1970); *Becker v. Barbur Blvd. Equipment Rentals, Inc.*, 81 Or App 648, 652–53, 726 P2d 967 (1986), *modified*, 84 Or App 367, *rev. denied*, 303 Or 535 (1987) ("formulation of liability in terms of intervening and superseding causes has been abandoned in favor of foreseeability test").

12/13

UCJI 20.08 EMERGENCY

Download MS Word

(This instruction has been withdrawn based on *Bjorndal v. Weitman*, 344 Or 470, 480, 184 P3d 115 (2008), in which the court stated that this instruction "incorrectly stated the law and was likely to confuse the jury as to the correct legal standard to apply.")

12/13

21. COMPARATIVE NEGLIGENCE

UCJI 21.01 COMPARATIVE NEGLIGENCE

Download MS Word

The law provides for comparative [fault / negligence]. This means that you are to determine each party's [fault / negligence], if any. You will have one verdict form, which I will explain to you.

COMMENT: ORS 31.600. This instruction is drafted for use with a special verdict form that should be read to the jury.

12/14

UCJI 21.02 COMPARATIVE FAULT/NEGLIGENCE

Download MS Word

The plaintiff and the defendant have each alleged that injury or damage was the fault of the other. If you find that both the defendant and the plaintiff were at fault in causing the alleged injury or damage, then you must compare the fault of the plaintiff to the fault of the defendant.

In making this comparison, you must determine the percentage of ***fault*** of each, not the percentage of ***damage*** caused by each. Ultimately, you must express the comparison of fault in terms of percentages that total 100 percent.

If the plaintiff's fault is more than 50 percent, then your verdict is for the defendant. On the other hand, if the plaintiff's fault is 50 percent or less, then your verdict is for the plaintiff.

Do not reduce the amount of the plaintiff's damages, if any, as a result of your comparison. I will reduce the amount of your verdict by the percentage of the plaintiff's fault, if any.

COMMENT: *See* ORS 31.600; ORS 31.605; ORS 31.610; *Sandford v. Chevrolet Division of General Motors*, 292 Or 590, 606–10, 642 P2d 624 (1982); *see also Wright v. Turner*, 368 Or 207, 218–19, 489 P3d 102 (2021); *Son v. Ashland Community Healthcare Services*, 239 Or App 495, 517–19, 244 P3d 835 (2010), *rev den*, 350 Or 297 (2011).

Comparative fault is not a defense to intentional or wanton/reckless torts. *Shin v. Sunriver Preparatory School, Inc.*, 199 Or App 352, 376, 111 P3d 762, *rev den*, 339 Or 406 (2005); *State v. Gutierrez-Medina*, 365 Or 79, 87, 442 P3d 183 (2019); *Miller v. Agripac, Inc.*, 322 Or App 202, 221, 518 P3d 957 (2022), *rev den*, 370 Or 827 (2023).

4/24

UCJI 21.03 COMPARATIVE FAULT—TWO OR MORE DEFENDANTS
(Applies Only to Claims Arising before September 9, 1995)

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(This instruction is withdrawn as being unnecessary.)

12/14

UCJI 21.04 COMPARATIVE FAULT/NEGLIGENCE— MORE THAN TWO PERSONS POTENTIALLY AT FAULT

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The parties in this case claim that the injury or damage was the fault of one or more of the other parties*. [(*Defendant's name*) also claims that the injury or damage was the fault of (*settling party's name*).]

You must first decide who, if anyone, among (*name parties allegedly at fault*), was at fault in causing the injury or damage as claimed in the pleadings.

Next, if more than one party is at fault, you must compare the fault of each to the other(s). In making this comparison, you must determine the percentage of ***fault*** of each party, not the percentage of ***damage*** caused by each. Ultimately, you must express this comparison of fault in terms of percentages that total 100 percent.

If the plaintiff's fault is more than 50 percent, then your verdict is for the defendant(s). On the other hand, if the plaintiff's fault is 50 percent or less, your verdict is for the plaintiff. Do not reduce the amount of the plaintiff's damages, if any, as a result of your comparison. I will reduce any amount you award the plaintiff by the percentage of the plaintiff's [and (*settling party's name*)'s] fault, if any.

COMMENT: *See* ORS 31.600; ORS 31.605; ORS 31.610; *Sandford v. Chevrolet Division of General Motors*, 292 Or 590, 593, 606–10, 642 P2d 624 (1982); *see also Wright v. Turner*, 368 Or 207, 218–19, 489 P3d 102 (2021); *Son v. Ashland Community Healthcare Services*, 239 Or App 495, 517–19, 244 P3d 835 (2010), *rev den*, 350 Or 297 (2011).

Comparative fault is not a defense to intentional or wanton/reckless torts. *Shin v. Sunriver Preparatory School, Inc.*, 199 Or App 352, 376, 111 P3d 762, *rev den*, 339 Or 406 (2005); *State v. Gutierrez-Medina*, 365 Or 79, 87, 442 P3d 183 (2019); *Miller v. Agripac, Inc.*, 322 Or App 202, 221, 518 P3d 957 (2022), *rev den*, 370 Or 827 (2023).

In complex cases, the Supreme Court's discussion in *Sandford* may provide useful guidance as to how to conduct this comparison of fault. *See Sandford*, 292 Or at 606–10 & n 19 ("[I]f the plaintiff's behavior . . . is alleged to have been negligent or otherwise 'fault,' it is to be measured against behavior that would have been faultless under the circumstances. The factfinder is to determine the degree to which the plaintiff's behavior fell short of that norm and express this deficit as a numerical percentage . . . . There necessarily must be some comparable assessment of the fault attributable to defendants as a departure from the norm invoked against them . . . in order to determine which is greater.").

**Party* here includes third-party defendants who would be liable in tort to the claimant, whether or not the claimant has made a claim directly against third-party defendants, as well as nonparties with whom the claimant has settled. ORS 31.600(2).

The name of the settling party should be used. Ordinarily, the jury should *not* be informed about the existence or terms of any settlement. ORS 31.605(3).

4/24

UCJI 21.05 EVIDENCE OF SETTLEMENT

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A settlement has occurred between the plaintiff and [*name settling party*]. You are not to assume from the settlement that the defendant [*name remaining defendant*] is or is not liable to the plaintiff. A settlement does not change the issues between the parties remaining in this case.

If your verdict is for the plaintiff after considering the other instructions I give you, and you find that the plaintiff has been damaged, then do not reduce the amount of those damages because of the settlement. [I will reduce the amount awarded to the plaintiff according to the percentages of fault.]

COMMENT: ORS 31.605(3). This instruction should be given only when the existence of a settlement has come to the attention of the jury.

ORS 31.610(2); ORS 31.815. *Compare Roach v. Hockey*, 53 Or App 710, 716–17, 634 P2d 249, *rev den*, 292 Or 108 (1981), *with Yardley v. Rucker Bros. Trucking, Inc.*, 42 Or App 239, 242–44, 600 P2d 485 (1979), *rev den*, 288 Or 335 (1980).

12/13

UCJI 21.06 CONDUCT OF NONPARTIES—COMPARATIVE FAULT NOT AT ISSUE

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If you find the [fault / negligence] of the defendant combined with the conduct of a nonparty to cause injury to the plaintiff, then the defendant would be liable for the entire injury, regardless of the relative degree to which [he / she / it] contributed to it. However, if you find the conduct of the nonparty was the sole cause of an injury to the plaintiff, the defendant would not be liable for such injury.

The term *nonparty* means a person or entity that is not named as a party in this lawsuit.

COMMENT: *Conner v. Mertz*, 274 Or 657, 660–61, 548 P2d 975 (1976) (if nonparty's conduct is sole cause of injury, plaintiff cannot recover; if defendant's negligence combines with nonparty's conduct to cause injury, defendant is liable for all damages).

This instruction should be given only when (1) there is evidence that injury was caused by the simultaneous, or concurrent, conduct of a nonparty and (2) there is no person or entity to whom fault can be attributed under ORS 31.600 or ORS 31.610.

12/14

22. SPECIFIC FACTORS AFFECTING NEGLIGENCE AND COMPARATIVE NEGLIGENCE

UCJI 22.01 INTOXICATION

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The care required of a person who has become intoxicated is the same as that required of one who is sober. Failure by a person to use that degree of care that an ordinarily prudent sober person would use under the same or similar circumstances would constitute negligence.

COMMENT: *Stovall v. Perius*, 61 Or App 650, 657–58, 659 P2d 393, *rev den*, 294 Or 792 (1983).

12/14

UCJI 22.02 RIDING WITH INTOXICATED DRIVER—NEGLIGENCE

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A person who voluntarily rides in a car driven by one who is under the influence of intoxicants to the extent that it impairs the driver's driving ability, after the rider knows or in the exercise of reasonable care should know of the driver's condition, is negligent, if a person exercising reasonable care would not have done so under the same or similar circumstances.

COMMENT: *Trotter v. McKellip*, 265 Or 334, 336–37, 509 P2d 31 (1973).

12/14

UCJI 22.03 NEGLIGENCE—PASSENGER

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(This instruction has been withdrawn because the content is sufficiently addressed in other instructions.)

12/17

UCJI 22.04 NEGLIGENCE OF MINORS

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In considering allegations of negligence against a minor, you are instructed that it is the duty of a minor to use the same care that a reasonably prudent person of the same age, intelligence, and experience would use under the same or similar circumstances.

COMMENT: *Hudson-Connor v. Putney*, 192 Or App 488, 493, 86 P3d 106 (2004); *see also Nielsen v. Brown*, 232 Or 426, 451–52, 374 P2d 896 (1962) (adult standard may apply when a minor engages in an adult activity); *Taylor v. Bergeron*, 252 Or 247, 249, 449 P2d 147 (1969) (minor may be too young to be capable of negligence).

12/14

UCJI 22.05 STANDARD OF CARE OF PERSONS WITH PHYSICAL IMPAIRMENT

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The conduct of a person with a physical impairment using the streets or highways of this state is to be measured by the conduct of a reasonably prudent person with the same physical impairment in the same or similar circumstances.

COMMENT: *Weinstein v. Wheeler*, 127 Or 406, 413, 271 P 733 (1928).

12/14

UCJI 22.06 CONCURRENT NEGLIGENCE OF TWO OR MORE PERSONS (In Claims Not Subject to ORS 31.610)

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When the negligence of two or more persons causes damage to another, each such person is liable for the entire damage regardless of the relative degree to which [he / she] has contributed to it.

COMMENT: *Hansen v. Bedell Co.*, 126 Or 155, 157–58, 268 P 1020 (1928).

This instruction should not be given in comparative fault cases because the jury may believe it refers to the plaintiff.

This instruction does not apply in cases governed by ORS 31.610.

12/14

23. CAUSATION

UCJI 23.01 CAUSATION—"BUT FOR"

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The defendant's conduct is a cause of the plaintiff's [harm / injury] if the [harm / injury] would not have occurred when and as it did but for that conduct; conversely, the defendant's conduct is not a cause of the plaintiff's [harm / injury] if that [harm / injury] would have occurred when and as it did without that conduct.

Many factors [or things] may operate either independently or together to cause [harm / injury]; in such a case, each may be a cause of the [harm / injury]. You may find that the defendant's conduct caused the [harm / injury] even though it was not the only cause. In deciding whether the defendant's conduct is a cause of the plaintiff's [harm / injury], you are not to consider whether that conduct was more important or less important than any other factor in causing the [harm / injury].

COMMENT: Oregon courts recognize two causation standards that apply to different types of negligence cases. *Haas v. Estate of Carter*, 370 Or 742, 525 P3d 451 (2023) (quoting *Joshi v. Providence Health System of Oregon Corp.*, 342 Or 152, 162, 149 P3d 1164 (2006)). The "but for" instruction should be used in the vast majority of cases. *Joshi*, 342 Or at 162 ("The 'but-for' test for causation, in which a plaintiff must demonstrate that the defendant's negligence more likely than not caused the plaintiff's harm, applies to the majority of cases."). The "substantial factor" instruction should only be used when "two causes concur to cause an event, and either, operating alone, would have been sufficient to cause the identical result." *Haas*, 370 Or at 751. Further discussion of substantial factor is found in the comment of UCJI 23.02. The UCJI Committee has provided pattern instructions for each causation standard. The trial court, with the assistance of the parties, must determine which standard applies to a particular case.

8/24

UCJI 23.02 CAUSATION—"SUBSTANTIAL FACTOR"

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Many factors [or things] may operate either independently or together to cause [harm / injury]. In such a case, each may be a cause of the [harm / injury] even though the others by themselves would have been sufficient to cause the same [harm / injury].

If you find that the defendant's act or omission was a substantial factor in causing the [harm / injury] to the plaintiff, you may find that the defendant's conduct caused the [harm / injury] even though it was not the only cause. [A substantial factor is an important factor and not one that is insignificant.]

COMMENT: *Lasley v. Combined Transp., Inc.*, 351 Or 1, 7–10, 261 P3d 1215 (2011); *Joshi v. Providence Health Sys. of Oregon Corp.*, 342 Or 152, 161–62, 149 P3d 1164 (2006); *McEwen v.* Ortho Pharm. Corp., 270 Or 375, 418, 528 P2d 522 (1974).

See comment to UCJI 23.01.

The final sentence is bracketed because the UCJI Committee could find no Oregon case defining *substantial factor* in this context. *See Lyons v. Walsh & Sons Trucking Co., Ltd.*, 183 Or App 76, 83 n 5, 51 P3d 625 (2002), *aff'd on other grounds*, 337 Or 319 (2004) (quoting this "substantial factor" language with apparent approval). Most commentators consider the phrase undefinable. *Furrer v. Talent Irr. Dist.*, 258 Or 494, 511, 466 P2d 605 (1970) ("The term 'substantial factor' expresses a concept of relativity which is difficult to reduce to further definiteness. Little, if anything, can be done with words to help the jury decide how much causal relationship must exist between conduct and damage before it constitutes a basis for recovery."). *See also* W. Page Keeton et al., *Prosser and Keeton on the Law of Torts* § 41, 267 (5th ed 1984 & Supp 1988); Leon Green, *The Causal Relation Issue in Negligence Law*, 60 Mich L Rev 543, 554 (1962); Dan B. Dobbs, 1 *The Law of Torts* § 171, 416 (2001 & Supp 2005); *Restatement (Second) of Torts* § 433 (factors important to "substantial factor" determination) (cited with approval in *Lyons*, 183 Or App at 83–84).

12/14

UCJI 23.03 CRIMINAL CONDUCT AS A DEFENSE (In Claims Arising on or after September 27, 1987)

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The defendant has raised the defense of criminal conduct. I instruct you that it is a complete defense if you find the following two elements:

(1) At the time of the incident, the plaintiff was engaged in conduct that would constitute [aggravated murder / murder / *appropriate Class A or B felony*]; and

(2) That conduct was a substantial factor contributing to the injury for which the plaintiff seeks recovery.

The burden of proof on both elements is on the defendant.

COMMENT: ORS 31.180(1) (*former* ORS 30.085, then ORS 30.698). This defense applies only to claims for personal injury or wrongful death based on ordinary negligence and arising on or after September 27, 1987. Or Laws 1987, ch 774, §§ 10, 27. There are exceptions for actions under 42 USC section 1983, death or injury due to spring guns, and other circumstances. ORS 31.180(3)–(5).

Substantial factor is defined in UCJI 23.02. The jury will also need to be instructed on the elements of the felony or felonies to the extent that there is a factual issue on the first element.

The burden of proof was lowered from beyond a reasonable doubt to a preponderance of the evidence by Oregon Laws 1997, chapter 734, section 1, for "acts or omissions occurring on or after" October 4, 1997.

12/14

24. *RES IPSA LOQUITUR*

UCJI 24.01 RES IPSA LOQUITUR

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The law assumes that all persons have obeyed the law and have been free from negligence.

However, you may find that the defendant was negligent if you find that the incident that caused damage to the plaintiff is one that, in the normal course of events, would not have occurred unless the defendant was negligent.

COMMENT: *Watzig v. Tobin*, 292 Or 645, 648–50, 642 P2d 651 (1982) (*res ipsa loquitur* is a rule of circumstantial evidence); *Peters v. City of Medford*, 109 Or App 26, 29–33, 818 P2d 517 (1991); *see also McKee Elec. Co. Inc. v. Carson Oil Co.*, 301 Or 339, 354–56, 723 P2d 288 (1986) (it may not be appropriate to give any instruction regarding *res ipsa loquitur*).

This instruction conforms to cases holding that "exclusive control" is no longer required as long as there is evidence connecting the incident to the defendant's conduct as opposed to actions of third parties. *Pattle v. Wildish Const. Co.*, 270 Or 792, 797–98, 529 P2d 924 (1974). This instruction also deletes the element that the "plaintiff's voluntary action or contribution" not have caused the incident because the plaintiff's comparative fault does not preclude application of the doctrine. *Cramer v. Mengerhausen*, 275 Or 223, 229, 550 P2d 740 (1976).

12/17

AGENCY

Fault/Negligence of Employee/Agent Imputed to Employer/Principal 30.01
Negligence of Agent Imputed to Principal 30.02
Corporation Acts Through Agents 30.03
Principal Defined 30.04
Actual Agent 30.04A
Actual Authority 30.04B
Apparent Agent 30.04C
Apparent Authority 30.04D
Scope of Authority 30.04E
Family Purpose Doctrine 30.05
12/08

30. AGENCY

UCJI 30.01 FAULT/NEGLIGENCE OF EMPLOYEE/AGENT IMPUTED TO EMPLOYER/PRINCIPAL

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[*Name*] was the [employee / agent] of the [plaintiff / defendant] [*name*]. Any [fault / negligence] of [*name*] is the [fault / negligence] of the [plaintiff / defendant] [*name*].

COMMENT: *See Stanfield v. Laccoarce*, 284 Or 651, 654–55, 588 P2d 1271 (1978).

This instruction should be given only when vicarious liability has been admitted or established as a matter of law. UCJI 30.04–30.04E should be used when the existence of the agency or action within the scope of the authority is in dispute.

The Committee suggests that *employer* and *employee* be substituted when appropriate.

12/14

UCJI 30.02 NEGLIGENCE OF AGENT IMPUTED TO PRINCIPAL

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[This instruction has been withdrawn.]

12/14

UCJI 30.03 CORPORATION ACTS THROUGH AGENTS

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A corporation can act only through its officers, agents, or employees. Any action by the [officer / agent / employee] of the corporation is the act of that corporation if the act was within the scope of that person's [authority / employment].

COMMENT: *Thayer v. Or. Fed'n of Square Dance Clubs*, 258 Or 302, 306–07, 482 P2d 717 (1971); *Doe v. Oregon Conference of Seventh-day Adventists*, 199 Or App 319, 327–29, 111 P3d 791 (2005); *Gritzbaugh Main St. Props. v. Greyhound Lines*, 205 Or App 640, 652, 135 P3d 345 (2006), *adh'd to on recons*, 207 Or App 628, 142 P3d 514 (2006), *rev den*, 342 Or 299 (2007) (corporation cannot willfully disobey a court order unless it does so through its officers and agents).

6/20

UCJI 30.04 *PRINCIPAL* DEFINED

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The person who authorizes [or appears to authorize] an agent to act is called the principal. A principal may be liable for acts of an [employee agent / actual agent / apparent agent].

COMMENT: *Jensen v. Medley*, 336 Or 222, 231–39, 82 P3d 149 (2003) (distinguishing employee or servant agent from nonservant agent); *Sullivan v. Josephine Cnty.*, 18 Or App 432, 436, 525 P2d 1071 (1974). *See also* ORS 670.600(2) (defining *independent contractor*).

If the agent is an employee, see UCJI 57.05 for a scope-of-employment instruction.

12/15

UCJI 30.04A ACTUAL AGENT

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A person or entity is an actual agent when a principal, through words or conduct, gives that person or entity the authority to act on the principal's behalf subject to the principal's control and that person or entity agrees to act on the principal's behalf.

COMMENT: *Phez Co. v. Salem Fruit Union*, 113 Or 398, 429, 233 P 547 (1925); *Checkley v. Boyd*, 198 Or App 110, 134, 107 P3d 65, *rev den*, 338 Or 583 (2005); *Themins v. Emmanuel Lutheran Charity Board*, 54 Or App 901, 907–08, 637 P2d 155 (1981), *rev den*, 292 Or 568 (1982); *see also Jensen v. Medley*, 336 Or 222, 231–39, 82 P3d 149 (2003) (distinguishing employee from nonservant agent).

COMMENT: This instruction may need to be modified to address case-specific circumstances. For example, courts have discussed agency principles in the context of claims against hospitals and medical providers. *See Eads v. Borman*, 351 Or 729, 277 P3d 503 (2012); *Towner v. Bernardo*, 304 Or App 397, 467 P3d 17, *rev den*, 367 Or 115 (2020). There may be other circumstances where case-specific modifications are warranted.

7/23

UCJI 30.04B ACTUAL AUTHORITY

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Actual authority exists when a principal, through words or conduct, directs an agent to act, and includes any other acts that are reasonably necessary to carry out the authorized act.

COMMENT: *Taylor v. Werner Enterprises, Inc.*, 329 Or 461, 468, 988 P2d 384 (1999); *Wiggins v. Barrett & Associates, Inc.*, 295 Or 679, 686–87, 669 P2d 1132 (1983); *Cascade Warehouse Co. v. Dyer*, 256 Or 377, 381, 474 P2d 325 (1970); *Checkley v. Boyd*, 198 Or App 110, 134, 107 P3d 65, *rev den*, 338 Or 583 (2005); *Kaiser Found. Health Plan of the Nw. v. Doe*, 136 Or App 566, 573, 903 P2d 375 (1995), *modified on recons*, 138 Or App 428, *rev den*, 324 Or 394 (1996).

12/15

UCJI 30.04C APPARENT AGENT

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A person or an entity is an apparent agent if a principal, through words or conduct, leads a third person to reasonably believe that the person or entity is authorized to act for the principal, and the third person relies upon that belief even though no actual authority exists.

COMMENT: *Checkley v. Boyd*, 198 Or App 110, 134, 107 P3d 651, *rev den*, 338 Or 585 (2005); *Themins v. Emmanuel Lutheran Charity Board*, 54 Or App 901, 908, 637 P2d 155 (1981), *rev den*, 292 Or 568 (1982); *see also Jensen v. Medley*, 336 Or 222, 231–39, 82 P3d 149 (2003) (distinguishing servant agent or employee from nonservant agent); *Miller v. McDonald's Corp.*, 150 Or App 274, 282 n 4, 945 P2d 1107 (1997) ("Apparent agency is a distinct concept from apparent authority. Apparent agency creates an agency relationship that does not otherwise exist, while apparent authority expands the authority of an actual agent.").

COMMENT: This instruction may need to be modified to address case-specific circumstances. For example, courts have discussed agency principles in the context of claims against hospitals and medical providers. *See Eads v. Borman*, 351 Or 729, 277 P3d 503 (2012); *Towner v. Bernardo*, 304 Or App 397, 467 P3d 17, *rev den*, 367 Or 115 (2020). There may be other circumstances where case-specific modifications are warranted.

7/23

UCJI 30.04D APPARENT AUTHORITY

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Apparent authority may exist when an agent does not possess the actual or implied authority to act for the principal. An agent has apparent authority if the principal's conduct causes the [plaintiff / defendant] to reasonably believe that the principal consents to have the agent act for [him / her] in a particular matter or function, and the [plaintiff / defendant] relies upon that belief.

COMMENT: *Badger v. Paulson Inv. Co. Inc.*, 311 Or 14, 24, 803 P2d 1178 (1991); *Wiggins v. Barrett & Associates, Inc.*, 295 Or 679, 687, 669 P2d 1132 (1983); *Jones v. Nunley*, 274 Or 591, 595, 547 P2d 616 (1976); *Cascade Warehouse Co. v. Dyer*, 256 Or 377, 381, 474 P2d 325 (1970); *Checkley v. Boyd*, 198 Or App 110, 134, 107 P3d 651, *rev den*, 338 Or 583 (2005); *Kaiser Found. Health Plan of the Nw. v. Doe*, 136 Or App 566, 573, 903 P2d 375 (1995), *modified on recons*, 138 Or App 428, *rev den*, 324 Or 394 (1996); *see also Miller v. McDonald's Corp.*, 150 Or App 274, 282 n 4, 945 P2d 1107 (1997) ("Apparent agency is a distinct concept from apparent authority. Apparent agency creates an agency relationship that does not otherwise exist, while apparent authority expands the authority of an actual agent.").

12/15

UCJI 30.04E SCOPE OF AUTHORITY

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The [plaintiff / defendant] claims that [*name*] was the [plaintiff / defendant]'s agent and was acting within the scope of [his / her] authority at the time involved in this case. The [plaintiff / defendant] denies that [*name*] [was acting within the scope of (his / her) authority] at the time involved in this case. A principal is bound only by the acts of the agent that are within the scope of the agent's [actual / apparent] authority.

COMMENT: *Taylor v. Werner Enterprises, Inc.*, 329 Or 461, 468, 988 P2d 384 (1999); *Wiggins v. Barrett & Associates, Inc.*, 295 Or 679, 686–87, 669 P2d 1132 (1983); *Jones v. Nunley*, 274 Or 591, 595, 547 P2d 616 (1976); *Checkley v. Boyd*, 198 Or App 110, 134, 107 P3d 651, *rev den*, 338 Or 583 (2005); *Houck v. Feller Living Trust*, 191 Or App 39, 43, 79 P3d 1140 (2003); *Kaiser Found. Health Plan of the Nw. v. Doe*, 136 Or App 566, 573, 903 P2d 375 (1995), *modified on recons*, 138 Or app 428, *rev den*, 324 Or 394 (1996).

For an instruction on scope of employment, see UCJI 57.05.

12/15

UCJI 30.05 FAMILY PURPOSE DOCTRINE

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Any person who owns and maintains an automobile for the comfort, convenience, pleasure, or entertainment of the person's family is liable for injuries caused by the negligent operation of such automobile, while being used for such purposes by a member of the family, with the express or implied consent of the owner.

COMMENT: *See Arizpe v. Vankirk*, 204 Or App 372, 374, 129 P3d 718, *rev den*, 340 Or 672 (2006); *French v. Barrett*, 84 Or App 52, 55, 733 P2d 89 (1987), *overruled in part on other grounds by Madrid v. Robinson*, 324 Or 561, 931 P2d 791 (1997); *Fisher v. Pippin*, 40 Or App 421, 423, 595 P2d 513, *rev den*, 287 Or 507 (1979).

The Committee takes no position regarding the definition of *ownership* for the purpose of this instruction.

12/14

MOTOR VEHICLES

RULE OF THE ROAD

Basic Speed Rule 35.01
Designated Speeds 35.02
Common-Law Control 35.03
Lookout 35.04
Following Too Closely 35.05
Driver's Turn Signals 35.06
Driver's Stop Signals 35.07
Right-of-Way 35.08
Right-of-Way—Uncontrolled Intersection 35.09
Right-of-Way—Intersection Controlled by Stop Signs 35.10
Right-of-Way—Intersection Controlled by Yield Signs 35.11
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Right-of-Way—Merging Lanes of Arterial Highway 35.13
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GUEST PASSENGER, JOINT ENTERPRISE

Negligence Not Imputed to Passenger in Automobile 36.01
Guest Passenger—Aircraft, Watercraft 36.02
Definition of Guest—Aircraft, Watercraft 36.03
Statutory Definition of Payment by Passenger 36.04
Statutory Definition of Gross Negligence 36.05

35. RULE OF THE ROAD

UCJI 35.01 BASIC SPEED RULE

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Oregon statutes establish what is known as the basic speed rule.

A driver violates the basic speed rule when he or she drives on a highway faster than is reasonable considering the traffic, surface and width of the highway, the hazard at intersections, weather, visibility, and any other existing conditions.

COMMENT: See ORS 801.305 if there is a question whether the alleged actions took place on a *highway*. For further discussion of the basic speed rule, see ORS 811.100 to 811.105. *See also* UCJI 35.02.

12/15

UCJI 35.02 DESIGNATED SPEEDS

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In connection with the basic speed rule, Oregon statutes also provide for certain designated speeds. Driving faster than the designated speed is a violation of the basic speed rule unless you are satisfied that such speed was reasonable under the existing circumstances.

The applicable designated speed[s] [is / are]: [*See the comment to determine the appropriate designated speed to insert.*]

COMMENT: *See* ORS 811.105, ORS 811.111. If the character of the district is in dispute, more than one alternative may be necessary. It also may be necessary to give the definition of an *alley*, ORS 801.110; a *business district*, ORS 801.170; a *residence district*, ORS 801.430; or a crosswalk, ORS 801.220. Driving past school grounds, and the appropriate designated speed therefor, is governed by ORS 811.111(1)(e).

If there is a dispute whether the designated speed has been properly modified by local authorities, or which designated speed applies, additional instructions explaining the methods of modification and/or that the jury must decide which designated speed applies, may be necessary.

12/15

UCJI 35.03 COMMON-LAW CONTROL

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An operator of a motor vehicle has a continuing duty to keep and maintain [his / her] automobile under reasonable control, that is, such a degree of control as would be exercised by a reasonably prudent person in the same or similar circumstances.

COMMENT: *Prauss v. Adamski*, 195 Or 1, 19, 244 P2d 598 (1952).

12/13

UCJI 35.04 LOOKOUT

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[A driver of a motor vehicle / Any person using the highway] has a continuing duty to maintain a reasonable lookout for other vehicles or persons on the street or highway.

A reasonable lookout means the lookout that a reasonably prudent person would maintain under the same or similar circumstances.

In determining whether a person maintained a reasonable lookout, you should take into consideration the extent or degree of danger reasonably to be expected. A person does not comply with the duty to maintain a reasonable lookout by simply looking and not seeing that which is plainly visible and which would have been seen by a reasonably prudent person under the same or similar circumstances.

COMMENT: *State v. Clark*, 256 Or App 428, 300 P3d 281 (2013); *State v. Stringer*, 49 Or App 51, 618 P2d 1309 (1980), *aff'd*, 291 Or 527, 633 P2d 770 (1981), *rev'd on other grounds on reh'g*, 292 Or 388, 639 P2d 1264 (1982); *Ginter v. Handy*, 244 Or 449, 452, 419 P2d 21 (1966); *Ewing v. Izer*, 243 Or 367, 369, 412 P2d 795 (1966).

12/13

UCJI 35.05 FOLLOWING TOO CLOSELY

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A driver follows another vehicle too closely when he or she follows more closely than is reasonable considering the speed of the vehicles, the traffic, and the condition of the highway.

COMMENT: ORS 811.485(1). If the vehicle is a truck, bus, or vehicle towing another vehicle, see ORS 811.485(1)(b).

12/15

UCJI 35.06 DRIVER'S TURN SIGNALS

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Oregon statutes require drivers to give certain signals before [turning their vehicles / changing lanes]. A driver may not [turn / change lanes] from a direct line of travel upon a [highway / road / street] when the movement cannot be made with reasonable safety or when the driver fails to give an appropriate signal continuously for at least 100 feet before [turning / changing lanes].

The appropriate signal is either by turn indicators or by hand and arm.

If the signal is given by turn indicators, the driver must activate both front and rear lights on that side of the vehicle toward which the [turn / lane change] is made.

If the signal is given by hand and arm, [a left turn is signaled by extending the left hand and arm horizontally / a right turn is signaled by extending the left hand and arm upward].

COMMENT: *See* ORS 811.335, 811.395–811.400. Turn indicators are controlled by ORS 816.120. Under some circumstances, drivers are required to use turn signal lights. *See* ORS 811.405. This instruction may be modified to apply to roundabouts.

12/13

UCJI 35.07 DRIVER'S STOP SIGNALS

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Oregon statutes provide that a driver may not stop or suddenly decrease the speed of the driver's vehicle without first giving an appropriate signal. The appropriate signal is either by a brake light or by hand and arm.

If the signal is given by brake light, the driver must activate one or more brake lights that signal an intent to stop and that are red in color and are visible from a distance of 500 feet to the rear of the vehicle in normal daylight.

If the signal is given by hand and arm, the stop is signaled by extending the left hand and arm downward.

COMMENT: *See* ORS 811.400 (failure to signal a stop or deceleration); ORS 811.405 (circumstances under which driver must use signal lights); ORS 816.100 (brake light specifications and placement); ORS 811.395 (signals for changing lanes and deceleration); ORS 816.320 (required lighting for motor vehicles).

12/13

UCJI 35.08 RIGHT-OF-WAY

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Oregon statute provides for right-of-way under certain circumstances. It states [*read applicable portion of ORS 811.275 or other applicable statutes*].

It refers to the privilege of the immediate use of that portion of the highway in question.

12/13

UCJI 35.09 RIGHT-OF-WAY—UNCONTROLLED INTERSECTION

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Oregon law provides that, when approaching an uncontrolled [highway / road / street] intersection, a driver shall look out for and give the right-of-way to any driver on the right who is simultaneously approaching a given point, regardless of which driver first reaches and enters the intersection.

[A driver having the right-of-way loses that right-of-way if the driver enters an intersection at an unlawful speed.]

COMMENT: ORS 811.275; *see* ORS 801.320 (definition of *intersection*).

12/13

UCJI 35.10 RIGHT-OF-WAY—INTERSECTION CONTROLLED BY STOP SIGNS

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Oregon law provides that a driver approaching a stop sign must stop before entering the intersection [unless directed by a police officer to proceed] and, after stopping, must yield the right-of-way to any vehicle in the intersection or approaching so closely as to constitute an immediate hazard.

The law further provides that the driver must stop [at a clearly marked stop line / before entering the crosswalk on the near side of the intersection / at the point nearest the intersecting roadway where the driver has a view of approaching traffic].

COMMENT: ORS 811.260(15). *See* ORS 801.320 (definition of *intersection*); ORS 801.220 (definition of *crosswalk*); ORS 801.510 (definition of *stop*).

12/13

UCJI 35.11 RIGHT-OF-WAY—INTERSECTION CONTROLLED BY YIELD SIGNS

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Oregon law provides that a driver approaching a yield sign must slow to a speed that is reasonable for the existing conditions, and must yield the right-of-way to any vehicles in the intersection or approaching so closely as to constitute an immediate hazard.

The law also requires that, if it is necessary for safety, the driver approaching the yield sign must stop [at a clearly marked stop line / before entering the crosswalk on the near side of the intersection / at the point nearest the intersecting roadway where the driver has a view of approaching traffic].

COMMENT: ORS 811.260(16). *See* ORS 801.320 (definition of *intersection*); ORS 801.220 (definition of *crosswalk*); ORS 801.510 (definition of *stop*).

12/13

UCJI 35.12 RIGHT-OF-WAY—INTERSECTION CONTROLLED BY TRAFFIC LIGHTS

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Oregon law provides generally that a driver facing a steady red light must stop, a driver facing a green light may proceed, and a driver facing a yellow light must stop if it can be accomplished safely.

More specifically, Oregon law provides that a driver facing a steady red signal light must stop and remain stopped until a green is shown [except when permitted to make a turn]. The driver must stop [at a clearly marked stop line / before entering the crosswalk on the near side of the intersection / before entering the intersection]. A driver facing a green signal light may proceed straight through the intersection or may turn right or left [unless a sign at that place prohibits either turn]. The driver must yield the right-of-way [to other vehicles lawfully within the intersection / to pedestrians lawfully within the intersection or an adjacent crosswalk].

A driver facing a steady yellow signal light is thereby warned that [his / her] right-of-way is being terminated and that a red light will be shown immediately. A driver facing the yellow light shall stop [at a clearly marked stop line / before entering the crosswalk on the near side of the intersection / before entering the intersection]. However, if the driver cannot stop in safety, the driver may drive cautiously through the intersection.

COMMENT: ORS 811.260(1)–(9); *see* ORS 801.320 (definition of *intersection*); ORS 801.220 (definition of *crosswalk*); ORS 801.510 (definition of *stop*); ORS 811.360 (describing conditions in which a driver may turn at red signal light).

12/13

UCJI 35.13 RIGHT-OF-WAY—MERGING LANES OF ARTERIAL HIGHWAY

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Oregon law provides that, a driver using an acceleration or merging lane to enter a freeway or other arterial highway must look out for and give the right-of-way to vehicles on the freeway or arterial highway. The driver must use a turn signal while entering the driving lane of the highway from the acceleration or merging lane. An arterial highway is any road that is used primarily by through traffic.

COMMENT: ORS 811.285; *State v. Belcher*, 108 Or App 741, 744, 816 P2d 1215 (1991) (driver merging lanes is required to use turn signal pursuant to ORS 811.400); *see* ORS 801.127 (defining *arterial*); ORS 801.305 (defining *highway*). The term *freeway* is not defined in the Oregon Motor Vehicle Code.

12/13

UCJI 35.14 RIGHT-OF-WAY—QUALIFICATIONS

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The right-of-way conferred by statute is not absolute. It is not exclusive, and it may not be exercised without due regard to the surrounding conditions and the safety and rights of others. Its exercise must always be reasonable and not arbitrary.

COMMENT: *Stahl v. Tobiasson*, 257 Or 445, 446–48, 479 P2d 751 (1971); *Keys v. Griffith*, 153 Or 190, 198, 55 P2d 15 (1936).

12/13

36. GUEST PASSENGER, JOINT ENTERPRISE

UCJI 36.01 NEGLIGENCE NOT IMPUTED TO PASSENGER IN AUTOMOBILE

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The plaintiff is not responsible for the negligence, if any, of the driver of the automobile in which the plaintiff was riding. Therefore, even if such driver was negligent in some manner that contributed to the plaintiff's injury, if any, this would not prevent the plaintiff's right to recover.

COMMENT: *Conner v. Mertz*, 274 Or 657, 660, 548 P2d 975 (1976).

If comparative fault of the plaintiff passenger is being submitted to the jury, UCJI 22.03, which deals with that subject, should be given immediately following this instruction. This instruction may not apply when the plaintiff sues his or her own driver.

12/14

UCJI 36.02 GUEST PASSENGER—AIRCRAFT, WATERCRAFT

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An owner or operator of an aircraft or watercraft is not liable to [his / her / its] guests for damages caused by an accident, unless you find one of the following:

(1) The accident was intentional on the part of the owner or operator;

(2) The accident was caused by the owner or operator's gross negligence; or

(3) The accident was caused by the intoxication of the owner or operator.

COMMENT: ORS 30.115.

12/14

UCJI 36.03 DEFINITION OF *GUEST*—AIRCRAFT, WATERCRAFT

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A *guest* is a person who voluntarily rides in [an aircraft / a watercraft], owned or operated by the defendant, without payment for such transportation, as part of a social relationship under circumstances wherein the predominant motivating factor is the hospitality extended by the defendant.

COMMENT: See *Fullerton v. White*, 273 Or 649, 660–61, 542 P2d 1017 (1975) (defining automobile *guest* under *former* ORS 30.110); *Sylvia v. Helfer*, 241 Or 98, 102–03, 404 P2d 238 (1965) (passenger who pays a portion of travel expenses may not be a guest).

12/15

UCJI 36.04 STATUTORY DEFINITION OF *PAYMENT* BY PASSENGER

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Payment means a substantial benefit in a material or business sense conferred upon the owner or operator of the conveyance and that is a substantial motivating factor for the transportation. It does not include a mere gratuity or social amenity.

COMMENT: ORS 30.115(1).

12/14

UCJI 36.05 STATUTORY DEFINITION OF *GROSS NEGLIGENCE*

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Gross negligence is negligence that is materially greater than the mere absence of reasonable care under the circumstances. Gross negligence is characterized by conscious indifference to or reckless disregard of the rights of others.

COMMENT: ORS 30.115(2).

12/14

MISCELLANEOUS TORTS

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40. INTENTIONAL TORTS

UCJI 40.01 ASSAULT

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The plaintiff claims that the defendant assaulted [him / her]. This requires the plaintiff to prove that:

(1) The defendant acted, intending to either

(a) cause a harmful or offensive contact with the plaintiff; or

(b) cause the plaintiff apprehension that the defendant was going to cause an imminent harmful or offensive contact with the plaintiff;

and

(2) The plaintiff reasonably believed a harmful or offensive contact would occur.

COMMENT: *Cook v. Kinzua Pine Mills Co.*, 207 Or 34, 49, 293 P2d 717 (1956) ("intent to cause hostile unpermitted contact"). *See also Mays v. Huling Brick Co.*, 246 Or 203, 204, 424 P2d 679 (1967) (citing W. Page Keeton et al., *Prosser and Keeton on the Law of Torts* §§9–10 (3d ed 1964) and *Restatement (Second) of Torts* §§13, 21 (1965)).

NOTE: The committee could not find any controlling case law supporting section (1)(b), above, but it is supported by *Restatement (Second) of Torts* §21.

Cf. UCrJI 1401–1429. Note that criminal assault contains entirely distinct elements.

12/13

UCJI 40.02 BATTERY

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The plaintiff claims that the defendant committed a battery. This requires the plaintiff to prove that:

(1) The defendant acted, intending to cause harmful or offensive contact with the plaintiff; and

(2) The defendant's actions directly or indirectly caused a harmful or offensive contact with the plaintiff.

COMMENT: *Walthers v. Gossett*, 148 Or App 548, 552, 941 P2d 575 (1997); *Bakker v. Baza'r, Inc.*, 275 Or 245, 249, 551 P2d 1269 (1976) ("It is not necessary that the contact do actual physical harm—it is sufficient if the contact is offensive or insulting."); *Cook v. Kinzua Pine Mills Co.*, 207 Or 34, 48–49, 293 P2d 717 (1956); *Mays v. Huling Brick Co.*, 246 Or 203, 204, 424 P2d 679 (1967) (citing W. Page Keeton et al., *Prosser and Keeton on the Law of Torts* §§9–10 (3d ed 1964) and *Restatement (Second) of* Torts §§13, 21).

Note: The committee recognizes that consent (or lack thereof) can be an issue in a claim of battery. *See, e.g.*, *Doe 1 v. Lake Oswego School Dist.*, 353 Or 321, 333–34, 297 P3d 1287 (2013); *Stone v. Finnerty*, 182 Or App 452, 460, 50 P3d 1179 (2002) ("[T]he gravamen or legal injury of a battery claim is a nonconsensual or offensive touching"). The committee, however, could not find Oregon authority indicating whether lack of consent is an element that the plaintiff must prove, or consent is an affirmative defense that the defendant must prove.

12/13

UCJI 40.03 INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

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The plaintiff has alleged a claim for intentional infliction of emotional distress. This requires the plaintiff to prove each of the following:

(1) The defendant intended to inflict severe emotional distress on the plaintiff;

(2) The defendant's conduct caused the plaintiff severe emotional distress; and

(3) The defendant's conduct was an extraordinary transgression of the bounds of socially tolerable behavior.

COMMENT: *Babick v. Oregon Arena Corp.*, 333 Or 401, 410–11, 40 P3d 1059 (2002); *McGanty v. Staudenraus*, 321 Or 532, 545–51, 901 P2d 841 (1995) (adopting *Restatement (Second) of Torts* §§8A, 46); *Schiele v. Montes*, 231 Or App 43, 48, 218 P3d 141 (2009).

12/13

UCJI 40.04 SEVERE EMOTIONAL DISTRESS DEFINED

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Emotional distress includes mental suffering, mental anguish, mental or nervous shock, fright, and all highly unpleasant mental or emotional reactions.

In determining whether the emotional distress was severe, you should consider its intensity and duration. To be severe, the emotional distress must be substantial or enduring, and not mild or transitory.

COMMENT: *Checkley v. Boyd*, 170 Or App 721, 742−43, 14 P3d 81 (2000), *rev den*, 332 Or 239 (2001) (to determine whether emotional distress is severe, court examines "duration and intensity" and such distress must be "more than mild and transitory."); *Williams v. Tri-County Metropolitan Transp. Dist. of Oregon*, 153 Or App 686, 690, 958 P2d 202, *rev den*, 327 Or 431 (1998), citing *Restatement (Second) of Torts* §46 at 73(1965); *Pakos v. Clark*, 253 Or 113, 132, 453 P2d 682 (1969).

12/13

UCJI 40.05 INTENTIONAL INTERFERENCE WITH ECONOMIC OR PROSPECTIVE ECONOMIC RELATIONS

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The plaintiff has alleged a claim for intentional interference with [prospective] economic relations. This requires the plaintiff to prove each of the following:

(1) The plaintiff had a [contract / professional or business relationship / prospective economic relationship / prospective inheritance];

(2) The defendant was not a party to the [contract / professional or business relationship / prospective economic relationship / prospective inheritance];

(3) The defendant intended to interfere with the [contract / professional or business relationship / prospective economic relationship / prospective inheritance];

(4) The defendant interfered through improper means or for an improper purpose in one or more of the ways alleged by the plaintiff;

(5) The defendant's interference caused harm to the [contract / professional or business relationship / prospective economic relationship / prospective inheritance]; and

(6) The defendant's interference resulted in damages to the plaintiff.

COMMENT: *Northwest Natural Gas Co. v. Chase Gardens, Inc.*, 328 Or 487, 497–98, 982 P2d 1117 (1999); *McGanty v. Staudenraus*, 321 Or 532, 535, 901 P2d 841 (1995); *Mannex Corp v. Bruns*, 250 Or App 50, 53, 279 P3d 278 (2012).

The court has extended this tort to include not only commercial but also noncommercial relationships. *Allen v. Hall*, 328 Or 276, 285, 974 P2d 199 (1999) (tort extends to prospective inheritance). The options bracketed in element (1) are examples of such relationships or prospective relationships. These options are not intended to be all-inclusive. The court has not extended this tort to include involuntary or adversarial relationships. *Fox v. Country Mut. Ins. Co.*, 169 Or App 54, 74–76, 7 P3d 677 (2000), *rev den*, 332 Or 137 (2001) (tort does not extend to expectancy in monetary recovery in civil lawsuit because such a relationship is involuntary and adversarial).

See UCJI 57.02 for a similar instruction regarding intentional interference with employment or prospective employment relationship.

In proper circumstances, the defendant may claim a privilege to interfere. *See Ramirez v. Selles*, 308 Or 609, 612–14, 784 P2d 433 (1989); *Welch v. Bancorp Management Services*, 296 Or 208, 218, 675 P2d 172 (1983), *modified on other grounds*, 296 Or 713 (1984); *Wampler v. Palmerton*, 250 Or 65, 74–77, 439 P2d 601 (1968). A separate instruction may be necessary to address any issues of privilege.

A separate instruction on improper means or improper purpose (also referred to as "motive") may be appropriate. *See Lewis v. Oregon Beauty Supply Co.*, 302 Or

616, 622, 733 P2d 430 (1987); *Top Service Body Shop v. Allstate Ins. Co.*, 283 Or 201, 209–10, 582 P2d 1365 (1978).

12/13

UCJI 40.06 *INTENT* DEFINED

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Intent means either:

(1)the actor desired to cause the consequences of [his / her] actions; or

(2)the actor believed that the consequences were substantially certain to result from [his / her] actions.

COMMENT: *McGanty v. Staudenraus*, 321 Or 532, 549–51, 901 P2d 841 (1995) (adopting *Restatement (Second) of Torts* §8A).

12/13

41. MALICIOUS PROSECUTION

UCJI 41.01 MALICIOUS PROSECUTION (of a Criminal Proceeding)

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To recover for malicious prosecution, the plaintiff must prove all of the following:

(1)The defendant initiated, caused, or had an active role in continuing criminal proceedings against the plaintiff;

(2)The defendant acted out of a desire to harm the plaintiff rather than out of a desire to bring the plaintiff to justice;

(3)The defendant acted without probable cause;

(4)The plaintiff was not guilty of the offense charged;

(5)The criminal proceeding ultimately terminated in favor of the plaintiff; and

(6)The plaintiff sustained injury or damage because of the prosecution.

COMMENT: *See Rogers v. Hill*, 281 Or 491, 497, 576 P2d 328 (1978); *Lampos v. Bazar, Inc.*, 270 Or 256, 266–67, 527 P2d 376 (1974); *Gustafson v. Payless Drug Stores*, 269 Or 354, 356, 525 P2d 118 (1974); *Varner v. Hoffer*, 267 Or 175, 176, 515 P2d 920 (1973); *Fleet v. May Dept. Stores, Inc.*, 262 Or 592, 601, 500 P2d 1054 (1972).

12/13

UCJI 41.02 WRONGFUL USE OF A CIVIL PROCEEDING

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The plaintiff claims that the defendant wrongfully used a civil proceeding against the plaintiff. This requires the plaintiff to prove each of the following:

(1) The defendant commenced and prosecuted a judicial proceeding against the plaintiff;

(2) The proceeding terminated in favor of the plaintiff;

(3) There was no probable cause;

(4) The defendant acted with a primary purpose other than securing an adjudication of the claim; and

(5) The plaintiff sustained injury or damage because of the proceeding.

COMMENT: *Pereira v. Thompson*, 230 Or App 640, 674−75, 217 P3d 236 (2009); *Roop v. Parker Northwest Paving Co.*, 194 Or App 219, 237–38, 94 P3d 885 (2004), *rev den*, 338 Or 374 (2005); *Portland Trailer & Equipment, Inc. v. A-1 Freeman Moving & Storage, Inc.*, 182 Or App 347, 351, 49 P3d 803 (2002); *Blandino v. Fischel*, 179 Or App 185, 189–90, 39 P3d 258, *rev den*, 334 Or 492 (2002).

12/13

UCJI 41.03 PROBABLE CAUSE—ADVICE OF COUNSEL

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The defendant had probable cause if the defendant sought and received the advice of an attorney in good faith and disclosed to that attorney all facts in [his / her] possession that a reasonable person would regard as pertinent.

COMMENT: *See Lampos v. Bazar, Inc.*, 270 Or 256, 269–70, 527 P2d 376 (1974); *Roop v. Parker Northwest Paving Co.*, 194 Or App 219, 238, 94 P3d 885 (2004), *rev den*, 338 Or 374 (2005); *Hartley v. Water Resources Dept.*, 77 Or App 517, 520–21, 713 P2d 1060, *rev den*, 301 Or 78 (1986); RESTATEMENT (SECOND) OF TORTS §666 comment g (1977).

12/13

UCJI 41.04 PROBABLE CAUSE—HYPOTHETICAL

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In this case, the facts are in dispute, and one set of facts would constitute probable cause. If you find the following facts are true, there was no probable cause to [institute / procure] [civil / criminal] proceedings against the plaintiff:

[*The court should now read the hypothetical containing those disputed facts that the court concludes would result in a determination that there was no probable cause.*]

[*or*]

In this case, I instruct you that there was no probable cause as a matter of law. Therefore, the plaintiff has proved this element.

COMMENT: *See SPS of Oregon, Inc. v. GDH, LLC*, 258 Or App 210, 309 P3d 178 (2013); *Gustafson v. Payless Drug Stores Nw., Inc.*, 269 Or 354, 356–58, 525 P2d 118 (1974); *Fleet v. May Dep't Stores, Inc.*, 262 Or 592, 601, 500 P2d 1054 (1972); *Roop v. Parker Nw. Paving Co.*, 194 Or App 219, 232–34, 94 P3d 885 (2004), *rev den*, 338 Or 374 (2005); *Perry v. Rein*, 187 Or App 572, 578–79, 71 P3d 81 (2003).

12/14

UCJI 41.05 *INITIATE* OR *CAUSE PROSECUTION*—DEFINITION

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A defendant initiates or causes criminal proceedings to be initiated against another if the defendant [makes / causes a third person to make] a charge to a public official who has discretion to initiate criminal proceedings, and one of the following:

(1)The person's desire to have the proceedings initiated, expressed by direction, request, or pressure of any kind, was the determining factor in the official's decision to commence the prosecution; or

(2)The information furnished by the person upon which the official acted was known to be false; or

(3)The person knowingly failed to furnish information that the person knew was material to the action by the official.

COMMENT: *Gustafson v. Payless Drug Stores Nw., Inc.*, 269 Or 354, 365, 525 P2d 118 (1974); see also *Restatement (Second) of Torts* § 653 (1977).

12/14

42. FRAUD

UCJI 42.01 FRAUDULENT MISREPRESENTATION/DECEIT/FRAUD—GENERAL

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To prevail on a claim of [fraudulent misrepresentation / deceit / fraud], the plaintiff must prove all of the following:

(1)The defendant made a false representation of a material matter;

(2)The defendant [knew that the representation was false / recklessly made the representation without knowing if it was true or false];

(3)The defendant [intended to mislead the plaintiff / knew that (he / she) was misleading the plaintiff / recklessly disregarded whether (he / she) was misleading the plaintiff];

(4)The plaintiff reasonably relied on the representation; and

(5)The plaintiff was damaged as a direct result of [his / her] reliance on the representation.

COMMENT: *Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 405, 737 P2d 595 (1987); *Oksenholt v. Lederle Laboratories, a Div. of Am. Cyanamid Corp.*, 294 Or 213, 222–23, 656 P2d 293 (1982); *U. S. Nat'l Bank of Oregon v. Fought*, 291 Or 201, 220–21, 630 P2d 337 (1981); *Webb v. Clark*, 274 Or 387, 391, 546 P2d 1078 (1976).

The elements of a fraud claim have also been described to include nine elements. *Williams v. Philip Morris Inc.*, 182 Or App 44, 49–50, 48 P3d 824, *adh'd to on recons*, 183 Or App 192, *rev den*, 335 Or 142 (2002), *cert granted and judgment vacated on other grounds*, 540 US 801 (2003), *original opinion adh'd to*, 193 Or App 527 (2004). Oregon courts have suggested, however, that the nine-part list of elements unnecessarily fractionalizes the essential elements of a fraud claim. *Williams*, 182 Or App at 50 n 5 (citing *Briscoe v. Pittman*, 268 Or 604, 610, 522 P2d 886 (1974)); *Fought*, 291 Or at 221–22.

12/14

UCJI 42.02 FRAUDULENT MISREPRESENTATION—MATERIAL

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A false representation of a material matter is one that would be likely to affect the conduct of a reasonable person with regard to a transaction with another person.

COMMENT: *Millikin v. Green*, 283 Or 283, 285, 583 P2d 548 (1978); *Onita Pac. Corp. v. Trustees of Bronson*, 122 Or App 452, 458, 858 P2d 453, *rev den*, 318 Or 170 (1993).

12/14

UCJI 42.03 FRAUDULENT MISREPRESENTATION—FALSE REPRESENTATION—FAILURE TO DISCLOSE (SPECIAL RELATIONSHIP)

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[The court has determined that a (*specify type of relationship*) relationship existed between the parties and as a result / If you find there was a special relationship between the plaintiff and the defendant], the defendant had a duty to disclose to the plaintiff all material matters of which the defendant had knowledge and silence or failure to disclose a material matter may be a false representation.

COMMENT: *Gebrayel v. Transamerica Title Ins. Co.*, 132 Or App 271, 281, 888 P2d 83, *rev den*, 321 Or 47 (1995) (for nondisclosure to form the basis of a fraud claim, the defendant must be under a duty to disclose).

The first choice of the bracketed sentence may be given when the court has determined that the duty to disclose existed as a matter of law, for example, attorney-client, principal-agent, or other fiduciary relationship.

When the existence of a "special relationship" is a question of fact for the jury to determine, UCJI 49.02 should be given.

12/14

UCJI 42.04 FRAUDULENT MISREPRESENTATION—FALSE REPRESENTATION—HALF-TRUTH

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A person who makes a representation in the nature of a half-truth assumes the affirmative obligation to make a full and fair disclosure of the whole truth. The failure to make a full and fair disclosure of the whole truth may be a false representation.

COMMENT: *Krause v. Eugene Dodge, Inc.*, 265 Or 486, 505, 509 P2d 1199 (1973).

12/14

UCJI 42.05 FRAUDULENT MISREPRESENTATION—FALSE REPRESENTATION—CONCEALMENT

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A person may make a false representation of a material matter by concealing the truth. A false representation by concealment occurs when a person, by any word or act, conceals a material matter either by creating a false impression covering up the truth, or by removing an opportunity that might otherwise have led to the discovery of the truth.

COMMENT: *Ogan v. Ellison*, 297 Or 25, 34, 682 P2d 760 (1984) (quoting *Musgrave v. Lucas*, 193 Or 401, 410, 238 P2d 780 (1951)); *Wieber v. FedEx Ground Package Sys., Inc.*, 231 Or App 469, 484–85, 220 P3d 68 (2009), *rev den*, 349 Or 664 (2011); W. Page Keeton et al., *Prosser and Keeton on The Law of Torts* § 106, 736–37 (5th ed 1984 & Supp 1988).

12/14

UCJI 42.06 FRAUDULENT MISREPRESENTATION—REASONABLE RELIANCE

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In determining whether the plaintiff's reliance on the statements of the defendant was reasonable, you must consider the totality of the parties' circumstances and conduct. In doing so, you may consider factors such as:

(1) Any information known or obvious to the plaintiff to confirm or refute the defendant's statement;

(2) The relative status, knowledge, and experience of the plaintiff and the defendant;

(3) The previous experience of the plaintiff and the defendant in similar transactions;

(4) Whether the statement was specific or general; and

(5) Whether the statement was a statement of fact or the expression of an opinion.

COMMENT: *Peterson v. McCavic*, 249 Or App 343, 358, 277 P3d 572, *rev den*, 352 Or 564 (2012); *Oregon Pub. Employees' Ret. Bd. ex rel. Oregon Pub. Employees' Ret. Fund v. Simat, Helliesen & Eichner*, 191 Or App 408, 428, 83 P3d 350 (2004).

12/14

UCJI 42.07 FRAUDULENT MISREPRESENTATION—STATEMENT OF OPINION

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In deciding whether a statement is a statement of an opinion or a representation of fact, you should consider the circumstances under which the statement was made. If you determine that the statement was a statement of opinion, it may be a false representation if:

(1) A special relationship existed between the parties; or

(2) The parties were not on equal footing and did not have equal knowledge or means of knowledge about the subject of the statement.

COMMENT: *Peterson v. Auvel*, 275 Or 633, 637–40, 552 P2d 538 (1976); *Holland v. Lentz*, 239 Or 332, 347, 397 P2d 787 (1964); *Campbell v. Southland Corp.*, 127 Or App 93, 99, 871 P2d 487, *rev den*, 320 Or 109 (1994); *Haag v. Cembellin*, 89 Or App 75, 78–79, 748 P2d 143 (1987), *rev den*, 305 Or 273 (1988); *Restatement (Second) of Torts* § 542 (1977).

12/14

UCJI 42.08 FRAUDULENT MISREPRESENTATION—REPRESENTATIONS MADE TO PERSONS OTHER THAN PLAINTIFF

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A false representation does not have to be made directly to the plaintiff. If you find that the defendant made a false representation to another person or a group of people with the intention that it would be communicated to the plaintiff or a person like the plaintiff, then you may find that the defendant made a false representation to the plaintiff.

COMMENT: *Carpenter v. Egli*, 272 Or 337, 339–40, 536 P2d 1236 (1975); *Estate of Schwarz v. Philip Morris Inc.*, 206 Or App 20, 42, 135 P3d 409 (2006), *aff'd*, 348 Or 442 (2010).

12/14

UCJI 42.09 FRAUDULENT MISREPRESENTATION—PROMISE OF FUTURE PERFORMANCE

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The plaintiff has alleged fraud based on the defendant's promise to do something in the future. To prevail, the plaintiff must prove two things:

(1) A promise was made but not performed; and

(2) At the time the promise was made the defendant [did not intend to perform in the future / made the promise with reckless disregard as to whether (he / she) could perform the promise in the future].

COMMENT: *Elizaga v. Kaiser Found. Hospitals, Inc.*, 259 Or 542, 548, 487 P2d 870 (1971); *Estate of Schwarz v. Philip Morris Inc.*, 206 Or App 20, 34, 135 P3d 409 (2006), *aff'd*, 348 Or 442 (2010); *Hocks v. Hocks*, 95 Or App 40, 43–44, 767 P2d 1369, *rev den*, 307 Or 658 (1989). Note: Fraudulent misrepresentation is also called promissory fraud or fraud in the inducement in the case law.

12/14

UCJI 42.10 FRAUDULENT MISREPRESENTATION—STANDARD OF PROOF

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The plaintiff must prove the elements of fraud by clear and convincing evidence.

COMMENT: *Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 392, 737 P2d 595 (1987); *Dizick v. Umpqua Cmty. Coll.*, 287 Or 303, 311, 599 P2d 444 (1979); *Cook v. Michael*, 214 Or 513, 527, 330 P2d 1026 (1958); *Oregon Pub. Emps.' Ret. Bd. ex rel. Or, Pub. Emps.' Ret. Fund v. Simat, Helliesen & Eichner*, 191 Or App 408, 423–24, 83 P3d 350 (2004); *Peterson v. McCavic*, 249 Or App 343, 356, 277 P3d 572 (2012), *rev den*, 352 Or 564 (2012).

NOTE: This instruction applies to all elements except damages. *See* UCJI 42.11.

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UCJI 42.11 FRAUDULENT MISREPRESENTATION—STANDARD OF PROOF—DAMAGES

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If you find that the plaintiff has proved the elements of fraud by clear and convincing evidence, you must next consider the issue of the plaintiff's damages. The plaintiff must prove damages by a preponderance of the evidence.

COMMENT: *Riley Hill Gen. Contractor, Inc. v. Tandy Corp.*, 303 Or 390, 392–93, 737 P2d 595 (1987); *Dizick v. Umpqua Cmty. Coll*, 287 Or 303, 311, 599 P2d 444 (1979); *Cook v. Michael*, 214 Or 513, 527, 330 P2d 1026 (1958).

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43. UNLAWFUL TRADE PRACTICES

UCJI 43.01 UNLAWFUL TRADE PRACTICE—ELEMENTS

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Oregon's Unlawful Trade Practices Act prohibits any person or entity from using certain unlawful methods, acts, or practices in trade or commerce.

To recover, the plaintiff must prove the following elements by a preponderance of the evidence:

(1)The defendant willfully [*insert applicable conduct from relevant subsection(s) of ORS 646.607, ORS 646.608, or OAR ch 137, div 20*];

(2) The defendant was acting in the course of the defendant's business, vocation, or occupation;

(3)The [*insert as applicable:* real estate, goods, or services] at issue [were / was] obtained by the plaintiff primarily for personal, family, or household purposes and customarily are obtained by purchasers primarily for personal, family, or household purposes [, or were obtained as a result of telephone solicitation]; and

(4) The plaintiff suffered an ascertainable loss of money or property as a result of the defendant's conduct.

COMMENT: *See* ORS 646.638 (elements of private cause of action); ORS 646.632 (state action, fourth element does not apply); ORS 646.605(6) (definition of "real estate, goods and services," with several exceptions); *Paul v. Providence Health Sys.-Or.*, 351 Or 587, 603 n 11, 273 P3d 106 (2012) (applying and discussing ascertainable loss requirement; affirming judgment for defendant where "plaintiffs have not alleged an ascertainable loss that is the result of defendant's conduct"); *Fowler v. Cooley*, 239 Or App 338, 344, 245 P3d 155 (2010) ("If goods are customarily bought by a substantial number of purchasers for personal, family or household uses and were, in fact, bought by the plaintiff for his or someone else's use and not for resale, the [UTPA] applies." (quoting *Searle v. Exley Express*, 278 Or 535, 540, 564 P2d 1054 (1977))); *Raudebaugh v. Action Pest Control, Inc.*, 59 Or App 166, 169–71, 650 P2d 1006 (1982); *Luedeman v. Tri-West Constr. Co.*, 39 Or App 401, 404, 592 P2d 281 (1979) (defendant's conduct must be willful).

A willful violation of a State of Oregon, Department of Justice administrative rule may constitute a violation of the UTPA. The Department of Justice has enacted administrative rules in regard to unlawful conduct in trade or commerce within the purview of ORS 646.608(1)(u) pursuant to ORS 646.608(4). OAR ch 137, div 20.

Depending on the facts at issue, additional instructions may be helpful and should be considered. *E.g.*, ORS 646.608(2) (defining the scope of a "representation" for purposes of unlawful trade practices); ORS 646.605(7) (defining "telephone

solicitation"); *Wolverton v. Stanwood*, 278 Or 341, 343–45, 563 P2d 1203 (1977) ("We believe that the statute should be applied only to those unlawful practices which arise out of transactions which are at least indirectly connected with the ordinary and usual course of defendant's business, vocation or occupation." (discussing what that means)).

UCJI 43.02 UNLAWFUL TRADE PRACTICES ACT—DAMAGES (ASCERTAINABLE LOSS)

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Ascertainable loss means a loss of money or property capable of being discovered, observed, or established. If an ascertainable loss of money or property is proven, the plaintiff may recover actual damages or $200, whichever is greater.

COMMENT: ORS 646.638(1); *Scott v. W. Int'l Surplus Sales, Inc.*, 267 Or 512, 515, 517 P2d 661 (1973); *Simonsen v. Sandy River Auto, LLC*, 290 Or App 80, 90–91, 413 P3d 982 (2018) ("there is no need to allege or prove the *amount* of the 'ascertainable loss'" (internal citation omitted)); *Paul v. Providence Health Sys.-Or.*, 351 Or 587, 603, 273 P3d 106 (2012) (loss cannot be speculative); *Hedrick v. Spear*, 138 Or App 53, 57–58, 907 P2d 1123 (1995). A plaintiff who claims minimum statutory damages in the amount of $200 need only prove he or she suffered some loss as a result of the violation, and is not required to prove the reduced value of the goods or services. Punitive damages may also be awarded pursuant to ORS 31.730.

See Pearson v. Philip Morris Inc., 358 Or 88, 123 n 20, 361 P3d 3 (2015) ("Again, the UTPA requires ascertainable loss in the form of money or property.").

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UCJI 43.03 *WILLFUL* DEFINED

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For the purposes of the Oregon Unlawful Trade Practices Act a party's conduct was willful when the party knew or should have known the party [*insert applicable conduct from relevant subsection(s) of ORS 646.607, ORS 646.608, or OAR ch 137, div 20*].

COMMENT: ORS 646.605(10); *State ex rel. Redden v. Disc. Fabrics, Inc.*, 289 Or 375, 385, 615 P2d 1034 (1980); *Adamson v. WorldCom Commc'ns, Inc.*, 190 Or App 215, 225, 78 P3d 577 (2003), *rev den*, 336 Or 657 (2004):

> To state an unlawful trade practices claim, plaintiff must plead that the alleged misrepresentation was "willful." *Rathgeber v. James Hemenway, Inc.*, 335 Or 404, 413, 69 P3d 710 (2003). A "willful" violation occurs "when the person committing the violation knew or should have known that the conduct was a violation." ORS 646.605(1). The statute's wording suggests that the person who committed the willful violation must know that his or her conduct is a violation of the law. In *State ex rel. Redden*, however, the Supreme Court held that the statute requires "no more than proof of ordinary negligence by a defendant in not knowing, when it should have known, that a representation made by him was not true." 289 Or at 385. Thus, it suffices that the defendant knew of the falsity of a representation, without knowing that the representation violated the law.

44. MEDICAL MALPRACTICE

UCJI 44.01 DUTY OF MEDICAL PROFESSIONAL

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A physician has the duty to use that degree of care, skill, and diligence that is used by ordinarily careful physicians practicing in the same or similar circumstances in the same or a similar community. A failure to use such care, skill, or diligence is negligence.

COMMENT: ORS 677.095(1); *Macy v. Blatchford*, 330 Or 444, 449–50, 8 P3d 204 (2000).

12/14

UCJI 44.02 DUTY OF SPECIALIST

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Physicians who are specialists in a particular field of medicine have the duty to use that degree of care, skill, and diligence that is used by ordinarily careful specialists practicing in the same medical field and in the same or a similar community. A failure to use such care, skill, or diligence is negligence.

COMMENT: ORS 677.095(1); *Malila v. Meacham*, 187 Or 330, 335, 211 P2d 747 (1949); *Restatement (Second) of Torts* § 299A (1965).

12/14

UCJI 44.03 PROFESSIONAL PERFECTION NOT REQUIRED

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[**WITHDRAWN**]

COMMENT: *See Martineau v. McKenzie-Willamette Medical Center*, 371 Or 247, fn 6 & 8, 533 P3d 1 (2023).

11/23

UCJI 44.04 INFORMED CONSENT

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To obtain the informed consent of a patient, a [physician / physician assistant] must explain the following:

(1) In general terms, the procedure or treatment to be undertaken;

(2) That there may be alternative procedures or methods of treatment, if any; and

(3) That there are risks, if any, of the procedure or treatment.

After giving this explanation, the [physician / physician assistant] must ask the patient if the patient wants a more detailed explanation. If the patient requests further explanation, the [physician / physician assistant] must disclose in substantial detail the procedure, the viable alternatives, and the material risks of the procedure.

A risk of procedure or treatment is material when a reasonable person, in what the [physician / physician assistant] knows or should know to be the patient's position, would be likely to attach significance to the risk alone or in combination with other risks in deciding whether or not to undergo the procedure or treatment.

A [physician / physician assistant] is not required to give a further detailed explanation when such explanation would be materially detrimental to the patient. In determining that further explanation would be materially detrimental, the [physician / physician assistant] must give due consideration to the standards of practice of reasonable medical practitioners in the same or a similar community under the same or similar circumstances.

COMMENT: ORS 677.097; *Creasey v. Hogan*, 48 Or App 683, 695, 617 P2d 1377 (1980), *aff'd*, 292 Or 154, 637 P2d 114 (1981) (discussing materiality). See ORS 677.010(13) for definition of *physician*.

12/14

UCJI 44.05 EMERGENCY TREATMENT

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Ordinarily a physician must obtain the consent of a patient before treatment. However, if in an emergency it is impossible or impracticable to obtain consent, either from the patient or from someone legally authorized to consent for the patient, a physician may undertake treatment, provided that the treatment is within the customary practice of physicians in the same or a similar community and under similar circumstances.

An emergency is an unforeseen combination of circumstances apparently creating a condition which, in the professional judgment of a physician acting under the same or similar circumstances, requires immediate care, treatment, or surgery to protect a person's life or health.

COMMENT: *See generally Hively v. Higgs*, 120 Or 588, 591, 253 P 363 (1927); *Restatement (Second) of Torts* §§ 62, 892D (1965).

12/14

UCJI 44.06 AGENCY—HOSPITAL CONTEXT ACTUAL AGENT

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[WITHDRAWN]

(See comment in UCJI 30.04A)

7/23

UCJI 44.07 AGENCY—HOSPITAL CONTEXT APPARENT AGENT

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[WITHDRAWN]

(See comment in UCJI 30.04C)

7/23

45. LEGAL MALPRACTICE

UCJI 45.01 ATTORNEY NEGLIGENCE—ELEMENTS

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To prevail on a claim for attorney negligence, the plaintiff must prove:

(1)The defendant owed a duty of care to the plaintiff;

(2)The defendant breached that duty;

(3)The breach of duty caused the plaintiff harm; and

(4)The harm is measurable in damages.

COMMENT: *See Stevens v. Bispham*, 316 Or 221, 227–228, 851 P2d 556 (1993); *Pereira v. Thompson*, 230 Or App 640, 654, 217 P3d 236 (2009); *Watson v. Meltzer*, 247 Or App 558, 270 P3d 289 (2011), *rev. denied*, 352 Or 266 (2012).

12/12

UCJI 45.02 ATTORNEY NEGLIGENCE—TO WHOM DUTY OF CARE OWED (CLIENT)

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An attorney owes a duty of care to a client. The plaintiff was the defendant's client if:

(1) The plaintiff reasonably believed that the defendant was the plaintiff's attorney; and

(2) The defendant either:

(a) Understood, or should have understood, that the plaintiff believed that an attorney-client relationship existed; or

(b) Provided professional assistance or advice on behalf of the plaintiff that is typical of work performed by attorneys.

COMMENT: *See Lord v. Parisi*, 172 Or App 271, 275, 19 P3d 358 (2001) (recognizing general rule that "only a client may sue his or her attorney for malpractice"); *e.g., In re Conduct of Wyllie*, 331 Or 606, 615, 19 P3d 338 (2001) ("A lawyer-client relationship may be found based on the putative client's objectively reasonable belief that a relationship has been established . . . However, the putative client's subjective belief must be accompanied by evidence that the lawyer understood or should have understood that the relationship existed."); *In re Conduct of Wittemyer*, 328 Or 448, 456, 980 P2d 148 (1999) ("putative client's subjective belief must be accompanied by evidence showing 'that the lawyer understood or should have understood that the relationship existed, or acted as though the lawyer was providing professional assistance or advice on behalf of the putative client'" (quoting *In re Conduct of Weidner*, 310 Or 757, 770, 801 P2d 828 (1990))).

12/12

UCJI 45.03 ATTORNEY NEGLIGENCE—TO WHOM DUTY OF CARE OWED (NON-CLIENT)

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An attorney owes a duty of care to a person who is not the client, if that person is the intended third-party beneficiary of the attorney's work for a client.

The plaintiff was the intended third-party beneficiary of the attorney's work for a client if the client sought legal services or advice from the attorney to:

[(1) Make a gift to the plaintiff when the client was not obligated to make that gift];

[(2) Make a promise to the plaintiff that the client, or someone on the client's behalf, would perform a service for the plaintiff, when the client was not obligated to perform that service];

[(3) Satisfy an actual or claimed debt that the client owed to the plaintiff]; or

[(4) Perform a service that the plaintiff claimed the client was obligated to perform.]

COMMENT: *See Hale v. Groce*, 304 Or 281, 286, 744 P2d 1289 (1987) (holding attorney owed duties to an intended third-party beneficiary); *see also Sisters of St. Joseph of Peace, Health, and Hosp. Services v. Russell*, 318 Or 370, 374–379, 867 P2d 1377 (1994) (defining third-party beneficiary and stating that when question of fact about intent exists, whether someone is an intended third-party beneficiary is properly submitted to jury); *Lord v. Parisi*, 172 Or App 271, 276–277, 19 P3d 358 (2001) (stating that exception to general rule exists when non-client is an intended third-party beneficiary of the attorney's work, using contract law to determine whether plaintiff was an intended third-party beneficiary).

12/12

UCJI 45.04 ATTORNEY NEGLIGENCE—*DUTY OF CARE* DEFINED

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An attorney has the duty to use that degree of care, skill, and diligence ordinarily used by attorneys practicing in the same or similar circumstances in the same or similar community.

COMMENT: *See Arp v. Kerrigan*, 287 Or 73, 88–89, 597 P2d 813 (1979); *Pereira v. Thompson*, 230 Or App 640, 657, 217 P3d 236 (2009).

12/12

UCJI 45.05 ATTORNEY NEGLIGENCE—CAUSATION

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To decide whether a breach of the duty of care caused harm to the plaintiff, you must compare the actual outcome with the outcome that would have occurred without the breach.

If the actual outcome is less favorable to the plaintiff than the outcome that would have occurred, then the defendant caused harm to the plaintiff.

COMMENT: *Chocktoot v. Smith*, 280 Or 567, 570, 571 P2d 1255 (1977); *Harding v. Bell*, 265 Or 202, 205, 508 P2d 216 (1973); *Watson v. Meltzer*, 247 Or App 558, 560, 270 P3d 289 (2011), *rev. denied*, 352 Or 266 (2012) (case-within-a-case rule applies in non-litigation case); *Kelly v. Hochberg*, 231 Or App 155, 217 P3d 699 (2009), *aff'd,* 349 Or 267 (2010) (in a legal malpractice action, plaintiff must prove he would have been successful in underlying action to be successful in malpractice action); *Varner v. Eves*, 164 Or App 66, 73, 990 P2d 357 (1999).

12/12

UCJI 45.06 ATTORNEY NEGLIGENCE—PROVING THE UNDERLYING CLAIM (LITIGATION CONTEXT)

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You must follow the instructions I am about to give you to decide what the outcome would have been in the original case without the breach:

[*Read applicable jury instructions.*]

COMMENT: *See Chocktoot v. Smith*, 280 Or 567, 570, 571 P2d 1255 (1977).

12/12

46. PREMISES LIABILITY

UCJI 46.01 DEFINITION OF *PREMISES*

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Premises is defined as land or improvements thereon.

12/14

UCJI 46.02 DEFINITION OF *POSSESSOR OF PREMISES*

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A possessor of premises is:

(1) A person who occupies the premises with intent to control it; or

(2) A person who has occupied the premises with intent to control it if no other person has since occupied the premises with intent to control it; or

(3) A person who is entitled to immediate occupation of the premises if no other person is in occupancy with intent to control it.

COMMENT: *Restatement (Second) of Torts* § 328E (1965).

12/14

UCJI 46.03 DEFINITION OF *TRESPASSER*

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A *trespasser* is a person who enters or remains upon premises in possession of another without a privilege to do so.

COMMENT: *Rich v. Tite-Knot Pine Mill*, 245 Or 185, 191, 421 P2d 370 (1966). If the definition of *privilege* is an issue in the case, the parties may consider submitting a special instruction. *See, e.g., Denton v. L. W. Vail Co.*, 23 Or App 28, 33–35, 541 P2d 511 (1975) (quoting *Restatement (Second) Torts* § 330 comment c). Consent may be given by acts or words. *Denton*, 23 Or App at 33–35. *See also Walsh v. C & K Mkt., Inc.*, 171 Or App 536, 539, 16 P3d 1179 (2000).

12/15

UCJI 46.04 POSSESSOR'S DUTY TO TRESPASSER

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A [possessor / defendant] has no duty to a trespasser to keep the property in a safe condition. The [possessor / defendant] is liable if the [possessor / defendant] wantonly or intentionally injures the trespasser.

COMMENT: *Hansen v. Cohen*, 203 Or 157, 165–66, 278 P2d 898 (1955); *Baker v. Lane Cnty.*, 28 Or App 53, 56, 558 P2d 1247 (1977); *Denton v. L. W. Vail Co., Inc.*, 23 Or App 28, 35, 541 P2d 511 (1975); *see also Joachim v. Crater Lake Lodge, Inc.*, 48 Or App 379, 385, 388, 617 P2d 632 (1980) (defining wanton).

The above instruction may not be appropriate in cases in which the possessor's standard of care is set by statute or ordinance, or in which doctrines applicable to attractive nuisances, known trespassers, or children are in issue.

12/14

UCJI 46.05 DEFINITION OF *LICENSEE*

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A *licensee* is a person who is upon the premises for [his / her] own purposes with the express or implied consent of the possessor.

COMMENT: *Rich v. Tite-Knot Pine Mill*, 245 Or 185, 191, 421 P2d 370 (1966); *Hansen v. Cohen*, 203 Or 157, 161–62, 165, 276 P2d 391, 278 P2d 898 (1955).

12/14

UCJI 46.06 POSSESSOR'S DUTY TO LICENSEE—CONDITIONS ON LAND

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The [possessor / defendant] is liable for injuries to a licensee caused by:

(1)Conditions of the property that the [possessor / defendant] caused or allowed intentionally or in reckless disregard of the rights or safety of others; or

(2)The [possessor / defendant]'s failure to warn the licensee of hidden dangerous conditions of the property known to the [possessor / defendant] that might cause an injury even if the licensee uses reasonable care.

COMMENT: *Ragnone v. Portland Sch. Dist. No. 1J*, 291 Or 617, 621, 633 P2d 1287 (1981); *Blystone v. Kiesel*, 247 Or 528, 530–31, 431 P2d 262 (1967); *Nelsen v. Nelsen*, 174 Or App 252, 257–58, 23 P3d 424 (2001); *Nightingale v. Jeffreys*, 124 Or App 384, 386–87, 862 P2d 589 (1993); *see also Joachim v. Crater Lake Lodge, Inc.*, 48 Or App 379, 385, 617 P2d 632 (1980) (defining wanton as reckless disregard).

The above instruction may not be appropriate in cases in which the possessor's standard of care is set by statute or ordinance.

See UCJI 20.02 for definitions of *reasonable care* and *negligent conduct.*

12/14

UCJI 46.07 POSSESSOR'S DUTY TO LICENSEE—ACTIVITIES ON LAND

Download MS Word

The [possessor / defendant] is liable for injuries to a licensee caused by activities on the property if the [possessor / defendant] failed to use reasonable care to protect the licensee.

COMMENT: *Ragnone v. Portland Sch. Dist. No. 1J*, 291 Or 617, 622, 633 P2d 1287 (1981); *Blystone v. Kiesel*, 247 Or 528, 531, 431 P2d 262 (1967).

The above instruction may not be appropriate in cases in which the possessor's standard of care is set by statute or ordinance.

See UCJI 20.02 for definitions of *reasonable care* and *negligent conduct.*

12/14

UCJI 46.08 DEFINITION OF *INVITEE*

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An *invitee* is:

(1) A person who goes on the premises of another at the other's invitation, either express or implied, and whose presence there is in the economic interest of the other; or

(2) A person who is invited to enter or remain on land as a member of the public for a purpose for which the land is held open to the public.

COMMENT: *Walsh v. C & K Mkt., Inc.*, 171 Or App 536, 539–41, 16 P3d 1179 (2000).

12/14

UCJI 46.09 POSSESSOR'S DUTY TO INVITEE

Download MS Word

A possessor of premises has a duty to make the premises reasonably safe for an invitee's visit. The possessor must exercise reasonable care to discover any condition that creates an unreasonable risk of harm to the invitee and either eliminate the condition or warn any foreseeable invitee of the risk so the invitee can avoid the harm.

[If the condition could not be encountered with reasonable safety even if the danger was known and appreciated by the invitee, the possessor is obligated to do more than warn; the possessor must take reasonable and feasible steps to eliminate the danger.]

COMMENT: See UCJI 20.02 regarding reasonable care.

Woolston v. Wells, 297 Or 548, 557–58, 687 P2d 144 (1984); *Wilk v. Georges*, 267 Or 19, 26, 514 P2d 877 (1973); *Vandeveere-Pratt v. Portland Habilitation Ctr., Inc.*, 242 Or App 554, 557–61, 259 P3d 9 (2011).

The bracketed paragraph must be given when there is evidence to support a finding that the condition cannot be encountered with reasonable safety even if the danger was known and appreciated by the invitee. *Vandeveere-Pratt*, 242 Or App at 561.

12/14

UCJI 46.10 COMPARATIVE NEGLIGENCE (INVITEE)

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The invitee is required to exercise reasonable care to avoid harm from a condition on the premises of which the invitee knows or, in the exercise of reasonable care, should know.

In determining and comparing negligence, if any, you must consider the obviousness of danger and the ease or difficulty with which harm to the plaintiff from that danger could be avoided by either party.

COMMENT: To be used when the issues of fact are framed by allegations of a defendant's negligence, the defendant's denial thereof, and the defendant's affirmative defense of negligence on the part of the plaintiff. *Woolston v. Wells*, 297 Or 548, 557–58, 687 P2d 144 (1984).

See UCJI 20.02 for definitions of *reasonable care* and *negligent conduct.*

12/14

UCJI 46.11 ATTRACTIVE NUISANCE

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A possessor of [premises / chattel] is subject to liability for harm to children trespassing thereon, caused by a condition on the [premises / chattel] if you find the [injury / death] results from the concurrence of all the following conditions:

(1)The possessor knows or has reason to know that children are likely to trespass where the condition exists;

(2)The condition is one of which the possessor knows or has reason to know, and which the possessor realizes or should realize will involve an unreasonable risk of [injury / death] to such children;

(3)The [child / children], because of [his / her / their] youth, [does not / do not] discover the condition or realize its risk;

(4)The utility of maintaining the condition and the burden of eliminating the danger are slight compared with the risk to children involved; and

(5)The possessor fails to exercise reasonable care to eliminate the danger or to otherwise protect children.

COMMENT: *Pocholec v. Giustina*, 224 Or 245, 252–53, 355 P2d 1104 (1960); *Abbott v. West Extension Irrigation District*, 110 Or App 385, 387 n 2, 822 P2d 747 (1991), *rev den*, 313 Or 299 (1992).

12/13

UCJI 46.12 INVITEE—FOREIGN SUBSTANCE—BUSINESS PROPERTY

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The plaintiff claims [he / she] was injured by slipping on a foreign substance on the floor of the defendant. To recover, the plaintiff must prove one of the following:

(1)The substance was placed there by the defendant; or

(2)The defendant knew that the substance was there and failed to use reasonable care to remove it; or

(3)The substance had been there so long that the defendant should, in the exercise of reasonable care, have discovered and removed it.

COMMENT: *Cowden v. Earley*, 214 Or 384, 387, 327 P2d 1109 (1958); *Griffin v. K.E. McKay's Market of Coos Bay, Inc.*, 125 Or App 448, 451, 865 P2d 1320 (1993), *rev den*, 319 Or 80 (1994); *Rex v. Albertson's, Inc.*, 102 Or App 178, 181, 792 P2d 1248, *rev den*, 310 Or 422 (1990); *see also Howard v. Kienow's Food Stores, Inc.*, 139 Or App 576, 913 P2d 721 (1996).

See UCJI 20.02 for a definition of *reasonable care.*

12/13

47. LIQUOR LIABILITY (STATUTORY LIABILITY)

UCJI 47.01 LIQUOR LIABILITY (STATUTORY LIABILITY)— SERVICE BY LICENSEE, PERMITTEE, OR SOCIAL HOST (In Claims Arising on or After September 27, 1987, and Before December 31, 2001)

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[WITHDRAWN]

COMMENT: *See Schutz v. La Costita III, Inc.*, 288 Or App 476, 406 P3d 66 (2017), *aff'd on other grounds*, 364 Or 536, 436 P3d 776 (2019); *Balzer v. Moore*, 293 Or App 157, 168 n 4, 427 P3d 193, *rev den*, 363 Or 817 (2018).

2/20

UCJI 47.02 LIQUOR LIABILITY (STATUTORY LIABILITY)—SERVICE TO PERSONS UNDER 21

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A person is liable for damages caused by a person under age 21 who obtained and consumed alcoholic beverages under certain circumstances.

To recover, the plaintiff must prove all of the following:

(1)the defendant was a [licensee / permittee / social host];

(2)a person under the age of 21 consumed alcoholic beverages obtained from the defendant;

(3)the consumption of alcohol by the person under the age of 21 was a substantial factor in causing damage to the plaintiff; and

(4)a reasonable person would have determined that [identification should have been requested / the identification exhibited was altered / the identification exhibited did not accurately describe the person to whom the alcoholic liquor was sold or served].

COMMENT: ORS 471.130; ORS 471.567; *see generally Gattman v. Favro*, 306 Or 11, 22–24, 757 P2d 402 (1988); *Chartrand v. Coos Bay Tavern*, 298 Or 689, 696–97, 696 P2d 513 (1985), *abrogated on other grounds by Deckard v. Bunch*, 358 Or 754, 370 P3d 478 (2016).

2/20

48. PRODUCTS LIABILITY

UCJI 48.01 STRICT LIABILITY FOR A DEFECTIVE PRODUCT

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I will now instruct you on the law of strict liability for a defective product.

A defendant is liable for physical harm or property damage caused by a product if:

(1)The defendant [sold / leased] the product and was engaged in the business of [selling / leasing] the product;

(2)The product was in a defective condition that was unreasonably dangerous to the ultimate [user / consumer] when the product left the defendant's hands; and

(3)The product was intended to and did reach the [user / consumer] without substantial change in its condition.

COMMENT: ORS 30.900, 30.920(1)–(2); *McCathern v. Toyota Motor Corp.*, 332 Or 59, 74–77, 23 P3d 320 (2001); *see Johnston v. Water Sausage Corp.*, 83 Or App 637, 641, 733 P2d 59 (1987) ("we conclude that strict liability in product liability actions is limited to sellers and lessors of defective products"). It is not necessary that the defendant be engaged solely in the business of selling or leasing the product. RESTATEMENT (SECOND) OF TORTS §402A, comment f (1965). UCJI Nos. 48.01, 48.02, and 48.03 should ordinarily be given together.

12/12

UCJI 48.02 DEFECTIVE CONDITION

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Defective condition means that when the product left the defendant's hands, it was in a condition that was not contemplated by the ultimate [user / consumer] and was unreasonably dangerous to the ultimate [user's / consumer's] person or property.

A product may be in a defective condition because of:

[(1) the design of the product]; or

[(2) a flaw arising from the manufacturing process]; or

[(3) the absence of adequate warnings or instructions].

COMMENT: ORS 30.900, 30.920; *see McCathern v. Toyota Motor Corp.*, 332 Or 59, 77–79, 23 P3d 320 (2001); *Heaton v. Ford Motor Co.*, 248 Or 467, 470–472, 435 P2d 806 (1967); RESTATEMENT (SECOND) OF TORTS §402A, comment g (1965).

12/12

UCJI 48.03 UNREASONABLY DANGEROUS—CONSUMER EXPECTATION TEST

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A product is unreasonably dangerous when it is dangerous to an extent beyond that which would be contemplated by the ordinary consumer who purchases the product with the ordinary knowledge common to the community as to its characteristics.

COMMENT: *See* ORS 30.920(1); *McCathern v. Toyota Motor Corp.*, 332 Or 59, 75–76, 23 P3d 320 (2001); *Ewen v. McLean Trucking Co.*, 300 Or 24, 31–33, 706 P2d 929 (1985); RESTATEMENT (SECOND) OF TORTS §402A, comment i (1965).

12/12

UCJI 48.04 EXERCISE OF ALL POSSIBLE CARE

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A [seller / lessor] of a product that is in an unreasonably dangerous defective condition is liable for harm caused by the product even though the [seller / lessor] exercised all possible care.

However, a [seller / lessor] is not liable for harm caused by products which are delivered in a condition that is safe for reasonably foreseeable use and handling.

COMMENT: ORS 30.920(2)(a); *see generally* RESTATEMENT (SECOND) OF TORTS §402A, comments g–h (1965).

12/12

UCJI 48.05 ALTERATION OR MODIFICATION

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The defendant is not liable when:

(1) The product was modified after it left the defendant's hands;

(2) The modification was a substantial factor in causing the [injury / damage]; and

(3) The modification either:

a. was made without the defendant's consent; or

b. was not made according to the defendant's instructions or specifications.

This defense is not available if the modification was reasonably foreseeable by the defendant and the defendant failed to give an adequate warning.

COMMENT: ORS 30.915; *Jones v. General Motors Corp.*, 139 Or App 244, 261–262, 911 P2d 1243 (1996), *aff'd,* 325 Or 404 (1997); *see also Ensley v. Strato-Lift, Inc.*, 134 F Supp2d 1191 (D Or 2001) (applying ORS 30.915).

12/12

UCJI 48.06 MISUSE

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The defendant is not liable for harm caused by a use which was not reasonably foreseeable.

COMMENT: ORS 30.920(3); *Johnson v. Clark Equip. Co.*, 274 Or 403, 410 n 7, 547 P2d 132 (1976); *Jett v. Ford Motor Co.*, 192 Or App 113, 119–120, 84 P3d 219 (2004); RESTATEMENT (SECOND) OF TORTS §402A, comment h (1965).

12/12

UCJI 48.07 FAILURE TO WARN OR INSTRUCT

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To prevent a product from being unreasonably dangerous, the [seller / lessor] may be required to give a warning or instruction regarding the use of the product. If you determine that the product would be unreasonably dangerous in the absence of an adequate warning or instruction, and if you determine that an adequate warning or instruction did not accompany the product, then the product was unreasonably dangerous.

Where an adequate warning or instruction is given, the [seller / lessor] may reasonably assume that it will be read and heeded, and a product bearing such a warning or instruction, which is safe for use if it is followed, is not in a defective condition, nor is it unreasonably dangerous.

A [seller / lessor] is not required to warn or instruct with regard to a danger that is generally known and recognized.

COMMENT: *See* ORS 30.920(3); *Benjamin v. Wal-Mart Stores, Inc.*, 185 Or App 444, 453–460, 61 P3d 257 (2002); RESTATEMENT (SECOND) OF TORTS §402A, comment j (1965).

12/12

UCJI 48.08 COMPARATIVE FAULT/NEGLIGENCE—PRODUCTS LIABILITY—PLAINTIFF'S FAILURE TO DISCOVER DEFECT

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In considering the defendant's claim that the plaintiff was at fault in causing the plaintiff's own injuries, you are not to consider the plaintiff at fault for any unobservant, inattentive, ignorant, or awkward failure to discover or to guard against [*specify the condition that the plaintiff claims makes the product unreasonably dangerous*].

COMMENT: *Hernandez v. Barbo Machinery Co.*, 327 Or 99, 107–10, 957 P2d 147 (1998); *Sandford v. Chevrolet Division of General Motors*, 292 Or 590, 598, 610, 642 P2d 624 (1982).

For general instructions on comparative fault, applicable in products liability cases as well, see UCJI 21.02 and UCJI 21.04.

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49. NEGLIGENT MISREPRESENTATION

UCJI 49.01 NEGLIGENT MISREPRESENTATION—ELEMENTS

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[The court has determined that a (*specify type of relationship*) relationship existed between the parties and as a result the defendant was under a duty to use reasonable care to protect the plaintiff from economic loss by not supplying false information or by not making a material misrepresentation to the plaintiff.] The plaintiff has alleged that [he / she / it] was damaged by a negligent misrepresentation made or false information supplied by the defendant.

To prevail on this claim, the plaintiff must prove the following:

First, the defendant was acting in the course of a [*specify type of relationship* / special] relationship with the plaintiff.

Second, the defendant failed to use reasonable care to protect the plaintiff from economic loss by negligently supplying false material information or making a false representation of a material matter to the plaintiff during the course of that relationship.

Third, the plaintiff reasonably relied on the defendant's negligent misrepresentation or false information.

Fourth, the plaintiff sustained economic loss as a result.

COMMENT: *See generally Conway v. Pac. Univ.*, 324 Or 231, 239–41, 924 P2d 818 (1996); *Onita Pac. Corp. v. Trustees of Bronson*, 315 Or 149, 160–65, 843 P2d 890 (1992); *Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 34–36, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231, 114 S Ct 2731, 129 L Ed 2d 854 (1994).

The first bracketed sentence may be given when the court has determined that the duty exists as a matter of law, for example, attorney-client, principal-agent, or fiduciary relationship.

When the existence of a "special relationship" is a question of fact for the jury, UCJI 49.02 should be given in connection with this instruction. *Compare Eulrich*, 121 Or App at 36–37 (there was evidence from which jury could find existence of a special relationship giving rise to such a duty), *with Conway*, 324 Or at 235, 244 (evidence insufficient as a matter of law to submit a negligent-misrepresentation claim to jury due to lack of "special" relationship).

12/14

UCJI 49.02 *SPECIAL RELATIONSHIP* DEFINED

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A *special relationship* between the plaintiff and the defendant existed if the plaintiff, in effect, authorized the defendant to exercise independent judgment on [his / her / its] behalf and the defendant accepted that responsibility.

COMMENT: *Bennett v. Farmers Ins. Co. of Oregon*, 332 Or 138, 160–62, 26 P3d 785 (2001); *Conway v. Pac. Univ.*, 324 Or 231, 239–41, 924 P2d 818 (1996) (*special relationship* does not exist if parties were in adversarial or arm's-length commercial or business setting when they were acting for their own economic interests); *Moore Excavating, Inc. v. Consol. Supply Co.*, 186 Or App 324, 333–34, 63 P3d 592 (2003).

12/14

50. FIDUCIARY DUTY

UCJI 50.01 *FIDUCIARY DUTY* EXPLAINED

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A fiduciary duty arises out of a fiduciary relationship. A fiduciary relationship exists if a party (the fiduciary) is obligated to pursue the best interests of the other party (the principal). In this case, the parties [do not] dispute that a fiduciary relationship existed between them.

A fiduciary owes a duty of [undivided loyalty / care / utmost good faith / full, fair, and frank disclosure / fair dealing] to the principal. In this case, the plaintiff alleges that defendant breached the duty(ies) of [*enter duty(ies) alleged*].

COMMENT: *Giuliano v. Anchorage Advisors, LLC*, 19 F Supp 3d 1087, 1103 (D Or 2014) (in determining whether a relationship exists the focus is on "*whether the* **nature of the parties' relationship itself** *allowed one party to exercise control in the first party's best interests*" (quoting *Bennett v. Farmers Ins. Co.*, 332 Or 138, 161–62, 26 P3d 785 (2001))); *see also Georgetown Realty v. The Home Ins. Co.*, 313 Or 97, 110–11, 831 P2d 7 (1992) (the "standard of care independent of the terms of the contract" would derive from the dynamics of the relationship between the contracting parties). *Restatement (Second) of Trusts* § 2 comment b (1959) states: "Fiduciary relations include not only the relation of trustee and beneficiary, but also, among others, those of guardian and ward, agent and principal, attorney and client. Each member of a partnership is in a fiduciary relation to the other partners." *See, e.g.*, *Fouchek v. Janicek*, 190 Or 251, 257, 225 P2d 783 (1950) (fiduciary relationship exists between partners).

Attorneys should submit a special instruction defining the fiduciary duties the plaintiff alleges were breached. The list of fiduciary duties referenced is nonexhaustive. The nature of the relationship typically dictates the description of a fiduciary's duty. *See, e.g.*, *Lindland v. United Bus. Invest. Inc.*, 298 Or 318, 322, 324, 693 P2d 20 (1984) (real estate broker owes a duty of "full, fair and frank disclosure"); *United States Nat'l Bank v. Guiss*, 214 Or 563, 583, 331 P2d 865 (1958) (trustee owes a duty of "utmost good faith and undivided loyalty"); *Strickland v. Arnold Thomas Seed Serv., Inc.*, 277 Or 165, 183, 560 P2d 597 (1977); *Chiles v. Robertson*, 94 Or App 604, 619, 767 P2d 903 (1989), *modified on recons*, 96 Or App 658, 774 P2d 500, *rev den*, 308 Or 592 (1989) (majority shareholders of a close corporation owe minority shareholders duties of "loyalty, good faith, fair dealing and full disclosure" and the directors and senior executive officers of all corporations owe similar duties to their corporations); *Pereira v. Thompson*, 230 Or App 640, 654, 217 P3d 236 (2009) (separate from professional negligence, an attorney owes a fiduciary duty of loyalty, good faith, and fair dealing).

UCJI 50.02 BREACH OF FIDUCIARY DUTY

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The plaintiff alleges that the defendant breached the fiduciary duty of [*enter duty alleged*] owed to the plaintiff by [*refer to allegations in complaint*].

To recover for breach of fiduciary duty, the plaintiff must prove the following:

(1)The existence of the fiduciary relationship between the plaintiff and the defendant;

(2)The defendant breached one or more of the fiduciary duties alleged by the plaintiff; and

(3)The plaintiff has been damaged as a result of the breach of one or more of those fiduciary duties.

COMMENT: *Restatement (Second) of Torts* § 874 (1979) states: "One standing in a fiduciary relation with another is subject to liability to the other for harm resulting from a breach of duty imposed by the relation." *Heitkemper v. Schmeer*, 130 Or 644, 664, 281 P 169 (1929) ("It was sufficient to allege the existence of the trust, its nature and character, and that the defendants had participated in its breach."); *Giuliano v. Anchorage Advisors, LLC*, 19 F Supp 3d 1087 (D Or 2014) (citing *Evergreen W. Bus. Ctr., LLC v. Emmert*, 254 Or App 361, 367, 296 P3d 545 (2012), *rev'd on other grounds*, 354 Or 790, 323 P3d 250 (2014)).

Restatement (Second) of Trusts § 2 comment b (1959) states: "Fiduciary relations include not only the relation of trustee and beneficiary, but also, among others, those of guardian and ward, agent and principal, attorney and client. Each member of a partnership is in a fiduciary relation to the other partners." *See, e.g.*, *Fouchek v. Janicek*, 190 Or 251, 257, 225 P2d 783 (1950) (fiduciary relationship exists between partners); *Chiles v. Robertson*, 94 Or App 604, 619–25, 767 P2d 903, *modified on recons*, 96 Or App 658, 774 P2d 500, *rev den*, 308 Or 592 (1989) (majority shareholder of closely held corporation owes fiduciary duties to minority shareholder, and directors and senior executive officers of all corporations owe similar duties to their corporations).

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UCJI 50.03 BREACH OF FIDUCIARY DUTY—DUTY OF UNDIVIDED LOYALTY (CONFLICT OF INTEREST)

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The plaintiff claims that the defendant breached a fiduciary duty of undivided loyalty owed to the plaintiff. To establish a breach of fiduciary duty of undivided loyalty, the plaintiff must prove the following:

(1)The existence of a fiduciary relationship between the parties;

(2)The defendant acted on [his / her / its] own behalf or on the behalf of another whose interests were adverse to the plaintiff; and

(3)Damage to the plaintiff resulting from the defendant's actions.

COMMENT: *See Lindland v. United Business Investments, Inc.*, 298 Or 318, 322 n 2, 324, 327, 693 P2d 20 (1984).

CAVEAT: The earning of a commission does not, without more, establish that the fiduciary engaged in self-dealing or has a conflict of interest. *Lindland*, 298 Or at 323 n 3.

7/19

UCJI 50.04 BREACH OF FIDUCIARY DUTY OF UNDIVIDED LOYALTY—FULL DISCLOSURE AS A DEFENSE

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The defendant claims that the plaintiff consented to the defendant's acting on [his / her / its] own behalf in the transaction connected to the fiduciary relationship. To avoid liability, the defendant must prove it is more likely true than not that:

(1)The plaintiff had full information and complete understanding of all of the facts concerning the transaction, and gave [his / her / its] consent, or

(2)The plaintiff manifested that [he / she / it] knew such facts or did not care to know them.

COMMENT: *See Lindland v. United Business Investments, Inc.*, 298 Or 318, 323–24, 327, 693 P2d 20 (1984); *Strickland v. Arnold Thomas Seed Serv.*, 277 Or 165, 173, 560 P2d 597 (1977); *Stephan v. Equitable Sav. & Loan Ass'n*, 268 Or 544, 568, 522 P2d 478 (1974); *Waterbury v. Nicol*, 207 Or 595, 606–08, 296 P2d 487, *modified on reh'g*, 207 Or 595, 298 P2d 211 (1956).

7/19

51. TRADE SECRETS

UCJI 51.01 MISAPPROPRIATION OF TRADE SECRET

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To recover damages for misappropriation of a trade secret, the plaintiff must prove each of the following elements:

(1) The plaintiff had a trade secret;

(2) The defendant misappropriated the trade secret in that [he / she / it] [*insert the relevant provisions of the following items*]:

(a) Acquired the plaintiff's [*describe the trade secret*] when [he / she / it] knew or had reason to know that the [*describe the trade secret*] was acquired by improper means; or

(b) After having used improper means to acquire knowledge of the trade secret, disclosed or used the plaintiff's trade secret without the plaintiff's express or implied consent; or

(c) Disclosed or used the plaintiff's trade secret without the plaintiff's express or implied consent when the defendant, before a material change of position, knew or had reason to know that it was a trade secret and that [his / her / its] knowledge of the trade secret had been acquired by accident or mistake; or

(d) Disclosed or used the plaintiff's trade secret without the plaintiff's express or implied consent when the defendant, at the time of disclosure or use, knew or had reason to know that [his / her / its] knowledge of the trade secret was:

(i) derived from or through a person who had used improper means to acquire it; or

(ii) acquired in circumstances requiring that [he / she / it] maintain its secrecy or limit its use; or

(iii) derived from or through a person who was required to maintain its secrecy or limit its use; and

(3) As a result of the misappropriation, the plaintiff incurred damages.

COMMENT: *See* ORS 646.465(1) (provides a defense when "a material and prejudicial change of position by a defendant prior to acquiring knowledge or reason to know of the misappropriation renders a monetary recovery inequitable"); *cf. Conmar Products Corp. v. Universal Slide Fastener Co.*, 172 F2d 150 (2d Cir 1949).

The Committee takes no position whether this is an "equitable" defense. If it is an "equitable" defense, the court would decide the factual issues arising in its

application, unless the court decides to have a jury, in an advisory capacity, decide the issues of fact. *See, e.g.*, *Paul v. Mazzocco*, 221 Or 411, 413, 351 P2d 709 (1960).

12/14

UCJI 51.02 *TRADE SECRET* DEFINED

Download MS Word

Trade secret means information that:

(1)Has independent economic value, actual or potential, because it is not generally known to the public or to persons who can obtain economic value from its disclosure or use; and

(2)Is the subject of reasonable efforts to maintain its secrecy.

COMMENT: ORS 646.461(4). A *trade secret* may include a drawing, cost data, customer list, formula, pattern, compilation, program, device, method, technique, or process.

12/14

UCJI 51.03 *IMPROPER MEANS* DEFINED—TRADE SECRET

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Improper means includes theft, bribery, misrepresentation, breach, or inducement of a breach of a duty to maintain secrecy, or espionage through electronic or other means.

COMMENT: ORS 646.461(1). Reverse engineering and independent development alone will not be considered *improper means*.

12/14

UCJI 51.04 DAMAGES—TRADE SECRET

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Damages for misappropriation of [*describe the trade secret*] may include the actual loss caused by misappropriation. Damages may also include the unjust enrichment caused by misappropriation that is not used in computing actual loss. The plaintiff's damages cannot be less than a reasonable royalty for the unauthorized disclosure or use of [*describe the trade secret*].

COMMENT: ORS 646.465(2).

12/14

UCJI 51.05 UNJUST ENRICHMENT—TRADE SECRET

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Unjust enrichment is defined as the reasonable value of whatever benefit the defendant has gained from disclosing or using the plaintiff's [*describe the trade secret*].

COMMENT: *Unjust enrichment* is not defined in the Uniform Trade Secrets Act (ORS 646.461–646.475). This instruction is based on the common-law definition of *unjust enrichment.* See *Burklund v. Clayton*, 275 Or 115, 120, 549 P2d 1261 (1976), and *Hughes v. Bembry*, 256 Or 172, 176, 470 P2d 151 (1970), both of which define *unjust enrichment* in the context of a real estate transaction.

12/14

52. DOMESTIC ANIMAL LIABILITY

UCJI 52.01 LIABILITY FOR DOMESTIC ANIMALS—STRICT LIABILITY

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The plaintiff alleges that the defendant is strictly liable for the plaintiff's [personal injuries / property damages]. This requires the plaintiff to prove the following by a preponderance of the evidence:

(1)the defendant was the possessor of the [*animal*];

(2)the [*animal*] had dangerous propensities abnormal to [*insert animal class or species*];

(3)the defendant knew or had reason to know of those abnormally dangerous propensities; and

(4)the plaintiff's [personal injuries / property damages], if any, were caused by those abnormally dangerous propensities.

If you find each of these elements, the defendant is liable even if the defendant exercised the utmost care to prevent the animal from doing the harm.

COMMENT: *See Westberry v. Blackwell*, 282 Or 129, 131–32, 577 P2d 75 (1978); *Kathren v. Olenik*, 46 Or App 713, 717, 613 P2d 69 (1980). See ORS 609.115 for statutory claim of strict liability for a dog adjudged by a court pursuant to ORS 609.990 to be "potentially dangerous" and UCJIs 52.05 through 52.07.

7/23

UCJI 52.02 LIABILITY FOR DOMESTIC ANIMALS—NEGLIGENCE

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The plaintiff alleges that the defendant was negligent and that the negligence caused the plaintiff's [personal injuries / property damages]. This requires the plaintiff to prove the following by a preponderance of the evidence:

(1)The defendant was the possessor of the [*animal*];

(2)The defendant knew or should have known that the [*animal*] would cause the plaintiff's [personal injuries / property damages] if any, if the [*animal*] was not controlled or confined; and

(3)The defendant failed to use reasonable care to prevent the [*animal*] from harming the plaintiff.

[To recover economic damages caused by a dog, the plaintiff need only prove (1) and (3) above. To recover noneconomic damages caused by a dog, the plaintiff must prove (1), (2), and (3).]

COMMENT: *Westberry v. Blackwell*, 282 Or 129, 131–32, 577 P2d 75 (1978); *Kathren v. Olenik*, 46 Or App 713, 717, 613 P2d 69 (1980). The bracketed language should only be included if the plaintiff is claiming economic damages arising from injuries caused by a dog. ORS 31.360.

7/23

UCJI 52.03 DAMAGES FOR INJURIES CAUSED BY A DOG

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[WITHDRAWN]

(See UCJI 52.02)

7/23

UCJI 52.04 DEFINITIONS OF *DOMESTIC ANIMAL* AND *WILD ANIMAL*

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A *domestic animal* is one that at the relevant time and place is customarily devoted to the companionship or service of humans.

In contrast, a *wild animal* is one that at the relevant time and place is not customarily devoted to the companionship or service of humans.

COMMENT: *Restatement (Second) of Torts* § 506 (1977). These definitions apply to tort liability and should not be confused with the statutory definitions at ORS 167.310.

9/23

UCJI 52.05 STRICT LIABILITY FOR PERSONAL INJURY AND/OR PROPERTY DAMAGE CAUSED BY A POTENTIALLY DANGEROUS DOG

Download MS Word

The plaintiff alleges that the defendant is strictly liable [for their personal injuries and/or for the damage to the plaintiff's real or personal property] caused by a potentially dangerous dog. This requires the plaintiff to prove the following by a preponderance of the evidence:

(1)a court has determined that the dog is a potentially dangerous dog;

(2)such determination occurred prior to the [the plaintiff's injuries / damages to the plaintiff's property];

(3)at the time [the plaintiff was injured / the plaintiff's property was damaged], the defendant was the keeper of the dog; and

(4)the dog caused [physical injury to the plaintiff and/or damage to the plaintiff's real or personal property].

COMMENT: *See* ORS 609.115 defining this claim. UCJI 52.06 defining *keeper* should be given with this instruction.

9/23

UCJI 52.06 DEFINITION OF *KEEPER*

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Keeper means a person who owns, possesses, controls, or otherwise has charge of a dog, other than:

(1) a boarding kennel;

(2) a humane society or other nonprofit animal shelter;

(3) a facility impounding dogs on behalf of a city or county; or

(4) a veterinary facility.

COMMENT: See ORS 609.035(4) defining *keeper*. This instruction should be given whenever UCJI 52.05 (strict liability for personal injury and/or property damage caused by a potentially dangerous dog) is given.

9/23

UCJI 52.07 DEFENSE TO STRICT LIABILITY FOR A POTENTIALLY DANGEROUS DOG—PROVOCATION, ASSAULT, OR TRESPASS

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The defendant alleges that they are not strictly liable for the plaintiff's personal injuries caused by a potentially dangerous dog because the plaintiff [provoked the dog / assaulted the dog's keeper / trespassed upon premises from which the keeper may lawfully exclude others]. If the defendant proves by a preponderance of the evidence that the plaintiff [provoked the dog / assaulted the dog's keeper / trespassed upon premises from which the keeper may lawfully exclude others], then you must find for the defendant on the plaintiff's claim for strict liability for a potentially dangerous dog.

COMMENT: See ORS 609.115(3) stating that the statutory claim stated at ORS 609.115(2) "does not apply if a physical injury is to a person provoking the dog or assaulting the dog's keeper or to a person who trespasses upon premises from which the keeper may lawfully exclude others."

9/23

53. TRESPASS AND NUISANCE

UCJI 53.01 TRESPASS TO LAND

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Trespass to land is an unauthorized entry of land in the exclusive possession of another. A trespass may occur by some act or force that a party sets in motion or may occur when a person enters or remains upon the land of another.

The defendant is liable for trespass if you find:

[1. That the defendant was negligent, and the defendant's negligence caused the trespass;]

[2. That the defendant was reckless, and the defendant's recklessness caused the trespass;]

[3. That the defendant acted intentionally, knowing that a trespass would result from the defendant's actions, and a trespass occurred as a result of those actions. Here, *intentional* means that the acts setting in motion the unauthorized entry were done knowing that a trespass would result, not that the acts were done for the specific purpose of causing a trespass; or]

[4. That the defendant was carrying on an ultrahazardous activity, and that activity caused a trespass.]

COMMENT: *See* UCJI 46.02 (definition of *possessor of premises*); UCJI 46.03 (definition of *trespasser*); *Hudson v. Peavey Oil*, 279 Or 3, 6–7, 566 P2d 175 (1977); *Martin v. Union P. R.R. Co.*, 256 Or 563, 565, 474 P2d 739 (1970); *Lunda v. Matthews*, 46 Or App 701, 705, 613 P2d 63 (1980); *Union P. R.R. Co. v. Vale, Or. Irrigation Dist.*, 253 F Supp 251, 258 (D Or 1966). *See also Davis v. Georgia-Pacific Corp.*, 251 Or 239, 243, 445 P2d 481 (1968) (intrusion of fumes, gasses, and odors can constitute a trespass); *Carvalho v. Wolfe*, 207 Or App 175, 178, 140 P3d 1161 (2006) (comparing trespass and nuisance); *Ream v. Keen*, 112 Or App 197, 200–01, 828 P2d 1038, *aff'd*, 314 Or 370, 838 P2d 1073 (1992) (intrusion of smoke followed by several days of residual smoke and odor can constitute a trespass).

7/20

UCJI 53.02 COMMON LAW—PRIVATE NUISANCE

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A private nuisance is a substantial and unreasonable interference with the use and enjoyment of land.

To prevail on a claim of private nuisance, the plaintiff must prove it is more likely than not that:

(1)The defendant knew, or had reason to know, that an objectionable condition existed on the defendant's property;

(2)The defendant realized, or should have realized, that the objectionable condition created an unreasonable risk of substantial interference with the use and enjoyment of the plaintiff's property;

(3)The utility of maintaining the objectionable condition and the burden of eliminating the objectionable condition were slight compared with the risk;

(4)The defendant failed to exercise reasonable care to eliminate the risk; and

(5)The objectionable condition caused actual damage to the plaintiff.

COMMENT: A person is only liable for acts of third parties that create a nuisance on the person's land if that person (1) knows the activity is there and that it involves an unreasonable risk of causing the nuisance, and (2) "consents to the activity or fails to exercise reasonable care to prevent" it. RESTATEMENT (SECOND) OF TORTS § 838 (1979); *Mark v. State Dep't of Fish & Wildlife,* 158 Or App 355, 362B363, 974 P2d 716 (1999).

See Smith v. Wallowa County, 145 Or App 341, 346, 929 P2d 1100 (1996) (interference with the use and enjoyment of land is not nuisance unless it is both substantial and unreasonable); *Amphitheaters, Inc. v. Portland Meadows*, 184 Or 336, 348, 198 P2d 847 (1948) (same); *Frady v. Portland General Electric Co.*, 55 Or App 344, 347, 637 P2d 1345 (1981) (no liability for purported nuisance unless "actions were intentional, negligent, reckless or an abnormally dangerous activity").

To constitute nuisance, an invasion of another's property interest must cause greater harm than the person should have to bearCan analysis that involves a "weighing of the gravity of the harm against the utility of the defendant's conduct." *Jacobson v. Crown Zellerbach Corp.*, 273 Or 15, 19, 539 P2d 641 (1975); *see also Amphitheaters, Inc.*, 184 Or at 361B362.

A defendant is only liable for nuisance if there was actual damage. *Amphitheaters, Inc.*, 184 Or at 343.

This instruction is only intended for use in cases involving an "objectionable condition" that is arguably manufactured, and that is alleged to have created the nuisance.

12/10

53A. DEFAMATION

UCJI 53A.01 *DEFAMATION* DEFINED

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Defamation is a false communication of fact that tends to harm a person's reputation. The harm must lower the community's opinion of [him / her] or deter someone from associating or dealing with that person.

The defamatory communication may be written (called libel) or oral (called slander). [Defamation can also occur in the context of physical things or actions such as pictures, caricatures, statues, effigies, and gestures.]

COMMENT: RESTATEMENT (SECOND) OF TORTS § 559 (1977); *Brown v. Gatti*, 341 Or 452, 458, 145 P3d 130 (2006); *Reesman v. Highfill*, 327 Or 597, 603, 965 P2d 1030 (1998); *Farnsworth v. Hyde*, 266 Or 236, 238, 512 P2d 1003 (1973); RESTATEMENT (SECOND) OF TORTS § 568, comment d (1977) (bracketed language).

12/10

UCJI 53A.02 DEFAMATION—ELEMENTS (Public Figure or Public Official Plaintiff—Matter of Public Concern)

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The plaintiff claims that the defendant defamed [him / her]. This requires the plaintiff to prove it is more likely true than not that:

(1)The defendant communicated a fact about the plaintiff;

(2)What the defendant communicated was false and defamatory;

(3)The defendant published the communication to a third person;

(4)The third person reasonably understood both that the communication was about the plaintiff and had a defamatory meaning; and

(5)The defendant's communication damaged the plaintiff.

The plaintiff must also prove by clear and convincing evidence that the defendant either knew the communication was false or recklessly disregarded whether it was false.

COMMENT: RESTATEMENT (SECOND) OF TORTS §§ 558, 563 (1977); *Wallulis v. Dymowski*, 323 Or 337, 342–343, 918 P2d 755 (1996); *see also Curtis Pub. Co. v. Butts*, 388 US 130, 133–135, 87 S Ct 1975, 18 L Ed2d 1094 (1967) (actual malice element, "public figure"); *New York Times Co. v. Sullivan*, 376 US 254, 279–283, 84 S Ct 710, 11 L Ed2d 686 (1964) (actual malice element, "public official"); *Reesman v. Highfill*, 327 Or 597, 603, 965 P2d 1030 (1998) (falsity); *Wheeler v. Green*, 286 Or 99, 105–106, 111–117, 593 P2d 777 (1979) (third-party understanding element; who is a "public figure"); *Victoria v. LeBlanc*, 168 Or App 586, 589–591, 7 P3d 668 (2000) (who is a "public official").

NOTE: It is unclear whether the falsity element is to be proven by a "preponderance of the evidence" or a "clear and convincing" standard. *See Harte-Hanks Communications, Inc. v. Connaughton*, 491 US 657, 661 n 2, 109 S Ct 2678, 105 L Ed2d 562 (1989); *Hickey v. Settlemier*, 141 Or App 103, 109 n 8, 917 P2d 44 (1996).

12/10

UCJI 53A.03 DEFAMATION—ELEMENTS (Private Figure Plaintiff vs. Media Defendant—Matter of Public or Private Concern)

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The plaintiff claims that the defendant defamed [him / her]. This requires the plaintiff to prove it is more likely true than not that:

(1)The defendant communicated a fact about the plaintiff;

(2)What the defendant communicated was false and defamatory;

(3)The defendant negligently published the communication to a third person;

(4)The third person reasonably understood both that the communication was about the plaintiff and had a defamatory meaning; and

(5)The defendant's communication damaged the plaintiff.

COMMENT: RESTATEMENT (SECOND) OF TORTS §§ 558, 563 (1977); *Wallulis v. Dymowski*, 323 Or 337, 342–343, 918 P2d 755 (1996); *see also Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 US 749, 760–763, 105 S Ct 2939; 86 L Ed2d 593 (1985) (matters of private concern); *Gertz v. Robert Welch, Inc.*, 418 US 323, 350, 94 S Ct 2997, 41 L Ed2d 789 (1974) (negligence element); *Reesman v. Highfill*, 327 Or 597, 603, 965 P2d 1030 (1998) (falsity); *Bank of Oregon v. Independent News*, 298 Or 434, 442, 441–445, 693 P2d 35 (1985) (negligence element; who is a "public figure"); *Wheeler v. Green*, 286 Or 99, 105–106, 593 P2d 777 (1979) (third-party understanding element).

CAVEAT: In "private concern" cases, there is some question as to who bears the burden of proving the falsity of the communication. Typically, the media defendant has been given First Amendment protections that include the requirement that the plaintiff prove falsity. However, it is not clear if the media defendant gets these same protections in "private plaintiff/private concern" cases. No Oregon case or United States Supreme Court case appears to have addressed this issue. However, because the plaintiff has the burden of proving negligence, the plaintiff also realistically has the burden of proving the falsity of the statement as well. *See Philadelphia Newspapers v. Hepps*, 475 US 767, 778, 106 S Ct 1558, 89 L Ed2d 783 (1986); RESTATEMENT (SECOND) OF TORTS § 613, comment j (1977).

12/10

UCJI 53A.04 DEFAMATION—ELEMENTS (Private Figure Plaintiff vs. Nonmedia Defendant—Matter of Private or Public Concern)

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The plaintiff claims that the defendant defamed [him / her]. This requires the plaintiff to prove it is more likely true than not that:

(1)The defendant communicated a fact about the plaintiff;

(2)What the defendant communicated was [false and] defamatory;

(3)The defendant published the communication to a third person;

(4)The third person reasonably understood both that the communication was about the plaintiff and had a defamatory meaning; and

(5)The defendant's communication damaged the plaintiff.

COMMENT: RESTATEMENT (SECOND) OF TORTS §§ 558, 563 (1977); *Wallulis v. Dymowski*, 323 Or 337, 342–343, 918 P2d 755 (1996); *see also Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 US 749, 760–763, 105 S Ct 2939, 86 L Ed2d 593 (1985) (matters of private concern); *Wheeler v. Green*, 286 Or 99, 105–106, 593 P2d 777 (1979) (third-party understanding element); *Harley-Davidson Motorsports, Inc. v. Markley*, 279 Or 361, 368–371, 568 P2d 1359 (1977) (liability without fault).

Compare *Fowler v. Donnelly*, 225 Or 287, 290–292, 358 P2d 485 (1960) (under the common law, the plaintiff must allege the falsity of the statement but is not always required to prove its falsity—with the burden then resting on the defendant to prove its truth), with more recent cases suggesting that the plaintiff may always have the burden to prove the falsity of the statement, *Reesman v. Highfill*, 327 Or 597, 603, 965 P2d 1030 (1998) ("To be actionable, a communication must be both false and defamatory."); *and Brown v. Gatti*, 195 Or App 695, 704, 99 P3d 299 (2004), *rev'd in part on other grounds*, 341 Or 452 (2006) ("To establish actionable defamation, plaintiff must prove that defendant made a defamatory statement that was false and that was communicated to a third party.").

CAVEAT: There may be a question whether this instruction (specifically its imposition of liability without proof of fault) is appropriate in the context of a "public concern" matter. *See Cooper v. Portland General Electric Corp.*, 110 Or App 581, 586–589, 824 P2d 1152 (1992) (discussion of case law). However, even in this context, the *Harley-Davidson* case appears to be controlling and liability without proof of fault is the law.

12/10

UCJI 53A.05 DEFAMATION—*TRUTH* AS A DEFENSE

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The defendant claims that [his / her] communication about the plaintiff was true. This requires the defendant to prove that it is more likely than not that the communication was true. The defendant is not required to prove that the communication was true in every detail, so long as the communication was substantially true.

COMMENT: RESTATEMENT (SECOND) OF TORTS § 581A, and comment f (1977); *see Fowler v. Donnelly*, 225 Or 287, 292, 358 P2d 485 (1960).

This instruction applies only if the plaintiff is not required to prove falsity. *See* UCJI No. 53A.04.

12/10

UCJI 53A.06 DEFAMATION—*CONSENT* AS A DEFENSE

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The defendant claims that the plaintiff consented to the defendant's communication about the plaintiff to others. This requires the defendant to prove it is more likely true than not that the plaintiff [requested / agreed] that the communication be published and either:

(1)Knew the exact communication; or

(2)Had reason to know that the communication may be defamatory.

COMMENT: *Lee v. Paulsen*, 273 Or 103, 105–107, 539 P2d 1079 (1975); *Christensen v. Marvin*, 273 Or 97, 99–100, 539 P2d 1082 (1975); RESTATEMENT (SECOND) OF TORTS § 583, and comment d (1977).

12/10

UCJI 53A.07 DEFAMATION—*QUALIFIED PRIVILEGE* AS A DEFENSE

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The defendant claims that the communication is protected by a qualified privilege. This requires the defendant to prove that it is more likely true than not that the purpose of the communication was to:

[(1) Protect the defendant's interest;]

[(2) Protect the plaintiff's employer's interest; or]

[(3) Address a subject of mutual concern to the defendant and the person to whom the communication was made.]

COMMENT: *DeLong v. Yu Enters.*, 334 Or 166, 170, 47 P3d 8 (2002); *Vanderselt v. Pope*, 155 Or App 334, 344, 963 P2d 130 (1998); RESTATEMENT (SECOND) OF TORTS §§ 594–598 (1977).

CAVEAT: ORS 30.178 provides that an employee's former employer is immune from civil liability in situations where the employer discloses, in good faith, information about the employee to his or her new employer.

12/10

UCJI 53A.08 DEFAMATION—LOSS OF QUALIFIED PRIVILEGE

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The communication is not protected by a qualified privilege if the plaintiff proves that the defendant:

[(1) Knew that the communication was false or lacked reasonable grounds to believe it was true;]

[(2) Made the communication primarily for a purpose other than that for which the privilege exists;]

[(3) Made the communication to a person not reasonably believed to be necessary to accomplish the purpose of the privilege; or]

[(4) Included defamatory remarks the defendant did not reasonably believe were necessary to accomplish the purpose of the privilege.]

COMMENT: *Schafroth v. Baker*, 276 Or 39, 45–46, 553 P2d 1046 (1976); *Cooper v. Portland General Electric Corp.*, 110 Or App 581, 589–590, 824 P2d 1152 (1992); RESTATEMENT (SECOND) OF TORTS §§ 599–605, and comment a (1977).

12/10

UCJI 53A.09 *PUBLISH* DEFINED

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A defamatory communication is published if someone other than the person making the defamatory communication, or the person being defamed, heard or saw it. It is not published if the communication was accidental.

COMMENT: *Wallulis v. Dymowski*, 323 Or 337, 343, 918 P2d 755 (1996); *Morrow v. II Morrow, Inc.*, 139 Or App 212, 219–220, 911 P2d 964 (1996); RESTATEMENT (SECOND) OF TORTS § 577(1) (1977).

12/10

UCJI 53A.10 MULTIPLE PUBLICATIONS

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The plaintiff claims that the defendant published the same defamatory communication more than once. If you find that the defendant published the communication on separate occasions and the plaintiff was defamed each time, then separate acts of defamation occurred.

COMMENT: *Kraemer v. Harding*, 159 Or App 90, 103–104, 976 P2d 1160 (1999); RESTATEMENT (SECOND) OF TORTS § 577A, and comment d (1977).

12/10

UCJI 53A.11 DEFAMATION—DAMAGES

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If the plaintiff proves all elements of the claim, then you must decide whether the plaintiff has been damaged and, if so, the amount of actual damages. In determining the amount of the plaintiff's actual damages, if any, consider each of the following:

(1) Harm to the plaintiff's property, business, trade, profession, or occupation.

(2) Loss of the plaintiff's earning capacity.

(3) Harm to the plaintiff's personal or business reputation.

(4) Humiliation or mental suffering.

[(5) *Specify other damages proven by the plaintiff.*]

[The plaintiff is entitled to receive reasonable compensation for harm to reputation, humiliation, or mental suffering, even if the plaintiff does not present evidence that proves actual damages. This is because the law presumes that the plaintiff suffered these damages.]

[If the plaintiff has not proved any actual damages for harm to reputation, or for humiliation or mental suffering, but proves by clear and convincing evidence that the defendant either knew that the communication was false or was made with reckless disregard of whether or not it was false, the law presumes that the plaintiff has suffered damages due to the harm. The plaintiff is entitled to receive reasonable compensation for harm to reputation, humiliation, or mental suffering, even if plaintiff does not prove actual damages.]

NOTE: Use of the bracketed language in the penultimate paragraph is appropriate only in cases involving libel (per se or per quod) and slander per se, where general damages can be presumed even if there is no claim or proof of special damages. If the claim involves slander, then the plaintiff must plead and prove special damages to recover any damages. *See, e.g., Hinkle v. Alexander*, 244 Or 267, 273–78, 411 P2d 829, 417 P2d 586 (1966).

NOTE: Use of the bracketed language in the last paragraph is appropriate only in cases involving a private-figure plaintiff suing a media defendant over a matter of public concern. In such a case, if the claim involves libel (per se or per quod) or slander per se, then general damages can be presumed even if there is no claim or proof of special damages. If the claim involves slander, then the plaintiff must plead and prove special damages to recover any damages. *See, e.g., Hinkle*, 244 Or at 273–78.

COMMENT: *See Wheeler v. Green*, 286 Or 99, 123–24, 593 P2d 777 (1979) (reputation, humiliation, mental suffering); *Hinkle*, 244 Or at 273–77; *C.A.R. Tow, Inc. v. Corwin*, 76 Or App 192, 195, 708 P2d 644 (1985); *Benassi v. Georgia-Pacific*, 62 Or App 698, 705–06, 662 P2d 760 (1983) (business reputation and loss of earning capacity).

For "Private Figure Plaintiff—Media Defendant—Matter of Private Concern" cases, also see *Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 US 749, 105 S Ct 2939, 86 L Ed 2d 593 (1985); *Gertz v. Robert Welch, Inc.*, 418 US 323, 94 S Ct 2997, 41 L Ed 2d 789 (1974).

For "Private Figure Plaintiff—Nonmedia Defendant—Matter of Private Concern" cases, also see *Dun & Bradstreet, Inc.*, 472 US at 749; *Harley-Davidson Motorsports, Inc. v. Markley*, 279 Or 361, 568 P2d 1359 (1977).

For "Private Figure Plaintiff—Media Defendant—Matter of Public Concern" cases, also see *Gertz*, 418 US at 323; *Harley-Davidson Motorsports, Inc.*, 279 Or at 361.

CAVEAT: Oregon law provides that if the claim involves a media defendant, then general damages are not presumed and instead must be pleaded and proved and may, in certain circumstances, be completely barred. *See* ORS 31.205–31.225 ("retraction" statutes). ORS 30.160 (*renumbered* ORS 31.205) was upheld as constitutional. *See Holden v. Pioneer Broadcasting Co.*, 228 Or 405, 365 P2d 845 (1961), *appeal dismissed*, 370 US 157 (1962). Attorneys should consider whether recent Remedies Clause cases affect the constitutionality of ORS 31.205 to 31.225. *See e.g.*, *Horton v. Oregon Health & Science University*, 359 Or 168, 376 P3d 998 (2016).

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EMPLOYMENT ACTIONS

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54. WAGE CLAIMS

UCJI 54.01 CLAIM FOR UNPAID WAGES—*WAGES* DEFINED

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For the purposes of a claim for unpaid wages:

Wages means all compensation for performance of service by an employee for an employer whether paid by the employer or another [person / entity]. Wages include the cash value of all compensation paid in any medium other than cash and all compensation owed an employee by an employer.

COMMENT: *Kantor v. Boise Cascade Corp.*, 75 Or App 698, 709–11, 708 P2d 356 (1985); OAR 839-001-0410(5).

The Oregon Revised Statutes provide no definitions applicable to claims for payment of unpaid wages. The amount of deference an Oregon court would give to the Bureau of Labor and Industries' interpretation of these statutory terms is unclear.

Commissions and other types of compensation fall within the definition of wages for purposes of the wage claim statutes. Commissions are treated as due and owing when they are capable of accurate calculation. *Reed v. Curry-Kropp-Cates, Inc.*, 61 Or App 520, 526, 658 P2d 531 (1983).

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UCJI 54.02 CLAIM FOR UNPAID WAGES—QUIT WITHOUT 48 HOURS' NOTICE

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To recover on a claim for unpaid wages, the plaintiff must prove the following:

(1)The plaintiff was the defendant's employee;

(2)The plaintiff did not have a contract for a definite period;

(3)The plaintiff quit [his / her] employment;

(4)The plaintiff gave the defendant less than 48 hours' notice of [his / her] intention to quit. This 48-hour period does not include Saturdays, Sundays, and holidays;

(5)The plaintiff earned wages that were unpaid on the last day of the plaintiff's employment;

(6)The amount of earned wages that were unpaid as of the last day of the plaintiff's employment; and

(7)The defendant did not pay all earned wages at the next regularly scheduled payday or within five days after the plaintiff's last day of employment, whichever event occurs first. This five-day period does not include Saturdays, Sundays, and holidays.

COMMENT: ORS 652.140(2).

If the employee is regularly required to submit time records to enable the employer to determine the wages due, this instruction should be modified or it may not apply. ORS 652.140(2)(c).

The statute does not apply to employment for which a collective bargaining agreement otherwise provides for the payment of wages on termination of employment. ORS 652.140(5).

There is no direct statutory definition of *employer* or *employee* as used in the wage claim statutes. *See Nkrumah v. City of Portland*, 261 Or App 365, 379, 323 P3d 453 (2014). Cases have used the definition of employer in ORS 652.310(1). *See N. Marion Sch. Dist. No. 15 v. Acstar Ins. Co.*, 343 Or 305, 317, 169 P3d 1224 (2007); *Taylor v. Werner Enterprises, Inc.*, 329 Or 461, 465–67, 988 P2d 384 (1999).

This instruction should be used in conjunction with UCJI 54.01. UCJI 54.05 may or may not be applicable.

12/14

UCJI 54.03 CLAIM FOR UNPAID WAGES—QUIT WITH 48 HOURS' NOTICE

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To recover on a claim for unpaid wages, the plaintiff must prove:

(1) The plaintiff was the defendant's employee;

(2) The plaintiff did not have a contract for a definite period;

(3) The plaintiff quit employment;

(4) The plaintiff gave the defendant at least 48 hours' notice of [his / her] intention to quit. This 48-hour period does not include Saturdays, Sundays, and holidays;

(5) The plaintiff earned wages that were unpaid on the last day of the plaintiff's employment;

(6) The amount of earned wages that were unpaid as of the last day of the plaintiff's employment; and

(7) The defendant did not pay all earned wages on the plaintiff's last day of employment.

COMMENT: ORS 652.140(1).

The statute does not apply to employment for which a collective bargaining agreement otherwise provides for the payment of wages on termination of employment. ORS 652.140(5).

There is no direct statutory definition of *employer* or *employee* as used in the wage claim statutes. *See Nkrumah v. City of Portland*, 261 Or App 365, 379, 323 P3d 453 (2014). Cases have used the definition of employer in ORS 652.310(1). *See N. Marion Sch. Dist. No. 15 v. Acstar Ins. Co.*, 343 Or 305, 317, 169 P3d 1224 (2007); *Taylor v. Werner Enterprises, Inc.*, 329 Or 461, 465–67, 988 P2d 384 (1999).

This instruction should be used in conjunction with UCJI 54.01. UCJI 54.05 may or may not be applicable.

12/14

UCJI 54.04 CLAIM FOR UNPAID WAGES—DISCHARGED BY EMPLOYER OR MUTUAL AGREEMENT

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To recover on a claim for unpaid wages, the plaintiff must prove the following:

(1)The plaintiff was an employee of the defendant;

(2)[The defendant discharged the plaintiff / The plaintiff and the defendant ended the employment by mutual agreement];

(3)The plaintiff earned wages that were unpaid when the employment ended;

(4)The amount of the unpaid wages; and

(5)That those wages were not paid by the end of the first business day after the employment ended.

COMMENT: ORS 652.140(1). The statute does not apply to employment for which a collective bargaining agreement otherwise provides for the payment of wages at the time employment ends. ORS 652.140(5).

If employment ends on a Saturday, Sunday, or holiday, all wages earned and unpaid must be paid no later than the end of the first business day after the employment ends, except that if the employment is related to activities authorized under ORS chapter 565, all wages earned and unpaid must be paid no later than the end of the second business day after the employment ends. ORS 652.140(3).

There is no direct statutory definition of employer or employee as used in the wage-claim statutes. *See Nkrumah v. City of Portland*, 261 Or App 365, 379, 323 P3d 453 (2014). Cases have used the definition of employer in ORS 652.310(1). *See N. Marion Sch. Dist. No. 15 v. Acstar Ins. Co.*, 343 Or 305, 317, 169 P3d 1224 (2007); *Taylor v. Werner Enterprises, Inc.*, 329 Or 461, 465–67, 988 P2d 384 (1999).

This instruction should be used in conjunction with UCJI 54.01. UCJI 54.05 may or may not be applicable.

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UCJI 54.05 PENALTY WAGE FOR FAILURE TO PAY WAGES ON TERMINATION OF OR QUITTING EMPLOYMENT

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If you find that the employer failed to pay the plaintiff wages due on [termination of / quitting] employment, you must determine if the plaintiff is entitled to a penalty wage. To recover a penalty wage, the plaintiff must prove the employer's failure to pay wages was willful.

To be willful, the employer's failure to pay the plaintiff wages must be purposeful and not inadvertent. In other words, the employer must have failed to pay the plaintiff even though the employer was fully aware of the circumstances that triggered its obligation to pay the wages.

COMMENT: ORS 652.150; *Young v. State*, 340 Or 401, 409, 133 P3d 915 (2006) ("[T]he word 'willful' does not necessarily cast blame or implicate malice; it merely indicates that the act or omission was purposeful and not the product of inadvertence."); *Sabin v. Willamette-W. Corp.*, 276 Or 1083, 1093, 557 P2d 1344 (1976) (failure to pay wages is willful when an employer "knows what he is doing, intends to do what he is doing, and is a free agent"); *Wilson v. Smurfit Newsprint Corp.*, 197 Or App 648, 662–63, 107 P3d 61, *rev dismissed*, 339 Or 407 (2005) ("[A]n employer does not act willfully if it acts without fully knowing that the historical circumstances triggering the obligation have occurred (for example, that the employee has quit) or if it acts based on an innocent miscalculation that is not careless.").

There may be circumstances when the employer lacks knowledge of an obligation to pay because of a bona fide belief, that is, a good-faith belief, that one of the elements required to trigger its obligation to pay wages owed is missing. *Young*, 340 Or at 409; *Wilson*, 197 Or App at 661. The court determines whether there is sufficient evidence in the record of a dispute as to the existence of a bona fide belief so that the issue should be submitted for a jury's determination. *Braddock v. Capfer*, 284 Or 237, 340–41, 586 P2d 340 (1978).

12/17

55. EMPLOYER LIABILITY LAW—ORS CHAPTER 654

UCJI 55.01 EMPLOYER LIABILITY—GENERALLY

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The plaintiff alleges that the defendant violated the Employer Liability Law, which reads as follows:

> Generally, all owners, contractors or subcontractors and other persons having charge of, or responsibility for, any work involving a risk or danger to the employees or the public shall use every device, care and precaution that is practicable to use for the protection and safety of life and limb, limited only by the necessity for preserving the efficiency of the structure, machine or other apparatus or device, and without regard to the additional cost of suitable material or safety appliance and devices.

COMMENT: ORS 654.305; *Woodbury v. CH2M Hill, Inc.*, 335 Or 154, 159–60, 61 P3d 918 (2003); *Sacher v. Bohemia, Inc.*, 302 Or 477, 480–83, 731 P2d 434 (1987); *Entler v. Hamilton*, 258 Or 65, 68–69, 481 P2d 85 (1971); *Wilson v. Portland Gen. Elec. Co.*, 252 Or 385, 390–92, 448 P2d 562 (1968); *Thomas v. Foglio*, 225 Or 540, 544–48, 358 P2d 1066 (1961).

12/14

UCJI 55.01A EMPLOYER LIABILITY—RISK OR DANGER

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The phrase "work involving a risk or danger" refers to conditions of the work that create the possibility that a worker will suffer harm.

COMMENT: *Woodbury v. CH2M Hill, Inc.*, 335 Or 154, 161, 61 P3d 918 (2003).

12/14

UCJI 55.02 EMPLOYER LIABILITY—SPECIFIC DUTIES

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The plaintiff charges the defendant with violation[s] of the Employer Liability Law. This law reads as follows [*read only applicable portion of ORS 654.310*]:

> All owners, contractors, subcontractors, or persons whatsoever, engaged in the construction, repairing, alteration, removal or painting of any building, bridge, viaduct or other structure, or in the erection or operation of any machinery, or in the manufacture, transmission and use of electricity, or in the manufacture or use of any dangerous appliance or substance, shall see that all places of employment are in compliance with every applicable order, decision, direction, standard, rule or regulation made or prescribed by the Department of Consumer and Business Services.

COMMENT: ORS 654.310.

12/14

UCJI 55.03 EMPLOYER LIABILITY—GENERAL DUTY

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An employer is required to comply with the duties of the Employer Liability Law. Violation of any duty required under the Employer Liability Law is negligence in and of itself.

COMMENT: *See Miller v. Georgia-Pac. Corp.*, 294 Or 750, 752–53, 662 P2d 718 (1983); *Camenzind v. Freeland Furniture Co.*, 89 Or 158, 180, 174 P 139 (1918), *overruled in part on other grounds by Fehely v. Senders*, 170 Or 457, 135 P2d 283 (1943); Case Comments, *Employers' Liability Law—Measure of Damages—Death Recovery Under the Wrongful Death Statute Compared with Recovery Under the Employers' Liability Act*, 1 Willamette LJ 128 (1959).

12/14

UCJI 55.04 EMPLOYER LIABILITY—DUTIES UNDER ORS 654.305

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If you find that the work in which the plaintiff and the defendant were engaged at the time of the accident involved risk or danger, as I have defined those terms to you, then the defendant is charged with the duty of complying with the provisions of the Employer Liability Law.

COMMENT: This instruction is to be given when a jury question of fact exists as to whether the work involved risk or danger. *See Quick v. Andresen*, 238 Or 433, 438–40, 395 P2d 154 (1964); *Parks v. Edward Hines Lumber Co.*, 231 Or 334, 337, 372 P2d 978 (1962); *Bartley v. Doherty*, 225 Or 15, 24, 357 P2d 521 (1960); Case Comments, *Employers' Liability Law—Measure of Damages—Death Recovery Under the Wrongful Death Statute Compared with Recovery Under the Employers' Liability Act*, 1 Willamette LJ 128 (1959).

12/14

UCJI 55.05 EMPLOYER LIABILITY—RESPONDEAT SUPERIOR

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If you find that any employee of the defendant was in violation of the Employer Liability Law in any of the respects claimed by the plaintiff [and that the employee was acting within the course and scope of (his / her) employment], then the defendant is responsible for the violation.

COMMENT: *See Lourim v. Swensen*, 328 Or 380, 385, 977 P2d 1157 (1999) (definition of *course and scope*).

12/14

UCJI 55.06 EMPLOYER LIABILITY—PERSONS ENTITLED TO RECOVER DAMAGES FOR DEATH

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If you decide that the Employer Liability Law applies in the present case, you may award damages to the following persons:

[*Insert the class of persons entitled to recover damages for death under the Employer Liability Law pursuant to ORS 654.325.*]

COMMENT: The class of persons entitled to recover damages for death under the Employer Liability Law may be different in certain circumstances from those persons entitled to recover damages for death under the wrongful-death statute. *Compare* ORS 30.020 *with* ORS 654.325.

12/14

UCJI 55.07 EMPLOYER LIABILITY—SAFETY CODES AND REGULATIONS

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At the time of this occurrence, the Oregon [*specify code or other source of law*] provided as follows:

[*Set forth applicable provision(s)*.]

If you find that the defendant failed to comply with [this / any of these] provision[s], then such failure constitutes a violation of the Employer Liability Law.

COMMENT: ORS 654.310; *see generally Miller v. Georgia-Pac. Corp.*, 294 Or 750, 662 P2d 718 (1983); *Fields v. Fields*, 213 Or 522, 536, 326 P2d 451 (1958), *overruled on other grounds by Conachan v. Williams*, 266 Or 45, 52–53, 511 P2d 392 (1973).

12/14

UCJI 55.08 EMPLOYER LIABILITY—SAFETY CODES—MINIMUM STANDARD

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The safety codes are minimum standards, and compliance with them does not prevent you from finding that the defendant violated the Employer Liability Law.

COMMENT: *Miller v. Georgia-Pac. Corp.*, 294 Or 750, 759–60, 662 P2d 718 (1983).

12/14

UCJI 55.09 EMPLOYER LIABILITY—INSPECTION

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Under the Employer Liability Law, the duty to use every device, care, and precaution includes but is not limited to inspecting the place where the employee is required to work. Failure to do so is a violation of the Employer Liability Law.

COMMENT: ORS 654.305; *see Fields v. Fields*, 213 Or 522, 539, 326 P2d 451 (1958), *overruled on other grounds by Conachan v. Williams*, 266 Or 45, 52–53, 511 P2d 392 (1973).

12/14

UCJI 55.10 EMPLOYER LIABILITY—TOOLS, APPLIANCES, MACHINERY, ETC.

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Under the Employer Liability Law, the duty to use every device, care, and precaution includes but is not limited to furnishing safe tools, appliances, machinery, equipment, and instrumentalities for the use of employees and seeing that the same are inspected and maintained in a safe condition. Failure to do so is a violation of the Employer Liability Law.

COMMENT: ORS 654.305, ORS 654.310; *see Thomas v. Foglio*, 225 Or 540, 544–48, 358 P2d 1066 (1961); *Fields v. Fields*, 213 Or 522, 539, 326 P2d 451 (1958), *overruled on other grounds by Conachan v. Williams*, 266 Or 45, 52–53, 511 P2d 392 (1973).

12/14

UCJI 55.11 EMPLOYER LIABILITY—DUTY TO WARN

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(This instruction has been withdrawn. *See Parker v. Norton*, 143 Or 165, 173–75, 21 P2d 790 (1933)).

12/14

UCJI 55.12 EMPLOYER LIABILITY—CONTROL

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In order for the Employer Liability Law to be applicable, the plaintiff must prove the defendant had control over the work that caused injury to the plaintiff. To establish control, the plaintiff must prove at least one of the following:

(1) That the plaintiff's employer and the defendant were simultaneously engaged in work on a common enterprise and that the activities of the defendant or the use of the defendant's equipment created a risk or danger to the plaintiff; or

(2) That the defendant hired the plaintiff's employer to perform the work and retained the right to control the particular work that created the risk or danger; or

(3) That the defendant hired the plaintiff's employer to perform the work and asserted actual control over the particular work that created the risk or danger.

COMMENT: *Cortez v. Nacco Material Handling Grp., Inc.*, 356 Or 254, 337 P3d 111 (2014); *Woodbury v. CH2M Hill, Inc.*, 335 Or 154, 160, 61 P3d 918 (2003); *Miller v. Georgia-Pac. Corp.*, 294 Or 750, 754, 662 P2d 718 (1983); *Wienke v. Ochoco Lumber Co.*, 276 Or 1159, 1164, 558 P2d 319 (1976); *Schmidt v. Intel Corp.*, 199 Or App 618, 622, 112 P3d 428 (2005).

12/14

UCJI 55.12A EMPLOYER LIABILITY—AGENCY

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Any manager, superintendent, foreman, or other person in charge or control of all or part of the construction, works, or operation is the agent of the defendant under the Employer Liability Law.

COMMENT: ORS 654.320.

12/15

UCJI 55.13 EMPLOYER LIABILITY—VICE-PRINCIPAL DEFENSE

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The defendant claims that the plaintiff was a person having charge of the particular work that caused the plaintiff's injury.

A person responsible for carrying out the requirements of the Employer Liability Law cannot recover for a violation of that law if the person's injuries resulted from [his / her] own failure to see that the requirements of that law were carried out.

COMMENT: ORS 654.315; *Miller v. Georgia-Pac. Corp.*, 294 Or 750, 757–58, 662 P2d 718 (1983); *Skeeters v. Skeeters*, 237 Or 204, 220–23, 389 P2d 313 (1964); *Howard v. Foster & Kleiser Co.*, 217 Or 516, 536–43, 332 P2d 621 (1958); *Kauffman v. L.D. Mattson, Inc.*, 61 Or App 462, 464–67, 657 P2d 720, *rev den*, 294 Or 792 (1983).

12/14

UCJI 55.14 EMPLOYER LIABILITY—COMPARATIVE FAULT/NEGLIGENCE (For Cases Filed before January 1, 2002)

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If you find both the plaintiff and the defendant were [at fault / negligent] and that such [fault / negligence] was a cause of the plaintiff's injuries, if any, the plaintiff's [fault / negligence] would not bar a recovery, but the total amount of the plaintiff's damages must be reduced in proportion to the percentage of [fault / negligence] attributable to the plaintiff. [Under the Employer Liability Law, the plaintiff is entitled to recover even if you find that (his / her) (fault / negligence) was more than 50 percent.]

COMMENT: *See former* ORS 654.335; Or Laws 2001, ch 865, § 19. *See also* UCJI 21.02. For a verdict form, see UCJI 90.10.

The last sentence of the instruction should be given when the issues of both negligence and employer liability are admitted to the jury.

Oregon Laws 2001, chapter 865, sections 17–19, repealed ORS 654.335 and made ORS 31.600 to 31.615 applicable to claims brought under the Employer Liability Law.

For cases filed after January 1, 2002, see UCJI 21.02 and UCJI 21.04.

12/14

UCJI 55.15 EMPLOYER LIABILITY—NOT DELEGABLE

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A defendant that is an employer under the Employer Liability Law cannot avoid the duties imposed by the Employer Liability Law by delegating those duties to any other person or company.

COMMENT: *Camenzind v. Freeland Furniture Co.*, 89 Or 158, 180, 174 P 139 (1918), *overruled in part on other grounds by Fehely v. Senders*, 170 Or 457, 135 P2d 283 (1943).

12/15

56. WRONGFUL DISCHARGE

UCJI 56.01 *EMPLOYMENT AT WILL* DEFINED

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Generally, an employee may resign at any time, and an employer may discharge an employee at any time. The reason for resignation or discharge ordinarily does not matter. This general rule is known as *employment at will*.

COMMENT: *Patton v. J.C. Penney Co., Inc.*, 301 Or 117, 120, 719 P2d 854 (1986); *Holien v. Sears, Roebuck and Co.*, 298 Or 76, 83, 689 P2d 1292 (1984); *Delaney v. Taco Time Int'l.*, 297 Or 10, 14, 681 P2d 114 (1984); *Nees v. Hocks*, 272 Or 210, 216, 536 P2d 512 (1975).

12/13

UCJI 56.02 WRONGFUL DISCHARGE

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Wrongful discharge of an employee is an exception to employment at will. To recover for wrongful discharge, the plaintiff must prove all of the following:

(1) The defendant discharged the plaintiff from employment;

(2) A substantial factor in the decision to discharge the plaintiff was that:

[(a) The plaintiff (*describe the alleged exercise of an employment-related right of public importance*)] [*or*]

[(b) The plaintiff (*describe the alleged fulfillment of a public duty or societal obligation*)]; and

(3) The plaintiff sustained damages as a result of the discharge.

COMMENT: *Lamson v. Crater Lake Motors, Inc.*, 346 Or 628, 634−38, 216 P3d 852 (2009); *Babick v. Oregon Arena Corp.*, 333 Or 401, 408−09, 40 P3d 1059 (2002); *Holien v. Sears, Roebuck and Co.*, 298 Or 76, 90, 689 P2d 1292 (1984) ("retaliatory discharge" for right that is related to employment and is of important public interest); *Delaney v. Taco Time Int'l.*, 297 Or 10, 17, 681 P2d 114 (1984) (plaintiff discharged "because plaintiff refused to sign the potentially defamatory statement"). For a discussion of substantial factor see *Holien*, 298 Or at 90 n 5, and *Seitz v. Albina Human Resources Center*, 100 Or App 665, 675, 788 P2d 1004 (1990).

The right related to employment or the societal obligation may be the subject of further instruction.

The first sentence may be included when an instruction on employment at will is given. *See* UCJI 56.01.

12/13

UCJI 56.03 WRONGFUL DISCHARGE (Substantial Factor)

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To find that the [plaintiff's / employee's] discharge was wrongful, you must find that [*describe employer's alleged unlawful motive*] was a substantial factor in the decision to discharge the [plaintiff / employee]. You need not find that [*describe employer's alleged unlawful motive*] was the only factor in the decision to discharge the [plaintiff / employee].

A substantial factor is a factor that makes a difference in the decision to discharge the [plaintiff / employee]. [That is, the (plaintiff / employee) would not have been discharged without that motive.]

COMMENT: The Oregon Supreme Court has established the substantial factor standard, but has not defined precisely what substantial factor means. *See Holien v. Sears, Roebuck and Co.*, 298 Or 76, 90, 689 P2d 1292 (1984).

The Oregon Court of Appeals, while applying the substantial factor standard, has described a "but for" test in various terms. *See Chase v. Vernam*, 199 Or App 129, 142, 110 P3d 128 (2005) ("defendant would not have discharged him without that motive"); *Hardie v. Legacy Health System*, 167 Or App 425, 435, 6 P3d 531 (2000) ("The crux of the standard, regardless of which phraseology is attached to it, is whether, in the absence of the discriminatory motive, the employee would have been treated differently"); *Estes v. Lewis and Clark College*, 152 Or App 372, 381, 386, 954 P2d 792, *rev den*, 327 Or 583 (1998) (using "a factor that made a difference in the decision" and a factor that "was so influential" as to be a substantial factor). The final bracketed sentence reflects that ambiguity in the law.

12/13

UCJI 56.04 WRONGFUL DISCHARGE (Single-Motive Case)

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(This instruction was withdrawn because it assumed that federal burden shifting and pretext analysis regarding employment discrimination claims apply in Oregon. This assumption is inconsistent with Oregon law as established in *Callan v. Confed. of Oreg. Sch. Adm.*, 79 Or App 73, 76–77, 717 P2d 1252 (1986). *See Williams v. Freightliner, LLC*, 196 Or App 83, 89, 100 P3d 1117 (2004) (collecting cases discussing the applicable law).)

12/13

UCJI 56.05 CONSTRUCTIVE DISCHARGE

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The plaintiff claims that [he / she] was constructively discharged. This requires the plaintiff to prove that:

[The plaintiff left employment because the defendant told (him / her) that (he / she) would be fired unless (he / she)] resigned.]

[*or*]

[(1) The defendant intentionally created (or maintained) working conditions so intolerable that a reasonable person in the plaintiff's position would have left employment because of them;

(2) The defendant desired that the plaintiff leave employment or knew that the plaintiff was certain, or substantially certain, to leave employment as a result of those working conditions; and

(3) The plaintiff left employment as a result of those working conditions.]

COMMENT: *Sheets v. Knight*, 308 Or 220, 226–28, 779 P2d 1000 (1989) (establishing constructive discharge under the "resign or be fired" concept); *Doe v. Denny's, Inc.*, 327 Or 354, 359-60, 963 P2d 650 (1998) (setting forth elements for constructive discharge on account of "intolerable working conditions"); *McGanty v. Staudenraus*, 321 Or 532, 556–57, 901 P2d 841 (1995) (same).

12/13

57. INTERFERENCE WITH THE EMPLOYMENT CONTRACT

UCJI 57.01 AT-WILL EMPLOYMENT AS A CONTRACT

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For purposes of intentional interference with contract, an agreement to employ and to be employed, whether written or unwritten, is sufficient to be a contract, even when the employment is probationary, is at will, is without a fixed time limit, or could be terminated for any reason.

COMMENT: *Lewis v. Oregon Beauty Supply Co.*, 302 Or 616, 620–21, 733 P2d 430 (1987); *see also Cocchiara v. Lithia Motors, Inc.*, 353 Or 282, 297 P3d 1277 (2013); *Brett v. City of Eugene*, 130 Or App 53, 57, 880 P2d 937 (1994), rev den, 320 Or 507 (1995).

See UCJI 56.01 for definition of employment at *will*.

12/14

UCJI 57.02 INTENTIONAL INTERFERENCE WITH EMPLOYMENT OR PROSPECTIVE EMPLOYMENT RELATIONSHIP

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To recover damages for intentional interference with [a / an] [prospective] employment relationship, the plaintiff must prove each of the following elements:

(1)The plaintiff had [a / an] [prospective] employment relationship;

(2)The defendant was not a party to the [prospective] employment relationship;

(3)The defendant intended to interfere with the [prospective] relationship or knew that such interference was substantially certain to occur from the defendant's actions;

(4)The defendant interfered through improper means or for an improper purpose in one or more of the ways alleged by the plaintiff;

(5)The defendant's interference caused harm to the [prospective] relationship; and

(6)The defendant's interference resulted in damages to the plaintiff.

COMMENT: This instruction is designed for use in conjunction with UCJI 57.03. In addition, UCJI 57.04 may be needed when the defendant is an agent of the employer.

See UCJI 40.05 for a similar instruction regarding intentional interference with economic or prospective economic relations.

Allen v. Hall, 328 Or 276, 281, 974 P2d 199 (1999) (stating elements for intentional interference with economic relations); *McGanty v. Staudenraus*, 321 Or 532, 535, 901 P2d 841 (1995) (same); *Uptown Heights Associates Ltd. P'ship v. Seafirst Corp.*, 320 Or 638, 651, 891 P2d 639 (1995) (same); *Straube v. Larson*, 287 Or 357, 360–61, 600 P2d 371 (1979) (same; third-party element); *Porter v. OBA, Inc.*, 180 Or App 207, 213, 42 P3d 931, *rev den*, 334 Or 693 (2002) (same; relationship and third-party element); *Kaelon v. USF Reddaway, Inc.*, 180 Or App 89, 95–96, 42 P3d 344 (2002) (same; third-party element). The court has extended this claim for relief to include intentional interference with prospective inheritance. *Allen*, 328 Or at 285.

In proper circumstances, the defendant may claim a privilege to interfere. *See Ramirez v. Selles*, 308 Or 609, 613–14, 784 P2d 433 (1989) (privilege of business competition); *Welch v. Bancorp Mgmt. Advisors, Inc.*, 296 Or 208, 214–18, 675 P2d 172 (1983) (employer's agents); *Top Serv. Body Shop, Inc. v. Allstate Ins. Co.*, 283 Or 201, 209–10, 582 P2d 1365 (1978). A separate instruction may be necessary to address issues of privilege.

An additional, special instruction on improper motive or improper means may be appropriate. *See Lewis v. Oregon Beauty Supply Co.*, 302 Or 616, 622, 733 P2d 430 (1987) (improper means); *Top Serv. Body Shop*, 283 Or at 209–10.

12/14

UCJI 57.03 *HARM* TO EMPLOYMENT RELATIONSHIP—DEFINED

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Harm means that the plaintiff's employment relationship is more difficult to perform or less valuable or profitable to the plaintiff, or the plaintiff is otherwise prevented from receiving the full benefits of [his / her] employment relationship.

COMMENT: This instruction is to be given in conjunction with UCJI 57.02. The definition of *harm* in this instruction has been applied in employment cases. The Committee expresses no opinion on whether the definition of *harm* in this instruction is appropriate for other intentional interference claims.

Lewis v. Oregon Beauty Supply Co., 302 Or 616, 622–23, 733 P2d 430 (1987) (interference causing plaintiff to abandon employment held sufficient to show injury); *Am. Sanitary Serv., Inc. v. Walker*, 276 Or 389, 393, 554 P2d 1010 (1976); *Whelan v. Albertson's, Inc.*, 129 Or App 501, 506, 879 P2d 888 (1994) (interference causing plaintiff to seek transfer held sufficient to show injury); *Franklin v. Portland Cmty. Coll.*, 100 Or App 465, 467–69, 787 P2d 489 (1990) (interference causing emotional distress and resulting in use of sick leave insufficient to show injury to employment relationship).

12/14

UCJI 57.04 THIRD PARTY TO EMPLOYMENT RELATIONSHIP

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As a general rule, [a / an] [manager / supervisor / officer / director] of the plaintiff's employer is a party to the plaintiff's employment relationship. However, [a / an] [manager / supervisor / officer / director] is not a party to that relationship in the following circumstances:

(1)When the [manager / supervisor / officer / director] acts against the employer's best interest; or

(2)When the [manager / supervisor / officer / director] is acting solely for [his / her] own benefit; or

(3)When the [manager / supervisor / officer / director] is acting solely for the purpose of injuring the plaintiff; or

(4)When the [manager / supervisor / officer / director] is [otherwise] not acting within the scope of [his / her] authority.

COMMENT: This instruction is designed for use with UCJI 57.02. The list of employer agents referred to in this instruction is not intended to be an exclusive list of those to whom the instruction might apply.

Welch v. Bancorp Mgmt. Advisors, Inc., 296 Or 208, 214–15, 675 P2d 172 (1983); *Straube v. Larson*, 287 Or 357, 371, 600 P2d 371 (1979) (burden of proof); *Porter v. OBA, Inc.*, 180 Or App 207, 214–16, 42 P3d 931, *rev den*, 334 Or 693 (2002) (defendant acted solely for personal reason); *Kaelon v. USF Reddaway, Inc.*, 180 Or App 89, 95–97, 42 P3d 344 (2002) (defendant had purely personal interest); *Sims v. Software Solutions Unlimited, Inc.*, 148 Or App 358, 364–65, 939 P2d 654, *rev den*, 326 Or 57 (1997) (no liability for acts motivated, in part, to benefit employer); *Schram v. Albertson's, Inc.*, 146 Or App 415, 429, 934 P2d 483 (1997), *rev dismissed*, 328 Or 418, *rev dismissed*, 328 Or 365 (1999) (solely for defendant's own benefit); *Boers v. Payline Sys., Inc.*, 141 Or App 238, 245, 918 P2d 432 (1996) (no motive to benefit employer); *Giordano v. Aerolift, Inc.*, 109 Or App 122, 126, 818 P2d 950 (1991) (without any motive to benefit employer); *see also Wampler v. Palmerton*, 250 Or 65, 77, 439 P2d 601 (1968) (employer and agents cannot interfere with own contract).

12/14

UCJI 57.05 *SCOPE OF EMPLOYMENT*—DEFINITION

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A defendant is acting within the scope of [his / her] [employment / authority] if:

(1)The defendant's acts are of the general kind or nature the defendant was [employed / authorized] to perform;

(2)The defendant's acts occurred substantially within the authorized limits of time and place; and

(3)The defendant was motivated, at least in part, by a purpose to serve the employer.

COMMENT: *See* UCJI 30.04 (Principal Defined).

Fearing v. Bucher, 328 Or 367, 376–77, 977 P2d 1163 (1999) (if act resulted from or was outgrowth of defendant's employment duties, then that act qualifies as kind of act that employee was hired to perform; sexual assault may be within scope of employment); *Lourim v. Swensen*, 328 Or 380, 386–87, 977 P2d 1157 (1999) (same; volunteer); *Bray v. Am. Prop. Mgmt. Corp.*, 164 Or App 134, 140–41, 988 P2d 933 (1999), *rev den*, 330 Or 331 (2000) (same; stabbing may be within scope of employment); *Mains v. II Morrow, Inc.*, 128 Or App 625, 633, 877 P2d 88 (1994) (sexual harassment may be within scope of employment).

Minnis v. Oregon Mut. Ins. Co., 334 Or 191, 206, 48 P3d 137 (2002) (not within scope of employment because act was not committed within time and space of employment); *Thomas v. Dyer*, 151 Or App 546, 554–55, 950 P2d 390 (1997), *rev den*, 327 Or 432 (1998) (not within scope of employment because there was no benefit to employer).

Although cases generally employ this three-part definition of scope of employment, no interference with employment relations case yet addresses whether subpart (3) of this instruction duplicates the motive prong in the instruction on a third party to the employment relationship. *See* UCJI 57.04.

12/14

58. WORKERS' COMPENSATION DISCRIMINATION

UCJI 58.01 WORKERS' COMPENSATION DISCRIMINATION

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It is unlawful for [an employer / any person acting on behalf of the employer] to discriminate against an employee because of the employee's involvement in the workers' compensation system.

To recover for workers' compensation discrimination, the [plaintiff / employee] must prove all of the following:

(1)The [plaintiff / employee] [applied for benefits of / inquired about benefits of / invoked the procedures of / utilized the procedures of / gave testimony in a matter related to] the workers' compensation system;

(2)The [defendant / employer / person acting on behalf of employer] [*allege adverse employment action(s) with respect to terms or conditions of employment*]; and

(3)A substantial factor in the [defendant's / employer's] decision to take this action was that the [plaintiff / employee] invoked, applied for benefits, or utilized the workers' compensation system.

"Invoke" as used here, includes but is not limited to a worker's reporting an on-the-job injury or a perception by the employer that the worker has been injured on the job or will report an injury.

COMMENT: ORS 659A.040; ORS 659A.069; *Williams v. Freightliner, LLC*, 196 Or App 83, 89–90, 100 P3d 1117 (2004); *Hardie v. Legacy Health System*, 167 Or App 425, 432–33, 6 P3d 531 (2000), *rev den*, 332 Or 656 (2001). For a discussion of substantial factor, see *Holien v. Sears, Roebuck & Co.*, 298 Or 76, 90 n 5, 689 P2d 1292 (1984); and *Seitz v. State ex rel. Albina Human Resources Center*, 100 Or App 665, 675, 788 P2d 1004 (1990).

See Herbert v. Altimeter, Inc., 230 Or App 715, 726, 218 P3d 542 (2009); OAR 839-006-0105(7).

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UCJI 58.02 REINSTATEMENT OF EMPLOYMENT

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When a worker has suffered an on-the-job injury, the law requires the employer to reinstate the worker under certain circumstances.

To recover on a claim for failure to reinstate, the [plaintiff / worker] must prove that:

(1) The [plaintiff / worker] suffered an on-the-job injury;

(2) The [plaintiff / worker] made a timely demand for reinstatement;

(3) At the time of the demand for reinstatement:

(a) The position existed;

(b) The position was available;

(c) The [plaintiff / worker] was not disabled from performing the position's duties; and

(4) The [defendant / employer] failed to reinstate the [plaintiff / worker].

COMMENT: ORS 659A.043. The statute requires that the injury be compensable under workers' compensation laws. If this is an issue, an instruction to this effect may be necessary.

The employer's obligation to reinstate the injured worker is not contingent on an early determination of a compensable injury. *Armstrong v. Rogue Fed. Credit Union*, 328 Or 154, 159–62, 969 P2d 382 (1998). An unresolved denial of a worker's claim for workers' compensation benefits is irrelevant to the worker's right to seek relief for a violation of ORS 659A.043, but the worker must still prove, *inter alia*, that the injury was a compensable injury in an ORS 659A.043 claim. *See Armstrong*, 328 Or at 162.

12/14

UCJI 58.03 REEMPLOYMENT TO OTHER AVAILABLE AND SUITABLE EMPLOYMENT

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When a worker has suffered an on-the-job injury that prevents the worker from returning to [his / her] former position, the law requires the employer to reemploy the worker to an available and suitable position under certain circumstances.

The plaintiff claims that the defendant failed to reemploy [him / her] to an available and suitable position.

To recover, the plaintiff must prove all of the following:

(1)The plaintiff suffered an on-the-job injury;

(2)The plaintiff was disabled from performing the duties of [his / her] former position;

(3)The plaintiff made a timely demand for reemployment;

(4)A position was available at the time of the demand;

(5)That position was suitable; and

(6)The defendant failed to reemploy the plaintiff in the available and suitable position.

COMMENT: ORS 659A.046 requires that the injury be compensable under workers' compensation laws. If this is an issue, an instruction to this effect may be necessary.

The court has held that a worker is entitled to reinstatement under ORS 659A.043 while a determination of compensable injury is pending. *Armstrong v. Rogue Fed. Credit Union*, 328 Or 154, 159–60, 969 P2d 382 (1998). The court may apply a similar analysis for reemployment. See comment to UCJI 58.02 for further discussion.

12/14

58A. WHISTLEBLOWER DISCRIMINATION

UCJI 58A.01 WHISTLEBLOWING

Download MS Word

To recover on a whistleblowing claim, the plaintiff must prove:

(1)The plaintiff reported information that [he / she] believed to be evidence of a violation of a state or federal law, rule, or regulation;

(2)The plaintiff acted in good faith in reporting the information; and

(3)The defendant discharged, demoted, suspended, or discriminated or retaliated against the plaintiff with regard to any term, condition, or privilege of employment, because the plaintiff reported the information.

COMMENT: ORS 659A.199.

12/12

UCJI 58A.02 WHISTLEBLOWING (Public Employer)

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To recover for whistleblowing, the plaintiff must prove

(1) the plaintiff disclosed information that the plaintiff reasonably believed was evidence that a public employer:

(a) violated a federal or state law, rule, or regulation;

(b) engaged in mismanagement, gross waste of funds, or abuse of authority; or

(c) took an action resulting in substantial and specific danger to public health;

(2) the defendant took or threatened to take disciplinary action against the plaintiff because of the plaintiff's disclosure; and

(3) the plaintiff was damaged as a result.

COMMENT: ORS 659A.203; *see also* ORS 659A.200 (defining relevant terms); *Love v. Polk County Fire District*, 209 Or App 474, 490–91, 149 P3d 199 (2006) (objectively reasonable belief standard).

7/24

UCJI 58A.03 INTERFERENCE WITH WHISTLEBLOWING (Public Employer)

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To recover for interference with whistleblowing, the plaintiff must prove:

(1) The plaintiff had information that the plaintiff reasonably believed was evidence that a public entity:

(a) violated a federal or state law, rule, or regulation;

(b) engaged in mismanagement, gross waste of funds, or abuse of authority; or

(c) took an action resulting in substantial and specific danger to public health;

(2) The defendant discouraged, restrained, dissuaded, prevented, or otherwise interfered with the plaintiff's disclosure of the information; and

(3) The plaintiff was damaged as a result.

COMMENT: ORS 659A.203; *see also* ORS 659A.200 (defining relevant terms); *Love v. Polk County Fire Dist.*, 209 Or App 474, 490–491, 149 P3d 199 (2006) (objectively reasonable belief standard).

12/12

59. DISABILITY DISCRIMINATION

UCJI 59.01 DISABILITY DISCRIMINATION—ELEMENTS

Download MS Word

The plaintiff claims that the defendant discriminated against [him / her] because [he / she] was disabled. To prevail, the plaintiff must prove all of the following:

(1)The plaintiff is a person with a disability;

(2)The plaintiff was qualified to perform [his / her] job-essential functions, with or without reasonable accommodations;

(3)The defendant discriminated against the plaintiff by subjecting the plaintiff to adverse treatment in one or more prohibited ways, including: [*specify prohibited adverse treatment*];

(4)The plaintiff's disability was a substantial factor in the defendant's adverse treatment of the plaintiff.

COMMENT: ORS 659A.103; ORS 659A.112; ORS 659A.115; OAR 839-006-0205.

For (3) above, attorneys may reference a complete list of prohibited adverse treatment at ORS 659A.112(1) and (2)(a) to (h), which includes, but is not limited to: refusal to hire, employ, or promote; to bar or discharge from employment; or to discriminate against in compensation terms, conditions or privileges of employment. In addition, the employer may be found liable for disability discrimination regardless of whether a reasonable accommodation would have been possible, although remedies may be limited. OAR 839-006-0206(6)(a).

See UCJI 59A.03 for an instruction on *substantial factor.*

ORS 659A.103 to 659A.139 should be construed to the extent possible in a manner consistent with any similar provisions of the federal Americans with Disabilities Act of 1990, as amended by the ADA Amendments Act of 2008. ORS 659A.139(1).

3/19

UCJI 59.02 DISABILITY DISCRIMINATION—*PERSON WITH A DISABILITY* DEFINED

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The plaintiff [was / is] a *person with a disability* if the plaintiff [has / has a record of / is regarded as having] a physical or mental impairment that *substantially limits* a *major life activity*.

[The plaintiff has *a record of* a physical or mental impairment if the plaintiff has a history of, or has been misclassified as having, a physical or mental impairment that substantially limits a major life activity.]

[The plaintiff is *regarded as having* a physical or mental impairment if the plaintiff has been subjected to an unlawful employment practice because of an actual or perceived physical or mental impairment, whether or not the impairment limits or is perceived to limit a major life activity. The plaintiff is not regarded as having a physical or mental impairment if the plaintiff has an impairment that is minor and that has an actual or expected duration of six months or less.]

Substantially limits means the impairment [or perceived impairment] restricts one or more major life activities of the plaintiff as compared to most people in the general population. An impairment need not prevent, or significantly or severely restrict, the individual from performing a major life activity in order to be considered substantially limiting. Nonetheless, not every impairment will constitute a disability within the meaning of the law.

Major life activities include [list applicable impairments from ORS 659A.104(2) or other alleged impairments].

COMMENT: ORS 659A.104. For "record of impairment" *see* ORS 659A.104(1)(b); OAR 839-006-0205(1)(b). For "regarded as having a physical or mental impairment" *see* ORS 659A.104(1)(c)(A)–(B); OAR 839-006-0205(1)(c)(A)(B).

An impairment that substantially limits one major life activity of the individual need not limit other major life activities of the individual. An impairment that is episodic or in remission is considered to substantially limit a major life activity of the individual if the impairment would substantially limit a major life activity of the individual when the impairment is active. ORS 659A.104(3).

UCJI 59.03 DISABILITY DISCRIMINATION—*RECORD OF IMPAIRMENT* DEFINED

Download MS Word

[WITHDRAWN]

(The UCJI Committee is reorganizing all of the *Disability Discrimination* instructions. The content of this instruction will be addressed in a future instruction.)

12/18

UCJI 59.03A DISABILITY DISCRIMINATION—QUALIFIED TO PERFORM THE ESSENTIAL FUNCTIONS OF THE JOB

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The plaintiff must prove [he/she] was *qualified* to perform the *essential functions* of the job.

The plaintiff was *qualified* for the job if [he / she], with or without reasonable accommodation, could have performed all the essential functions of the job.

Essential functions are the fundamental duties of a job an individual with a disability holds or desires. For purposes of determining the essential functions of the job, due consideration shall be given to the employer's determination as to the essential functions of a job.

COMMENT: ORS 659A.115; OAR 839-006-0205(4).

If an employer has prepared a written description before advertising or interviewing applicants for a job, the job description must be considered evidence of the essential functions of the job. *See* ORS 659A.115.

3/19

UCJI 59.04 DISABILITY DISCRIMINATION—*REGARDED AS HAVING AN IMPAIRMENT* DEFINED

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[WITHDRAWN]

(The UCJI Committee is reorganizing all of the *Disability Discrimination* instructions. The content of this instruction will be addressed in a future instruction.)

12/18

UCJI 59.05 DISABILITY DISCRIMINATION—"FAILURE TO ACCOMMODATE" ELEMENTS

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The plaintiff claims that the defendant discriminated against [him / her] by failing to make a reasonable accommodation to [his / her] known physical or mental limitations.

To prevail, the plaintiff must prove that

(1)the plaintiff requested accommodation, or the defendant otherwise knew that the plaintiff had a disability that may require reasonable accommodation; and

(2)the defendant could have reasonably accommodated the plaintiff, but did not.

COMMENT: ORS 659A.112(2)(e); ORS 659A.115; ORS 659A.104; *see* ORS 659A.118 (examples of reasonable accommodation); OAR 839-006-0206 (same); *Stamper v. Salem-Keizer Sch. Dist.*, 195 Or App 291, 298, 97 P3d 680 (2004) (regarding second element, noting question of fact for jury); *Honstein v. Metro W. Ambulance Serv.*, 193 Or App 457, 466, 90 P3d 1030, *rev den*, 337 Or 327 (2004) (holding defendant had no duty to prove undue hardship when plaintiff failed to prove defendant "could, in fact, provide a reasonable accommodation."); *but see* OAR 839-006-0206(6)(a). *See also* Ninth Circuit Model Civil Jury Instruction No. 12.7.

8/19

UCJI 59.06 DISABILITY DISCRIMINATION—*REASONABLE ACCOMMODATION* DEFINED

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Reasonable accommodation means modifications or adjustments to an application process, work environment, or to the manner or circumstances under which a job is customarily performed that enable a qualified employee or applicant with a disability to perform the essential functions of the job and enable [him / her] to enjoy equal benefits and privileges of employment as are enjoyed by similarly situated employees without a disability.

[A reasonable accommodation may include:

[*making existing facilities used by employees readily accessible to and usable by employees with a disability*][;]

[*job restructuring, part-time or modified work schedules, a leave of absence, or reassignment to a vacant position*][;]

[*acquiring or modifying equipment or devices*][;]

[*appropriately adjusting or modifying examinations, training materials, or policies*][;]

[*providing qualified readers or interpreters*].]

COMMENT: ORS 659A.118; OAR 839-006-0206.

The above examples of reasonable accommodations are not exhaustive. This instruction may need to be modified, depending on the facts of the particular case.

8/19

UCJI 59.07 DISABILITY DISCRIMINATION—UNDUE HARDSHIP DEFENSE

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If a qualified person with a disability proves the availability of a reasonable accommodation, an employer must make some reasonable accommodation for the known physical or mental limitations unless the employer proves that the accommodation would impose an *undue hardship*.

An undue hardship exists if the accommodation requires significant difficulty or expense. In determining if an accommodation imposes an undue hardship, you must consider the following factors:

(1) the nature and cost of the accommodation needed;

(2) the overall financial resources of the facility involved, the number of people employed at the facility, and the effects on expenses and other resources or other impacts on the operation;

(3) the overall financial resources of the employer; the overall size of the business with respect to the number of its employees; and the number, type, and location of the facilities; and

(4) the type of operations conducted by the employer and the geographic separateness and administrative or fiscal relationship of the facilities.

COMMENT: ORS 659A.112(2)(e); ORS 659A.121; *Braun v. Am. Int'l Health & Rehabilitation Servs., Inc.*, 315 Or 460, 470–73, 846 P2d 1151 (1993) (statute imposes duty on employer to make reasonable accommodation).

Honstein v. Metro W. Ambulance Serv., Inc., 193 Or App 457, 466, 90 P3d 1030, *rev den*, 337 Or 327 (2004) (holding defendant had no duty to prove undue hardship when plaintiff failed to prove defendant "could, in fact, provide a reasonable accommodation").

When applicable, this instruction should be used with UCJI 59.01 and/or UCJI 59.05 and UCJI 59.06.

10/19

59A. EMPLOYMENT DISCRIMINATION

UCJI 59A.01 EMPLOYMENT DISCRIMINATION—CONDITIONS OF EMPLOYMENT

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The plaintiff claims that the defendant discriminated against the plaintiff because of the plaintiff's [race / color / religion / sex / sexual orientation / national origin / marital status / age / gender identity].

The plaintiff must prove that:

(1) the defendant treated the plaintiff adversely with respect to compensation or other terms, conditions, or privileges of employment; and

(2)the plaintiff's [race / color / religion / sex / sexual orientation / national origin / marital status / age / gender identity] was a substantial factor in the adverse treatment.

COMMENT: ORS 659A.030(1)(b). See UCJI 59A.03 for a definition of *substantial factor*. *Winnett v. Portland*, 118 Or App 437, 443 n 2, 847 P2d 902 (1993) ("Plaintiff was required to prove that 'she was treated less favorably than male candidates because of sex. [That] is sufficient to establish discriminatory motive.'" (quoting *Hopkins v. Price Waterhouse*, 825 F2d 458, 469 (DC Cir 1987), *aff'd in part, rev'd in part on other grounds*, 490 US 228, 109 S Ct 1775, 104 L Ed 2d 268 (1989))).

This instruction should be modified if the plaintiff claims discrimination under ORS 659A.030(1)(b) based on either a protected characteristic of a person with whom the plaintiff associates or a "juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271."

7/24

UCJI 59A.02 EMPLOYMENT DISCRIMINATION—HIRING / DISCHARGE

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The plaintiff claims that the defendant discriminated against the plaintiff by [refusing to hire / discharging] the plaintiff because of the plaintiff's [race / color / religion / sex / sexual orientation / national origin / marital status / age / gender identity].

The plaintiff must prove that

(1) the defendant [refused to hire / discharged] the plaintiff; and

(2) the plaintiff's [race / color / religion / sex / sexual orientation / national origin / marital status / age / gender identity] was a substantial factor in the decision [not to hire / to discharge] the plaintiff.

COMMENT: ORS 659A.030(1)(a). See UCJI 59A.03 for a definition of *substantial factor*. *Ettner v. City of Medford*, 178 Or App 303, 311, 35 P3d 1140 (2001); *Winnett v. Portland*, 118 Or App 437, 442, 847 P2d 902 (1993).

This instruction should be modified if the plaintiff claims discrimination under ORS 659A.030(1)(a) based on either a protected characteristic of a person with whom the plaintiff associates or a "juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271."

7/24

UCJI 59A.03 EMPLOYMENT DISCRIMINATION (Substantial Factor)

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A substantial factor is one that made a difference in an employment decision; that is, the decision would not have been made without it. It need not be the only factor.

COMMENT: The Oregon Supreme Court has established the "substantial factor" standard but has not defined precisely what *substantial factor* means. *See Holien v. Sears, Roebuck and Co.*, 298 Or 76, 90 n 5, 689 P2d 1292 (1984). The Oregon Court of Appeals has occasionally described the standard as a "but for" test. *Hardie v. Legacy Health Sys.*, 167 Or App 425, 435, 6 P3d 531 (2000) (plaintiff must show that he or she "would not have been fired but for the unlawful discriminatory motive of the employer"). *See also Estes v. Lewis and Clark College*, 152 Or App 372, 381, 954 P2d 792, *rev. denied*, 327 Or 583 (1998) (employer's wrongful purpose must be "a factor that made a difference").

12/11

CONDEMNATION

Taking of Land and Access 60.01
Taking Land Only 60.02
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60. CONDEMNATION

UCJI 60.01 TAKING OF LAND AND ACCESS

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This action was brought by the [state / *other public entity*] for the purpose of taking by the power of eminent domain the land that is described in paragraph [*number*] of the complaint and the rights of access that are described in paragraph [*number*].

12/14

UCJI 60.02 TAKING LAND ONLY

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This action was brought by the [state / *other public or private entity*] for the purpose of taking by the power of eminent domain the land that is described in paragraph [*number*] of the complaint.

COMMENT: Provide a simple property description.

12/14

UCJI 60.03 EMINENT DOMAIN AND CONDEMNATION DEFINED

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Eminent domain is the right of a [public / private] entity to take private property for public use without the owner's consent. *Condemnation* in this context is the legal process by which the [public / private] entity exercises its right of eminent domain.

COMMENT: *State By & Through Dep't of Transp. v. Lundberg*, 312 Or 568, 571 n 1, 825 P2d 641, *cert den*, 506 US 975 (1992); *see* ORS 35.215(1), ORS 35.245(1); Or Const, Art I, § 18; US Const, Amend V; *Boise Cascade Corp. v. Bd. of Forestry*, 325 Or 185, 189 n 6, 935 P2d 411 (1997); *Smith v. Cameron*, 106 Or 1, 8–9, 210 P 716 (1922).

12/14

UCJI 60.04 JUST COMPENSATION AS A BASIC CONSTITUTIONAL CONCEPT

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The constitutions of the United States and the State of Oregon guarantee that private property may not be taken for public use without just compensation. In this case, [*name of condemnor*] is taking [a portion of] the real property [together with rights of access, improvements, and trade fixtures] owned by the defendant. You are charged with the duty of determining the fair cash market value of the property being taken [and the damage, if any, to the remaining property of the defendant]. Your verdict establishes the amount of just compensation to the defendant.

COMMENT: Or Const, Art I, § 18; US Const, Amend V, XIV, § 1; *State ex rel. Dep't of Transp. v. Alf*, 165 Or App 162, 166–67, 995 P2d 1197, *rev den*, 330 Or 470 (2000); *State By & Through State Highway Comm'n v. Holt,* 209 Or 697, 308 P2d 181 (1957).

12/14

UCJI 60.05 CONDEMNATION—NO BURDEN OF PROOF

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In this case neither side has a "burden of proof." Each side has presented evidence to support its assertion as to just compensation for the property being taken by the plaintiff. You are to decide what amount will justly compensate the defendant for the property the plaintiff is taking, [and the damage, if any, to the remainder of the defendant's property after the taking] under the guidelines given to you in these instructions.

COMMENT: ORS 35.305(2). This instruction should be given in place of UCJI 14.01 and UCJI 14.02 in an eminent domain action. The Committee takes no position on whether this instruction is appropriate in an "inverse condemnation" case.

12/14

UCJI 60.06 PLAINTIFF'S RIGHT TO POSSESSION

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The plaintiff has the right to enter into possession of any property it seeks for [highway / *other*] purposes at any time after filing a complaint to acquire such property by condemnation proceedings. In this case, the plaintiff has exercised that right by taking possession of the property now being finally taken.

COMMENT: *See* ORS 35.265 (for public condemnors), ORS 35.275 (for private condemnors).

12/14

UCJI 60.07 COMPENSATION FOR PARTIAL TAKING

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The law declares that property owners must be justly compensated when their property is appropriated for a public use. The only issue for you to decide is the fair cash market value of the property taken and the depreciation, if any, in the value of the defendant's remaining land caused by this taking. Value must be determined as of [*date*].

COMMENT: Or Const, Art I, § 18; *State ex rel. Dep't of Transp. v. Alf*, 165 Or App 162, 166–67, 995 P2d 1197, *rev den*, 330 Or 470 (2000).

The date inserted should be either the date the plaintiff takes possession of the property or the date the complaint was filed, whichever is earlier. *State By & Through Dep't of Transp. v. Lundberg*, 312 Or 568, 575, 825 P2d 641, *cert den*, 506 US 975 (1992).

12/14

UCJI 60.08 COMPENSATION FOR TOTAL TAKING

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The law declares that property owners must be justly compensated when their property is taken for a public use. The only issue for you to decide is the fair cash market value of the property being taken, which value must be determined as of [*date*].

COMMENT: Or Const, Art I, § 18; *State ex rel. Dep't of Transp. v. Alf*, 165 Or App 162, 166–67, 995 P2d 1197, *rev den*, 330 Or 470 (2000).

The date inserted should be either the date the plaintiff takes possession of the property or the date the complaint was filed, whichever is earlier. *State By & Through Dep't of Transp. v. Lundberg*, 312 Or 568, 575, 825 P2d 641, *cert den*, 506 US 975 (1992).

12/14

UCJI 60.09 PARTIAL TAKING—"BEFORE AND AFTER" METHOD

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Your determination of just compensation in this case may be made by using what is known as the "before and after" method, which is as follows:

(1)determine the fair cash market value of all the defendant's property before [*date of taking*];

(2)determine the fair cash market value of all the defendant's property that remains after [*date of taking*]; and

(3)subtract the "after" value from the "before" value.

The difference between the "before" and "after" values will be just compensation to the defendant.

COMMENT: *City of La Grande v. Rumelhart*, 118 Or 166, 176, 246 P 707 (1926).

This instruction should only be given when there is evidence of "before" and "after" values, and should not be given when there is evidence of special benefits.

10/19

UCJI 60.10 PARTIAL TAKING—"TAKING AND DAMAGES" METHOD

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Your determination of the just compensation in this case may be made by using what is known as the "taking and damages" method, which is as follows:

(1)Determine the fair cash market value of the property being taken, as of [*date of filing complaint*].

(2)Add to that sum the depreciation, if any, to the defendant's remaining property caused by the appropriation. The total of the two sums will be just compensation to the defendant.

COMMENT: *Tunison v. Multnomah Cnty.*, 251 Or 602, 604, 445 P2d 498 (1968); *State Highway Comm'n v. Hooper*, 259 Or 555, 560, 488 P2d 421 (1971); *State Highway Comm'n v. Clark*, 238 Or 505, 509, 395 P2d 146 (1964); *State Highway Comm'n v. Burk*, 200 Or 211, 238–39, 265 P2d 783 (1954).

11/19

UCJI 60.11 MEASURE OF DAMAGE—COMBINATION RULE

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Your determination of just compensation in this case may be made by using either of the two following methods:

The first is the "before and after" method. To use it you should determine the fair cash market value of all the defendant's property before this lawsuit was filed on [*date*]. Then determine the fair cash market value of all the defendant's property that remains after the taking on that date. Subtract the "after" value from the "before" value. The difference between the two values will constitute just compensation.

The second method is to determine the fair cash market value of the property taken on [*the same date*], and then add to that the depreciation, if any, in the fair cash market value of the defendant's remaining property caused by the taking. The total of those two amounts will be just compensation to the defendant.

12/14

UCJI 60.12 HIGHEST AND BEST USE

Download MS Word

You must base your verdict on the fair cash market value of the property at its highest and best use. The highest and best use of the property may be other than its current use if it is reasonably probable that the property has actual potential for higher and better use.

COMMENT: *State By & Through Dep't of Transp. v. Lundberg*, 312 Or 568, 574, 825 P2d 641, *cert den*, 506 US 975 (1992); *State ex rel. Dep't of Transp. v. El Dorado Properties*, 157 Or App 624, 627–28, 971 P2d 481 (1998); *City of Eugene v. Kokkeler*, 133 Or App 721, 724, 893 P2d 1054 (1995).

12/14

UCJI 60.13 FAIR CASH MARKET VALUE

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Fair cash market value is the amount of money in cash that land would bring in the open market on [*date of taking*] if it were offered for sale by one who desired but was not obliged to sell and was bought by one willing but not obliged to buy. Nothing shall be allowed for speculative value, or for possible future development that is not reasonably probable as the highest and best use of the land. The defendant is entitled to receive the value of what [he / she / it] has been deprived, and no more. To award less would be unjust to defendant; to award more would be unjust to [*name of condemnor*].

COMMENT: *See Dep't of Trans. v. Lundberg*, 312 Or 568, 575, 825 P2d 641 (1992), *cert den*, 506 US 975 (1992); *Dep't of Trans. v. El Dorado Properties*, 157 Or App 624, 628, 971 P2d 481 (1998).

Insert the appropriate date of taking, which is either the date of filing the complaint or the date the condemnor took possession for public use, whichever is earlier.

10/19

UCJI 60.14 ITEMS OF DAMAGE

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During the trial of this case, testimony has been admitted concerning specific items of damage that the defendant claims depreciates the fair cash market value of [his / her / its] remaining land. Testimony has also been received as to the dollar amount of damage attributable to those specific items.

In this regard, you are not allowed to assign separate values to items or amounts of damage and add them up to arrive at the depreciation to the remainder of the defendant's land.

You may consider specific items or amounts of damage only to the extent that they actually affect the fair cash market value of the defendants' remaining land and only as a part of your overall deliberation to determine the depreciation as a whole.

COMMENT: *State By & Through State Highway Comm'n v. Bailey*, 212 Or 261, 288–89, 319 P2d 906 (1957); *In re Lebanon-Shea Hill Section of Santiam Highway*, 135 Or 430, 437, 296 P 65 (1931).

12/14

UCJI 60.15 COMPARABLE SALES—WEIGHT GIVEN TO

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The valuation witnesses have testified concerning the sales of other properties in the area, which they refer to as "comparable sales." Testimony about what other buyers paid for other property is not independent evidence of the fair cash market value of the subject property, since no sale can be perfectly comparable. Evidence of comparable sales is admitted only to allow the expert witnesses to explain the reasoning behind their opinion as to value. Therefore, you may consider the sales testimony only for the purpose of evaluating the expert witnesses' opinions and determining the weight, if any, to be given to their testimony.

COMMENT: *State Highway Comm'n v. Fisch-Or, Inc.*, 241 Or 412, 423–24, 406 P2d 539 (1965); *State By & Through Dep't of Transp. v. Altimus*, 124 Or App 61, 69–70, 862 P2d 109 (1993), *vacated on other grounds*, 513 US 801, 115 S Ct 44, 130 L Ed 2d 6 (1994).

12/14

UCJI 60.16 FUTURE PLANS AND INTENTIONS

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[WITHDRAWN]

(The UCJI Committee withdrew this instruction because the content is sufficiently addressed in UCJI 60.13.)

5/20

UCJI 60.17 NO POTENTIAL ACCESS

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A right of access to a public highway cannot come into existence until that highway is constructed and opened to public travel. The defendant has never had a right of access to the public highway being constructed on the property being taken in this proceeding. In arriving at the just compensation to be paid in this case, no damages should be allowed simply because the defendant will not have a future unrestricted right to go to and from [his / her / its] remaining property and the new highway when that highway is constructed and opened to public travel.

COMMENT: This instruction should be given only when there was never any access or right of access.

12/14

UCJI 60.18 SPECIAL BENEFITS, AS OFFSET AGAINST SEVERANCE DAMAGES

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The plaintiff has presented evidence that the defendant's remaining property has been specially benefited as a result of the location and proposed construction of the [*name of highway section or other public improvement*]. Special benefits do not include benefits that arise incidentally from the project and are common to the community or public generally. Rather, they are those that arise directly from the project and specially affect the remaining property because of its location in relation to the project and add to the convenience, accessibility, or highest and best use of the defendant's remaining property.

Therefore, if you find from the evidence that the location and construction of this project adds to the convenience, accessibility, or use of all or a portion of the defendant's remaining property, or that the remaining property has a higher and better use than it had prior to the taking, and as a result thereof it has increased in value, you may consider such special benefits to the extent that they reduce damages, if any, to the defendant's remaining property. However, special benefits may never be offset against the value of the property actually taken.

COMMENT: *See State By & Through State Highway Comm'n. v. Bailey*, 212 Or 261, 277–308, 319 P2d 906 (1957); *State ex rel. Dep't of Transp. v. Fullerton*, 177 Or App 254, 257–71, 34 P3d 1180 (2001).

12/14

UCJI 60.19 SPECIAL BENEFITS TO SEVERAL PROPERTIES

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The sharing of special benefits by several properties because of their respective locations in relationship to the new project does not make those special benefits general benefits.

COMMENT: *State By & Through State Highway Comm'n v. Bailey*, 212 Or 261, 306–08, 319 P2d 906 (1957); *see generally State ex rel. Dep't of Transp. v. Fullerton*, 177 Or App 254, 257–71, 34 P3d 1180 (2001).

12/14

UCJI 60.20 SPECIAL BENEFITS AND DAMAGES—CONSIDERATION OF ENTIRE PROJECT

Download MS Word

In determining whether or not the defendant's remaining property has been depreciated in value[, and whether or not it has been specially benefited,] because of the taking, you may consider the evidence of the entire plan of the project, and its probable effect on the use and value of the defendant's remaining property.

COMMENT: ORS 374.055; *State By & Through State Highway Comm'n v. Bailey*, 212 Or 261, 307, 319 P2d 906 (1957). The Committee expresses no opinion on whether this instruction should be given in cases other than limited-access state highway condemnations.

12/14

UCJI 60.21 SPECIAL BENEFITS VALUATION RULE

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Your determination of just compensation in this case may be made by the following process:

(1)Determine the fair cash market value of the property being acquired by the plaintiff on [*date of filing complaint or date of possession by condemnor, whichever is first*];

(2)Consider the damages and the special benefits, if any, to the defendant's remaining property caused by the taking and the construction of the project in the manner proposed; and

(3)Subtract the amount of special benefits, if any, from the amount of damages to the remaining property.

If you find that there are net damages to the remaining property after having considered both damages and special benefits, you must add that net damages figure to the value of the property taken in order to arrive at your verdict. If, however, you determine that there are special benefits equal to or greater than the damages to the remaining property, then you will allow by your verdict only the fair cash market value of the property actually taken.

You must not subtract the amount of any special benefit to the remaining property from the value of the property being taken, since special benefits can only offset damage, if any, to the property still owned by the defendant and not taken by the plaintiff.

COMMENT: *State By & Through State Highway Comm'n v. Bailey*, 212 Or 261, 277–308, 319 P2d 906 (1957); *see generally State By & Through Dep't of Transp. v. Lundberg*, 312 Or 568, 825 P2d 641, *cert den*, 506 US 975 (1992).

12/14

UCJI 60.22 TRADE FIXTURES

Download MS Word

If you find that the defendant has installed trade fixtures on [his / her / its] property, then in determining the value of the property and its improvements, you should take into account the trade fixtures to the extent that you find they enhance the fair cash market value of the property as a whole.

Trade fixtures are fixtures or equipment that are:

(1)Installed by the owner or lessee of property used for a business;

(2)Essential to the operation of that business for its highest and best use; and

(3)Made an integrated part of the property by being permanently installed with the intention that they should remain a permanent part of the property for the operation of such a business.

COMMENT: *State By & Through State Highway Comm'n v. Superbilt Mfg. Co.*, 204 Or 393, 412–13, 281 P2d 707 (1955); *see also State By & Through State Highway Comm'n v. Feves*, 228 Or 273, 277–83, 365 P2d 97 (1961).

12/14

UCJI 60.23 JURY VIEW

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Your view of the property is not to be considered by you as evidence. The jury view is only for the purpose of enabling you to understand better the evidence that is produced by the parties at trial.

While on the jury view, please stay together as a group. Either the court or the bailiff may point out certain features for you to observe. Do not allow any person to talk to you about the case. Do not ask any person any questions about the case. During a jury view, the law specifically prohibits any person, other than the judge or the bailiff, from speaking with the jury on any subject connected with the trial.

COMMENT: ORS 10.100.

12/14

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12/14

65. COMMERCIAL LAW CONTRACTS

UCJI 65.01 *CONTRACT* DEFINED

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A *contract* is a legally enforceable promise or set of promises.

COMMENT: *Ashby v. Employment Div*, 21 Or App 265, 268, 534 P2d 1160 (1975); *Restatement (Second) of Contracts* § 1 (1981).

12/14

UCJI 65.02 OFFER AND ACCEPTANCE

Download MS Word

For a contract to exist, there must be an offer that is accepted.

COMMENT: *Klimek v. Perisich*, 231 Or 71, 78, 371 P2d 956 (1962); *Simmons v. All Am. Life Ins. Co.*, 115 Or App 409, 412, 838 P2d 1088 (1992), *rev den*, 315 Or 312 (1993).

12/14

UCJI 65.03 *OFFER* DEFINED

Download MS Word

An *offer* is a proposal communicated by either words, conduct, or both that would reasonably lead the party to whom it is made to believe that the proposal is intended to create a contract if accepted.

COMMENT: *Southworth v. Oliver*, 284 Or 361, 370–72, 587 P2d 994 (1978); *Real Estate Loan Fund Oreg. Ltd. v. Hevner*, 76 Or App 349, 355, 709 P2d 727 (1985).

12/14

UCJI 65.04 *ACCEPTANCE* DEFINED

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An *acceptance* is either words, conduct, or both that would reasonably lead the party who made the offer to believe the [essential] terms of the offer had been agreed to.

A response that changes, adds to, or qualifies the [essential] terms of the offer is not an acceptance.

COMMENT: *Doughty Appliance, Inc. v. White*, 282 Or 757, 760, 580 P2d 186 (1978); *Klimek v. Perisich*, 231 Or 71, 78–80, 371 P2d 956 (1962); *Wagner v. Rainier Mfg. Co.*, 230 Or 531, 538, 371 P2d 74 (1962); *Pac. Photocopy, Inc. v. Canon U. S. A., Inc.*, 57 Or App 752, 757–58, 646 P2d 647, *rev den*, 293 Or 635 (1982); *Restatement (Second) of Contracts* § 50(1) (1981); *see also Phillips v. Johnson*, 266 Or 544, 555–56, 514 P2d 1337 (1973); *Kantor v. Boise Cascade Corp.*, 75 Or App 698, 707–08, 708 P2d 356 (1985).

Depending on the issues in the case, the word *essential* may be needed and the jury may need instruction regarding what terms are essential.

12/14

UCJI 65.05 METHOD OF ACCEPTANCE—SPECIFIED BY OFFER

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If the offer specifies a particular method of acceptance, that method must be used to accept the offer.

COMMENT: *Cochran v. Connell*, 53 Or App 933, 937, 632 P2d 1385, *rev den*, 292 Or 109 (1981); *Restatement (Second) of Contracts* § 58 (1981).

12/14

UCJI 65.06 METHOD OF ACCEPTANCE—UNSPECIFIED BY OFFER

Download MS Word

If the offer does not specify a particular method of acceptance, the party wishing to accept the offer may do so by any words and/or conduct which, under the circumstances, would lead a reasonable person to conclude that the offer had been accepted.

COMMENT: *Killam v. Tenney*, 229 Or 134, 150, 366 P2d 739 (1961); *Snyder v. Pynn*, 50 Or App 449, 455, 623 P2d 1090 (1981).

12/14

UCJI 65.07 DURATION OF OFFER

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If the offer specifies the time in which it must be accepted, the offer terminates unless accepted within the stated time.

If the offer does not specify the time in which it must be accepted, the offer remains open for a reasonable time.

COMMENT: *Herndon v. Armstrong*, 148 Or 602, 608, 38 P2d 44 (1934); *Restatement (Second) of Contracts* § 41 (1981).

12/14

UCJI 65.08 WITHDRAWAL OF OFFER

Download MS Word

An offer may be withdrawn by communication from the party making the offer at any time before the offer is accepted [unless an option contract has been created].

COMMENT: *Hogan v. Aluminum Lock Shingle Corp. of Am.*, 214 Or 218, 226–27, 329 P2d 271 (1958); *R. J. Taggart, Inc. v. Douglas Cnty.*, 31 Or App 1137, 1140, 572 P2d 1050 (1977).

See UCJI 65.09 for cases involving option contracts.

12/14

UCJI 65.09 OPTION CONTRACT

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The parties may agree that an offer be left open for a period of time in exchange for something of value. This is an option contract. The offer may not be withdrawn during the time specified. If the offer does not specify the time it remains open, the offer remains open for a reasonable time.

COMMENT: *R. J. Taggart, Inc. v. Douglas Cnty.*, 31 Or App 1137, 1140, 572 P2d 1050 (1977); *see also Taylor v. Wells*, 188 Or 648, 655, 217 P2d 236 (1950).

12/14

UCJI 65.10 *REJECTION* DEFINED

Download MS Word

A *rejection* is words or conduct, or both, showing an intent not to accept an offer. Once an offer has been rejected, it cannot later be accepted, unless the offer is renewed.

COMMENT: *Restatement (Second) of Contracts* § 38 (1981).

12/14

UCJI 65.11 REJECTION BY COUNTEROFFER

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A response to an offer proposing terms different from the offer is a counteroffer. A counteroffer is not an acceptance of the original offer. A counteroffer rejects the original offer and is a new offer. A contract may be formed by acceptance of a counteroffer.

COMMENT: *See* UCJI 65.03 (*Offer* Defined); *Small v. Paulson*, 187 Or 76, 85, 209 P2d 779 (1949).

12/14

UCJI 65.12 CUSTOM OR USAGE

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A custom or usage alone does not form a contract. However, it may be used to interpret ambiguous terms of a contract if:

(1) The custom or usage is consistent with the contract; and

(2) The custom or usage either

(a) was actually known by the parties; or

(b) was so generally known that you may assume the parties knew it and contracted with reference to it.

COMMENT: *Montgomery v. U.S. Nat'l Bank of Portland*, 220 Or 553, 565, 349 P2d 464 (1960); *Smith v. Abel*, 211 Or 571, 593–94, 316 P2d 793 (1957); *PSG Co. v. Merrill Lynch, Pierce, Fenner & Smith, Inc.*, 417 F2d 659, 662 n 7 (9th Cir 1969), *cert den*, 397 US 918 (1970) (applying Oregon law).

12/14

UCJI 65.13 COURSE OF PERFORMANCE

Download MS Word

The parties' previous conduct alone does not form a contract. However, it may be used to interpret ambiguous terms of a contract.

COMMENT: *Goodman v. Continental Cas. Co.*, 141 Or App 379, 389, 918 P2d 438, *rev den*, 324 Or 305 (1996); *see also Fisher v. Tiffin*, 275 Or 437, 440–41, 551 P2d 1061 (1976); RESTATEMENT (SECOND) OF CONTRACTS §223 (1981).

12/13

UCJI 65.14 THE PARTIES' INTERPRETATION OF THE CONTRACT

Download MS Word

In determining the intent of the parties, you may consider conduct relating to disputed terms of the contract before any controversy arose.

COMMENT: *Krieg v. Union Pac. Land Res. Corp.*, 269 Or 221, 230, 525 P2d 48 (1974); *Tarlow v. Arntson*, 264 Or 294, 300–01, 505 P2d 338 (1973); *Jenkins v. AAA Heating & Cooling, Inc.*, 245 Or 382, 385, 421 P2d 971 (1966); *U.S. Nat'l Bank of Oregon v. Caldwell*, 60 Or App 639, 644, 655 P2d 180 (1982), *rev den*, 294 Or 536 (1983); *Lease v. Corvallis Sand & Gravel Co.*, 185 F2d 570, 576 (9th Cir 1950).

12/14

UCJI 65.15 *BREACH OF CONTRACT* DEFINED

Download MS Word

A *breach of contract* occurs when a party fails to perform as required by the contract.

COMMENT: *Kantor v. Boise Cascade Corp.*, 75 Or App 698, 703, 708 P2d 356 (1985), *rev den*, 300 Or 506 (1986).

12/14

UCJI 65.16 OFFER ACCEPTED BY MAILING—MAILBOX RULE

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A contract is created upon mailing of the acceptance regardless of [when / whether] the acceptance was received.

COMMENT: *Hirschfeld v. McCullagh*, 64 Or 502, 513, 127 P 541, 130 P 1131 (1912); *Williams v. A.C. Burdick & Co.*, 63 Or 41, 47, 125 P 844, 126 P 603 (1912).

12/14

UCJI 65.17 CONTRACT INTERPRETATION—ORDINARY MEANING OF TERMS

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In deciding the meaning of the contract, you should assume that the words used in the contract have their ordinary meaning, unless you decide that both parties intended the words to have another meaning.

COMMENT: ORS 42.250; *Totten v. New York Life Ins. Co.*, 298 Or 765, 770–71, 696 P2d 1082 (1985); *Bernard v. First Nat'l Bank of Oregon*, 275 Or 145, 155, 550 P2d 1203 (1976).

12/14

UCJI 65.17A AMBIGUITY IN CONTRACT

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I have determined that an important part of the contract is ambiguous, that is, an important part of the contract is capable of more than one meaning.

The parties disagree on the meaning of [*insert ambiguous term*].

The plaintiff says that this part of the contract was intended to mean [*describe the plaintiff's proposed meaning*].

The defendant says that this part of the contract was intended to mean [*describe the defendant's proposed meaning*].

COMMENT: This instruction should be given only when the court determines an ambiguity exists and extrinsic evidence creates a question of fact on the intent of the parties. *Batzer Const., Inc. v. Boyer*, 204 Or App 309, 313, 129 P3d 773, *rev den*, 341 Or 366 (2006) ("A contract provision is ambiguous if it has no definite significance or if it is capable of more than one sensible and reasonable interpretation" (internal quotation omitted)).

This instruction should be given in conjunction with UCJI 65.17B.

12/15

UCJI 65.17B RESOLVING AMBIGUITY IN CONTRACT

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To determine what the parties intended the disputed language to mean, you should consider the following evidence:

[1. The situation of the parties at the time they agreed to the contract;]

[2. Statements the parties made during the time they negotiated and agreed to the contract;]

[3. Statements the parties made, and things they did, that related to the disputed part of the contract after the parties agreed to the contract and before there was a dispute about it;]

[4. Earlier conduct between the parties that relates to the subject of the contract;]

[5. A business custom that is consistent with the contract's language that was known to the parties at the time they agreed to the contract;]

[6. A business custom that is consistent with the contract's language and that was so generally known in the parties' situation that it is fair to assume they would have meant the custom to apply to their agreement;]

[7. Prior drafts of the contract;]

[8. The economic climate of the parties at the time the contract was executed;]

[9. *Insert other appropriate extrinsic evidence of intent.*]

If, after considering the evidence, you can decide what the parties intended the disputed language to mean, then that is the meaning you are to give to the disputed language.

If you still cannot decide what the parties intended the disputed language to mean, then consider the following rules of contract construction [*insert applicable rules of construction*].

COMMENT: ORS 41.740. *Batzer Const., Inc. v. Boyer*, 204 Or App 309, 315, 129 P3d 773, *rev den*, 341 Or 366 (2006); *Yogman v. Parrott*, 325 Or 358, 364, 937 P2d 1019 (1997); *Boothby v. D.R. Johnson Lumber Co.*, 341 Or 35, 44, 137 P3d 699 (2006); *Smith v. Abel*, 211 Or 571, 594, 316 P2d 793 (1957); *Pub. Mkt. Co. of Portland v. City of Portland*, 171 Or 522, 535–38, 130 P2d 624 (1942), *opinion supplemented on reh'g*, 171 Or 522, 138 P2d 916 (1943); *VTech Commc'ns, Inc. v. Robert Half, Inc.*, 190 Or App 81, 87–88, 77 P3d 1154 (2003), *rev dismissed*, 337 Or 547 (2004).

This instruction should be given in conjunction with UCJI 65.17A. The court should determine which of the bracketed factors apply in a particular case.

For a nonexhaustive list of rules of construction see ORS 42.220 to 42.300. Many rules of construction can be found in case law, see, e.g. *Hoffman Const. Co. of*

Alaska v. Fred S. James & Co. of Oregon, 313 Or 464, 470, 836 P2d 703 (1992) (ambiguous term in contract should be construed against drafter).

12/15

UCJI 65.18 DAMAGES—BREACH OF CONTRACT

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If the [plaintiff / defendant] breached the contract, then you must decide if the breach caused a loss and, if so, how much money should be paid.

The mere fact that I am talking about money does not mean that you should or should not award any money.

You can award money for those damages that arise naturally and necessarily from the breach of contract and would place the [plaintiff / defendant] in the same position as if the contract had not been breached.

COMMENT: *Borton v. Medicine Rock Land Co.*, 275 Or 59, 67, 549 P2d 1122 (1976); *Senior Estates, Inc. v. Bauman Homes, Inc.*, 272 Or 577, 584−86, 539 P2d 142 (1975); *Braught v. Granas*, 73 Or App 488, 493−94, 698 P2d 1012 (1985); *Siler v. Turnbull*, 71 Or App 787, 790, 693 P2d 1323 (1985).

Breach of contract cases take many forms and particular care should be taken to adapt this instruction as needed.

For instruction on lost profit damages, see UCJI 77.01.

11/09

UCJI 65.19 CONTRACT DAMAGES—DUTY TO MITIGATE

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A party damaged by a breach of contract is required to make reasonable efforts to minimize [his / her / its] loss.

A party who fails to do so cannot recover for that portion of the loss [he / she / it] reasonably could have avoided.

COMMENT: *Schafer v. Sunset Packing Co.*, 256 Or 539, 542–43, 474 P2d 529 (1970).

This instruction may not be appropriate when the breaching party had equal opportunity to perform and equal knowledge of the consequences of the breach. *Parker v. Harris Pine Mills*, 206 Or 187, 205, 291 P2d 709 (1955); *Cardinell Crest Homeowners Ass'n v. Lord*, 160 Or App 452, 460–62, 982 P2d 35, *rev den*, 329 Or 318 (1999).

12/14

UCJI 65.20 *WAIVER* DEFINED

Download MS Word

A *waiver* occurs when a party clearly shows [his / her / its] intent to abandon a known right.

COMMENT: *Schmeck v. Bogatay*, 259 Or 188, 196, 485 P2d 1095 (1971).

12/14

UCJI 65.21 ACCORD AND SATISFACTION (GENERALLY)

Download MS Word

The [plaintiff / defendant] has asserted as a defense that the parties substituted an agreement for the [plaintiff / defendant]'s disputed claim. To establish this defense, the [plaintiff / defendant] must prove the following:

(1)The [plaintiff / defendant] and the [plaintiff / defendant] agreed to substitute an agreement for the disputed claim; and

(2)The [plaintiff / defendant] has performed [his / her / its] duties under the substituted agreement.

COMMENT: *Coover v. G & J Elec., Inc.*, 285 Or 247, 249–50, 590 P2d 720 (1979); *Van Riper v. Baker*, 61 Or App 540, 543–44, 658 P2d 537, *rev den*, 295 Or 122 (1983); *Reppert & Co. v. Plaid Pantries, Inc.*, 42 Or App 313, 315–17, 600 P2d 494 (1979).

If the defense of accord and satisfaction arises in the context of acceptance of tender of a negotiable instrument, this instruction does not apply. ORS 73.0311.

12/15

UCJI 65.22 CONTRACTUAL DUTY OF GOOD FAITH

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The duty of good faith requires the parties to act in a manner that carries out their objectively reasonable expectations in performing and enforcing the contract. This duty, however, cannot be used to contradict the stated terms of the contract.

The [plaintiff / defendant] claims that the [plaintiff / defendant] breached the duty of good faith by [*specify alleged breach(es) of duty*].

COMMENT: *Uptown Heights Associates Ltd. P'hip v. Seafirst Corp.*, 320 Or 638, 644–45, 891 P2d 639 (1995); *Hampton Tree Farms, Inc. v. Jewett*, 320 Or 599, 615, 892 P2d 683 (1995); *Pac. First Bank v. New Morgan Park Corp.*, 319 Or 342, 344 n 1, 350–55, 876 P2d 761 (1994); *Tolbert v. First Nat'l Bank of Oregon*, 312 Or 485, 493–94, 823 P2d 965 (1991); *Sheets v. Knight*, 308 Or 220, 232–33, 779 P2d 1000 (1989); *Best v. U.S. Nat'l Bank of Oregon*, 303 Or 557, 561–65, 739 P2d 554 (1987).

See UCJI 66.07 for a similar instruction regarding contractual duty of good faith in UCC cases.

12/14

66. UNIFORM COMMERCIAL CODE CONTRACTS

UCJI 66.01 TIME TO ACCEPT AN OFFER FROM A MERCHANT (UCC)

Download MS Word

A signed written offer by a merchant to buy or sell goods stating that the offer will be held open for a period of time cannot be withdrawn during that time.

If no period of time is stated in the offer, the offer remains open for a reasonable time but, in any event, not more than three months.

COMMENT: ORS 72.2050; *R. J. Taggart, Inc. v. Douglas Cnty.*, 31 Or App 1137, 1140–41, 572 P2d 1050 (1977).

12/14

UCJI 66.02 PRICE (UCC)

Download MS Word

The parties may enter into a contract even though the price is not settled, if both parties intend to enter into a contract.

If the price was not set by the terms of the contract or by a later agreement between the parties, you should determine what a reasonable price was at the agreed time for delivery.

COMMENT: ORS 72.3050; *Oregon-Washington Vegetable & Fruit Growers Ass'n v. Sunset Packing Co. of Or.*, 254 Or 33, 35–37, 456 P2d 1002 (1969).

12/14

UCJI 66.03 QUANTITY: OUTPUT/REQUIREMENTS (UCC)

Download MS Word

When the quantity sold is agreed to be determined by the buyer's requirements, the seller must provide the buyer's actual, good-faith requirements. However, the seller only has to provide a quantity that is reasonably in proportion to any [stated estimate / prior requirements].

[*or*]

When the quantity sold is agreed to be determined by the seller's output, the buyer must purchase the seller's actual, good-faith output. However, the buyer only has to buy a quantity that is reasonably in proportion to any [stated estimate / prior output].

COMMENT: ORS 72.3060(1); *Wilsonville Concrete Products v. Todd Bldg. Co.*, 281 Or 345, 350–52, 574 P2d 1112 (1978).

These two paragraphs are listed together for convenience. In any particular case, the court is likely to use only one or the other paragraph.

The word provide in the first and second sentences can be replaced by more specific terms if the contract at issue calls for a more specific term. For example, if the contract calls for the seller to deliver the goods, *provide* might be replaced with *deliver*.

12/14

UCJI 66.04 TENDER OF PAYMENT (BUYER) (UCC)

Download MS Word

The buyer must *tender payment* to the seller before the seller has a duty to deliver the goods.

To *tender payment* means the buyer makes payment available to the seller by any means or in any manner used by the parties in the ordinary course of business.

COMMENT: ORS 72.5110.

If the parties to the agreement agreed to terms different from those stated above, the parties' agreement controls. If the seller demands payment in legal tender, the seller must give any extension of time reasonably necessary to procure it. ORS 72.5110(2).

12/14

UCJI 66.05 TENDER OF DELIVERY (SELLER) (UCC)

Download MS Word

The seller must *tender delivery* of the goods to the buyer before the buyer has a duty to accept and pay for them.

To *tender delivery* means the seller makes goods conforming to the agreement available to the buyer and gives the buyer reasonable notification that the buyer may take delivery of the goods.

COMMENT: ORS 72.5030(1), ORS 72.5070(1).

If the parties agreed to terms different from those stated above, the parties' agreement controls. In circumstances when the seller notified the buyer of an intention to cure a nonconforming tender, a supplemental instruction based on ORS 72.5080 may be appropriate.

12/14

UCJI 66.06 WITHDRAWAL OF WAIVER (UCC)

Download MS Word

A party who has waived a right may withdraw the waiver if [he / she / it] reasonably notifies the other party that strict performance of the waived right will be required in the future.

However, the waiver may not be withdrawn when it would be unjust because the other party materially changed [his / her / its] position in reliance on the waiver.

COMMENT: For a definition of *waiver*, see UCJI 65.20.

See generally Schmeck v. Bogatay, 259 Or 188, 196, 485 P2d 1095 (1971); *Oregon Bank v. Nautilus Crane & Equip. Corp.*, 68 Or App 131, 138–40, 683 P2d 95 (1984).

12/14

UCJI 66.07 CONTRACTUAL DUTY OF GOOD FAITH (UCC)

Download MS Word

Every contract imposes an obligation of good faith in its performance and enforcement. The duty of good faith requires the parties to act with honesty in fact [and to observe reasonable commercial standards of fair dealing] in performing and enforcing the contract. This duty, however, cannot be used to contradict the stated terms of the contract.

The [plaintiff / defendant] claims that the [plaintiff / defendant] breached the duty of good faith by [specify alleged breach(es) of duty].

COMMENT: *See* ORS 71.3040 ("Every contract or duty within the Uniform Commercial Code imposes an obligation of good faith in its performance and enforcement.").

Use the bracketed language on "reasonable commercial standards of fair dealing" unless the claim is governed by chapter 75 of the UCC (letters of credit). *See* ORS 71.2010(2)(t) (Under Uniform Commercial Code – General Provisions, "'Good faith,' except as otherwise provided in ORS chapter 75, means honesty in fact and the observance of reasonable commercial standards of fair dealing."); ORS 75.1020(1)(g) (Under Uniform Commercial Code – Letters of Credit, "'Good faith' means honesty in fact in the conduct of the transaction concerned.").

See UCJI 65.22 for a similar instruction regarding contractual duty of good faith in non-UCC cases.

See U.S. National Bank of Oregon v. Boge, 311 Or 550, 564–66, 814 P2d 1082 (1991) (UCC duty of good faith displaces common-law duty of good faith in transactions to which UCC applies); *Chaney v. Shell Oil Co.*, 111 Or App 556, 568–69, 827 P2d 196, *rev den*, 313 Or 299 (1992); *Klamath Off-Project Water Users, Inc. v. PacifiCorp*, 237 Or App 434, 446, 240 P3d 94 (2010), *rev den*, 349 Or 602 (2011) (duty cannot contradict an express contractual term).

11/23

67. UNIFORM COMMERCIAL CODE WARRANTIES

UCJI 67.01 WARRANTIES IN GENERAL (UCC)

Download MS Word

Contracts for the sale of goods may contain warranties. A warranty can be express or implied.

COMMENT: ORS 72.3130, ORS 72.3140, ORS 72.3150; *see* ORS 72.1050 (definition of *goods*); UCJI 67.02 (Creation of Express Warranty); UCJI 67.04 (Implied Warranty of Fitness for a Particular Purpose); UCJI 67.07 (Merchantability).

12/15

UCJI 67.02 CREATION OF EXPRESS WARRANTIES (UCC)

Download MS Word

In this matter the [plaintiff/defendant] is the seller and the [plaintiff/defendant] is the buyer. You must determine whether the seller created an express warranty.

[*choose one or both*]

[1]If the seller made an affirmation of fact or promise to the buyer that related to the [*specify goods*] and was part of the basis of the parties' bargain, then the seller created an express warranty that the [*specify goods*] would conform to the affirmation or promise.

[and/or]

[2]If the seller provided a [description, sample, and/or model] of the *goods* that was part of the basis of the parties' bargain, then the seller created an express warranty that the goods would conform to the [description, sample, and/or model].

An express warranty may be created without using formal words such as *warrant* or *guarantee.* The seller does not need to specifically intend to create an express warranty. However, an affirmation merely of the value of the goods or a statement presented as merely the seller's opinion or commendation of the goods does not create an express warranty.

COMMENT: ORS 72.3130. *See* ORS 72.1030(1)(a) (definition of *buyer*); ORS 72.1030(1)(d) (definition of *seller*); ORS 72.1050 (definition of *goods*). For Breach of Express Warranty (UCC), see UCJI 67.03. Seller can be liable for warranty made by third party on behalf of seller. *Autzen v. John C. Taylor Lumber Sales, Inc.*, 280 Or 783, 788–89, 572 P2d 1322 (1977).

12/15

UCJI 67.03 BREACH OF EXPRESS WARRANTY (UCC)

Download MS Word

To recover damages for breach of an express warranty, the buyer must prove all of the following elements:

(1) The seller made one or more express warranties relating to the [*specify goods*];

(2) The seller breached one or more of the express warranties because the [*specify goods*] did not conform to one or more of the express warranties;

(3) The buyer notified the seller of the breach within a reasonable time after the buyer discovered or should have discovered the breach; and

(4) The buyer sustained damages resulting from the seller's breach.

COMMENT: *See generally* ORS 72.6070, ORS 72.7140, ORS 72.1030(1)(a) (definition of *buyer*), ORS 72.1030(1)(d) (definition of *seller*). The jury should be given appropriate instructions on the damages recoverable under ORS 72.7140 and ORS 72.7150.

12/14

UCJI 67.04 IMPLIED WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE (UCC)

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An implied warranty of fitness for a particular purpose arises, regardless of the seller's intent, whenever the seller at the time of contracting has reason to know that:

(1)The goods are required for a particular purpose; and

(2)The buyer is relying on the seller's skill or judgment to select or furnish suitable goods.

COMMENT: ORS 72.3150, ORS 71.2020(1)–(3) (distinguishes "reason to know" from "actual knowledge"); *see* ORS 72.3160 (exclusion and modification of warranties), ORS 72.1030(1)(a) (definition of *buyer*), ORS 72.1030(1)(d) (definition of *seller*); *Controltek, Inc. v. Kwikee Enterprises, Inc.*, 284 Or 123, 128–29, 585 P2d 670 (1978); *Valley Iron & Steel Co. v. Thorin*, 278 Or 103, 109, 562 P2d 1212 (1977); *Swan Island Sheet Metal Works, Inc. v. Troy's Custom Smoking Co., Inc.*, 49 Or App 469, 473–74, 619 P2d 1326 (1980); *Beam v. Cullett*, 48 Or App 47, 49–51, 615 P2d 1196 (1980); *see also* UCC § 2-315 (ORS 72.3150), comment 2.

12/14

UCJI 67.05 BREACH OF IMPLIED WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE (UCC)

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To recover damages for breach of an implied warranty of fitness for a particular purpose, the buyer must prove the following elements:

(1)The seller sold the [*specify goods*] to the buyer;

(2)The seller impliedly warranted that the [*specify goods*] would be suitable for the particular purpose of [*specify purpose*];

(3)The [*specify goods*] were not suitable for the particular purpose warranted;

(4)The buyer notified the seller of the breach within a reasonable time after the buyer discovered or should have discovered the breach; and

(5)The buyer sustained damages resulting from the seller's breach.

COMMENT: ORS 72.6070, ORS 72.3150; *Valley Iron & Steel Co. v. Thorin*, 278 Or 103, 109, 562 P2d 1212 (1977); *see* ORS 72.1030(1)(a) (definition of *buyer*), ORS 72.1030(1)(d) (definition of *seller*).

12/14

UCJI 67.06 MERCHANTABILITY (UCC)

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In order to be merchantable, goods must at least:

(1)Pass without objection in the trade under the contract description;

(2)Be fit for the ordinary purposes for which such goods are used;

(3)Run, within the variations permitted by the agreement, of even kind, quality, and quantity within each unit and among all units involved;

(4)Be adequately contained, packaged, and labeled as the agreement may require;

(5)Conform to the promises or affirmations of fact made on the container or label, if any; and

(6)In the case of fungible goods, be of fair average quality within the description.

COMMENT: ORS 72.3140. ORS 72.3140(2) is not intended to be exhaustive; there may be other possible attributes of merchantability. It is suggested that the lawyer select the applicable attributes. *See* UCC § 2-314 (ORS 72.3140), comment 6; *see also* ORS 72.1030 (UCC terms and definitions).

12/14

UCJI 67.07 BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY (UCC)

Download MS Word

To recover damages for breach of an implied warranty of merchantability, the buyer must prove the following elements:

(1)The seller sold the [*specify goods*] to the buyer;

(2)The seller deals in [*specify goods*] or operates a business that deals in such goods or held [him / her / itself] out to the buyer as having special knowledge about such goods;

(3)The [*specify goods*] were not of merchantable quality;

(4)The buyer notified the seller of the breach within a reasonable time after the buyer discovered or should have discovered the breach; and

(5)The buyer sustained damages resulting from the seller's breach.

COMMENT: ORS 72.3140; ORS 72.6070. ORS 72.3140(2) is not intended to be exhaustive; there may be other possible attributes of merchantability. *See* UCC § 2-314 cmt 6 (ORS 72.3140); *see also* ORS 71.2010 (UCC terms and definitions); ORS 72.1030 (same); ORS 72.1030(1)(a) (definition of *buyer*); ORS 72.1030(1)(d) (definition of *seller*); ORS 72.1040(1) (definition of *merchant*).

12/17

DAMAGES

DAMAGE TO PERSONS AND PROPERTY

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70. DAMAGE TO PERSONS AND PROPERTY

UCJI 70.01 DAMAGES—PRELIMINARY INSTRUCTION

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If you find that the [plaintiff / defendant] is [at fault / negligent], then you must decide whether the [plaintiff / defendant] has been damaged and, if so, the amount of [his / her] damages.

The fact that I am instructing you with respect to damages is not to be considered by you as an attempt by the court to suggest [or indicate] that you should or should not award damages.

[Nor should the amount claimed for damages by the (plaintiff / defendant) in the (complaint / counterclaim / cross-claim) be considered by you in arriving at your verdict except in one respect: that is, the amount of damages claimed is the maximum amount you can award the (plaintiff / defendant).]

There are [two / three] types of damages alleged in this case, economic [and] noneconomic [and punitive] damages.

Of these [two / three] types of damages, you should consider those which you find to have been sustained by the [plaintiff / defendant] as a result of the [plaintiff / defendant]'s [fault / negligence].

The [plaintiff / defendant] must prove economic and noneconomic damages by a preponderance of the evidence [and punitive damages by clear and convincing evidence].

I will now explain economic [and] noneconomic [and punitive] damages.

COMMENT: Modify this instruction accordingly when only property damage is at issue. With regard to the third paragraph, the verdict must not exceed the amount alleged and prayed for in the complaint, counterclaim, or cross-claim. *Lovejoy Specialty Hosp., Inc. v. Advocates for Life, Inc.*, 121 Or App 160, 167, 855 P2d 159, *rev den*, 318 Or 97 (1993), *cert den*, 511 US 1070 (1994).

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UCJI 70.02 DAMAGES—NONECONOMIC (In Claims Subject to ORS 31.705)

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Noneconomic damages are the subjective, nonmonetary losses that a [plaintiff / defendant] has sustained [and / or probably will sustain in the future].

The law does not furnish you with any fixed standard by which to measure the exact amount of noneconomic damages. However, the law requires that all damages awarded be reasonable. You must apply your own considered judgment, therefore, to determine the amount of noneconomic damages.

In determining the amount of noneconomic damages, if any, consider each of the following:

(1) The [pain / mental suffering / emotional distress / humiliation] that the [plaintiff / defendant] has sustained from the time [plaintiff / defendant] was injured until the present [and that the (plaintiff / defendant) probably will sustain in the future as the result of the (plaintiff's / defendant's) injuries];

(2) Any inconvenience and interference with the [plaintiff's / defendant's] normal and usual activities apart from activities in gainful employment that you find have been sustained from the time [plaintiff / defendant] was injured until the present [and that the (plaintiff / defendant) probably will sustain in the future as the result of (plaintiff's / defendant's) injuries];

[(3) Any injury to the (plaintiff's / defendant's) reputation]; and

[(4) *Set forth either any other subjective, nonmonetary losses or any other not objectively verifiable monetary losses sustained by plaintiff or defendant, including but not limited to loss of care, comfort, companionship, society, and consortium.*]

The amount of noneconomic damages may not exceed the sum of $_____.

COMMENT: ORS 31.705(2)(b); *Lovejoy Specialty Hospital, Inc. v. Advocates for Life, Inc.*, 121 Or App 160, 167, 855 P2d 159, *rev den*, 318 Or 98 (1993), *cert den*, 511 US 1070 (1994) ("Pleadings must specify the amount of money damages the party seeks . . . [and a] verdict must not exceed the amount alleged and prayed for in the complaint."); *see also* ORCP 18 B.

UCJI 70.03 DAMAGES—ECONOMIC (In Claims Subject to ORS 31.705)

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Economic damages are the objectively verifiable monetary losses that the [plaintiff / defendant] has incurred or will probably incur. In determining the amount of economic damages, if any, consider:

[(1) The reasonable charges necessarily incurred for [medical / hospital / nursing / rehabilitative / and other health] care and services for treatment of the [plaintiff / defendant.]

[(2) The amount of lost income incurred by the [plaintiff / defendant] since the injury to date.]

[(3)(a) The amount for past impairment of earning capacity.]

[(b) The amount for probable future impairment of earning capacity.]

[(4) The reasonable and necessary expenses incurred for substitute domestic services.]

[(5) The reasonable value of economic damages to the [plaintiff's / defendant's] reputation.]

[(6) *Specify other objectively verifiable economic or monetary losses proved by [plaintiff / defendant]*.]

The total amount of economic damages may not exceed the sum of $_____.

COMMENT: ORS 31.705(2)(a); *DeVaux v. Presby*, 136 Or App 456, 461, 902 P2d 593 (1995); *Kahn v. Pony Express Courier Corp.*, 173 Or App 127, 20 P3d 837, *rev den*, 332 Or 518 (2001); *State v. Jordan*, 249 Or App 93, 100, 274 P3d 289, *rev den*, 353 Or 103 (2012). See UCJI 70.08, UCJI 70.09, UCJI 70.10, and UCJI 70.11 for personal property losses.

10/23

UCJI 70.04 NONECONOMIC DAMAGES WHEN ECONOMIC DAMAGES AWARDED

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If you find that the plaintiff is entitled to recover economic damages, you must award some noneconomic damages.

COMMENT: This instruction should not be given if (1) there is no objective evidence of injury; (2) the evidence would permit the jury to find that plaintiff had suffered only minor, insubstantial injuries; (3) there is evidence that the plaintiff's injuries for which noneconomic damages are claimed were not caused by the defendant; or (4) the objective evidence of a substantial injury sustained by the plaintiff is controverted by other competent evidence or could be disbelieved by the jury. *Williams v. Funk*, 230 Or App 142, 146–149, 213 P3d 1275, *rev. denied*, 347 Or 365 (2009); *see also Wheeler v. Huston*, 288 Or 467, 479, 605 P2d 1339 (1980); *Eisele v. Rood*, 275 Or 461, 467–468, 551 P2d 441 (1976); *Fatehi v. Johnson*, 207 Or App 719, 726–730, 143 P3d 561, *rev. denied*, 342 Or 116 (2006); *Bass v. Hermiston Medical Center, P.C.*, 143 Or App 268, 273, 922 P2d 708 (1996).

12/12

UCJI 70.05 FUTURE ECONOMIC DAMAGES—PRESENT VALUE

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If you decide that the plaintiff is entitled to prevail and find that the plaintiff will have a future economic loss because of the plaintiff's injury, then it becomes your duty to reduce that future economic loss to its present value. This is necessary because the plaintiff will be compensated now for future losses.

The present value of future economic loss is the amount of money that, if invested today at a reasonable rate of interest and over the period of the plaintiff's loss, will equal the future economic loss.

COMMENT: *Barrett v. Landis*, 281 Or 433, 438–39, 575 P2d 154 (1978); *Plourd v. Southern Pac. Transp. Co.*, 266 Or 666, 672–73, 513 P2d 1140 (1973); *Osborne v. Bessonette*, 265 Or 224, 229, 508 P2d 185 (1973); *see also Wilson v. B.F. Goodrich*, 292 Or 626, 631, 642 P2d 644 (1982) (assumptions and predictions about inflation, wage levels, and interest rates needed to calculate present value of future earnings may be made by fact finder without expert assistance or on basis of expert testimony and challenged by cross-examination or contrary evidence); *Brokenshire v. Rivas and Rivas, Ltd.*, 142 Or App 555, 563–64, 922 P2d 696 (1996), *rev dismissed*, 327 Or 119 (1998) (expert testimony on computing present value of damage award for future losses is admissible but not necessary); *Miller v. Pacific Trawlers, Inc.*, 204 Or App 585, 600 n 11, 131 P3d 821 (2006) (discussing *Plourd* and *Brokenshire*).

12/13

UCJI 70.06 DAMAGES—PREVIOUS INFIRM CONDITION

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If you find that the [plaintiff / defendant] had a bodily condition that predisposed [him / her] to be more subject to injury than a person in normal health, nevertheless the [plaintiff / defendant] would be liable for any and all injuries and damage that may have been suffered by the [plaintiff / defendant] as the result of the negligence of the [plaintiff / defendant], even though those injuries, due to the prior condition, may have been greater than those that would have been suffered by another person under the same circumstances.

COMMENT: In *Crismon v. Parks*, 238 Or App 312, 241 P3d 1200 (2010), the court of appeals distinguished between UCJI Nos. 70.06 and 70.07, stating that UCJI No. 70.06 applies to previously asymptomatic conditions that make the plaintiff more susceptible to injury, and suggesting (but not deciding) that UCJI No. 70.07 applies where there is a previous injury or disability that is symptomatic before the accident.

12/10

UCJI 70.07 DAMAGES—AGGRAVATION OF PREEXISTING INJURY OR DISABILITY

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In the present case the [plaintiff / defendant] has alleged that the injury which [he / she] sustained as the result of the negligence of the [plaintiff / defendant] aggravated a preexisting [injury / disability] of [his / hers].

In determining the amount of damages, if any, to be awarded the [plaintiff / defendant] in this case, you will allow [him / her] reasonable compensation for the consequences of any such aggravation that you find to have taken place as the result of [plaintiff / defendant]'s negligence.

The recovery should not include damages for the earlier [injury / disability] but only those that are due to its enhancement or aggravation.

COMMENT: In *Crismon v. Parks*, 238 Or App 312, 241 P3d 1200 (2010), the court of appeals distinguished between UCJI Nos. 70.06 and 70.07, stating that UCJI No. 70.06 applies to previously asymptomatic conditions that make the plaintiff more susceptible to injury, and suggesting (but not deciding) that UCJI No. 70.07 applies where there is a previous injury or disability that is symptomatic before the accident.

12/10

UCJI 70.08 TORT DAMAGES—PERSONAL PROPERTY WHEN FAIR MARKET VALUE IS EITHER NONEXISTENT OR IS AN INADEQUATE MEASURE OF DAMAGES

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If you find that injury was caused to the plaintiff's personal property through the defendant's [fault / negligence], you must determine the amount of damages awardable to the plaintiff for those injuries. The measure of damages for injury to the personal property, if it has no fair market value or if the fair market value will not fully compensate the plaintiff for the injury, is the difference in the actual value of the property to the plaintiff immediately before and immediately after the occurrence causing the injury. The actual value of the property is to be ascertained from the evidence of value, but should not include any amount for the fanciful or sentimental value that the plaintiff may attach to the property.

COMMENT: *Green v. Leckington*, 192 Or 601, 604, 236 P2d 335 (1951); Barber *v. Motor Inv. Co.*, 136 Or 361, 366, 298 P 216 (1931); *McCallister v. Sappingfield*, 72 Or 422, 427, 144 P 432 (1914). It may be appropriate to instruct regarding loss of use or lost profits. *See* UCJI 70.10 and UCJI 70.11.

12/14

UCJI 70.09 TORT DAMAGES—DESTRUCTION OF OR DAMAGE TO PERSONAL PROPERTY

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If you find that the plaintiff is entitled to damages, you must determine the amount of damage to the plaintiff's personal property, if any, caused by the defendant's [fault / negligence].

The measure of damages for partial [loss / destruction] caused to personal property is the difference between the fair market value of the property immediately before and immediately after the incident causing the partial [loss / destruction].

[You may consider the cost of reasonable repairs as evidence of damages; however, if the cost of reasonable repairs is less than the difference in value, the plaintiff may still recover the difference in value.]

If you find there is a total [loss / destruction] of personal property, the measure of damages is the fair market value of the property immediately before the incident causing the [loss / destruction].

COMMENT: *Cutsforth v. Kinzua Corp.*, 267 Or 423, 439, 517 P2d 640 (1973); *Mock v. Terry*, 251 Or 511, 512–514, 446 P2d 514 (1968).

If the property does not have a market value, it may be appropriate to instruct the jury regarding "special" value to the plaintiff. *See Barber v. Motor Inv. Co.*, 136 Or 361, 366–367, 298 P 216 (1931). It may also be appropriate to instruct regarding loss of use or lost profits. *See* UCJI Nos. 70.10–70.11.

The bracketed paragraph may be used if the plaintiff alleges diminution in value following repairs.

11/09

UCJI 70.10 TORT DAMAGES—PERSONAL AND REAL PROPERTY (Loss of Use)

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If you find that the defendant's [fault / negligence] caused damage to the plaintiff's property and that such property could reasonably be repaired or replaced, you shall then determine the amount of damages, if any, for loss of use of that property. Damages for loss of use are measured by the fair rental value of the property, and are limited to the period reasonably necessary for repairing or replacing the damaged property.

[If you find that the property has no fair rental value, the measure of damages for loss of use is the value of the use of the undamaged property to the plaintiff during the period the property was being repaired or replaced. The value of the use of the property is to be determined from the evidence of value, but should not include any amount for the fanciful or sentimental value that the plaintiff may attach to the property.]

COMMENT: *Williams v. International Harvester Co.*, 172 Or 270, 285–286, 141 P2d 837 (1943), *overruled on other grounds, Rogue Valley Memorial Hospital v. Salem Ins. Agency, Inc.*, 265 Or 603, 615, 510 P2d 485 (1973); *Graf v. Don Rasmussen Co.*, 39 Or App 311, 316, 592 P2d 250 (1979); *see also Hudson v. Peavey Oil Co.*, 279 Or 3, 10, 566 P2d 175 (1977); *Anderson v. Columbia Contract Co.*, 94 Or 171, 192–197, 184 P 240 (1919); *United Engine Parts, Inc. v. Ried*, 283 Or 421, 432, 584 P2d 275 (1978).

The plaintiff need not show actual out-of-pocket expenses for substitute property in order to recover for loss of use. *DeVaux v. Presby*, 136 Or App 456, 461, 902 P2d 593 (1995); *Graf*, 39 Or App at 317.

For lost-profits instruction, see UCJI No. 70.11.

11/09

UCJI 70.11 TORT DAMAGES—PERSONAL AND REAL PROPERTY (Lost Profits)

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If you find that the plaintiff is entitled to damages, you must then determine the amount, if any, the plaintiff has been damaged for lost profits.

The plaintiff is entitled to lost profits if:

(1)The property was used for a commercial purpose;

(2)No substitute property was reasonably available;

(3)Some loss exists; and

(4)The defendant's wrongful conduct caused the loss.

The plaintiff must then prove an amount of lost profits that is reasonably probable.

The plaintiff may prove an amount of lost profits with estimates or projections. It is not necessary to prove the exact amount of lost profits.

To decide the amount of lost profits, first decide the total amount of money the plaintiff would have earned but did not. Then subtract from that amount what would have been the plaintiff's costs of doing business to earn the money. What remains are lost profits.

Both the existence and the amount of lost profits are proved by a preponderance of the evidence.

[The plaintiff cannot recover both lost profits and fair rental value because either makes the plaintiff whole.]

COMMENT: The bracketed language should be given only if UCJI 70.10 is also given. *See United Engine Parts, Inc. v. Ried*, 283 Or 421, 432, 584 P2d 275 (1978); *Bullock v. Hass*, 280 Or 501, 504–05, 571 P2d 902 (1977); *Sachs v. Precision Products Co.*, 257 Or 273, 284–86, 476 P2d 199 (1970); *Buck v. Mueller*, 221 Or 271, 282, 351 P2d 61 (1960); *VonRavensberg v. Houck-Carrow Corp.*, 60 Or App 412, 416–17, 653 P2d 1297 (1982).

12/15

UCJI 70.12 TORT DAMAGES—REAL PROPERTY (Partial Destruction)

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If you find that the plaintiff is entitled to damages, you must determine the amount of damage to the plaintiff's real property, if any, that was caused by the defendant's [fault / negligence]. The measure of damages for the partial destruction of real property is the reasonable cost of repairing the damaged property.

COMMENT: If the cost of repair is disproportionate to the diminution in value to the property, this instruction may be inappropriate. *Hanset v. Gen. Const. Co.*, 285 Or 101, 104–05, 589 P2d 1117 (1979); *see also Millers Mut. Fire Ins. Co. of Texas v. Wildish Const. Co.*, 306 Or 102, 111–15, 758 P2d 836 (1988); *McCormick v. City of Portland*, 191 Or App 383, 82 P3d 1043, *rev den*, 337 Or 616 (2004).

It may also be appropriate to instruct regarding damages for loss of use or lost profits, UCJI 70.10 and UCJI 70.11, and, in certain cases, damages for mental anguish. *Meyer v. 4-D Insulation Co., Inc.*, 60 Or App 70, 75–80, 652 P2d 852 (1982).

12/15

UCJI 70.13 TORT DAMAGES—REAL PROPERTY (Total Destruction)

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If you find that the plaintiff is entitled to damages, you must determine the amount of damage to the plaintiff's real property, if any, that was caused by the defendant's [fault / negligence]. The measure of damages for the total destruction of real property is the sum that is equal to the difference between the fair market value of the property immediately before and immediately after the occurrence.

COMMENT: *Millers Mut. Fire Ins. Co. of Texas v. Wildish Const. Co.*, 306 Or 102, 111–15, 758 P2d 836 (1988). It may also be appropriate to instruct regarding damages for loss of use or lost profits, UCJI 70.10 and UCJI 70.11, and, in certain cases, damages for mental anguish. *me*.

When the damage to the property is continuing to the time of trial (e.g., seepage cases), it may be appropriate to instruct the jury that the measure of damages is the difference at the time of trial between the fair market value of the property if it had not been damaged and the fair market value of the property as damaged. *Furrer v. Talent Irr. Dist.*, 258 Or 494, 520–22, 466 P2d 605 (1970); *see also Hudson v. Peavey Oil Co.*, 279 Or 3, 11–12, 566 P2d 175 (1977).

12/14

UCJI 70.14 IMPAIRMENT OF EARNING CAPACITY

Download MS Word

You must decide whether the plaintiff has suffered damages due to impairment of [his / her] earning capacity. Impairment of earning capacity is the extent to which the plaintiff's capacity to earn has been reduced due to the injury. The plaintiff is entitled to compensation for lost capacity to earn, if any, whether the plaintiff would have chosen to exercise it or not, even if the plaintiff never worked to that capacity in the past.

COMMENT: *Richmond v. Zimbrick Logging, Inc.*, 124 Or App 631, 634, 863 P2d 520 (1993), *rev den*, 318 Or 459 (1994); *Lytle v. City of Portland*, 89 Or App 315, 318–19, 748 P2d 1033 (1988).

12/14

UCJI 70.15 DAMAGES—BAR OF NONECONOMIC DAMAGES (Under the Influence of Intoxicants)

Download MS Word

If you find that at the time of the accident, the plaintiff was driving a motor vehicle while under the influence of intoxicants, then the plaintiff is not entitled to recover noneconomic damages.

A person is deemed to be under the influence of intoxicants if such person [*select applicable section(s)*]:

(1) Has .08 percent or more by weight of alcohol in the blood;

(2) Is under the influence of intoxicating liquor or a controlled substance; or

(3) Is under the influence of intoxicating liquor and a controlled substance.

COMMENT: ORS 31.715; ORS 813.010(1); *Morehouse v. Haynes*, 350 Or 318, 253 P3d 1068 (2011); *Lawson v. Hoke*, 339 Or 253, 257–65, 119 P3d 210 (2005). ORS 31.715(2) provides that a conclusive presumption of driving under the influence of intoxicants exists if the person has been convicted of this offense in a criminal proceeding. If applicable, this instruction should be given in connection with UCJI 70.17. The parties may want to refer to UCrJI 2701 and UCrJI 2702 for applicable definitions.

12/15

UCJI 70.16 DAMAGES—BAR OF NONECONOMIC DAMAGES (Uninsured)

Download MS Word

If you find that at the time of the accident, the plaintiff was driving a motor vehicle while uninsured, then the plaintiff is not entitled to recover noneconomic damages.

A person is deemed to be "uninsured" if:

(1)Such person is not insured under a motor vehicle liability insurance policy that meets the minimum requirements of state law; or

(2)Such person, or the owner of the vehicle, has not provided the Department of Transportation with other satisfactory proof of compliance with the financial responsibility requirements of Oregon.

COMMENT: ORS 31.715; 806.010(1); *Morehouse v. Haynes*, 350 Or 318, 253 P3d 1068 (2011); *Lawson v. Hoke*, 339 Or 253, 257–65, 119 P3d 210 (2005). ORS 31.715(2) provides that a conclusive presumption of driving uninsured exists if the person has been convicted of this offense in a criminal proceeding. If applicable, this instruction should be given in conjunction with UCJI 70.17 and UCJI 70.18. The parties should consider crafting a special instruction detailing the requirements of state law in (1) and (2).

12/15

UCJI 70.17 DAMAGES—BAR OF NONECONOMIC DAMAGES (Defenses to Bar of Damages)

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The defendant claims that noneconomic damages cannot be awarded in this case because, at the time of the accident, the plaintiff was driving [while under the influence of intoxicants / while uninsured]. If you determine the plaintiff was driving [while under the influence of intoxicants / while uninsured], the plaintiff may still recover non-economic damages if you find that at the time of the accident:

(1)The defendant was also driving [while under the influence of intoxicants / while uninsured];

(2)The [injury / death] resulted from the intentional tortious conduct of the defendant;

(3)The defendant was recklessly driving a vehicle in a manner that endangered the safety of persons or property; or

(4)The defendant was engaged in conduct that would be a felony.

COMMENT: ORS 31.715(5); *Lawson v. Hoke*, 339 Or 253, 257–65, 119 P3d 210 (2005); *Morehouse v. Haynes*, 350 Or 318, 253 P3d 1068 (2011); *see* ORS 806.010 (driving uninsured); ORS 813.010 (driving under the influence of intoxicants); ORS 811.140 (reckless driving); ORS 161.085(9) (definition of *recklessly*); ORS 161.525 (definition of *felony*); UCJI 40.01–40.06 (Intentional Torts).

If applicable, this instruction should be given in connection with UCJI 70.15 (Damages—Bar of Noneconomic Damages (Under the Influence of Intoxicants)) or UCJI 70.16 (Damages—Bar of Noneconomic Damages (Uninsured)), or both.

12/15

UCJI 70.18 DAMAGES—BAR OF NONECONOMIC DAMAGES (Defense to Bar of Damages—Uninsured Exception)

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If you find that the plaintiff was driving while uninsured, you may still award the plaintiff noneconomic damages if you find that:

(1)The plaintiff was insured under a motor vehicle liability insurance policy within 180 days before the accident; and

(2)The plaintiff has not operated a motor vehicle in Oregon [without insurance / without complying with the financial responsibility requirements of this state] within the one-year period immediately before the date [his / her] motor vehicle liability insurance policy lapsed.

COMMENT: ORS 31.715(6); ORS 806.010 (uninsured motorist); *Lawson v. Hoke*, 339 Or 253, 257–65, 119 P3d 210 (2005); *Hill v. Null*, 224 Or App 345, 197 P3d 582 (2008), *rev den*, 346 Or 157 (2009).

This instruction, if applicable, should be given immediately after UCJI 70.16.

12/14

UCJI 70.19 NONECONOMIC DAMAGES—WHEN REQUIRED (To Be Given after Verdict in Certain Cases)

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(This instruction has been withdrawn. *See Williams v. Funk*, 230 Or App 142, 149, 213 P3d 1275, *rev. denied*, 347 Or 365 (2009).)

12/11

UCJI 70.20 TORT DAMAGES—LOST INCOME—WAGE LOSS

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Wage loss is one type of lost income. Wage loss includes all lost benefits. Wage loss also includes vacation, sick leave, or other leave used while the plaintiff was unable to work.

COMMENT: *See* ORS 31.710(2)(a); UCJI No. 70.03; *Hekker v. Sabre Constr. Co.*, 265 Or 552, 560, 510 P2d 347 (1973) (commission income constitutes wages); *State ex rel. Nilsen v. Oregon State Motor Asso.*, 248 Or 133, 136, 432 P2d 512 (1967) (wages means "*all* earned compensation contracted to be paid by the employer for the employe's personal service regardless of the nature of such compensation").

For lost income from business, see UCJI No. 77.01, Lost Profits.

12/10

71. WRONGFUL DEATH

UCJI 71.01 DAMAGES FOR DEATH—NONECONOMIC

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Noneconomic damages are subjective, nonmonetary losses. The law does not furnish you with any fixed standard by which to measure the exact amount of noneconomic damages, but the law requires that they be just, fair, and reasonable. You must apply your own considered judgment to determine the amount of noneconomic damages.

In determining the amount of noneconomic damages, if any, consider each of the following:

(1) Any disability, pain, and suffering sustained by the decedent during the period between the decedent's injury and the decedent's death.

(2) Any loss of society and companionship sustained by the decedent's [spouse / children / stepchildren / parents / stepparents].

COMMENT: ORS 30.020; ORS 31.705(2)(b); *Kahn v. Pony Express Courier Corp.*, 173 Or App 127, 20 P3d 837, *rev den*, 332 Or 518 (2001) (loss of a parent's services is an economic loss rather than a noneconomic loss).

There may be other factors that should be added to element (2) if supported by the evidence.

UCJI 71.02 DAMAGES FOR DEATH—ECONOMIC (In Claims Arising on or After September 27, 1987)

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Economic damages are objectively verifiable monetary losses. In determining the amount of economic damages, if any, consider each of the following:

(1) Any reasonable and necessary charges incurred for doctors' services, hospital services, nursing services, other medical services, burial services, and memorial services rendered for the decedent.

(2) Any loss of income sustained by the decedent during the period between the decedent's injury and the decedent's death.

(3) Any pecuniary loss to the decedent's estate. Pecuniary loss to the decedent's estate is the present value of the increase that would have accumulated in the estate during the remainder of the decedent's life had the decedent's life not ended, and includes the value of services which the estate had a reasonable right to expect from the deceased. In determining this amount, you may consider:

[(a) What the decedent earned in the past;

(b) What the decedent might reasonably have been expected to earn in the future;

(c) Any expenditures that the decedent might reasonably have been expected to make in the future, such as expenditures for personal support and support of any dependents; and

(d) The decedent's age, ability, life expectancy, health, habits, industry, sobriety, and thrift.]

(4) Any pecuniary loss to the [spouse / children / stepchildren / parents / stepparents] of the decedent. Pecuniary loss to the [spouse / children /stepchildren / parents / stepparents] of the decedent is the present value of the monetary support that the decedent would have provided to the [spouse / children / stepchildren / parents / stepparents] during the decedent's life had the decedent's life not ended, and includes the value of services which the [spouse / children / stepchildren / parents / stepparents] of the decedent had a reasonable right to expect from the deceased. In determining this amount, you may consider:

[(a) What the decedent customarily contributed to the (spouse / children / stepchildren / parents / stepparents) in the past;

(b) What the decedent might reasonably have been expected to contribute to the (spouse / children / stepchildren / parents / stepparents) in the future;

(c) The decedent's age, ability, life expectancy, health, habits, industry, sobriety, and thrift; and

(d) The age, health, and life expectancy of the decedent's (spouse / children / stepchildren / parents / stepparents).]

(5) The present value of any loss of services of the decedent sustained by the decedent's [spouse / children / stepchildren / parents / stepparents]. In determining this amount, you may consider:

[(a) Any services the decedent customarily performed for the (spouse / children / stepchildren / parents / stepparents) in the past;

(b) Any services the decedent might reasonably have been expected to perform for the (spouse / children / stepchildren / parents / stepparents) in the future;

(c) The decedent's age, ability, life expectancy, health, habits, industry, sobriety, and thrift; and

(d) The age, health, and life expectancy of the decedent's (spouse / children / stepchildren / parents / stepparents).]

COMMENT: *See* ORS 30.020; ORS 31.705(2)(a); *Durkoop v. Mishler*, 233 Or 243, 378 P2d 267 (1963). Delete factors not supported by the evidence. There may be other factors that should be added to elements (3), (4), and (5) if supported by the evidence. Pecuniary loss "consists not only of the loss of financial assistance which the beneficiaries might reasonably be expected to have received from the deceased had [their] career not been shortened by the act of the defendant, but also the loss of other things which have a pecuniary worth." *Durkoop*, 233 Or at 250–51 (quoting 16 Am Jur 122, Death, § 182).

See Kahn v. Pony Express Courier Corp., 173 Or App 127, 20 P3d 837, *rev den*, 332 Or 518 (2001) (loss of a parent's services is an economic loss rather than a noneconomic loss).

UCJI 71.03 FUTURE ECONOMIC DAMAGES FOR DEATH (Present Value)

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Future economic loss, if any, must be reduced to present value. This is necessary because the estate will have use of the money, plus the interest it earns, now rather than in the future. Any amount of future economic loss you award as future economic damages must be paid now, even though a portion of those damages will not be realized until a future date.

The present value of future economic loss is the amount of money that, if invested today at a reasonable rate of interest and over the period of the decedent's probable life expectancy, will equal the future economic loss.

COMMENT: ORS 30.020; ORS 31.705(2)(a); *Meier v. Bray*, 256 Or 613, 618, 475 P2d 587 (1970); *see Barrett v. Landis*, 281 Or 433, 438–39, 575 P2d 154 (1978); *Osborne v. Bessonette*, 265 Or 224, 229, 508 P2d 185 (1973).

This instruction may be appropriate whether or not there has been expert testimony regarding discount rates and method of calculation. *Brokenshire v. Rivas & Rivas, Ltd.*, 142 Or App 555, 563–64, 922 P2d 696 (1996), *rev dismissed as improvidently granted*, 327 Or 119 (1998); *see Wilson v. B. F. Goodrich*, 292 Or 626, 631, 642 P2d 644 (1982) (assumptions and predictions about inflation, wage levels, and interest rates needed to calculate present value of future earnings may be made by a factfinder without expert assistance or on the basis of expert testimony and challenged by cross-examination or contrary evidence).

10/23

72. INJURY TO SPOUSE

UCJI 72.01 DAMAGES—LOSS OF CONSORTIUM

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If you find [*injured plaintiff's name*] is entitled to damages, you will next consider the amount of damages, if any, sustained by [*spouse's name*] as a result of the [fault / negligence] of the defendant.

In considering the amount of damages, you must determine the sum that will reasonably compensate [*spouse's name*] for any loss of spousal services, society, and companionship that [*spouse's name*] has sustained [and that is reasonably probable (*spouse's name*) will sustain in the future] as a result of the injury.

The law does not furnish you with any fixed standard by which to measure the exact amount of noneconomic damages to which a person is entitled for loss of consortium. The law does require the compensation allowed be reasonable. You must apply your own considered judgment to determine the amount of damages.

[With respect to the matter of economic damages for loss of spousal services, you must determine the reasonable value of the services previously provided by (*injured plaintiff's name*) that have been lost as a result of (*injured plaintiff's name*) injury (and of any such future services).]

The amount of noneconomic damages for loss of consortium may not exceed the sum of $_____.

[The amount of economic damages for loss of consortium may not exceed the sum of $_____.]

Do not reduce the amount of damages by the percentage of fault of plaintiff's spouse, if any, because the court will do this when entering the judgment.

COMMENT: It is unclear whether all damages in a consortium claim are "noneconomic" under ORS 31.705(2) or whether some are "economic" damages. *Noneconomic damages* are defined in that statute as "subjective, nonmonetary losses, including . . . loss of care, comfort, companionship and society, loss of consortium." ORS 31.705(2)(b). The statute defines *economic damages* as "objectively verifiable monetary losses including . . . reasonable and necessary expenses incurred for substitute domestic services." ORS 31.705(2)(a). "The theory underlying a claim for loss of consortium is that, by virtue of marriage, a spouse receives certain benefits both tangible, as in material services, and intangible, such as companionship and affection, from the other spouse." *Axen v. American Home Products, Corp. ex rel. Wyeth-Ayerst Laboratories*, 158 Or App 292, 309–11, 974 P2d 224, *adhered to as modified on other grounds on recons*, 160 Or App 19, 981 P2d 340, *rev den*, 329 Or 357 (1999), *cert den*, 528 US 1136 (2000) (lost income by consortium plaintiff is not proper subject of plaintiff's damages award). Pending appellate determination, it is

unclear whether the loss of spousal services, if shown to be an objectively verifiable monetary loss, would be economic damages under the statute. *But see Schmitz v. Yant*, 242 Or 308, 319, 409 P2d 346 (1965) (domestic servant's wages are family expense and therefore not proper element of damages in case for loss of consortium); *Lakin v Senco Products, Inc*., 144 Or App 52, 81, 925 P2d 107 (1996), *aff'd*, 329 Or 62, 987 P2d 463, *clarified*, 329 Or 369, 987 P2d 476 (1999) (loss-of-consortium damages are subject to offset by injured spouse's comparative fault).

If the court determines that the only damages recoverable are noneconomic, the bracketed paragraphs should not be given.

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73. MITIGATION

UCJI 73.01 DAMAGES—AVOIDABLE CONSEQUENCES

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A person who suffered damage has a duty to exercise reasonable care to avoid increasing that damage. There can be no recovery for increased damage caused by the failure to exercise such care.

COMMENT: *Bohle v. Matson Navigation Co.*, 243 Or 196, 201, 412 P2d 367 (1966); *Wells v. Clark & Wilson Lumber. Co.*, 114 Or 297, 323–324, 235 P 283 (1925). For a discussion of mitigation of damages in employment cases, see *Furrer v. International Health Assurance Co.*, 256 Or 429, 447, 474 P2d 759 (1970). The doctrines of avoidable consequences and mitigation of damages have been treated as interchangeable terminology rather than discrete doctrines by Oregon courts, although such treatment has never been endorsed explicitly. *See Zimmerman v. Ausland*, 266 Or 427, 513 P2d 1167 (1973).

11/09

UCJI 73.02 MITIGATION OF DAMAGES AND FAILURE TO USE SAFETY BELT OR HARNESS

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The defendant has alleged that the plaintiff's failure to use a safety belt or harness [increased / contributed to] the plaintiff's damages. If you find from the evidence that the plaintiff did not use a[n operative and available] safety belt or harness, and that such nonuse [increased / contributed to] the plaintiff's damages, then you must indicate on the verdict form what percentage, not to exceed five percent, that the nonuse has [increased / contributed to] the plaintiff's damages.

COMMENT: ORS 31.760. This instruction is not applicable to actions brought under ORS 30.900 to 30.920, products liability civil actions, nor actions to recover damages for personal injuries arising out of a motor vehicle accident when nonuse of a safety belt or harness is a substantial contributing cause of the accident itself.

The Committee takes no position on whether the reasonableness test or the "availability and operative condition" of the restraint test applies, given the legislative history of ORS 31.760. *See Dahl v. Bayerische Motoren Werke (BMW)*, 304 Or 558, 748 P2d 77 (1987).

In the event contributory negligence is an issue in the case, and the court finds that the jury should be instructed on the impact these two factors have on each other, the Committee suggests the following language:

> Do not add the percentage by which the plaintiff's failure to use a safety belt or harness [increased / contributed to] [his / her] damages, to the percentage of plaintiff's [fault / negligence], if any, which you assign to the plaintiff.

For verdict forms, see UCJI 90.08 and UCJI 90.09.

12/15

74. FUTURE DAMAGES—LENGTH OF TIME DAMAGES WILL CONTINUE—DISCOUNT OF DAMAGES—MORTALITY TABLES

UCJI 74.01 DAMAGES—PERMANENT INJURY—LIFE EXPECTANCY—MORTALITY TABLES

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If you find that the plaintiff is entitled to recover for permanent injury, you must determine the plaintiff's probable life expectancy when determining the amount of the plaintiff's damages. You can consider all evidence bearing on that issue, such as the plaintiff's occupation, health, habits, activities, relevant demographics, and life expectancy shown by the mortality tables. Life expectancy shown by the mortality tables is an estimate of the probable average remaining life of all persons in our country of a given age. The standard mortality tables state that the life expectancy of a [*insert relevant demographic category(ies)*] aged ____ years is an additional ____ years.

COMMENT: In a personal-injury case, this instruction is proper only if there is evidence of permanent injury (to be distinguished from future pain and suffering). *Skultety v. Humphreys*, 247 Or 450, 457–58, 431 P2d 278 (1967). To receive the instruction, the plaintiff must present evidence from which the jury could find it is "reasonably probable" that the injury will last the plaintiff's lifetime. *Elan v. Tate*, 294 Or App 76, 80, 430 P3d 179 (2018).

There are many life expectancy tables available, such as these done by the government: https://www.cdc.gov/nchs/fastats/life-expectancy.htm; https://www.ssa.gov/OACT/STATS/table4c6.html (URL is case sensitive); https://www.ssa.gov/history/lifeexpect.html. The UCJI Committee takes no position on the use of any particular life expectancy table.

10/23

75. PUNITIVE DAMAGES

UCJI 75.01 PUNITIVE DAMAGES (In Claims Arising on or After September 27, 1987, and Before September 9, 1995)

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(This instruction has been withdrawn because it is limited to claims arising before September 9, 1995, and is therefore obsolete in light of ORS 12.115(1), the statute of ultimate repose.)

11/08

UCJI 75.02 PUNITIVE DAMAGES—GENERAL

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If the plaintiff[s] prevail[s] on the [*identify claim, e.g., fraud*] claim, then you must consider whether to award punitive damages. A jury may award punitive damages to punish misconduct and deter similar misconduct from occurring in the future.

You may award punitive damages against the defendant if the plaintiff shows by clear and convincing evidence that the defendant [either]

[(1) has shown a reckless and outrageous indifference to a highly unreasonable risk of harm and has done an [act / omission] with a conscious indifference to the health, safety, and welfare of others,] [or]

[(2) has done an [act / omission] with malice.]

Clear and convincing evidence is evidence that makes you believe that the truth of the claim is highly probable.

There is no fixed standard for determining the amount of punitive damages and you are not required to award punitive damages. If you decide to award punitive damages, you should consider all the following [separately for each defendant] in determining the amount:

(a) How reprehensible was that defendant's conduct, considering the nature of that conduct and the defendant's motive?

[(b) Is there a reasonable relationship between the amount of punitive damages and the plaintiff's harm?]

(c) In view of the defendant's financial condition, what amount is necessary to punish the defendant and discourage future wrongful conduct? You may not punish a defendant merely because a defendant has substantial financial resources.

The amount of punitive damages you award may not exceed $_____ [which is the amount requested by the plaintiff].

CAVEAT: UCJI 75.02 instructs the jury on the state-law standards for awarding punitive damages and the constitutional limitations on those awards. *See State Farm Mutual Automobile Insurance Co. v. Campbell*, 538 US 408, 123 S Ct 1513, 155 L Ed 2d 585 (2003); *BMW of North America, Inc. v. Gore*, 517 US 559, 116 S Ct 1589, 134 L Ed 2d 809 (1996). It may be necessary to instruct the jury on certain other federal constitutional limitations on punitive damages. *See* UCJI 75.02A (jury may not punish for out-of-state harm); UCJI 75.02B (jury may not punish for harm to others).

COMMENT: The parties may consider additional factors for the factfinder to consider beyond paragraphs (a) through (c) above. Paragraph (b) above is bracketed because the law is not clear on whether the reasonable-relationship element is a question for the jury, or for the court on postverdict review. *Andor v. United Air Lines, Inc.*, 303 Or 505, 510–12, 739 P2d 18 (1987); *Wolf v. Nordstrom, Inc.*, 291 Or 828, 831–35, 637 P2d 1280 (1981).

Read both the recklessness and the malice standards only if the plaintiff alleges both and submits both to the jury.

ORS 31.730(1) requires clear and convincing evidence for punitive damages to be awarded. For a definition of *clear and convincing evidence*, *see* UCJI 14.03.

The items that may be considered by the jury when fixing the amount of punitive damages depend on the statutory and common-law factors permitted to be considered for the specific kind of claim at issue. *Oberg v. Honda Motor Co.*, 320 Or 544, 549, 888 P2d 8 (1995), *cert den*, 517 US 1219 (1996). Additional or different items beyond items (a) to (c) should be included in this instruction when supported by the evidence and permitted for the specific kind of claim at issue. *See Williams v. Philip Morris, Inc.*, 340 Or 35, 55–56, 127 P3d 1165 (2006), *vacated on other grounds by Philip Morris USA v. Williams*, 549 US 346, 419, 127 S Ct 1057, 166 L Ed 2d 940 (2007) (discussion of the considerations when evaluating the reprehensibility of a defendant's conduct). The writ of certiorari granted on June 9, 2008, *Philip Morris USA, Inc. v. Williams*, 553 US 1093 (2008), was dismissed as improvidently granted by *Philip Morris USA, Inc. v. Williams*, 556 US 178 (2009).

ORS 31.730 uses, but does not define, the term *malice*. The Oregon Supreme Court has defined the meaning of *malice* in ORS 18.550 (former version of ORS 31.740). *Johannesen v. Salem Hospital*, 336 Or 211, 82 P3d 139 (2003). The court concluded that in civil cases *malice* means "the intentional doing of [an] injurious act without justification or excuse," including a tortious act "committed with a bad motive or so recklessly as to be in disregard of social obligations, or an act wantonly, maliciously or wickedly done." *Johannesen*, 336 Or at 217 (quoting *Linkhart v.*

Savely, 190 Or 484, 505–06, 227 P2d 187 (1951)). For a definition of *malice*, *see* UCJI 75.02C.

For healthcare practitioner cases, see ORS 31.740 (*former* ORS 18.550) and UCJI 75.03.

For drug-product cases, see ORS 30.927 and UCJI 75.04.

For products-liability cases, see ORS 30.925 and UCJI 75.06.

7/22

UCJI 75.02A PUNITIVE DAMAGES—OUT-OF-STATE CONDUCT

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Evidence has been received of conduct by the defendant occurring outside Oregon. This evidence may be considered in evaluating the reprehensibility of the defendant's conduct occurring in Oregon if the out-of-state conduct is reasonably related to the conduct of the defendant directed toward the plaintiff in Oregon.

You may not award punitive damages against the defendant based on evidence of out-of-state conduct that was lawful in the state where it occurred. Further, when considering reprehensibility, you may not consider conduct of the defendant, wherever it might have occurred, that is not similar to the conduct upon which you found the defendant liable to the plaintiff.

CAVEAT: This instruction should not be used unless evidence has been received of out-of-state conduct by the defendant. If it has been received, the jury *must* be instructed that it may not use this type of evidence to punish a defendant for conduct that was lawful in the jurisdiction where it occurred. *State Farm Mutual Automobile Insurance Co. v. Campbell*, 538 US 408, 421–22, 123 S Ct 1513, 155 L Ed 2d 585 (2003). *See also Williams v. Philip Morris, Inc.*, 340 Or 35, 48, 127 P3d 1165 (2006), *vacated on other grounds by Philip Morris USA v. Williams*, 549 US 346, 127 S Ct 1057, 166 L Ed 2d 940 (2007) (analyzing *Campbell*). The writ of certiorari granted on June 9, 2008, *Philip Morris USA, Inc. v. Williams*, 553 US 1093 (2008), was dismissed as improvidently granted by *Philip Morris USA, Inc. v. Williams*, 556 US 178 (2009).

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UCJI 75.02B PUNITIVE DAMAGES—HARM TO OTHERS

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Evidence has been received of harm suffered by persons other than the plaintiff as a result of the defendant's conduct. This evidence may be considered in evaluating the reprehensibility of defendant's conduct. However, you may not award punitive damages to punish the defendant for harm caused to persons other than the plaintiff.

CAVEAT: This instruction should not be used unless evidence has been received of harm to persons other than the plaintiff that was caused by the defendant. *Philip Morris USA, Inc. v. Williams*, 549 US 346, 127 S Ct 1057, 166 L Ed 2d 940 (2007). The writ of certiorari granted on June 9, 2008, *Philip Morris USA, Inc. v. Williams*, 553 US 1093 (2008), was dismissed as improvidently granted by *Philip Morris USA, Inc. v. Williams*, 556 US 178 (2009).

7/22

UCJI 75.02C PUNITIVE DAMAGES—*MALICE* DEFINED

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Malice means intentionally doing an injurious or wrongful [act / omission] without justification or excuse.

This includes committing an [act / omission] with a bad motive, or done so recklessly as to be in disregard of social obligations, or done wantonly, maliciously, or wickedly.

COMMENT: ORS 31.730 uses, but does not define, the term *malice.* The Oregon Supreme Court has defined the meaning of malice in *former* ORS 18.550 *(renumbered* ORS 31.740). *Johannesen v. Salem Hosp.*, 336 Or 211, 82 P3d 139 (2003). The court concluded that in civil cases malice means "the intentional doing of [an] injurious act without justification or excuse," including a tortious act "committed with a bad motive or so recklessly as to be in disregard of social obligations, or an act wantonly, maliciously or wickedly done." *Johannesen*, 336 Or at 217 (quoting *Linkhart v. Savely*, 190 Or 484, 505–06, 227 P2d 187 (1951)). *See also*, *Lithia Medford LM, Inc. v. Yovan*, 254 Or App 307, 325, 295 P3d 642 (2012) (noting malice being defined as engaging "in a wrongful act intentionally, without just cause or excuse[.]" (internal quotations omitted)); *Goddard v. Farmers Inc. Co. of Oregon*, 344 Or 232, 267, 179 P3d 645 (2008) (same).

See UCJI 75.02 and UCJI 75.03.

See UCJI 40.06 for a definition of intent.

11/21

UCJI 75.03 PUNITIVE DAMAGES—HEALTHCARE PRACTITIONER (In Claims Arising on or After September 27, 1987)

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If you have found that the [plaintiff is / plaintiffs are] entitled to economic [and / or] noneconomic damages, you must then consider whether to award punitive damages. A jury may award punitive damages to punish misconduct and deter similar misconduct from occurring in the future.

You may award punitive damages against [the / a] defendant if the [plaintiff / plaintiffs] [shows / show] by clear and convincing evidence that the defendant has acted with malice.

Clear and convincing evidence is evidence that makes you believe that the truth of the claim is highly probable.

There is no fixed standard for determining the amount of punitive damages and you are not required to award punitive damages. If you decide to award punitive damages, you should consider all of the following [separately for each defendant] in determining the amount:

(a) How reprehensible was that defendant's conduct, considering the nature of that conduct and the defendant's motive?

[(b) Is there a reasonable relationship between the amount of punitive damages and the [plaintiff's / plaintiffs'] harm[s]?]

(c) In view of [the / that] defendant's financial condition, what amount is necessary to punish [them / it] and discourage future wrongful conduct? You may not punish a defendant merely because a defendant has substantial financial resources.

The amount of punitive damages you award may not exceed the sum of $_____ [which is the amount requested by the plaintiff / plaintiffs].

CAVEAT: UCJI 75.02 instructs the jury on the state-law standards for awarding punitive damages, and the constitutional limitations on those awards. *See State Farm Mutual Automobile Insurance Co. v. Campbell*, 538 US 408, 123 S Ct 1513, 155 L Ed 2d 585 (2003); *BMW of North America v. Gore*, 517 US 559, 116 S Ct 1589, 134 L Ed 2d 809 (1996). It may be necessary to instruct the jury on certain other federal constitutional limitations on punitive damages. *See* UCJI 75.02A (jury may not punish for out-of-state harm); UCJI 75.02B (jury may not punish for harm to others).

COMMENT: The parties may consider additional factors for the factfinder to consider beyond paragraphs (a) through (c) above. Paragraph (b) above is bracketed because the law is not clear on whether the reasonable-relationship element is a question for the jury, or for the court on postverdict review. *Andor v. United Air Lines, Inc.*, 303 Or 505, 510–12, 739 P2d 18 (1987); *Wolf v. Nordstrom, Inc.*, 291 Or 828, 831–35, 637 P2d 1280 (1981).

The recovery of punitive damages against healthcare practitioners is limited by ORS 31.740. Punitive damages may not be recovered in the absence of proof of malice, provided that certain other elements are present. Those elements are not addressed by this instruction because, typically, they will be questions of law for the court. In this regard, see ORS 31.740.

ORS 31.730(1) requires clear and convincing evidence for punitive damages to be awarded. For a definition of *clear and convincing evidence*, *see* UCJI 14.03.

The items that may be considered by the jury when fixing the amount of punitive damages depend on the statutory and common-law factors permitted to be considered for the specific kind of claim at issue. *Oberg v. Honda Motor Co.*, 320 Or 544, 549, 888 P2d 8 (1995), *cert den*, 517 US 1219 (1996). Additional or different items beyond items (a) to (c) should be included in this instruction when supported by the evidence and permitted for the specific kind of claim at issue. *See Williams v. Philip Morris, Inc.*, 340 Or 35, 55–56, 127 P3d 1165 (2006), *vacated on other grounds by Philip Morris USA v. Williams*, 549 US 346, 419, 127 S Ct 1057, 166 L Ed 2d 940 (2007) (discussion of the considerations when evaluating the reprehensibility of a defendant's conduct). The writ of certiorari granted on June 9, 2008, *Philip Morris USA, Inc. v. Williams*, 553 US 1093 (2008), was dismissed as improvidently granted by *Philip Morris USA, Inc. v. Williams*, 556 US 178 (2009).

ORS 31.740 uses, but does not define, the term *malice*. The Oregon Supreme Court has defined the meaning of *malice* in ORS 18.550 (former version of ORS 31.740). *Johannesen v. Salem Hospital*, 336 Or 211, 82 P3d 139 (2003). The court concluded that in civil cases *malice* means "the intentional doing of [an] injurious act without justification or excuse," including a tortious act "committed with a bad motive or so recklessly as to be in disregard of social obligations, or an act wantonly, maliciously or wickedly done." *Johannesen*, 336 Or at 217 (quoting *Linkhart v. Savely*, 190 Or 484, 505–06, 227 P2d 187 (1951)). For a definition of *malice*, *see* UCJI 75.02C.

UCJI 75.04 PUNITIVE DAMAGES LIMITATION—DRUG PRODUCTS (In Claims Arising on or after September 27, 1987)

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You may not award punitive damages if you find that:

(1)The drug was manufactured and labeled in a manner approved by the federal Food and Drug Administration; or

(2)The drug is generally recognized as safe and effective by the federal Food and Drug Administration.

However, federal Food and Drug Administration approval is not a defense if the plaintiff proves by clear and convincing evidence that the defendant knowingly, in violation of the federal Food and Drug Administration regulations, withheld from or misrepresented to the federal Food and Drug Administration or the prescribing physician information known to be material and relevant to the harm that the plaintiff allegedly suffered.

COMMENT: This instruction should be used together with UCJI 75.06, which relates to punitive damages in products liability cases. The limitation on punitive damages in drug cases is contained in ORS 30.927.

In cases involving failure to recall, this instruction should not be given. ORS 30.927(3).

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UCJI 75.05 PUNITIVE DAMAGES—PRODUCTS LIABILITY (In Claims Arising Before September 9, 1995)

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(This instruction has been withdrawn because it is limited to claims arising before September 9, 1995, and is therefore obsolete in light of ORS 12.115(1), the statute of ultimate repose.)

11/08

UCJI 75.06 PUNITIVE DAMAGES—PRODUCTS LIABILITY (In Claims Arising on or After September 9, 1995)

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Punitive damages, if any, shall be determined and awarded based on the following:

[(1) The likelihood at the time that serious harm would arise from the defendant's misconduct;

(2) The degree of the defendant's awareness of that likelihood;

(3) The profitability of the defendant's misconduct;

(4) The duration of the misconduct and any concealment of it;

(5) The attitude and conduct of the defendant upon discovery of the misconduct;

(6) The financial condition of the defendant, but you may not increase the punitive award above an amount that is appropriate merely because a defendant has substantial financial resources; and

(7) The total deterrent effect of other punishment imposed on the defendant as a result of the misconduct, including, but not limited to, punitive damages awards to persons in situations similar to the claimant's and the severity of criminal penalties to which the defendant has been or may be subjected.]

COMMENT: In products liability cases, read this instruction in addition to UCJI No. 75.02.

Items listed in (1)–(7) above should be read to the jury only if that particular item has been addressed in the evidence.

ORS 30.925; *McElwain v. Georgia-Pacific Corp.*, 245 Or 247, 421 P2d 957 (1966).

For drug product cases, see ORS 30.927 and UCJI No. 75.04.

For health care practitioner cases, see ORS 31.740 (*former* ORS 18.550) and UCJI No. 75.03.

11/08

76. APPORTIONMENT OF DAMAGES

UCJI 76.01 APPORTIONMENT OF DAMAGES—TWO OR MORE DEFENDANTS (In Claims Arising before September 9, 1995)

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(This instruction is withdrawn. Or Laws 1995, ch 696, §§ 1–5 eliminated joint and several liability; liability of joint tortfeasors is now several only. *Lasley v. Combined Transp., Inc.*, 351 Or 1, 19–21, 261 P3d 1215 (2011).)

12/14

UCJI 76.02 APPORTIONMENT OF DAMAGES—TWO OR MORE DEFENDANTS—COMPARATIVE FAULT IN ISSUE (Claims Subject to ORS 31.610 and Arising before September 9, 1995)

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(This instruction is withdrawn. Or Laws 1995, ch 696, §§ 1–5 eliminated joint and several liability; liability of joint tortfeasors is now several only. *Lasley v. Combined Transp., Inc.*, 351 Or 1, 19–21, 261 P3d 1215 (2011).)

12/14

UCJI 76.03 APPORTIONMENT OF DAMAGES—LEGAL EFFECT—MULTIPLE PARTIES AND/OR COMPARATIVE FAULT (In Claims Arising on or after September 9, 1995, and Subject to ORS 31.605 and ORS 31.610)

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If you find that the plaintiff is entitled to a verdict, you will also be asked to determine the total amount of the plaintiff's damages. These damages will be allocated as follows:

(1)Each [defendant / third-party defendant] is liable only for that portion of the plaintiff's total damages that is equal to the percentage of [fault / negligence] attributed to that [defendant / third-party defendant].

(2)The amount of damages awarded to the plaintiff will be reduced by an amount equal to the plaintiff's own percentage of [fault / negligence]. However, if the percentage of [fault / negligence] of the plaintiff is greater than 50 percent, then the plaintiff recovers nothing.

COMMENT: In any case in which the jury is asked to allocate negligence or fault among the persons listed in ORS 31.600, the jury must be informed of the "legal effect" of its determination. ORS 31.605(2). If the court determines that a "legal effect" of the jury's apportionment of fault includes the reallocation provisions of ORS 31.610, the court should consider adding the following paragraph to this instruction:

> If the court determines that any judgment against a [defendant / third-party defendant] is uncollectible, then under certain circumstances such uncollectible portion may be reallocated to any other persons or parties you found to be at fault. However, if the percentage of [fault / negligence] of any [defendant / third-party defendant] is 25 percent or less, or is equal to or less than that of the plaintiff, then that [defendant / third-party defendant] will not be required to pay any additional amount.

12/14

UCJI 76.04 APPORTIONMENT OF DAMAGES—TWO OR MORE DEFENDANTS—COMPARATIVE FAULT IN ISSUE (In Claims Arising on or after September 27, 1987, and Not Subject to ORS 31.610)

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If you find that the plaintiff is entitled to prevail, any defendant who you find to be [at fault / negligent] will be liable for the entire amount of your verdict. However, your verdict will be reduced by the percentage of the plaintiff's [fault / negligence], if any.

COMMENT: *See Hansen v. Bedell Co.*, 126 Or 155, 157, 268 P 1020 (1928). This instruction does not apply to cases governed by ORS 31.610(1)–(4).

12/14

77. LOST PROFITS

UCJI 77.01 DAMAGES FOR LOST PROFITS

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To recover for lost profits, the plaintiff must first prove that some loss exists, and that the defendant's [wrongful conduct / breach of contract] caused the loss. The plaintiff must then prove the amount of lost profits that is reasonably probable.

The plaintiff may prove an amount of lost profits with estimates or projections. It is not necessary to prove the exact amount of lost profits.

To decide the amount of lost profits, first decide the total amount of money the plaintiff would have earned but did not. Then subtract from that amount what would have been the plaintiff's costs of doing business to earn the money. What remains are lost profits.

COMMENT: *Buck v. Mueller*, 221 Or 271, 282–283, 351 P2d 61 (1960); *Cluck v. Fish*, 230 Or 63, 66–68, 368 P2d 626 (1962); *Smith v. Pallay*, 130 Or 282, 289, 279 P 279 (1929); *Hillstrom v. McDonald's Corp.,* 88 Or App 444, 448–449, 746 P2d 222 (1987); *Lawrence v. Underwood*, 81 Or App 533, 539, 726 P2d 1189 (1986); *VonRavensberg v. Houck-Carrow Corp.*, 60 Or App 412, 416–417, 653 P2d 1297 (1982).

11/09

LANDLORD-TENANT

RESIDENTIAL LANDLORD-TENANT

Retaliation for Complaint to Governmental Agency—As Defense to No-Cause Eviction 80.01

Retaliation for Complaint to Landlord—As Defense to No-Cause Eviction 80.02

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Eviction for Cause Other than Nonpayment—30-Day Notice 80.04

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80. RESIDENTIAL LANDLORD-TENANT

UCJI 80.01 RETALIATION FOR COMPLAINT TO GOVERNMENTAL AGENCY—AS DEFENSE TO NO-CAUSE EVICTION

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The tenant has asserted as a defense that the landlord has retaliated against the tenant. To establish this defense, the tenant must prove that the tenant or someone on behalf of the tenant _1A/1B_ about a violation concerning the tenancy to [a governmental agency charged with responsibility for enforcement of _2A/2B/2C_ (specify the actual name of the agency if there is no issue concerning the enforcement power of the agency, or that the complaint was directed toward the appropriate agency)], and that the tenant's above-described act was a substantial factor in the landlord's decision to file this eviction case against the tenant.

Even if the tenant proves retaliation, the landlord is entitled to evict the tenant if the landlord proves that _3A/3B/3C/3D/3E/3F_.

1A complained

1B expressed to the landlord, in writing, an intention to complain

2A a building, health, or housing code provision that materially affects health or safety

2B laws or regulations concerning the delivery of mail

2C laws or regulations prohibiting discrimination in rental housing

3A the complaint by the tenant was made to the landlord or an agent of the landlord [in an unreasonable manner, at an unreasonable time, or repeatedly in a manner having the effect of unreasonably harassing the landlord] taking into consideration all related circumstances before or at the time of the complaint

3B the violation of the building or housing code was caused primarily by the tenant's lack of reasonable care

3C the violation of the building or housing code was caused primarily by lack of reasonable care by another person in the tenant's household

3D the violation of the building or housing code was caused primarily by lack of reasonable care by another person upon the premises with the tenant's consent

3E the tenant was in default for nonpayment of rent at the time the landlord served the notice of termination in this case

3F compliance with the applicable building or housing code requires the landlord to alter, remodel, or demolish the premises in such a way that it would effectively deprive the tenant of use of the dwelling unit

---

COMMENT: ORS 90.385(1), (3).

See ORS 90.385(4) to determine whether options 3A to 3F should be used and, if so, which option.

For a discussion of causation, "but for" versus "substantial factor," see *Elk Creek Mgmt. Co. v. Gilbert*, 353 Or 565, 583, 303 P3d 929 (2013) (tenant must "prove that the tenant's protected activity was a factor that made a difference in the landlord's decision" to perform the allegedly retaliatory act).

12/15

UCJI 80.02 RETALIATION FOR COMPLAINT TO LANDLORD—AS DEFENSE TO NO-CAUSE EVICTION

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The tenant has asserted as a defense that the landlord has retaliated against the tenant. To establish this defense, the tenant must prove that the tenant or someone acting on the tenant's behalf made a complaint to the landlord that was in good faith and related to the tenancy, and that the complaint was a substantial factor in the landlord's decision to file this eviction case against the tenant.

Even if the tenant proves retaliation, the landlord is entitled to evict the tenant if the landlord proves that _A/B/C_.

A the complaint by the tenant was made to the landlord or an agent of the landlord in an unreasonable manner, at an unreasonable time, or repeatedly in a manner having the effect of unreasonably harassing the landlord, taking into consideration all related circumstances before or at the time of the complaint

B the tenant was in default for nonpayment of rent at the time the landlord served the notice of termination in this case

C the violation of the building or housing code was caused primarily by a lack of reasonable care by the tenant or other person in the household of the tenant or upon the premises with the consent of the tenant

---

COMMENT: ORS 90.385(1), (3).

See ORS 90.385(4) to determine whether options 1A to 1F should be used and, if so, which option.

For a discussion of causation, "but for" versus "substantial factor," *see Elk Creek Mgmt. Co. v. Gilbert*, 353 Or 565, 583, 303 P3d 929 (2013) (tenant must "prove that the tenant's protected activity was a factor that made a difference in the landlord's decision" to perform the allegedly retaliatory act).

See Napolski v. Champney, 295 Or 408, 410, 667 P2d 1013 (1983).

12/15

UCJI 80.03 RETALIATION FOR OTHER COMPLAINTS—AS DEFENSE TO NO-CAUSE EVICTION

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The tenant has asserted as a defense that the landlord has retaliated against the tenant for engaging in a protected activity. To establish this defense, the tenant must prove that the tenant _1A/1B/1C/1D_ and that this protected activity was a substantial factor in the landlord's decision to evict the tenant. Even if the tenant proves retaliation, the landlord is entitled to evict the tenant if the landlord proves that _2A/2B/2C/2D_.

1A organized or became a member of a tenants' union or similar organization

1B testified against the landlord in any judicial, administrative, or legislative proceeding

1C successfully defended an eviction case brought by the landlord within the previous six months

1D performed or expressed the intent to perform any other act for the purpose of asserting, protecting, or invoking any right secured to tenants under law

2A the complaint by the tenant was made to the landlord or an agent of the landlord in an unreasonable manner, at an unreasonable time, or was repeated in a manner unreasonably harassing the landlord

2B the violation of the building or housing code was caused primarily by lack of reasonable care by the tenant or other person in the household of the tenant

2C the tenant was in default for nonpayment of rent at the time the landlord served the notice of termination in this case

2D compliance with the applicable building or housing code would require the landlord to alter, remodel, or demolish the premises in such a way that it would effectively deprive the tenant of use of the dwelling unit

---

COMMENT: ORS 90.385(1)(c)–(f), (3).

With respect to option 1C, see ORS 90.385(1)(e)(A)–(B) for exceptions to this affirmative defense.

See ORS 90.385(4) to determine whether options 2A to 2D should be used and, if so, which option.

For a discussion of causation, "but for" versus "substantial factor," see *Elk Creek Mgmt. Co. v. Gilbert*, 353 Or 565, 303 P3d 929 (2013) (tenant must "prove that the tenant's protected activity was a factor that made a difference in the landlord's decision" to perform the allegedly retaliatory act); *Napolski v. Champney*, 295 Or 408, 667 P2d 1013 (1983).

UCJI 80.04 EVICTION FOR CAUSE OTHER THAN NONPAYMENT—30-DAY NOTICE

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To recover possession from the tenant, the landlord must prove the following:

(1) The landlord 1A/1B/1C;

(2) The tenant has 2A/2B/2C/2D;

(3) The landlord gave a written termination notice to the tenant;

(4) The written termination notice specified:

(a) how the tenant 3A/3B/3C/3D; [and]

(b) that the rental agreement would terminate on a designated date at least 30 days after the landlord gave the notice;

(c) that the tenant could avoid termination by correcting the problem by a designated date at least 14 days after the landlord gave the notice; and

(d) a description of at least one possible remedy to cure each alleged violation; and

(5) The tenant was in possession of the premises on [*date*], the date the complaint was filed.

1A is the owner of the premises occupied by the tenant

1B has leased the premises occupied by the tenant from the owner or from a lessee of the owner

1C is authorized on behalf of the owner or lessor to manage the premises occupied by the tenant

2A violated the rental agreement by an act or a failure to act, and the violation was material

2B failed to [*specify obligation under ORS 90.325*] and the failure materially affected health and safety

2C violated the rental agreement regarding a program of recovery in drug and alcohol free housing and the violation was material

2D failed to pay late charges or utility or service charges

3A violated the rental agreement

3B failed to [*specify obligation under ORS 90.325*]

3C violated the rental agreement regarding a program of recovery in drug and alcohol free housing

3D failed to pay late charges, utility charges, or service charges

---

COMMENT: ORS 90.392(1)–(4). This instruction should be modified if it is to be used in the case of a week-to-week tenancy. *See* ORS 90.392(6)(a)–(b). This instruction should be modified if the allegations in the case concern an act or omission that constituted a prior noncompliance of which notice was given and that recurs within six months. *See* ORS 90.392(5). This instruction does not apply to agreements to rent space to locate a manufactured dwelling or a floating home. *See* ORS 90.392(7), ORS 90.505–90.840.

See ORS 90.398 for drug and alcohol free housing.

If the parties dispute whether the landlord properly served the notice of termination of the tenancy on the tenant, then the issue should be raised in (3). ORS 90.155.

With respect to (4)(c) and (d), whether the breach is remediable by repairs may present an issue for the court in the first instance, but may also raise a jury question. A notice that does not give the option to remedy when the breach is remediable by repair is defective. ORS 90.392(3)(c)–(4).

For the definition of *landlord* and *rental agreement*, see ORS 90.100(24) and (38), respectively.

Material is not defined in ORS 90.392(2). *See generally Restatement (Second) of Contracts* §241 (1981); *Restatement (Second) of Property* §13.1 (1983); *Restatement (Second) of Torts* §538 (1977); *Hay v. Pac. Tastee Freez, Inc.*, 276 Or 569, 579, 555 P2d 1256 (1976) (franchise contract); *Bollenback v. Cont'l Cas. Co.*, 243 Or 498, 506, 414 P2d 802 (1966) (insurance contract); *Pickard v. Oregon Senior Citizens, Inc.*, 238 Or 359, 366, 395 P2d 168 (1964) (retirement residence contract); *McKeon v. Williams*, 104 Or App 106, 109, 799 P2d 198 (1990), *aff'd*, 312 Or 322 (1991) (commercial lease); *Matter of Bisio's Estate*, 33 Or App 325, 331, 576 P2d 801 (1978) (partnership contract).

12/15

UCJI 80.05 EVICTION FOR CAUSE—24-HOUR NOTICE

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To recover possession from the tenant, the landlord must prove the following:

(1) The landlord _1A/1B/1C_;

(2) _2A/2B/2C_ has _3A/3B/3C/3D/3E/3F_;

(3) The landlord gave a written termination notice to the tenant;

(4) The written termination notice specified:

(a) That the tenant _3A/3B/3C/3D/3E/3F_;

(b) That the rental agreement would terminate; and

(c) The date and time when the rental agreement would terminate;

(5) The notice was given at least 24 hours before the tenancy was to terminate; and

(6) The tenant was in possession of the premises on [the date the complaint was filed].

1A is the owner of the premises occupied by the tenant

1B has leased the premises occupied by the tenant from the owner or from a lessee of the owner

1C is authorized on behalf of the owner or lessor to manage the premises occupied by the tenant

2A The tenant

2B Someone in the tenant's control

2C The tenant's pet

3A made a serious threat to inflict substantial personal injury on a person on the premises other than the tenant

3B inflicted substantial personal injury on a person on the premises other than the tenant

3C inflicted substantial personal injury on a neighbor living in the immediate vicinity of the premises

3D intentionally inflicted substantial damage to the premises (add if tenant's pet caused the damage on more than one occasion)

3E committed any act that is "outrageous in the extreme"

3F vacated the premises and the person in possession is holding the premises contrary to a written rental agreement that prohibits subleasing or allowing another to occupy the premises without the written permission of the landlord, and the landlord has not knowingly accepted rent from the person in possession

COMMENT: ORS 90.396(1).

With respect to threats of personal injury to persons as used in option 3A, the term *persons* could include corporations, government agencies, and employees. *Hous. Auth. of Portland v. Comstock*, 163 Or App 463, 467, 988 P2d 407 (1999), *rev den*, 330 Or 71 (2000).

For a definition of *someone in the tenant's control* as used in option 2B, see ORS 90.396(3).

For a definition of *outrageous in the extreme* as used in option 3E, see ORS 90.396(1)(f).

For 3F, see ORS 90.403(1).

12/15

UCJI 80.06 WAIVER BY ACCEPTANCE OF PARTIAL RENT AFTER A NONPAYMENT OF RENT NOTICE

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The tenant raises as a defense that the landlord waived the right to evict the tenant for nonpayment of rent during a rental period. To establish this defense, the tenant must prove that, after the landlord gave written notice of nonpayment, the landlord accepted a partial payment of rent for the rental period.

The landlord does not waive the right to recover possession if the landlord and the tenant agreed in writing that the landlord's acceptance of partial rent was not a waiver.

COMMENT: *See* ORS 90.414(1)(a) and ORS 90.417(2), (4)(b).

12/15

UCJI 80.07 WAIVER BY ACCEPTANCE OF PARTIAL RENT BEFORE A NONPAYMENT OF RENT NOTICE

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The tenant raises the defense that the landlord waived the right to evict the tenant for nonpayment of rent [during a rental period]. To establish this defense, the tenant must prove that, before the landlord gave a written termination notice to the tenant:

(1)the landlord accepted a payment of rent that was less than the full monthly rent; and

(2)the landlord and the tenant did not have a written agreement providing that the monthly rent would be paid in regular installments more frequent than monthly.

[A landlord does not waive the right to evict if:

(3)(a) the landlord accepted the partial payment of rent before the landlord gave a notice of intent to terminate based on the tenant's oral or written agreement to pay the balance by a certain time, and the tenant did not pay the balance of the rent as agreed;

(3)(b) the landlord's termination notice was served no earlier than would have been permitted by law had no rent been accepted; and

(3)(c) the notice permits the tenant to avoid termination of the tenancy for nonpayment of rent by paying the balance within the time permitted by law, or by any later date to which the parties agreed.]

COMMENT: ORS 90.417(4)(a).

The bracketed phrase [during a rental period] in the first paragraph may be omitted when nonpayment for only one rental period is involved.

The bracketed paragraphs should be given only if there is some evidence that the landlord and the tenant entered into an oral or written agreement that would allow the landlord to serve a nonpayment notice and proceed with an eviction if the tenant failed to pay the balance by the agreed time.

See ORS 90.394 for notice requirements under (3)(b) and (3)(c).

12/15

UCJI 80.08 ***GOOD FAITH***

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The law requires that the parties to a rental agreement act in good faith. *Good faith* means honesty in the conduct of the transaction concerned.

The [landlord / tenant] asserts as a defense that the [landlord / tenant] failed to act in good faith.

To prevail on this defense the [landlord / tenant] must prove that the _A/B_.

A [landlord / tenant] failed to [perform / enforce] in good faith the duty to [*specify duty imposed under ORS chapter 90*]

B [landlord / tenant] failed to [perform / enforce] in good faith [*specify an act that must be performed as a condition precedent to the exercise of a right or remedy under ORS chapter 90*]

COMMENT: ORS 90.100(19); ORS 90.130.

See Stonebrook Hillsboro, L.L.C. v. Flavel, 187 Or App 641, 646–47, 69 P3d 807 (2003).

12/15

UCJI 80.09 HABITABILITY

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The tenant [claims / raises as a defense] that the landlord failed to maintain the dwelling unit in a habitable condition. The landlord must maintain the dwelling unit in a habitable condition regardless of the amount of rent. To establish that the dwelling was not in a habitable condition, the tenant must prove that the dwelling substantially lacked one or more of the following: A/B/C/D/E/F/G/H/I/J/K/L/M/N .

_____

A Effective waterproofing and weather protection of the roof and exterior walls, including windows and doors

B Plumbing facilities that conform to the applicable law in effect at the time of installation, and are maintained in good working order

C A water supply approved under the applicable law that is:

(1) Capable of producing hot and cold running water;

(2) Furnished to appropriate fixtures;

(3) Connected to a sewage disposal system approved under applicable law; and

(4) Maintained so as to provide safe drinking water and to be in good working order to the extent that the system can be controlled by the landlord

D Adequate heating facilities that conform to the applicable law at the time of installation and are maintained in good working order

E Electrical lighting with wiring and electrical equipment that conform to the applicable law at the time of installation and are maintained in good working order

F Building, grounds, and areas and facilities provided for the use of tenants at the beginning of the tenancy that are in every part:

(1) Safe for normal and reasonably foreseeable uses; and

(2) Clean, sanitary, and free from all accumulations of debris, filth, rubbish, garbage, rodents, and vermin

G All areas under the control of the landlord kept in every part:

(1) Safe for normal and reasonably foreseeable uses; and

(2) Clean, sanitary, and free from all accumulations of debris, filth, rubbish, garbage, rodents, and vermin

H [Except as otherwise provided by local ordinance / Except as provided by a written agreement between the landlord and the tenant], at the commencement of the rental agreement, an adequate number of appropriate containers for garbage and rubbish in clean condition and good repair and, thereafter, the

landlord must maintain the containers and arrange for removal of the contents of the containers

I Floors, walls, ceilings, stairways, and railings maintained in good repair

J Ventilating, air conditioning, and other facilities and appliances, including elevators, maintained in good repair if supplied or required to be supplied by the landlord

K Safety from the hazards of fire, including a working smoke alarm or smoke detector

L A carbon monoxide alarm if the dwelling unit contains or is connected to a carbon monoxide source

M Working locks for all dwelling entrance doors, and latches for all windows by which access may be had to that portion of the premises that the tenant is entitled to occupy to the exclusion of others and keys for those locks that require keys

N [*Insert any other condition of the premises posing a danger to health or safety of the same kind and as serious as those that the statute's specifically enumerated requirements are meant to prevent.*]

COMMENT: ORS 90.320; *Gilbert v. Dist. Court of Klamath Cnty.*, 67 Or App 148, 151, 676 P2d 917 (1984); *L & M Inv. Co. v. Morrison*, 44 Or App 309, 311–12, 605 P2d 1347, *rev den*, 289 Or 275 (1980); *see* UCJI 80.11.

If the landlord and tenant have agreed in writing that the tenant is to perform specified repairs or maintenance, an additional instruction may be necessary. ORS 90.320(2).

Omit "latches for all windows" from option M if this requirement is contrary to applicable law. ORS 90.320(1)(*l*).

The parties should specify any additional conditions posing a danger to health or safety in option N. *See Bellikka v. Green*, 306 Or 630, 636, 762 P2d 997 (1988), holding that ORS 90.320's list of habitability requirements is illustrative, not exclusive, and that a landlord's habitability obligations extend to conditions that "pose danger to health or safety of the same kind and as serious as those which the specific requirements of paragraphs (a) through (k) are meant to prevent."

12/15

UCJI 80.10 EVICTION FOR NONPAYMENT OF RENT—72-HOUR NOTICE

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To recover possession from the tenant, the landlord must prove all of the following:

(1) The landlord _1A/1B/1C_;

(2) The tenant failed to pay the rent when due;

(3) The landlord gave to the tenant a written notice on or after _2A/2B_;

(4) The written notice described the premises with reasonable certainty;

(5) The written notice stated:

(a) that the rent had not been paid;

(b) the amount of rent the tenant must pay to avoid eviction; and

(c) _3A/3B/3C/3D_;

(6) The tenant did not pay the rent on or before [*date and time*]; and

(7) The tenant was in possession of the premises on [*date*], the date the complaint was filed.

1A is the owner of the premises occupied by the tenant

1B has leased the premises occupied by the tenant from the owner or from a lessee of the owner

1C is authorized on behalf of the owner or lessor to manage the premises occupied by the tenant

2A [*date*]

2B the eighth day of the rental period, including the first day rent was due (*e.g., if rent is due on the first day of the month, a landlord cannot serve the notice before the eighth day of the month*)

3A that the tenancy would terminate on [*date and time*] unless the rent was paid on or before [*date and time*]

3B that the tenancy would terminate on a specified date and time at least 72 hours from the time the landlord gave the tenant the notice unless the tenant paid the rent by that date and time

3C that the tenancy would terminate on a specified date and time at least 72 hours plus three days from the time the landlord mailed the notice to the tenant unless the tenant paid the rent by that date and time

3D that the tenancy would terminate on a specified date and time at least 72 hours from 11:59 p.m. on the date that the notice was both attached to the tenant's door and mailed to the tenant

---

COMMENT: ORS 90.394; ORS 90.155. This instruction applies only to residential tenancies other than week-to-week tenancies. For week-to-week tenancies, the notice can be served on or after the fifth day the rent became due. *See* ORS 90.394(1).

If the tenant has raised counterclaims or affirmative defenses in the nature of recoupment or setoff that might offset the rent owed, additional instructions will be necessary. *See* ORS 90.370.

Use option 2A if there is no dispute about the earliest date the notice may be given. Use option 2B if the earliest date the notice may be given is disputed, for example, because the rental due date or start of the rental period is disputed.

Options 3B, 3C, and 3D do not apply to certain federally subsidized housing tenancies.

Use option 3A if there is no dispute about the termination and cure date. Use option 3B if the notice was personally delivered and there is a dispute about the termination and cure date. Use option 3C if the notice was served by regular first-class mail and there is a dispute about the termination and cure date. Use option 3D if the notice was served by regular first-class mail and posting, the written rental agreement allows service in that manner, and there is a dispute about the termination and cure date. ORS 90.155.

UCJI 80.11 HABITABILITY CLAIMS AS DEFENSE TO NONPAYMENT EVICTION—NO RENT PAID INTO COURT

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The tenant has asserted as a defense to the landlord's eviction that the landlord failed to maintain the dwelling unit in a habitable condition.

The tenant must prove two elements:

(1)The dwelling unit was not maintained in a habitable condition; and

(2)The tenant suffered damages as a result.

To establish that the dwelling was not maintained in a habitable condition, the tenant must prove that the dwelling substantially lacked one or more of the following: _1A/1B/1C/1D/1E/1F/1G/1H/1I/1J/1K/1L/1M_ .

To establish that the tenant suffered damages, the tenant must prove that: _2A/2B/ and/or 2C_ .

If you find that the dwelling unit was not maintained in a habitable condition and that the tenant was damaged, you must then calculate the dollar amount of the tenant's damages.

1A Effective waterproofing and weather protection of the roof and exterior walls, including windows and doors

1B Plumbing facilities that conform to the applicable law in effect at the time of installation, and maintained in good working order

1C A water supply approved under applicable law that is:

(1) Capable of producing hot and cold running water;

(2) Furnished to appropriate fixtures;

(3) Connected to a sewage disposal system approved under the applicable law; and

(4) Maintained so as to provide safe drinking water and to be in good working order to the extent that the system can be controlled by the landlord

1D Adequate heating facilities that conform to the applicable law at the time of installation and maintained in good working order

1E Electrical lighting with wiring and electrical equipment that conform to applicable law at the time of installation and maintained in good working order

1F Buildings, grounds, and areas and facilities provided for the use of tenants at the beginning of the tenancy that are in every part:

(1) Safe for normal and reasonably foreseeable uses; and

(2) Clean, sanitary, and free from all accumulations of debris, filth, rubbish, garbage, rodents, and vermin

1G All areas under the control of the landlord kept in every part:

(1) Safe for normal and reasonably foreseeable uses; and

(2) Clean, sanitary, and free from all accumulations of debris, filth, rubbish, garbage, rodents, and vermin

1H [Except as otherwise provided by local ordinance / Except as provided by a written agreement between the landlord and the tenant], at the commencement of the rental agreement, an adequate number of appropriate containers for garbage and rubbish in clean condition and good repair and, thereafter, the landlord must maintain the containers and arrange for removal of the contents of the containers

1I Floors, walls, ceilings, stairways, and railings maintained in good repair

1J Ventilating, air conditioning, and other facilities and appliances, including elevators, maintained in good repair if supplied or required to be supplied by the landlord

1K Safety from the hazards of fire, including a working smoke alarm or smoke detector

1L A carbon monoxide alarm if the dwelling unit contains or is connected to a carbon monoxide source.

1M Working locks for all dwelling entrance doors, and latches for all windows by which access may be had to that portion of the premises that the tenant is entitled to occupy to the exclusion of others and keys for those locks that require keys

1N [Any other condition of the premises posing a danger to health or safety of the same kind and as serious as those that the statute's specifically enumerated requirements are meant to prevent.]

2A The rental value of the dwelling unit has been reduced as a result of the habitability violations, if any. The landlord must maintain the dwelling unit in a habitable condition regardless of the amount of rent agreed upon by the parties. [You may not award damages for any habitability violations prior to (*date*).]

2B The tenant has reasonably sustained [*specify type of economic loss*] as a direct result of the habitability violations, if any

2C The tenant has sustained loss of life or health and accompanying costs as a result of the habitability violations, if any

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COMMENT: *L&M Inv. Co. v. Morrison*, 286 Or 397, 594 P2d 1238 (1979); *see Brewer v. Erwin*, 287 Or 435, 439–46, 600 P2d 398 (1979) (discusses types of

economic loss recoverable). *Gilbert v. Dist. Court of Klamath Cty.*, 67 Or App 148, 151, 676 P2d 917 (1984) (relating to 2A, damages available regardless of amount of rent agreed upon.

If option 2A is used, the jury may consider the opinion of the landlord and of the tenant on reduced rental value, but is not bound by these opinions. *L & M Inv. Co. v. Morrison*, 44 Or App 309, 312–13, 605 P2d 1347, *rev den*, 289 Or 275 (1980).

For option 1N, *see Bellikka v. Green*, 306 Or 630, 636, 762 P2d 997 (1988), holding that ORS 90.320's list of habitability requirements is illustrative, not exclusive, and that a landlord's habitability obligations extend to conditions that "pose danger to health or safety of the same kind and as serious as those which the specified requirements of paragraphs (a) through [then] (k) are meant to prevent."

The bracketed language in option 2A is for use in cases in which the landlord has raised a statute of limitations defense. ORS 12.125.

This instruction is not applicable if the tenant seeks to recover damages or asserts a counterclaim. ORS 90.360(2); ORS 90.370.

12/15

UCJI 80.12 LIMITATIONS ON TAKING POSSESSION OF PREMISES

Download MS Word

The landlord may not recover or take possession of the tenant's dwelling unit by any means, including willfully interrupting or causing the interruption of heat, running water, hot water, electricity, or other essential service, unless _A/B/C_.

A the tenant has abandoned the dwelling unit

B the tenant has turned over the dwelling unit to the landlord

C allowed by the court in an eviction case

COMMENT: ORS 90.435. *See also* ORS 90.147–90.148 (relinquishment or abandonment of property); ORS 105.105–105.168 (forcible entry and wrongful detainer action).

For the definition of *essential services*, *see* ORS 90.100(13); for the definition of *dwelling unit*, see ORS 90.100(12). *See Smith v. Topits*, 64 Or App 799, 801–03, 669 P2d 1167 (1983).

CAVEAT: Option C is not to be used in ejectment actions.

12/16

UCJI 80.13 UNLAWFUL REMOVAL, EXCLUSION, OR DIMINUTION OF SERVICES

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The tenant claims the landlord unlawfully [removed / excluded / diminished services to] the tenant. To prove this claim the tenant must prove that the landlord _A/B/C_.

If the tenant proves the landlord _A/B/C_, you may award damages to the tenant regardless of whether the tenant remains in possession of the premises or terminates the rental agreement. The total damages you award for this claim may not be more than two months' periodic rent or twice the actual damages sustained by the tenant, whichever is greater.

A unlawfully [removed / excluded] the tenant from the premises

B seriously [attempted / threatened] unlawfully to [remove / exclude] the tenant from the premises

C willfully diminished, or seriously [attempted / threatened] unlawfully to diminish essential services to the tenant

---

COMMENT: ORS 90.375. The statute does not require the tenant to terminate the rental agreement, obtain injunctive relief, or recover possession as a prerequisite to recovering damages. However, the court may order termination of the rental agreement as an equitable remedy.

See also Brewer v. Erwin, 287 Or 435, 447–49, 600 P2d 398 (1979) (actual damages may include both economic and noneconomic damages), *abrogated on other grounds by McGanty v. Staudenrause*, 321 Or 532, 901 P2d 841 (1995).

12/16

UCJI 80.14 UNLAWFUL RETENTION OF PREPAID RENT OR SECURITY DEPOSIT

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The tenant claims the landlord _1A/1B/1C_. To prevail the tenant must prove that after the tenancy was terminated the landlord: (1) did not timely account for and refund the balance of _2A/2B_, or (2) withheld the [prepaid rent / security deposit] in bad faith.

The landlord's accounting must specifically state the reason(s) for each claim or charge against the tenant's prepaid rent or security deposit.

The landlord timely accounts for the balance by personally delivering or by mailing the accounting and/or refund by first-class mail to the tenant not later than 31 days after the tenancy terminated and the tenant delivered possession of the premises to the landlord.

If you find that the landlord did not timely account for and refund the balance of prepaid rent or security deposit, or withheld the prepaid rent or security deposit in bad faith, you must award damages of twice the amount withheld.

1A did not timely account for and refund the balance of the prepaid rent due tenant

1B did not timely account for and refund the balance of the security deposit due tenant

1C withheld the tenant's [prepaid rent / security deposit] in bad faith

2A any prepaid rent, after first deducting the amount reasonably necessary to pay the tenant's unpaid rent

2B any security deposit, after first deducting the amount reasonably necessary to remedy the tenant's defaults in the performance of the rental agreement, including but not limited to unpaid rent and/or the amount necessary to repair damages to the premises caused by the tenant, but not including ordinary wear and tear

---

COMMENT: ORS 90.300; *Waldvogel v. Jones*, 196 Or App 446, 103 P3d 124 (2004) (holding that the doubling of damages in a deposit case is nondiscretionary). Delivery of possession from the tenant to the landlord is defined in ORS 90.147(2).

NOTE: There is no duty to provide an accounting if the prepaid rent or security deposit is timely refunded in full. ORS 90.300(12), (14).

NOTE: *Bad faith* is not defined. *See* ORS 90.100(20) and ORS 90.130 for a definition of *good faith*.

12/16

UCJI 80.15 FAILURE TO DISCLOSE LEGAL PROCEEDINGS THAT AFFECT RENTAL PROPERTY

Download MS Word

The tenant claims the landlord did not disclose that the rental property was subject to a legal proceeding. To prevail on this claim, the tenant must prove the following:

(1)before entering into the rental agreement, the landlord did not disclose in writing _A/B/C/D_ and

(2)the tenant moved as a result of the nondisclosure.

If the tenant proves [his / her / their] claim, you must award damages of all prepaid rent plus the greater of twice the tenant's actual damages or twice the monthly rent.

A an outstanding notice of default under a trust deed, mortgage, or contract of sale, or a notice of trustee's sale under a trust deed

B a pending suit to foreclose a mortgage, trust deed, or vendor's lien under a contract of sale

C a pending declaration of forfeiture or suit for specific performance of a contract of sale

D a pending proceeding to foreclose a tax lien

COMMENT: ORS 90.310; 90.310(1) (only applies to premises that contain no more than four dwelling units); ORS 90.310(3) (does not apply to premises managed by a court-appointed receiver); ORS 90.310(4) (a manager who has complied with ORS 90.305 is not liable for damages if the manager did not know of the circumstances that gave rise to the duty of disclosure).

See also Brewer v. Erwin, 287 Or 435, 447–49, 600 P2d 398 (1979) (actual damages may include both economic and noneconomic damages), *abrogated on other grounds by McGanty v. Staudenrause*, 321 Or 532, 901 P2d 841 (1995); *Waldvogel v. Jones*, 196 Or App 446, 103 P3d 124 (2004) (in a similar statute (ORS 90.300(16)) "may recover" was interpreted to mean that the award of damages was nondiscretionary).

12/16

UCJI 80.16 RIGHT TO TERMINATE A RENTAL AGREEMENT

Download MS Word

(This instruction has been withdrawn because the content is adequately covered in other landlord-tenant instructions.)

12/16

UCJI 80.17 WAIVER OF RIGHT TO TERMINATE A RENTAL AGREEMENT

Download MS Word

The tenant claims that the landlord waived the right to terminate the rental agreement despite the tenant's [*state the violation of the rental agreement or law*]. To prove this claim, the tenant must prove the landlord _1A/1B_.

[The landlord's acceptance of the rent does not waive the right to terminate the rental agreement if _2A/2B/2C_.]

1A accepted rent with knowledge of the violation by the tenant during three or more separate rental periods

1B accepted performance by the tenant that varied from the terms of the rental agreement

2A the payment the landlord accepted was a last month's rent deposit collected at the beginning of the tenancy, regardless of whether the deposit covered a period beyond the termination date

2B the rental payment was distributed pursuant to a court order releasing money paid into the court

2C the rental payment was for a rent obligation not yet due, and it was paid more than one rental period in advance

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COMMENT: ORS 90.412(2); *see also* ORS 90.412(1) (rent does not include funds paid under the United States Housing Act of 1937); ORS 90.412(3) (landlord has not accepted rent if the landlord refunds the rent within 10 days after receiving the rent payment, or the rent payment is in the form of a check that is dishonored); ORS 90.412(6) (a refund of rent under this section must be made to the tenant or other payer by personal delivery or first-class mail and may be in any form—the refund need not be the tenant's or payer's check or money order); ORS 90.414(2)(b) and ORS 90.370(1) (explanation of rental payments made to and by the court under option 2B).

See ORS 90.414(2)(c) for option 2C.

NOTE: The bracketed paragraph is only appropriate when using option 1A.

12/16

UCJI 80.18 TENANT'S CLAIM FOR UNLAWFUL ENTRY UPON PREMISES

Download MS Word

The tenant claims the landlord unlawfully entered the tenant's premises. To establish this claim, the tenant must prove that the landlord _A/B/C_.

_____

A entered the premises without the tenant's permission and without any lawful right to enter.

B made an otherwise lawful entry onto the premises in an unreasonable manner

C made repeated demands to enter the premises that had the effect of unreasonably harassing the tenant

_____

COMMENT: ORS 90.322(8).

Entry would include entry upon areas under the tenant's exclusive control but would not include entry onto such areas, not including the dwelling unit, to serve a notice required or permitted under the Oregon Residential Landlord Tenant Act. ORS 90.322(1)(a).

The term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*).

12/16

UCJI 80.19 LANDLORD'S CLAIM FOR REFUSAL TO ALLOW LAWFUL ENTRY UPON PREMISES

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The landlord claims the tenant unreasonably refused to give the landlord access to the tenant's premises. To establish this claim, the landlord must prove:

(1)The landlord requested access to the premises;

(2)The landlord had a legal right to access the premises; and

(3)The tenant unreasonably refused to give the landlord access to the premises.

COMMENT: ORS 90.322(1)(f) and (7).

The term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*).

12/16

UCJI 80.20 LANDLORD'S LEGAL RIGHT TO ENTER—WITH NOTICE

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A landlord has a legal right to enter the tenant's premises at reasonable times, after giving the tenant at least 24 hours' actual notice, to:

(1) Inspect the premises;

(2) Make necessary or agreed upon repairs, decorations, alterations, or improvements;

(3) Supply necessary or agreed upon services;

(4) Perform agreed upon yard maintenance or grounds keeping; or

(5) Show the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workers, or contractors.

COMMENT: ORS 90.322(1).

The requirement of 24 hours' actual notice is provided by statute. ORS 90.322(1)(f).

The term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*).

Reasonable time is not defined in ORS 90.322. *Unreasonable time* is defined as "a time of day, day of the week or particular time that conflicts with the tenant's reasonable and specific plans to use the premises." ORS 90.322(1)(e)(B)(ii).

12/16

UCJI 80.21 LANDLORD'S LEGAL RIGHT TO ENTER—WITHOUT NOTICE (For Purpose of Serving Notice)

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A landlord, or a landlord's agent, has a legal right to enter upon the premises that is under the tenant's exclusive control without notice and without the tenant's consent for the purpose of serving notices required or permitted by the rental agreement or any applicable law. This right to enter does not extend to entering the dwelling unit.

COMMENT: ORS 90.322(1)(a).

Note the difference between a *dwelling unit* and *premises*. ORS 90.100(12) defines a *dwelling unit* as "a structure or the part of a structure that is used [by the tenant] as a home, residence or sleeping place." The *premises*, on the other hand, encompasses the dwelling unit as well as the grounds, areas, and facilities that the tenant has a right to use. ORS 90.100(34).

ORS 90.322(1)(a) does not require advance notice.

12/16

UCJI 80.22 LANDLORD'S LEGAL RIGHT TO ENTER—WITHOUT PRIOR NOTICE (Emergency)

Download MS Word

In an emergency, a landlord has a legal right to enter the premises at any time without the tenant's consent and without giving the tenant prior notice. If the tenant is not present, the landlord must notify the tenant within 24 hours after the entry. The notice must include the date and time of the entry, the nature of the emergency, and the names of the persons who entered.

COMMENT: ORS 90.322(1)(b).

The statute does not define *emergency*, but states that an emergency "includes but is not limited to a repair problem that . . . is likely to cause serious damage to the premises" unless it is fixed immediately. ORS 90.322(1)(b).

Note the term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*).

12/16

UCJI 80.23 LANDLORD'S LEGAL RIGHT TO ENTER—WITHOUT NOTICE (To Make Repairs Requested by Tenant)

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A landlord, or a landlord's agent, has a legal right to enter the premises in the tenant's absence or without the tenant's consent to [make repairs / perform maintenance] after the tenant makes a written request for [repairs / maintenance]. The tenant may specify allowable times for entry; otherwise, the entry must be at a reasonable time.

The landlord's right to enter expires when the work is done or within seven days, unless the work is in progress and the landlord is making reasonable efforts to complete the work in a timely manner.

COMMENT: ORS 90.322(1)(c).

Note the term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*). If the person entering to do the repairs is not the landlord, the tenant may require written evidence that the landlord authorized the person to make the repairs. ORS 90.322(1)(c).

Reasonable time is not defined in ORS 90.322. *Unreasonable time* is defined as "a time of day, day of the week or particular time that conflicts with the tenant's reasonable and specific plans to use the premises." ORS 90.322(1)(e)(B)(ii).

12/16

UCJI 80.24 LANDLORD'S LEGAL RIGHT TO ENTER—WITHOUT NOTICE (Showing Premises to Prospective Buyer)

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A landlord, or a landlord's agent, has a legal right to enter and show the premises to a prospective buyer without notice to the tenant if the landlord and tenant have agreed in writing to allow such entries. The written agreement must be signed by both parties, separate from the rental agreement, and agreed to while the landlord is actively trying to sell the premises. The entry must occur at a reasonable time.

COMMENT: This instruction should only be given if the court determines that the required agreement is supported by separate consideration described in the agreement. *See* ORS 90.322(1)(d)(C).

Note that the term *premises* includes, but is not limited to, the dwelling unit. *See* ORS 90.100(12) (definition of *dwelling unit*); ORS 90.100(34) (definition of *premises*); ORS 90.100(47) (definition of *tenant*).

Reasonable time is not defined in ORS 90.322. *Unreasonable time* is defined as "a time of day, day of the week or particular time that conflicts with the tenant's reasonable and specific plans to use the premises." ORS 90.322(1)(e)(B)(ii).

12/17

UCJI 80.25 LANDLORD'S LEGAL RIGHT TO ENTER—WITHOUT NOTICE (Yard Maintenance or Grounds Keeping)

Download MS Word

If a written agreement requires the landlord to perform yard maintenance or grounds keeping, a landlord, or a landlord's agent, has a legal right to enter the premises—excluding the dwelling unit—without notice to the tenant to perform yard maintenance or grounds keeping. The entry must be at reasonable times and with reasonable frequency.

A tenant may deny entry by notifying the landlord, or the landlord's agent, at or before the time of the attempted entry that the tenant objects because the entry is at an unreasonable time, is unreasonably frequent, or conflicts with the tenant's reasonable and specific plans to use the premises. The tenant's denial must be reasonable.

COMMENT: ORS 90.322(1)(e); ORS 90.322(7) (tenant may not unreasonably refuse landlord's lawful right of entry); ORS 90.130 (parties must exercise rights and remedies in good faith); ORS 90.322(1)(e)(A)(i) (the written agreement for yard maintenance or grounds keeping may be part of the rental agreement or a separate written agreement).

ORS 90.322(1)(a) does not require advance notice.

Note the difference between a *dwelling unit* and *premises*. ORS 90.100(12) defines a *dwelling unit* as "a structure or the part of a structure that is used [by the tenant] as a home, residence or sleeping place." The *premises*, on the other hand, encompasses the dwelling unit as well as the grounds, areas, and facilities that the tenant has a right to use. ORS 90.100(34). *Yard maintenance* or *grounds keeping*, includes, but is not limited to, weeding, mowing grass and pruning trees and shrubs. ORS 90.322(e)(B)(i).

Reasonable time is not defined in ORS 90.322. *Unreasonable time* is defined as "a time of day, day of the week or particular time that conflicts with the tenant's reasonable and specific plans to use the premises." ORS 90.322(1)(e)(B)(ii).

12/16

UCJI 80.26 LANDLORD RETALIATION—FOR TENANT'S AFFIRMATIVE CLAIM

Download MS Word

The tenant has asserted that the landlord retaliated against the tenant. To establish this claim, the tenant must prove:

That the tenant _1A/1B/1C/1D/1E/1F/1G_, a protected activity;

That after this protected activity, the landlord _3A/3B/3C/3D_;

And that the tenant's protected activity was a factor that made a difference in the landlord's decision to [increase the tenant's rent / decrease the services to the tenant by [*specify the act*] / serve a notice to terminate the tenancy / file or threaten to file an eviction case].

[However, if the tenant's claim is based on the landlord filing an eviction case, the landlord's act is not retaliation if the landlord proves that _4A/4B/4C/4D/4E/4F_.]

1A or someone on behalf of the tenant complained about 2A/2B/2C to a governmental agency charged with responsibility to enforce such codes, laws, and/or regulations

1B expressed to the landlord, in writing, [his / her] intention to complain about 2A/2B/2C to a governmental agency charged with responsibility to enforce such codes, laws, and/or regulations

1C or someone on behalf of the tenant made any complaint to the landlord that was in good faith and related to the tenancy

1D organized or became a member of a tenants' union or similar organization

1E testified against the landlord in a judicial, administrative, or legislative proceeding

1F successfully defended an eviction case brought by the landlord within six months immediately before the landlord's allegedly retaliatory act except, if the tenant was successful in defending the eviction only because the landlord's termination notice was not served or delivered as required by law, or because the period specified in the termination notice was less than that required by the applicable law

1G performed or expressed an intent to perform any act for the purpose of asserting, protecting, or invoking the protection of any right secured to tenants under any federal, state, or local law

2A a building, health, or housing code provision that materially affects health or safety

2B laws or regulations concerning the delivery of mail

2C laws or regulations prohibiting discrimination in rental housing

3A increased the tenant's rent

3B decreased services to the tenant by [*specify act*]

3C served a notice to terminate the tenancy

3D filed or threatened to file an eviction case

4A the complaint by the tenant was made to the landlord or an agent of the landlord [in an unreasonable manner / at an unreasonable time / was repeated in a manner having the effect of unreasonably harassing the landlord] taking into consideration all related circumstances before or at the time of the complaint

4B the violation of the building or housing code was caused primarily by the tenant's lack of reasonable care

4C the violation of the building or housing code was caused primarily by lack of reasonable care by another person in the tenant's household

4D the violation of the building or housing code was caused primarily by lack of reasonable care by another person on the premises with the tenant's consent

4E the tenant was in default for nonpayment of rent at the time when the landlord served the notice of termination in this case

4F compliance with the applicable building or housing code would require the landlord to alter, remodel, or demolish the premises in such a way that it would effectively deprive the tenant of use of the dwelling unit

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COMMENT: ORS 90.385.

See ORS 90.385(4) to determine whether options 4A–4F should be used and, if so, which option.

See Elk Creek Mgmt. Co. v. Gilbert 353 Or 565, 584, 303 P3d 929 (2013) (holding that tenant must "prove that the tenant's protected activity was a factor that made a difference in the landlord's decision [to perform the allegedly retaliatory act]").

12/17

VERDICTS

Verdict (For Use with Special Verdict Forms) 90.01
Tape-Recorded Instructions (WITHDRAWN) 90.02
Written Instructions 90.03
Special Verdict—Fault/Negligence, Causation, Damages 90.03A
Special Verdict—Comparative Fault/Negligence 90.04
Special Verdict—Multiple Defendants—Comparative Fault/Negligence 90.05
Special Verdict—Multiple Persons Potentially at Fault (With Third-Party Defendants and/or Settling Persons) 90.06
Special Verdict—Counterclaim (In Claims Arising on or After September 27, 1987, and Subject to ORS 31.710) 90.07
Special Verdict—Mitigation (If Failure to Use a Seat Belt Is Raised in Mitigation) 90.08
Special Verdict—Comparative Negligence and Mitigation (Claim of Failure to Use Operative and Available Seat Belt ..... Raised in Mitigation) 90.09
Special Verdict—Employer Liability—Comparative Fault/Negligence 90.10
Special Verdict—Penalty Wage—Discharge by Employer or Mutual Agreement 90.11

90. VERDICTS

UCJI 90.01 VERDICT (For Use with Special Verdict Forms)

Download MS Word

When you return to the jury room, select one of your members to act as presiding juror. The presiding juror is to participate like all other jurors and has no greater weight or voice than any other juror. After selecting your presiding juror, deliberate until you reach your verdict. You may conduct your deliberations any way you wish, but most juries find it helpful to discuss the evidence before taking any votes.

You will have the following verdict form with you in the jury room: [*read verdict form*].

Answer the questions according to the directions on the form and all the instructions of the court.

This is a civil case. At least the same nine jurors must agree on each answer unless the verdict form instructs you otherwise as to a particular question. When you have answered each question you are required to answer, your presiding juror should insert the answers on the verdict form, sign and date the verdict form, and then signal the clerk.

Court will then reconvene and receive your verdict.

COMMENT: *Sandford v. Chev. Div. Gen. Motors*, 292 Or 590, 613, 642 P2d 624 (1982); *Sprinkle v. Lemley*, 243 Or 521, 531, 414 P2d 797 (1966); *Clark v. Strain*, 212 Or 357, 364, 319 P2d 940 (1958); ORCP 59 G(2).

CAVEAT: The language in this verdict form concerning the "same nine jurors" may be inappropriate in a case involving multiple parties or multiple claims in which answers to verdict questions are not interdependent. *See Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 43–44, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231 (1994); *Veberes v. Knappton Corporation*, 92 Or App 378, 381–383, 759 P2d 279, *rev. denied*, 307 Or 78 (1988); *Davis v. Dumont*, 52 Or App 73, 75–77, 627 P2d 907, *rev. denied*, 291 Or 309 (1981).

12/11

UCJI 90.02 TAPE-RECORDED INSTRUCTIONS

Download MS Word

(This instruction has been withdrawn because tape-recorded instructions are no longer appropriate under the written-instructions requirement of ORCP 59 B.)

12/14

UCJI 90.03 WRITTEN INSTRUCTIONS

Download MS Word

The court has prepared written instructions for your use. When you use these written instructions, do not place undue emphasis on any particular instruction, but rather consider the instructions as a whole.

COMMENT: ORCP 59 B.

12/14

UCJI 90.03A SPECIAL VERDICT—FAULT/NEGLIGENCE, CAUSATION, DAMAGES

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1. Was the defendant [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was the defendant's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: Questions 1 and 2 (or questions 2 and 3) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1 and 2); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 2 and 3).

11/09

UCJI 90.04 SPECIAL VERDICT—COMPARATIVE FAULT/NEGLIGENCE

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1. Was the defendant [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was the defendant's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. Was the plaintiff [at fault / negligent] in one or more of the ways the defendant claims?

ANSWER: (Yes or No)

If "yes," go to question 4.

If "no," go to question 6. Do not answer questions 4 or 5.

4. Was the plaintiff's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 5.

If "no," go to question 6. Do not answer question 5.

5. What is the percentage of each of the parties' [fault / negligence] that caused damage to the plaintiff?

ANSWER: Defendant _____%

Plaintiff _____%

(The percentages must total 100%.)

If the plaintiff's percentage of [fault / negligence] is 50% or less, go to question 6.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

6. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORS 31.600 (comparative negligence); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: Questions 1 and 2, and questions 3 and 4 (or questions 2 and 6, and questions 4 and 6) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1 and 2, or 3 and 4); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 2 and 6, or 4 and 6).

11/09

UCJI 90.05 SPECIAL VERDICT—MULTIPLE DEFENDANTS—COMPARATIVE FAULT/NEGLIGENCE

Download MS Word

We, the jury, find:

1a.Was defendant [name] [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 1b. At least nine of you who answered "yes" to question 1a must also agree on the answer to question 1b.

If "no," your verdict is for defendant [name]. Go to question 2a. Do not answer question 1b.

1b. Was defendant [name]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 2a.

If "no," your verdict is for defendant [name]. Go to question 2a.

2a.Was defendant [name] [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2b. At least nine of you who answered "yes" to question 2a must also agree on the answer to question 2b.

If "no," your verdict is for defendant [name]. Go to question 3a. Do not answer question 2b.

2b. Was defendant [name]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3a.

If "no," your verdict is for defendant [name]. Go to question 3a.

At least the same nine of you who answered "yes" to question 1b, question 2b, or both (if both were answered "yes"), must agree on the answers to all the remaining questions that you answer "yes," or that you answer with a number.

If you did not answer "yes" to both questions 1b and 2b, then your verdict is for the defendants. Your presiding juror must sign this verdict form. Do not answer any more questions.

3a.Was the plaintiff [at fault / negligent] in one or more of the ways the defendants claim?

ANSWER: (Yes or No)

If "yes," go to question 3b.

If "no," go to question 4. Do not answer question 3b.

3b. Was the plaintiff's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

Go to question 4.

4. What is the percentage of each of the parties' [fault / negligence] that caused damage to the plaintiff? (If you determined that a party was not [at fault / negligent], or did not cause damage to the plaintiff, assign "0" as that party's percentage.)

ANSWER: Defendant [name] _____%

Defendant [name] _____%

Plaintiff _____%

(The percentages must total 100%.)

If the plaintiff's percentage of [fault / negligence] is 50% or less, go to question 5.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, your verdict is for the defendants. Your presiding juror must sign this verdict form. Do not answer any more questions.

5. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORS 31.600 (comparative negligence); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). *See also Sandford v. Chevrolet Div. of General Motors*, 292 Or 590, 613, 642 P2d 624 (1982); *Sprinkle v. Lemley*, 243 Or 521, 531, 414 P2d 797 (1966); *Clark v. Strain*, 212 Or 357, 363–364, 319 P2d 940 (1958). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: The language in this verdict form concerning the "same nine jurors" may be inappropriate in a case involving multiple parties or multiple claims in which answers to verdict questions are not interdependent. *See Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 43–44, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231 (1994); *Veberes v. Knappton Corporation*, 92 Or App 378, 381–383, 759 P2d 279 (1988); *Davis v. Dumont*, 52 Or App 73, 75–77, 627 P2d 907 (1981).

Questions 1a and 1b, questions 2a and 2b, and questions 3a and 3b (or questions 1b and 5, questions 2b and 5, or questions 3b and 5) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1a and 1b, 2a and 2b, or 3a and 3b); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 1b and 5, 2b and 5, or 3b and 5).

11/09

UCJI 90.06 SPECIAL VERDICT—MULTIPLE PERSONS POTENTIALLY AT FAULT (With Third-Party Defendants and/or Settling Persons)

Download MS Word

We, the jury, find:

1a.Was defendant [name] [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 1b. At least nine of you who answered "yes" to question 1a must also agree on the answer to question 1b.

If "no," your verdict is for defendant [name]. Go to question 2a. Do not answer question 1b.

1b. Was defendant [name]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 2a.

If "no," your verdict is for defendant [name]. Go to question 2a.

2a.Was defendant [name] [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2b. At least nine of you who answered "yes" to question 2a must also agree on the answer to question 2b.

If "no," your verdict is for defendant [name]. Go to question 3a. Do not answer question 2b.

2b. Was defendant [name]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3a.

If "no," your verdict is for defendant [name]. Go to question 3a.

3a.Was third-party defendant [name] [at fault / negligent] in one or more of the ways claimed?

ANSWER: (Yes or No)

If "yes," go to question 3b. At least nine of you who answered "yes" to question 3a must also agree on the answer to question 3b.

If "no," your verdict is for third-party defendant [name]. Go to question 4a. Do not answer question 3b.

3b. Was third-party defendant [name]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 4a.

If "no," your verdict is for third-party defendant [name]. Go to question 4a.

At least the same nine of you who answered "yes" to questions 1b, 2b, or 3b must also agree on the answers to all of the remaining questions that you answer "yes" or answer with a number.

If you did not answer "yes" to questions 1b, 2b, and 3b, then your verdict is for the [defendants / third-party defendant]. Your presiding juror must sign this verdict form. Do not answer any more questions.

4a.Was [name of settling person] [at fault / negligent] in one or more of the ways claimed?

ANSWER: (Yes or No)

If "yes," go to question 4b.

If "no," go to question 5a. Do not answer question 4b.

4b. Was [name of settling person]'s [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

Go to question 5a.

5a.Was the plaintiff [at fault / negligent] in one or more of the ways the [defendant(s) / third-party defendant(s)] claim(s)?

ANSWER: (Yes or No)

If "yes," go to question5b.

If "no," go to question 6. Do not answer question 5b.

5b. Was the plaintiff's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

Go to question 6.

6. What is the percentage of each of the parties' [fault / negligence] that caused damage to the plaintiff? [If you determined that a party was not (at fault / negligent), or did not cause damage to the plaintiff, assign "0" as that party's percentage.]

ANSWER: Defendant [name] _____%

Defendant [name] _____%

Third-party defendant [name] _____%

[Settling person's name] _____%

Plaintiff _____%

(The percentages must total 100%.)

If the plaintiff's percentage of [fault / negligence] is 50% or less, go to question 7.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, your verdict is for the defendants. Your presiding juror must sign this verdict form. Do not answer any more questions.

7. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORS 31.600 (comparative negligence); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). *See also Sandford v. Chevrolet Div. of General Motors*, 292 Or 590, 613, 642 P2d 624 (1982); *Sprinkle v. Lemley*, 243 Or 521, 531, 414 P2d 797 (1966); *Clark v. Strain*, 212 Or 357, 363–364, 319 P2d 940 (1958). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: The language in this verdict form concerning the "same nine jurors" may be inappropriate in a case involving multiple parties or multiple claims in which answers to verdict questions are not interdependent. *See Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 43–44, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231 (1994); *Veberes v. Knappton Corporation*, 92 Or App 378, 381–383, 759 P2d 279 (1988); *Davis v. Dumont*, 52 Or App 73, 75–77, 627 P2d 907 (1981).

Questions 1a and 1b, questions 2a and 2b, questions 3a and 3b, questions 4a and 4b, and questions 5a and 5b (or questions 1b and 7, 2b and 7, 3b and 7, 4b and 7, or 5b and 7) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1a and 1b, 2a and 2b, 3a and 3b, 4a and 4b, or 5a and 5b); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 1b and 7, 2b and 7, 3b and 7, 4b and 7, or 5b and 7).

11/09

UCJI 90.07 SPECIAL VERDICT—COUNTERCLAIM (In Claims Arising on or After September 27, 1987, and Subject to ORS 31.710)

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1a.Was the defendant [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 1b.

If "no," go to question 2a.

1b. Was the defendant's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

Go to question 2a.

2a.Was the plaintiff [at fault / negligent] in one or more of the ways the defendant claims?

ANSWER: (Yes or No)

If "yes," go to question 2b.

If "no," go to question 4. Do not answer questions 2b or 3.

2b. Was the plaintiff's [fault / negligence] a cause of damages to the defendant?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," go to question 4. Do not answer question 3.

If your answers to questions 1b and 2b are either "no" or blank because an answer was not required, then your verdict is for neither the plaintiff nor the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. What is the percentage of each of the parties' [fault / negligence] that caused damage to the other party?

ANSWER: Defendant _____%

Plaintiff _____%

(The percentages must total 100%.)

If the defendant's percentage of [fault / negligence] is greater than 50%, then your verdict is for the plaintiff. Go to question 4; do not answer question 5.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, then your verdict is for the defendant. Go to question 5; do not answer question 4.

If you have found the parties equally [at fault / negligent] (50%–50%), answer both questions 4 and 5.

4. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

5. What are the defendant's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the defendant's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORS 31.600 (comparative negligence); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). *See also Sandford v. Chevrolet Div. of General Motors*, 292 Or 590, 613, 642 P2d 624 (1982); *Sprinkle v. Lemley*, 243 Or 521, 531, 414 P2d 797 (1966); *Clark v. Strain*, 212 Or 357, 363–364, 319 P2d 940 (1958). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: Questions 1a and 1b, and questions 2a and 2b (or questions 1b and 4, and 2b and 5) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1a and 1b, or 2a and 2b); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 1b and 4, or 2b and 5).

11/09

UCJI 90.08 SPECIAL VERDICT—MITIGATION (If Failure to Use a Seat Belt Is Raised in Mitigation)

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury find:

1. Was the defendant [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was the defendant's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

If you answered question 3, go to question 4.

4. Did the plaintiff's failure to use a[n operative and available] seat belt [increase / contribute to] the plaintiff's damages?

ANSWER: (Yes or No)

If "yes," go to question 5.

If "no," do not answer any more questions. Your presiding juror must sign this verdict form.

5. By what percentage were the plaintiff's damages [increased / contributed to] by the plaintiff's nonuse of a[n operative and available] seat belt?

ANSWER: _____% (Your answer may not exceed 5%.)

Do not reduce the damages by this percentage, if any, because the court will do so when entering judgment.

DATED: _____, 20____.

_____
Presiding Juror

_____

COMMENT: ORS 31.760. *See* ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). The parties may choose to separately itemize economic damages if necessary or helpful. This verdict form is to be used in conjunction with UCJI No. 73.02. This verdict is not applicable to actions brought under ORS 30.900 or 30.920, products liability civil actions, nor actions to recover damages for personal injuries arising out of a motor vehicle accident when nonuse of a seat belt is a substantial contributing cause of the accident itself.

The Committee takes no position on whether the "availability and operative condition" of the seat belt applies, in light of *Dahl v. Bayerische Motoren Werke (BMW)*, 304 Or 558, 748 P2d 77 (1987), and given the legislative history of ORS 31.760 (*former* ORS 18.590).

CAVEAT: Questions 1 and 2 (or questions 2 and 3) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining 1 and 2); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining 2 and 3).

The language in this verdict form concerning the "same nine jurors" may be inappropriate in a case involving multiple parties or multiple claims in which answers to verdict questions are not interdependent. *See Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 43–44, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231 (1994); *Veberes v. Knappton Corporation*, 92 Or App 378, 381–383, 759 P2d 279 (1988); *Davis v. Dumont*, 52 Or App 73, 75–77, 627 P2d 907 (1981).

11/09

UCJI 90.09 SPECIAL VERDICT—COMPARATIVE NEGLIGENCE AND MITIGATION (Claim of Failure to Use Operative and Available Seat Belt Raised in Mitigation)

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1. Was the defendant [at fault / negligent] in one or more of the ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was the defendant's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. Was the plaintiff [at fault / negligent] in one or more of the ways the defendant claims?

ANSWER: (Yes or No)

If "yes," go to question 4.

If "no," go to question 6. Do not answer questions 4 or 5.

4. Was the plaintiff's [fault / negligence] a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 5.

If "no," go to question 6. Do not answer question 5.

5. What is the percentage of each of the parties' [fault / negligence] that caused damage to the plaintiff?

ANSWER: Defendant _____%

Plaintiff _____%

(The percentages must total 100%.)

If the plaintiff's percentage of [fault / negligence] is 50% or less, go to question 6.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

6. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

If you answered question 6, go to question 7.

7. Did the plaintiff's failure to use a[n operative and available] seat belt [increase / contribute to] the plaintiff's damages?

ANSWER: (Yes or No)

If "yes," go to question 8.

If "no," do not answer any more questions. Your presiding juror must sign this verdict form.

8. By what percentage were the plaintiff's damages [increased / contributed to] by the plaintiff's nonuse of a[n operative and available] seat belt?

ANSWER: _____% (Your answer may not exceed 5%).

Do not reduce the damages by this percentage, if any, because the court will do so when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* ORS 31.600 (comparative negligence); ORS 31.760 (nonuse of seat belt); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). This verdict form is to be used in conjunction with UCJI No. 73.02. This verdict is not applicable to actions brought under ORS 30.900 or 30.920, products liability civil actions, nor actions to recover damages for personal injuries arising out of a motor vehicle accident when nonuse of a seat belt is a substantial contributing cause of the accident itself. The parties may choose to separately itemize economic damages if necessary or helpful.

The Committee takes no position on whether the "availability and operative condition" of the seat belt applies, in light of *Dahl v. Bayerische Motoren Werke (BMW)*, 304 Or 558, 748 P2d 77 (1987), and given the legislative history of ORS 31.760 (*former* ORS 18.590).

CAVEAT: Questions 1 and 2, and questions 3 and 4 (or questions 2 and 6, and 4 and 6) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining questions 1 and 2, or 3 and 4); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining questions 2 and 6, or 4 and 6).

The language in this verdict form concerning the "same nine jurors" may be inappropriate in a case involving multiple parties or multiple claims in which answers to verdict questions are not interdependent. *See Eulrich v. Snap-On Tools Corp.*, 121 Or App 25, 43–44, 853 P2d 1350 (1993), *vacated and remanded on other grounds*, 512 US 1231 (1994); *Veberes v. Knappton Corporation*, 92 Or App 378, 381–383, 759 P2d 279 (1988); *Davis v. Dumont*, 52 Or App 73, 75–77, 627 P2d 907 (1981).

11/09

UCJI 90.10 SPECIAL VERDICT—EMPLOYER LIABILITY—COMPARATIVE FAULT/NEGLIGENCE

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1. Did the defendant violate the Employer Liability Law in one or more ways the plaintiff claims?

ANSWER: (Yes or No)

If "yes," go to question 2.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was the defendant's violation of the Employer Liability Law a cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 3.

If "no," your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. Was the plaintiff [at fault / negligent] in one or more of the ways the defendant claims?

ANSWER: (Yes or No)

If "yes," go to question 4.

If "no," go to question 6. Do not answer questions 4 or 5.

4. Was the plaintiff's [fault / negligence] a contributing cause of damages to the plaintiff?

ANSWER: (Yes or No)

If "yes," go to question 5.

If "no," go to question 6. Do not answer question 5.

5. What is the percentage of each of the parties' [fault / negligence] that caused damage to the plaintiff?

ANSWER: Defendant _____%

Plaintiff _____%

(The percentages must total 100%.)

If the plaintiff's percentage of [fault / negligence] is 50% or less, go to question 6.

If the plaintiff's percentage of [fault / negligence] is greater than 50%, your verdict is for the defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

6. What are the plaintiff's damages?

ANSWER: Economic Damages $_____.

Noneconomic Damages $_____.

Do not reduce the damages by the plaintiff's percentage of [fault / negligence], if any, because the court will do this when entering judgment.

DATED: _____, 20____.

_____

Presiding Juror

COMMENT: *See* UCJI No. 55.14; ORS 31.600 (comparative negligence); ORCP 59 G(2) (three-fourths of jury may render verdict in civil cases). The parties may choose to separately itemize economic damages if necessary or helpful.

CAVEAT: Questions 1 and 2, and questions 3 and 4 (or questions 2 and 6, and 4 and 6) in this verdict form can be phrased in a single question, but see *Lyons v. Walsh & Sons Trucking Co.*, 337 Or 319, 325–326, 96 P3d 1215 (2004) (the hazards of combining questions 1 and 2, or 3 and 4); *Fatehi v. Johnson*, 207 Or App 719, 143 P3d 561 (2006) (the hazards of combining questions 2 and 6, or 4 and 6).

11/09

UCJI 90.11 SPECIAL VERDICT—PENALTY WAGE DISCHARGE BY EMPLOYER OR MUTUAL AGREEMENT

Download MS Word

At least the same nine jurors must agree to the answer for each of the following questions that you answer.

We, the jury, find:

1. Was plaintiff an employee of defendant?

   ANSWER: _____

   If "yes," go to question 2.

   If "no," your verdict is for defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

2. Was [plaintiff discharged from employment by defendant / plaintiff's employment terminated by mutual agreement]?

   ANSWER: _____

   If "yes," on what date was the [discharge / mutual termination]? ____/____/____.

   Go to question 3.

   If "no," your verdict is for defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

3. Did plaintiff earn wages that were unpaid on the last day of plaintiff's employment?

   ANSWER: _____

   If "yes," go to question 4.

   If "no," your verdict is for defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

4. What is the amount of unpaid wages plaintiff proved? $_____

5. Did defendant pay plaintiff all the wages in question 4 by the end of the first business day after plaintiff's employment ended?

   ANSWER: _____

   If "yes," your verdict is for defendant. Do not answer any more questions. Your presiding juror must sign this verdict form.

   If "no," go to question 6.

6. Was defendant's failure to pay wages *willful*?

   ANSWER: _____

   If "yes," go to question 7.

   If "no," do not answer any more questions. Your presiding juror must sign this verdict form.

7. Did plaintiff provide written notice to defendant that included an estimate of wages owed or facts sufficient to estimate an amount owed?

ANSWER: _____

If "yes," then go to question 8.

If "no," do not answer any more questions. Plaintiff's penalty wages will be calculated by the Court. Your presiding juror must sign this verdict form.

8. Did defendant pay plaintiff the full amount owed in question 4 within 12 days after receiving the written notice from plaintiff?

ANSWER: _____

If "yes," on what date did the defendant pay plaintiff the full amount in question 4? _____/_____/_____.

Do not answer any more questions. Plaintiff's penalty wages will be calculated by the Court. Your presiding juror must sign this verdict form.

If "no," do not answer any more questions. Plaintiff's penalty wages will be calculated by the Court. Your presiding juror must sign this verdict form.

DATED: _____, 20___.

_____

PRESIDING JUROR

_____

COMMENT: Depending on the facts of your case, ORS 652.150 may provide additional, relevant conditions that will require additional questions. To include them all in the model instruction would make it unnecessarily complex, but attorneys should evaluate the statute and consider adding the following and amending the model instruction as appropriate. The following are examples only and do not constitute an exhaustive list from the statutory language of ORS 652.150:

(a) Did defendant terminate one or more other employees on the date plaintiff was terminated?

ANSWER: _____

If "yes" do not answer any more questions. Plaintiff's penalty wages will be calculated by the Court. Your presiding juror must sign this verdict form.

If "no," proceed to question ___.

(b) Did defendant pay plaintiff an estimated amount of wages that was less than the amount due?

ANSWER: _____

If "yes," then go to question ___.

If "no" then skip question ___ and go to question ___.

(c) Did defendant pay plaintiff the full amount of wages in question 4 within five days after plaintiff submitted time records to defendant?

ANSWER: _____

If “yes,” plaintiff is not entitled to penalty wages. Do not answer any more questions. Your presiding juror must sign this verdict form.

If “no,” go to question ___.

4/21

WITHDRAWN INSTRUCTIONS

Professional Perfection Not Required 44.03
Agency—Hospital Context Actual Agent 44.06
Damages for Injuries Caused by a Dog 52.03
Future Plans and Intentions 60.16

UCJI 44.03 PROFESSIONAL PERFECTION NOT REQUIRED

[**WITHDRAWN**]

(The UCJI Committee withdrew this instruction because the Oregon Court of Appeals held that the instruction was "an incorrect statement of law" in *Martineau v. McKenzie-Willamette Medical Center*, 320 Or App 534, 544, ___P3d ___(2022).)

Physicians are not negligent merely because their efforts were unsuccessful. A physician does not guarantee a good result by undertaking to perform a service.

COMMENT: *Crewse v. Munroe*, 224 Or 174, 177, 355 P2d 637 (1960); *Hotelling v. Walther*, 169 Or 559, 562, 130 P2d 944 (1942).

7/22

UCJI 44.06 AGENCY—HOSPITAL CONTEXT ACTUAL AGENT

[WITHDRAWN]

(The UCJI Committee withdrew this instruction in light of *Eads v. Borman*, 351 Or 729, 277 P3d 503 (2012), and *Towner v. Bernardo*, 304 Or App 397, 467 P3d 17, *rev den*, 367 Or 115 (2020). A comment was added to UCJI 30.04A (actual agent) to address these cases.)

A person is an actual agent of a hospital when:

(1)The person was performing services that are integral to the hospital's business; and

(2)The hospital holds itself out as providing those services to the public.

COMMENT: *Jones v. Salem Hospital*, 93 Or App 252, 267–68, 762 P2d 303 (1988); *Themins v. Emanuel Lutheran Charity Board*, 54 Or App 901, 908, 637 P2d 155 (1981).

7/23

UCJI 44.06 AGENCY—HOSPITAL CONTEXT APPARENT AGENT

[WITHDRAWN]

(The UCJI Committee withdrew this instruction in light of *Eads v. Borman*, 351 Or 729, 277 P3d 503 (2012), and *Towner v. Bernardo*, 304 Or App 397, 467 P3d 17, *rev den*, 367 Or 115 (2020). A comment was added to UCJI 30.04C (apparent agent) to address these cases.)

A person is an apparent agent of a hospital when:

(1)The person performed medical services and the hospital holds itself out as a provider of those services;

(2)It is objectively reasonable for a patient to believe that the person was an agent or employee of the hospital; and

(3)The patient did not actually know that the person was not an agent or employee of the hospital.

COMMENT: *Jennison v. Providence St. Vincent Med. Center*, 174 Or App 219, 235, 25 P3d 358 (2001); *Shepard v. Sisters of Providence*, 89 Or App 579, 585–89, 750 P2d 500 (1988); *Themins v. Emanuel Lutheran Charity Board*, 54 Or App 901, 908, 637 P2d 155 (1981).

7/23

UCJI 52.03 DAMAGES FOR INJURIES CAUSED BY A DOG

[**WITHDRAWN**]

(The UCJI Committee withdrew this instruction and combined the text from this instruction into the text of UCJI 52.02.)

The plaintiff alleges economic and noneconomic damages caused by a dog.

To recover economic damages, the plaintiff must prove the following by a preponderance of the evidence:

(1)The defendant was the possessor of the dog; and

(2)The defendant failed to use reasonable care to prevent the dog from harming the plaintiff.

To recover noneconomic damages, the plaintiff must prove elements (1) and (2), and:

(3)The defendant knew or should have known that the dog would cause the injury if the defendant did not control or confine the dog.

COMMENT: ORS 31.360. To recover economic damages arising from injuries caused by a dog, a plaintiff does not have to prove that the injuries were foreseeable to the possessor of the dog, and the defendant may not assert a defense that the injuries were not foreseeable.

7/23

UCJI 60.16 FUTURE PLANS AND INTENTIONS

[**WITHDRAWN**]

(The UCJI Committee withdrew this instruction because the content is sufficiently addressed in UCJI 60.13.)

In determining the fair cash market value of the property being taken from the defendant, you may not consider evidence of the plans and intentions of the defendant for the future use of the property.

COMMENT: *Dept. of Trans. v. El Dorado Properties*, 157 Or App 624, 628–30, 971 P2d 481 (1998).

This instruction is suggested for use only in those cases in which the trial court believes it necessary because of reference to speculative plans and intentions, and in conjunction with an instruction on highest and best use, if the highest and best use of the subject property is an issue.

12/05